

Revised State Template for the Consolidated State Plan

The Elementary and Secondary Education Act of 1965, as amended by the Every Student Succeeds Act



U.S. Department of Education
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Introduction

Section 8302 of the Elementary and Secondary Education Act of 1965 (ESEA), as amended by the Every Student Succeeds Act (ESSA),¹ requires the Secretary to establish procedures and criteria under which, after consultation with the Governor, a State educational agency (SEA) may submit a consolidated State plan designed to simplify the application requirements and reduce burden for SEAs. ESEA section 8302 also requires the Secretary to establish the descriptions, information, assurances, and other material required to be included in a consolidated State plan. Even though an SEA submits only the required information in its consolidated State plan, an SEA must still meet all ESEA requirements for each included program. In its consolidated State plan, each SEA may, but is not required to, include supplemental information, such as its overall vision for improving outcomes for all students and its efforts to consult with and engage stakeholders when developing its consolidated State plan.

Completing and Submitting a Consolidated State Plan

Each SEA must address all of the requirements identified below for the programs that it chooses to include in its consolidated State plan. An SEA must use this template or a format that includes the required elements and that the State has developed working with the Council of Chief State School Officers (CCSSO).

Each SEA must submit to the U.S. Department of Education (Department) its consolidated State plan by one of the following two deadlines of the SEA's choice:

- **April 3, 2017;** or
- **September 18, 2017.**

Any plan that is received after April 3, but on or before September 18, 2017, will be considered to be submitted on September 18, 2017. In order to ensure transparency consistent with ESEA section 1111(a)(5), the Department intends to post each State plan on the Department's website.

Alternative Template

If an SEA does not use this template, it must:

- 1) Include the information on the Cover Sheet;
- 2) Include a table of contents or guide that clearly indicates where the SEA has addressed each requirement in its consolidated State plan;
- 3) Indicate that the SEA worked through CCSSO in developing its own template; and
- 4) Include the required information regarding equitable access to, and participation in, the programs included in its consolidated State plan as required by section 427 of the General Education Provisions Act. See Appendix B.

¹ Unless otherwise indicated, citations to the ESEA refer to the ESEA, as amended by the ESSA.

Individual Program State Plan

An SEA may submit an individual program State plan that meets all applicable statutory and regulatory requirements for any program that it chooses not to include in a consolidated State plan. If an SEA intends to submit an individual program plan for any program, the SEA must submit the individual program plan by one of the dates above, in concert with its consolidated State plan, if applicable.

Consultation

Under ESEA section 8540, each SEA must consult in a timely and meaningful manner with the Governor, or appropriate officials from the Governor's office, including during the development and prior to submission of its consolidated State plan to the Department. A Governor shall have 30 days prior to the SEA submitting the consolidated State plan to the Secretary to sign the consolidated State plan. If the Governor has not signed the plan within 30 days of delivery by the SEA, the SEA shall submit the plan to the Department without such signature.

Assurances

In order to receive fiscal year (FY) 2017 ESEA funds on July 1, 2017, for the programs that may be included in a consolidated State plan, and consistent with ESEA section 8302, each SEA must also submit a comprehensive set of assurances to the Department at a date and time established by the Secretary. In the near future, the Department will publish an information collection request that details these assurances.

For Further Information: If you have any questions, please contact your Program Officer at OSS.[State]@ed.gov (e.g., OSS.Alabama@ed.gov).

Cover Page

Contact Information and Signatures	
SEA Contact (Name and Position): Theresa Billington, Assistant Commissioner, Office of Accountability	Telephone:(518) 486-9355
Mailing Address: 89 Washington Ave, Room 875 EBA, Albany, NY 12234	Email Address: Theresa.Billington@nysed.gov
By signing this document, I assure that: To the best of my knowledge and belief, all information and data included in this plan are true and correct. The SEA will submit a comprehensive set of assurances at a date and time established by the Secretary, including the assurances in ESEA section 8304. Consistent with ESEA section 8302(b)(3), the SEA will meet the requirements of ESEA sections 1117 and 8501 regarding the participation of private school children and teachers.	
Authorized SEA Representative (Printed Name) Dr. Betty A. Rosa, Commissioner	Telephone: (518) 474-5844
Signature of Authorized SEA Representative 	Date: 01/16/25
Governor (Printed Name) Kathy Hochul	Date SEA provided plan to the Governor under ESEA section 8540: August 2024
Signature of Governor	Date:

Programs Included in the Consolidated State Plan

Instructions: Indicate below by checking the appropriate box(es) which programs the SEA included in its consolidated State plan. If an SEA elected not to include one or more of the programs below in its consolidated State plan, but is eligible and wishes to receive funds under the program(s), it must submit individual program plans for those programs that meet all statutory and regulatory requirements with its consolidated State plan in a single submission.

☒ Check this box if the SEA has included all of the following programs in its consolidated State plan.

or

If all programs are not included, check each program listed below that the SEA includes in its consolidated State plan:

- ☐ Title I, Part A: Improving Basic Programs Operated by Local Educational Agencies
- ☐ Title I, Part C: Education of Migratory Children
- ☐ Title I, Part D: Prevention and Intervention Programs for Children and Youth Who Are Neglected, Delinquent, or At-Risk
- ☐ Title II, Part A: Supporting Effective Instruction
- ☐ Title III, Part A: English Language Acquisition, Language Enhancement, and Academic Achievement
- ☐ Title IV, Part A: Student Support and Academic Enrichment Grants
- ☐ Title IV, Part B: 21st Century Community Learning Centers
- ☐ Title V, Part B, Subpart 2: Rural and Low-Income School Program
- ☐ Title VII, Subpart B of the McKinney-Vento Homeless Assistance Act: Education for Homeless Children and Youth Program (McKinney-Vento Act)

Instructions

Each SEA must provide descriptions and other information that address each requirement listed below for the programs included in its consolidated State plan. Consistent with ESEA section 8302, the Secretary has determined that the following requirements are absolutely necessary for consideration of a consolidated State plan. An SEA may add descriptions or other information, but may not omit any of the required descriptions or information for each included program.

In March 2017, the Chancellor of the Board of Regents, Dr. Betty A. Rosa, presented the Board's mission:



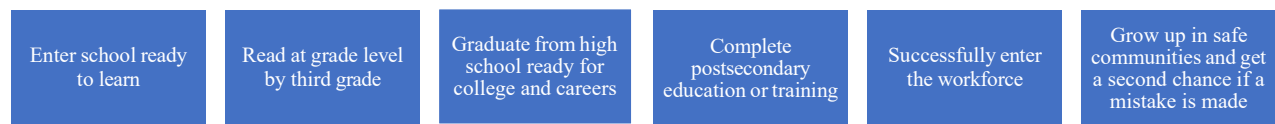
“The mission of the New York State Board of Regents is to ensure that every child has equitable access to the highest quality educational opportunities, services and supports in schools that provide effective instruction aligned to the state’s standards, as well as positive learning environments so that each child is prepared for success in college, career, and citizenship.”

To that end, the Regents and Department of Education seek to address the following goals in this ESSA plan:

- Provide all students comparable access to a world-class curriculum aligned to Next Generation State standards.
- Focus on reducing persistent achievement gaps by promoting the equitable allocation of resources in all public schools and the provision of supports for all students.
- Support educator excellence and equity through the entire continuum of recruitment, preparation, induction, professional learning, evaluation, and career development of teachers and school leaders.
- Build an accountability and support system that is based upon multiple measures of college, career, and civic readiness.
- Use performance measures that incentivize all public schools to move all students to higher levels of achievement and attainment and measure student growth from year to year.
- Identify low-performing schools by using multiple measures, assist in identifying the root causes of low performance, support school improvement by using a differentiated and flexible support system that is based upon the individual needs of each school, and provide supports to districts and schools to implement high-quality improvement plans and improve student outcomes.
- Recognize the effect of school environment on student academic performance and support efforts to improve the climate of all schools.
- Ensure that all students have access to support for their social-emotional well-being.
- Provide all students access to extra-curricular opportunities so that students can serve their schools and their communities, participate in community-based internships, and engage in sports and arts.
- Promote a relationship of trust, cultural responsiveness, and respect between schools and families, recognizing that student achievement and school improvement are shared responsibilities.
- Ensure that effective educator practice is driven by an understanding of content knowledge, evidenced-based instructional practices, and a commitment to all students and their families.
- Ensure that students with disabilities are provided services and supports consistent with the principles of the [Blueprint for Improved Results for Students with Disabilities](#).
- Provide educators with opportunities for continual professional development in the areas of equity, anti-bias, multicultural, and culturally responsive pedagogies.
- Support districts and their communities in engaging in critical conversations about culturally responsive educational systems.
- Support schools in developing and implementing policies that result in all students being educated to the maximum extent possible with their general education peers and provide appropriate supports and services to promote positive student outcomes.

To these ends, the plan develops a set of indicators that will: a) reveal how New York State schools provide students with opportunities to learn and support many dimensions of learning, b) provide a set of expectations for progress for the State, districts, and schools, and c) measure the effectiveness of supports provided to schools to meet these expectations. The plan also describes strategies by which New York State can create a learning system so that schools and districts can collaborate in developing strategies to align practice to research, and the Department can support a knowledge development and dissemination agenda on behalf of continual improvement.

The above goals are aligned with those recently articulated by the Board of Regents as part of the My Brother's Keeper Initiative² that include ensuring that all students:



The Board of Regents is committed to using its ESSA plan and the My Brother's Keeper initiative to mutually support the development and adoption of policies and programs that promote the values of socioeconomic, racial, cultural, and other kinds of diversity.

The Board of Regents also is committed to using its ESSA plan to increase equity of outcomes in New York State's schools. Among a wide variety of ways in which New York State envisions that its ESSA plan will promote educational equity, we highlight the following "baker's dozen:"

1. Publish, annually, the per-pupil expenditures for each Local Education Agency (LEA) and school in the State to highlight instances in which resources must be reallocated to better support those students with the greatest needs.
2. Publish, annually, a report examining equitable access to effective teachers per district and facilitate the ability of districts to address inequities through strengthening mentoring/induction programs, targeting professional development, or improving career ladders.
3. Use the Needs Assessment process for low-performing schools to identify inequities in resources available to schools, and require districts to address these inequities in their improvement plans.
4. Reduce inequities in the allocation of resources to schools by districts by establishing an annual cycle of resource allocation reviews in districts with large numbers of identified schools.
5. Direct additional support and assistance to low-performing schools, based on school results and the degree to which they are improving.
6. Focus on fairness and inclusion of all New York State students in State assessments through the involvement of educators and the application of Universal Design for Learning concepts in test development.
7. Leverage the creation of P-20 partnerships that explicitly recognize the importance of institutions of higher education and other preparatory programs to improve the quality

² [New York State, My Brother's Keeper Initiative.](#)

and diversity of the educator workforce.

8. Require that districts include in any future collective bargaining agreements a provision that any teacher transferring from another school in the district to a Comprehensive Support and Improvement school must have been rated as Effective or Highly Effective in the most recent evaluation year.
9. Use Title I School Improvement Funds to support the efforts of districts to increase diversity and reduce socio-economic and racial/ethnic isolation and bias in schools.
10. Develop State and local policies and procedures to ensure that homeless youth are provided the same access to appropriate educational supports, services, and opportunities as their peers.
11. Create uniform transition plans for students exiting neglected or delinquent facilities and require school districts to appoint a transition liaison to ensure equal supports for the students' successful return to school.
12. Explicitly design the State accountability and support system to require schools and districts to a) reduce gaps in performance between all subgroups, b) incentivize districts to provide opportunities for advanced coursework to all high school students, c) continue to support all students who need more than four years to meet graduation requirements, and d) work with all students who have left school so that they can earn a high school equivalency diploma.
13. Ensure that cultural responsiveness informs all school policies and practices and guides interactions among all members of the school community.

Together, these goals reflect the State's commitment to improving student learning results for all students by creating well-developed, culturally responsive, and equitable systems of support for achieving dramatic gains in student outcomes.

New York State posits that these goals can be achieved

IF ...

1. New York State identifies the characteristics of highly effective schools that provide culturally responsive teaching and learning
2. Schools, districts, and the State collaborate to determine the degree to which each school demonstrates the characteristics of a highly effective schools
3. Schools, districts, and the State collaborate to develop plans to address gaps between the current conditions in each school and the characteristics of highly effective schools
4. Schools and districts are provided with resources, including human capital, to implement these plans
5. These resources are used to effectively implement plans that are assessed regularly and revised as appropriate
6. Additional supports and interventions occur when schools and districts that are low-performing do not improve

... THEN ...

New York State will eliminate gaps in achievement.

STAKEHOLDER ENGAGEMENT

The New York State Education Department (NYSED or “the Department”) and the New York State Board of Regents began the process of soliciting public input and feedback regarding the development of the state’s required plan in May 2016. Throughout the process, the New York State Board of Regents has remained committed to ensuring that all stakeholder voices are heard and discussions between groups with diverse viewpoints are encouraged. New York State is very diverse: culturally, linguistically, racially, economically, and geographically. The Department and Board of Regents created a strategic framework for engaging stakeholders to develop a plan that meets the unique needs of the state and its students. This framework included the following activities that are described in more detail in the sections that follow:

- **Creation of the ESSA Think Tank**
- **Regular consultation with the Title I Committee of Practitioners**
- **Fall and Winter Regional Stakeholder Meetings on ESSA**
- **Public On-line Surveys**
- **Spring Public Hearings on the ESSA Draft Plan and Public Comment Period on the ESSA Draft Plan**
- **Educator Conference on ESSA**
- **Consultation with National Educational Experts**
- **Updates to the Board of Regents on ESSA, with items, presentations, and webcasts also available to the public on the Board of Regents webpage.**

ESSA Think Tank

At the May 2016 meeting of the Board of Regents, Department staff requested approval of a plan to engage stakeholders through establishment of an ESSA Think Tank (“the Think Tank”). The Department has successfully used this strategy in the past to consult with stakeholders on the ESEA Flexibility Waiver applications. To be well-prepared to take advantage of potential new flexibility and ensure stakeholder input in the creation of a new state plan, the Department invited representatives of key stakeholder organizations, as well as experts in accountability systems, to participate in an ESSA Think Tank. Members of the Think Tank were asked to help NYSED staff review the new requirements and opportunities presented within ESSA and provide recommendations for a set of guiding principles to be used in developing the plan. Members of the Think Tank were also asked to provide recommendations and feedback on specific components of the plan as it was developed. As New York State’s draft plan evolved, members were asked to share information from the Think Tank with their organizations and, in turn, to solicit feedback to share with the Think Tank. A complete list of organizations that participated in the

Think Tank can be found on the Department's ESSA Website:
<https://www.nysed.gov/essa/archive>.

The Think Tank convened at least once a month, beginning in June 2016, in Albany, New York and/or via Webinar, for a total of 15 meetings to date. Prior to the first meeting in Albany, members were invited to participate in two webinars related to the provisions of ESSA and how the state can move forward to respond to the ESSA requirements. The Department created an [ESSA Think Tank webpage](#), which catalogued various ESSA resource documents and the presentations given at each meeting.

In addition to in-person monthly meetings of the Think Tank, members were given the option of joining one of six ESSA topical workgroups. These groups met regularly, typically at least twice a month, usually via phone conference or webinars. The workgroups were organized to address specific strategies and proposals related to the ESSA requirements pertaining to:

- Challenging Academic Standards and Assessments
- Accountability Measurements and Methodologies
- Supporting English language Learners/Multilingual Learners
- Supports and Improvements for Schools
- Supports for Excellent Educators
- Supports for All Students

In the beginning months of the Think Tank, the group helped the Department to craft a series of Guiding Principles to inform development of the ESSA application. The Think Tank also provided feedback on the revisions to the Guiding Principles. The Department and Think Tank members agreed that NYS's ESSA State plan should be created with the goal of supporting the development of highly effective schools and encouraging and enabling all schools toward becoming or remaining highly effective. Based on the Department's engagement with the Think Tank, a series of statements intended to articulate the characteristics of highly effective schools was crafted. The draft Guiding Principles and Characteristics of Highly Effective Schools were presented to the Board of Regents at its July 2016 meeting.

Using the Guiding Principles and the Characteristics of Highly Effective Schools as foundational documents, the ESSA Think Tank workgroups discussed essential questions that needed to be answered in each section of the state plan. The work groups were among the main modes for consultation on the two areas within the application that required direct consultation. The Challenging Academic Standards and Assessments work group discussed and formulated proposals related to how the state would determine the minimum number of students within a subgroup (n-size). The Supporting English Language Learners and Multilingual Learners group discussed how the state will determine which languages are present to a significant extent in the participating student population,

including English Language Learners who are migratory, English Language Learners who were not born in the United States, and English Language Learners who are Native Americans, languages other than English that are spoken by a significant portion of the participating student population in one or more of the state's LEAs, as well as languages spoken by a significant portion of the participating student population across grade levels.

In September 2016, the Department began working with the Think Tank on summarizing areas of consensus on the essential questions. These summaries, in large part, served as the starting point for the development of a set of High Concept Ideas. In conjunction with the Think Tank, the Department drafted an initial list of 36 High Concept Ideas in response to the essential questions and guided by the discussions within the Think Tank. Over time, to support development of New York State's draft plan, the Think Tank developed additional High Concept Ideas, resulting in a total of 51 High Concept Ideas being presented to the Board of Regents. The vast majority of these High Concept Ideas have been embedded in New York State's ESSA plan.

As noted above, the Think Tank served as a thought partner with Department staff to develop the activities and materials that were used in the meetings to engage stakeholders around the state in a discussion of ESSA. In fall 2016, the Think Tank discussed and provided feedback on the first round of Public ESSA meetings. Think Tank members were also encouraged to attend those meetings and subsequently provide their thoughts on how the meetings were conducted. Similarly, when the Department arranged Winter ESSA Public Meetings, the Think Tank helped the Department to create discussion questions for the participants that focused on issues that the Department was contemplating related to the draft ESSA plan.

At different points throughout development of the plan, the workgroups reported to the Think Tank about their progress.

In April and May 2017, members were provided with proposals that were being considered for incorporation in the draft ESSA plan and invited to provide feedback. Department staff used this feedback to finalize the draft plan presented to the Board of Regents in May 2017. Subsequently, the Board of Regents released the draft plan in May 2017 for public comment and announced that 13 Regional ESSA Public Hearings would be conducted. Think Tank members were asked to inform their constituents of the public comment period and the hearings, as well as to submit formal public comment on behalf of the organizations that the members represented. In June 2017, members of the Think Tank were given an opportunity to formally present the feedback of their organization on the draft plan to Department staff.

Following submission of the plan in September 2017, the Department will continue its collaboration with the Think Tank with a focus on feedback and suggestions regarding the operationalization of the plan and how to communicate the new requirements and initiatives to a diverse set of stakeholders.

Committee of Practitioners

ESSA requires each state that receives Title I funds convene a Committee of Practitioners

(COP) to advise the state in carrying out its responsibilities under Title I. The duties of the COP include a review, before publication, of any proposed or final state rule or regulation related to Title I. In New York State, the COP committee is presently comprised of organizations including, but not limited to, Local Education Agencies (LEAs); Boards of Cooperative Educational Services (BOCES); Institutions of Higher Education (IHE); and organizations that represent school boards, superintendents, school administrators, teachers, paraprofessionals, parents, nonpublic schools, and community partners.

Beginning in May 2016, the COP has been provided with regular updates regarding ESSA and several opportunities to provide the Department with feedback on the development of the plan. The COP has conducted extensive discussions on ESSA more than ten times since May 2016. The Committee of Practitioners were asked (in addition to the Think Tank) to provide feedback on the draft Characteristics of Highly Effective Schools, Guiding Principles, and High Concept Ideas. The COP provided valuable feedback that led to thoughtful revisions of these policy documents prior to their presentation to the Board of Regents and use at the Fall Regional ESSA State Plan Development meetings.

In addition to updates, the COP has been asked for feedback on proposed ideas for the plan and has been surveyed regarding accountability issues and indicators related to the plan. The Department maintains a [Title I COPS Committee website](#) where agendas and materials for each meeting are posted.

Fall and Winter Regional ESSA State Plan Development Meetings

NYSED held more than 120 Fall and Winter Regional in-person meetings across the state in coordination with the state's 37 Boards of Cooperative Educational Services (BOCES) and the superintendents of the state's five largest city school districts (Buffalo, New York City, Rochester, Syracuse and Yonkers). These meetings were attended by more than 4,000 students, parents, teachers, school and district leaders, school board members, and other stakeholders. To familiarize participants with the requirements for ESSA, and the various issues that would be discussed at the meeting, the Department created a public [Every Student Succeeds Act \(ESSA\) website](#).

Fall Meetings

The purpose of the Fall Regional ESSA State Plan Development Meetings was to engage stakeholders in an introductory discussion of the requirements of ESSA and the draft High Concept Ideas. Fall Regional ESSA State Plan Development Meetings were held across the state and hosted by District Superintendents and Superintendents of the Big 5 school districts (Buffalo, New York City, Rochester, Syracuse and Yonkers) in the last two weeks of October and in early November 2016. The fall meeting was by invitation only, and the Department provided guidance to facilitators to ensure that parents, teachers, district staff, community members, students, and community based organizations were represented. The Department also provided facilitators with a list of the organizations that are part of the Think Tank and encouraged them to invite the local representatives of those organizations in addition to the unique local stakeholders in their region.

Regional Meeting Facilitators provided the Department with a summary of the feedback received on the High Concept Ideas, based upon the discussions at the meetings. In addition, each participant had the opportunity to provide feedback by completing an on-line survey.

The feedback received during the Fall meetings was summarized and presented to the Board of Regents at its November 2016 meeting. A total of 2,206 persons participated in 40 Regional meetings. A total of 585 surveys were submitted by participants. A complete summary of the feedback received from the Fall meetings is available in a presentation to the Board of Regents, posted on the Department's Board of Regents website here: [Development of New York's Every Student Succeeds Act State Plan, Presented to the Board of Regents November 14, 2016.](#)

Winter Meetings

The NYSED provided an additional opportunity for stakeholder and public input, from February 27 through March 17, 2017, at the Winter Regional Open Meetings on ESSA. District Superintendents and Superintendents of Buffalo, New York City, Rochester, Syracuse and Yonkers hosted open public meetings to gather public input on questions related to the continued development of the draft state ESSA plan.

The meetings were focused on 14 questions for which the Department wished feedback on specified options, before making recommendations for how to address these questions in developing the draft of New York's State ESSA application. Questions addressed such issues as: possible new innovative assessment practices that New York may wish to seek approval to pilot; assessment and accountability requirements for newly arrived English language learners, strategies for pre-service preparation and professional support for educators; design of the state's public school accountability system; and supports and interventions in low-performing schools.

Seventy-six regional meetings were held in March and early April 2017 across the state, with 1,277 participants total, and the submission of 246 meeting surveys. Regional meeting facilitators provided the Department with a summary of the feedback on the questions to be considered, based upon the discussions at the meetings. In addition, each participant had the opportunity to provide feedback by completing an on-line survey.

Public On-line Surveys: Guiding Principles, Characteristics of Highly Effective Schools, Possible Indicators of School Quality and Student Success

To ensure that the Department received feedback from a large and diverse group of stakeholders, public on-line surveys were released throughout the development of the plan. These surveys were promoted and distributed to the public in the following ways:

- Press releases to the media;
- Through the Think Tank members, who were encouraged to distribute the survey links to their constituents;
- Through COP committee members, who were asked to share the survey links with

their constituents;

- Social Media posts from the Department;
- Through the Commissioner's regular newsletter to the public; and
- Through Department listservs that include District Title I Directors, District Grant administrators, District Liaisons, Nonpublic Schools representatives, and Charter Schools.

This chart outlines public on-line surveys open to the public, and the number of responses:

Survey Topic	Date released	# of Responses
Characteristics of Highly Effective Schools and ESSA Guiding Principles	07/11/2016	606
Fall Regional Meeting: Proposed High Concept Ideas	10/18/2016	585
Possible Indicators of School Quality and Student Success	01/23/2017	2,416
Winter Regional Meeting: Questions to Consider	02/23/2017	246

In addition to these surveys, which were open to the public, the Department used surveys extensively with both the Think Tank and the COP to assess where there were areas of consensus on issues discussed at the meetings.

The largest number of survey responses came from the Survey on Possible Indicators of School Quality and Student Success, with 2,416 respondents. New York State solicited feedback about indicators that could be used beginning with 2017-18 school year results, as well as those that might be added to the system in the future. The [interim results of the survey on indicators of school quality](#) were discussed at length by the Board of Regents during its March 2017 ESSA Retreat.

The Board of Regents ultimately used the survey feedback to determine that New York State would use chronic absenteeism as an indicator for School Quality and Student Success at the elementary, middle, and high school levels. More than two-thirds of survey respondents strongly supported or supported the use of chronic absenteeism as a measure of school quality and student success. Additionally, at the high school level, New York State will initially use a College, Career, and Civic Readiness Index as a measure of school quality and student success. Such an indicator drew substantial support from respondents to the survey mentioned above, with two-thirds strongly supporting or supporting the use

of a College, Career, and Civic Readiness Index. The survey results are also being used to determine what measures will be incorporated into New York State's data dashboard and considered for inclusion in the accountability system once valid and reliable baseline data becomes available.

Spring 2017 Public Hearings on the ESSA Draft Plan and Public Comment Period on the ESSA Draft Plan

On May 8, 2017, the Board of Regents released the state's draft ESSA plan for public comment and review. As described above, NYSED held more than 120 stakeholder and public meetings to gather input to help inform the development of the draft plan. The Department also hosted 13 public hearings on the plan from May 11 through June 16 and accepted public comment on the plan through June 16, 2017.

At the 13 Public Hearings, there were more than 270 speakers who provided the Department with their feedback. Additionally, over 800 comments were received on the draft plan during the public comment period. In general, the commenters wanted the Department to:

- Provide clarity on 95% Participation Rate calculations and required actions. There was concern about how the 95% participation rate requirement would affect some school accountability classifications.
- Expand school accountability indicators to include Opportunity to Learn indicators/index; student access to and/or participation in a full educational program (science, arts, music, and physical education); and a "School Health Index."
- Continue support for Transfer Schools and use alternative metrics to hold them accountable for results.
- Continue its focus on teacher preparation. Commenters stated that the quality of the field experience is more important than quantity of time spent. Also, commenters stated that educators need more preparation on teaching students with different learning styles.
- Increase access to culturally responsive education, career-ready coursework, and digital technology.
- Appoint a task force on cultural responsiveness that includes parents and experts to review state learning standards, school and district assessment, teacher assessment certification requirements, and recommend changes that will increase cultural responsiveness and improve instruction pedagogy and school climate."
- About one third of the written comments were from three letter writing campaigns:
 - One campaign advocated for higher standards for accountability for all schools with all students; a rating system based upon single overall ratings

for each school; and increased parental involvement in all steps of the improvement plan process.

- Another campaign advocated for the inclusion of creative arts therapists as Specialized Instructional Support Personnel (SISP) in the ESSA provisions for New York State.
- The third campaign commended the Board of Regents for the inclusion of school library provisions in the ESSA draft plan.

Many commenters applauded the specific focus on English Language Learners and Multilingual Learners (ELLs/MLLs) within the draft plan. Some had concerns about testing requirements for ELLs/MLLs. Several stakeholders asked that career and technical education pathways and coursework get as much attention as Advanced Placement or International Baccalaureate classes. Several commenters commended the support of students' equitable access to digital technology and recommended that the state include additional, allowable school library provisions in the final plan. Many stakeholders expressed appreciation for the opportunity to provide input and feedback on the development of the state's draft plan over the past year and noted the wide variety of stakeholders that have been engaged along the way, as well. Some stakeholders raised concerns about the level of funding that is needed to fully achieve the plan, particularly for high-poverty schools and districts.

A complete analysis of the public comments received was presented at the July 2017 Board of Regents meeting, along with the Department's response to those comments. This analysis can be found at: [Final Stakeholder Feedback Analysis](#)

Educator Conference on ESSA

Educators will be at the forefront of the implementation of the state's ESSA plan, and therefore the state has prioritized their involvement in the creation of the plan. In addition to serving on the ESSA Think Tank and the COP and attending the ESSA regional meetings, educators also participated in ESSA Conference for Educators held in June 2017.

Districts were invited to have local educators apply to attend the one-day conference in Albany, New York. Attendees were provided an overview of the state's draft plan, and were engaged in discussions surrounding the proposed strategies. Educators provided the Department with valuable feedback on how to effectively support implementation of the plan across the state.

Over the next six months to a year, teachers and principals and district personnel will require training on the state's new accountability system. The Department is committed to continuing its engagement with educators during this period, as educators will be able to provide real-time, practical feedback on the implementation of the plan.

Consultation with National Education Experts

To align stakeholder input with ESSA state plan requirements, the Department and Board of Regents also worked closely with national education experts. Early in the plan

development process, the Board of Regents engaged with Dr. Linda Darling Hammond, from the Learning Policy Institute, and Dr. Scott Marion, from the National Center for the Improvement of Educational Assessment, to provide technical assistance and support to the Department and the Board of Regents.

Linda Darling Hammond, President and CEO of the Learning Policy Institute, is a nationally recognized expert in education policy. She has consulted widely with federal, state, and local officials and educators on strategies for improving education policies and practices. Over the past year, Dr. Hammond has presented to the Board of Regents several times, providing updates on the ESSA statute and facilitating the Board's discussion related to school accountability. More information about Dr. Hammond's expertise and work is available at the [Learning Policy Institute's website](#).

Scott Marion is the Executive Director of the National Center for the Improvement of Educational Assessment. Dr. Marion works with states to design and support implementation of assessment and accountability reforms, develop and implement educator evaluation systems, and design and implement high quality, locally designed performance-based assessments. He is a national leader in designing innovative and comprehensive assessment systems to support instructional and accountability uses, including helping states and districts design systems of assessments for evaluating student learning of identified competencies. Dr. Marion has also presented to the Board of Regents several times, providing them with an understanding of the ESSA school accountability requirements, and facilitating the Board's discussion related to school accountability. Dr. Marion and his colleague Dr. Jennifer Dunn have supported the Department as it designed its new school accountability system and determined how to identify schools for Comprehensive and Targeted Intervention under ESSA. More information about Dr. Marion's expertise and work is available at the [Center for Assessment's website](#).

In addition to working with Dr. Hammond and Dr. Marion, the Department engaged in extensive research to understand the law and the opportunities that it provides. This research included meetings with the following organizations:

- U.S. Department of Education
- Brustein & Manasevit – a law firm recognized for its federal education regulatory and legislative practice
- Education First on the development of materials for dissemination to the public and policymakers
- Council of Chief State School Officers (CCSSO), which has provided access to many national experts, including: Brian Gong (National Center for the Improvement of Educational Assessment), Kenji Hakuta (Stanford University), Dr. Pete Goldschmidt (California State University, Northridge), Delia Pompa (Migration

Policy Institute), Gene Wilhoit (National Center for Innovation in Education), and Susie Saavedra (National Urban League)

Public Presentations to the Board of Regents

The Board of Regents has always valued transparency and the engagement of stakeholders. To that end, Department presentations to the Board of Regents have always been made available to the public, including access through links on the Board of Regents website to the meeting webcasts. Since May 2016, Department staff have provided regular ESSA updates to the Board of Regents. The following is a listing of ESSA Update Presentations made to the Board of Regents, with links to the presentations:

Month/Year	Presentation Link
May 2016	<u>Elementary and Secondary Education Act (ESEA) Reauthorization/Every Student Succeeds Act (ESSA)</u>
July 2016	<u>Update on the Every Student Succeeds Act (ESSA)</u> <u>ESSA and McKinney-Vento</u>
October 2016	<u>Every Student Succeeds Act (ESSA) State Plan Development Activities</u>
November 2016	<u>Development of New York's Every Student Succeeds Act State Plan</u>
December 2016	<u>Update: Development of New York's Every Student Succeeds Act (ESSA) State Plan</u>
January 2017	<u>Development of the New York State Every Student Succeeds Act Plan: High Concept Ideas and Survey on Possible Indicators of School Quality and Student Success</u>
March Retreat 2017	<u>March 27, 2017 Board of Regents ESSA Retreat (6 presentations)</u>
April 2017	<u>6 Presentations on ESSA</u>
May 2017	<u>Overview of New York's Draft Every Student Succeeds Act (ESSA) Plan</u>
June 2017	<u>Every Student Succeeds Act (ESSA) State Plan: Update on Public Hearings and Public Comment</u>
July 2017	• <u>Proposed Changes Final Draft Plan - Commissioner's Presentation to the Board</u>

Month/Year	Presentation Link
	• <u>State Dashboards Presentation Slides</u> • <u>Next Generation Assessment Systems Presentation Slides</u> • <u>Social, Emotional, Health, Mental Health, and Attendance Issues Presentation Slides</u> • <u>Stakeholder Feedback Analysis Presentation Slides</u>
September 2017	<u>Every Student Succeeds Act (ESSA) State Plan - Proposed Plan for Submission to US Department of Education</u>

Conclusion

For the past year, the New York State Education Department has intentionally and meaningfully engaged diverse groups of stakeholders to solicit a range of thoughts, opinions and recommendations on how to craft an ESSA plan that best meets the needs of the State’s students, schools, and communities. Over 5,000 students, parents, teachers, school and district leaders, school board members, and other stakeholders participated in the Department’s stakeholder engagement initiatives.

Overall Timeline of Stakeholder Engagement

Month/Year	Activity
May 2016	First ESSA Briefing to Board of Regents
June 2016	First ESSA Think Tank Meeting – over 100 stakeholder organizations
July 2016	Public Survey on Characteristics of Highly Effective Schools and ESSA Guiding Principles
September 2016	Fall Regional ESSA Meetings
October 2016	Fall Regional ESSA Meetings
January 2017	Public Survey on Possible Indicators of School Quality and Student Success
February 2017	Winter Regional Meetings
March 2017	Winter Regional Meetings Board of Regents ESSA Retreat
May 2017	ESSA Draft Plan Public Hearings

Month/Year	Activity
	Public Comment Period for Draft Plan
June 2017	ESSA Draft Plan Public Hearings Public Comment Period for Draft Plan

Rebuild Phase: Plan Amendment Based on 2022–2023 and 2023–2024 School Year Results

After a pause of the accountability system due to the impacts of the COVID-19 pandemic, the New York State Education Department consulted with educational experts and engaged with stakeholders to transition the accountability system from a Restart Phase to a two-year Rebuild Phase. Guided by the values of reliability, transparency, and explainability, the Rebuild Phase aimed to ensure a more normalized system that supported the evolving needs of schools and districts and enabled systems of continuous improvement. The Rebuild Phase of the New York State accountability system applied to accountability determinations in the 2023–2024 school year using 2022–2023 school year results and the 2024–2025 school year using 2023–2024 school year results.

Reimagine Phase: Plan Amendment Starting in the 2025–2026 School Year Based on 2024–2025 School Year Results

Beginning with the 2025–2026 school year based on 2024–2025 school year results, NYSED will transition into its Reimagine Phase. The Reimagine Phase accountability system maintains many of the amendments to the New York State accountability system from the Rebuild Phase for the 2023–2024 and 2024–2025 school years, with modifications based on continual reflection on the evolving needs of New York State students and the reintroduction of elements that had been paused due to gaps in data from the COVID-19 pandemic. The amendments to the accountability system have been designed for long-term use.

Throughout the Reimagine Phase, the Department will continue to engage with stakeholders and analyze trends and outcomes to ensure that this system is able to identify differentiated needs. Doing so will allow the Department to leverage appropriate supports that build capacity for continuous improvement systems and practices in schools and districts across the State.

A. Title I, Part A: Improving Basic Programs Operated by Local Educational Agencies (LEAs)

1. Challenging State Academic Standards and Assessments (ESEA section

1111(b)(1) and (2) and 34 CFR §§ 200.1–200.8.)³

2. Eighth Grade Math Exception (ESEA section 1111(b)(2)(C) and 34 CFR § 200.5(b)(4)):

- i. Does the State administer an end-of-course mathematics assessment to meet the requirements under section 1111(b)(2)(B)(v)(I)(bb) of the ESEA?

☒ Yes

☐ No

- ii. If a State responds “yes” to question 2(i), does the State wish to exempt an eighth-grade student who takes the high school mathematics course associated with the end-of-course assessment from the mathematics assessment typically administered in eighth grade under section 1111(b)(2)(B)(v)(I)(aa) of the ESEA and ensure that:

- a. The student instead takes the end-of-course mathematics assessment the State administers to high school students under section 1111(b)(2)(B)(v)(I)(bb) of the ESEA;
- b. The student’s performance on the high school assessment is used in the year in which the student takes the assessment for purposes of measuring academic achievement under section 1111(c)(4)(B)(i) of the ESEA and participation in assessments under section 1111(c)(4)(E) of the ESEA;
- c. In high school:
 1. The student takes a State-administered end-of-course assessment or nationally recognized high school academic assessment as defined in 34 CFR § 200.3(d) in mathematics that is more advanced than the assessment the State administers under section 1111(b)(2)(B)(v)(I)(bb) of the ESEA;
 2. The State provides for appropriate accommodations consistent with 34 CFR § 200.6(b) and (f); and
 3. The student’s performance on the more advanced mathematics assessment is used for purposes of measuring academic achievement under section 1111(c)(4)(B)(i) of the ESEA and participation in assessments under section 1111(c)(4)(E) of the ESEA.

☒ Yes

☐ No

³The Secretary anticipates collecting relevant information consistent with the assessment peer review process in 34 CFR § 200.2(d). An SEA need not submit any information regarding challenging State academic standards and assessments at this time.

iii. If a State responds “yes” to question 2(ii), consistent with 34 CFR § 200.5(b)(4), describe, with regard to this exception, its strategies to provide all students in the State the opportunity to be prepared for and to take advanced mathematics coursework in middle school.

New York State currently provides this opportunity to all public school students enrolled in eighth grade, as specified in Commissioner’s Regulations 100.4 (d), which states that “public school students in grade 8 shall have the opportunity to take high school courses in mathematics.” The regulation specifies multiple methods by which schools may provide this opportunity to their students, including allowing students to enroll in either “a course in the middle, junior high or intermediate school that has been approved for high school credit” or a course “in a high school with high school students.” The regulation also grants superintendents the authority to “determine whether a student has demonstrated readiness in [mathematics] to begin high school courses in the eighth grade leading to a diploma.”

When a student in middle school takes an advanced mathematics exam (i.e., a Regents examination in mathematics) in lieu of a grade-level math assessment, the results from that exam are attributed, for accountability purposes, to the school in which the student is enrolled (e.g., Algebra 1 exam taken in eighth grade is credited in the student’s middle school Math Performance Index), even if the student attended a high school course to prepare for this assessment. This exam may not be credited to the student’s high school for accountability purposes, once the exam has been credited to the student’s middle school. A student who completes an advanced mathematics exam in middle school must take a further advanced mathematics exam in high school for that student’s assessment outcome to be credited on the Math Performance Index for that student’s high school (otherwise, the student will be assigned the lowest performance level in the high school’s Performance Index as a non-tested student).

Through the State’s previously approved Elementary and Secondary Education Act (ESEA) Flexibility Waiver, New York State also has provided this opportunity to seventh-grade students. Seventh-grade students undergo the same local evaluation as their eighth-grade peers to determine their readiness to begin the high school mathematics courses. Based on student data, the Department is confident that this method of local determination for advanced math course offerings and assignment of students is successful. In the 2014-15 and 2015-16 school years, more than 95% of seventh- and eighth-grade students who took a high school mathematics assessment in lieu of the Grade 7 or 8 math test scored proficient.

NYSED received a waiver under section 8401 of the ESEA from USDE to continue to exempt sixth and seventh-grade students who take high school mathematics courses from the mathematics assessment typically administered in sixth and seventh-grade, provided that the students instead take the end-of-course mathematics assessment associated with the high school courses in which the students are enrolled, and that the students’ performance on those high school assessments will be used for measuring academic achievement and participation toward accountability for the schools in which the students are enrolled. Students who receive this exemption will take an end-of-course assessment in high school that is more advanced than the assessment taken in sixth and seventh-grade (and that is more advanced than the assessment

taken in eighth-grade, as applicable).

In addition, NYSED received a waiver under section 8401 of the ESEA from USED to continue to exempt seventh- and eighth-grade students who take high school science courses from the science assessment typically administered in eighth grade, provided that the students instead take the end-of-course science assessment associated with the high school courses in which the students are enrolled and that the students' performance on those high school assessments will be used for measuring academic achievement and participation toward accountability for the schools in which the students are enrolled. Students who receive this exemption will take an end-of-course assessment in high school that is more advanced than the assessment taken in eighth-grade.

New York State provides a comprehensive set of accommodations to ensure that Students with Disabilities and/or English Language Learners/Multilingual Learners (ELLs/MLLs) will have an equitable opportunity to participate in advanced mathematics exams. New York State educators who participate in item writing, test review, and test administration receive training in the theory and application of Universal Design for Learning to ensure that assessments are fair and accessible for all students throughout the state. New York State's testing accommodations for students with disabilities are provided in six major categories: Flexibility in Scheduling/Timing, Flexibility in Setting, Method of Presentation, Method of Response, Other Accommodations, and Accommodations for Physical Education Assessments. Individualized Educational Program (IEP) team members and school administrators are provided extensive guidance on the proper selection of specific accommodations within these categories and the application of accommodations in test administration. Specific testing accommodations are made available for all ELLs/MLLs and applied as determined by school administrators, in accordance with guidance provided by the NYSED.

NYSED sought, but did not receive, a waiver under Section 8401 of the ESEA to allow schools to administer below-grade level assessments to a small, select group of students with disabilities. NYSED will continue to move towards computer adaptive assessments in its effort to comply with New York State Education Law § 305(48), which directs the Department, to the extent allowed by USDE, to allow "students with disabilities who are not eligible for the New York state alternate assessment and whose cognitive and intellectual disabilities preclude their meaningful participation in chronological grade level instruction to be assessed based on instructional level rather than chronological age." NYSED views this effort as a step toward the adaptive testing that is allowed under ESSA Section 1111(b)(2)(J).

Native Language Assessments (ESEA section 1111(b)(2)(F) and 34 CFR § 200.6(f)(2)(ii)) and (f)(4):

3. Native Language Assessments (ESEA section 1111(b)(2)(F) and 34 CFR § 200.6(f)(2)(ii)) and (f)(4):

i. Provide its definition for "languages other than English that are present to a significant extent in the participating student population," and identify the specific languages that

meet that definition.

Of the approximately 2.6 million public school students in New York State, 9% are English Language Learners/Multilingual Learners⁴ (ELLs/MLLs), representing over 261,000 ELLs/MLLs statewide. NYSED is committed to ensuring that all New York State students, including ELLs/MLLs, attain the highest level of academic success and language proficiency. New York State identifies “languages other than English that are present to a significant extent in the participating student population” as those spoken by 5% or more of New York State’s ELLs/MLLs. Currently, these languages are Spanish (61.7%) and Chinese (9.5%), which, together, constitute about three-fourths (74.4%) of all the State’s ELLs/MLLs.

In addition, some Local Education Agencies (LEAs) have significant concentrations of ELLs/MLLs speaking other native/home languages that do not meet the 5% statewide population threshold identified above. For example, 12.3% of Buffalo’s ELLs/MLLs speak Karen, and 12.3% of Rochester’s ELLs/MLLs speak Nepali. To ensure accessibility of educational materials for parents and guardians of ELLs/MLLs whose native/home language groups constitute less than 5% of the state’s total ELL/MLL population, but who nonetheless have large and concentrated presences in particular LEAs, New York State seeks to make culturally responsive materials for parents and guardians of ELLs/MLLs accessible in each of the 10 languages spoken most prevalently by the State’s ELLs/MLLs. As of 2016-17, the top 10 languages spoken by New York State ELLs/MLLs are Spanish, Chinese, Arabic, Bengali, Russian, Urdu, Haitian-Creole, French, Karen, and Nepali.

New York State has reviewed its ELL/MLL native/home language data disaggregated by ELL/MLL subpopulations such as migratory students, foreign born students, Native American students, and by grade band clusters (kindergarten through 5th, 6th through 8th, and 9th through 12th grades, respectively), and determined that, while the rank order of New York State’s top 10 languages is slightly different for each category, there are no additional “languages other than English that are present to a significant extent” within these subpopulations. As an example, 67.9% of foreign born ELLs/MLLs are Spanish speakers, followed by Arabic (4.7%), Chinese (3.9%), and Karen (2.6%). Also, Spanish, Chinese, and Arabic are consistently the top three most frequently spoken native/home languages by ELLs/MLLs across all grade bands. For example, 63.8% of ELLs/MLLs in kindergarten through 5th grades are Spanish speakers, 67.0% of ELLs/MLLs in 6th through 8th grades are Spanish speakers, and 66.3% of ELLs/MLLs in 9th through 12th grade are Spanish speakers.

ii. Identify any existing assessments in languages other than English, and specify for which grades and content areas those assessments are available.

New York State currently translates Grades 3-8 Math assessments and Regents Examinations

⁴ New York State defines “English Language Learners/Multilingual Learners” as “students who, by reason of foreign birth or ancestry, speak or understand a language other than English and speak or understand little or no English, and require support in order to become proficient in English.” The terms “English Language Learner” and “Multilingual Learner” are synonymous in New York State. “English Language Learner/Multilingual Learner” is also synonymous with the term “English Learner,” which is used by the United States Department of Education.

into five languages (Chinese [Traditional], Haitian-Creole, Korean, Russian, and Spanish), and Elementary- and Intermediate-level Science assessments into three languages (Chinese [Traditional], Haitian-Creole, and Spanish). These languages were chosen based on an earlier report commissioned by the New York State Board of Regents that found that, after English, Chinese, Haitian-Creole, Korean, Russian, and Spanish were the most commonly reported native/home languages of New York State students, and which, collectively, were the native/home languages of 85% of ELLs/MLLs at that time.

For a number of years, the Department has sought funding from the New York State legislature to expand translations of content-area assessments into additional languages, based on demographic changes within the State's population. Specifically, the Department is seeking funding from the State legislature to translate all of these exams into eight languages: Chinese (Traditional), Chinese (Simplified), Haitian-Creole, Korean, Russian, Spanish, Arabic, and Bengali. To date the Department has not yet secured this funding. Currently, 4.9% of New York State's ELLs/MLLs speak Arabic as a native/home language, and 3% of New York State's ELLs/MLLs speak Bengali as a native/home language. While content assessments are already translated into Chinese (Traditional), the Department has proposed to add Chinese (Simplified) to expand access for Chinese speakers more familiar with Simplified Chinese characters. The Department offers for the tests to be translated orally into other languages, as an accommodation for those ELLs/MLLs whose native/home language is one for which a written translation is not available. The Department's eventual goal is to translate these assessments into all of the top 10 languages spoken by our State's ELLs/MLLs.

Additionally, the Department is seeking funding from the New York State legislature to develop Native Language Arts/Home Language Arts (NLA/HLA) exams for Grades 3-8 and for high school. Spanish is the first language for which an NLA/HLA assessment will be developed. Currently, 64.9% of New York State's ELLs/MLLs speak Spanish as a native/home language. Finally, the Department is seeking funding from the New York State legislature to develop four Languages Other Than English (LOTE)/World Languages academic assessments: in Spanish, French, Italian, and Chinese.

iii. Indicate the languages identified in question 3(i) for which yearly student academic assessments are not available and are needed.

The Department is seeking funding from the New York State legislature to expand translation of yearly math and science assessments into the following eight languages: Chinese (Traditional), Chinese (Simplified), Haitian-Creole, Korean, Russian, Spanish, Arabic, and Bengali. New York State continues to make every effort to increase the number of languages into which assessments are translated, but, to date, funding has not yet been made available.

iv. Describe how it will make every effort to develop assessments, at a minimum, in languages other than English that are present to a significant extent in the participating student population including by providing

- a. The State's plan and timeline for developing such assessments, including a description of how it met the requirements of 34 CFR § 200.6(f)(4);**
- b. A description of the process the State used to gather meaningful input on the need for assessments in languages other than English, collect and respond to public**

- comment, and consult with educators; parents and families of English learners; students, as appropriate; and other stakeholders; and**
- c. As applicable, an explanation of the reasons the State has not been able to complete the development of such assessments despite making every effort.**

To date, funding has not been available for translation of these assessments. However, the Department continues to seek funding from the New York State legislature to translate its math and science content assessments into the following eight languages: Chinese (Traditional), Chinese (Simplified), Haitian-Creole, Korean, Russian, Spanish, Arabic, and Bengali.

Additionally, the Department is also seeking funding from the New York State legislature to develop Native Language Arts/Home Language Arts (NLA/HLA) exams for Grades 3-8 and for high school. Spanish is the first language for which an NLA/HLA assessment will be developed. Finally, the Department is seeking funding from the New York State legislature to develop Languages Other Than English (LOTE)/World Languages academic assessments, in Spanish, French, Italian, and Chinese. As discussed above, funding has not been made available to date.

Once funding is secured to translate the content assessments identified above, translations occur through translation subcontractors who are familiar with this process:

- For the 3-8 State assessments, a back-translation is performed by a separate vendor for validation purposes.
- For Regents exams, an exam editor who is familiar with the test reviews the translated versions of the test for completeness.

For the development of the NLA/HLA and LOTE/World Languages assessments, the Department will:

- Identify and contract with a test development vendor for each assessment via a Request for Proposal (RFP).
- The vendor will work with the Department to develop test specifications by grade level (3, 4, 5, 6, 7, 8 and one at the High School level), as well as computer-based testing and scoring platforms.
- The vendor will develop the tests (passages, graphics, items, rubrics, scoring, etc.) based on specifications from, and in close coordination with, the Department.
- The Department will coordinate with the vendor to hire New York State educators to review content and test items, as well as to conduct field testing (including printing, shipping, and scoring).
- The vendor, incorporating the results of the above, will develop online sample tests, and finally conduct operational testing (including printing, shipping, and scoring).

New York State gathers input regularly regarding native/home language assessment needs from key stakeholders regarding educational policies affecting ELLs/MLLs. Some of these stakeholders include two ELL/MLL Leadership Councils (consisting respectively of senior leaders and ELL/MLL directors from Local Educational Agencies (LEAs) with high concentrations of ELLs/MLLs and those with lower concentrations of ELLs/MLLs), eight Regional Bilingual Education Resource Networks (RBERNs) funded by New York State

(including the Language RBERN at the New York City Metropolitan Center for Urban Education, which focuses specifically on interpretation and translation-related issues), as well as advocates and civil rights organizations throughout the State who represent and advocate for ELLs/MLLs and their families.

If State funding is secured for these assessments in fiscal year 2018, the Department anticipates the first operational assessments will be administered in the 2021-22 school year.

4. Statewide Accountability System and School Support and Improvement Activities (ESEA section 1111(c) and (d)):

i. Subgroups (ESEA section 1111(c)(2)):

a. List each major racial and ethnic group the State includes as a subgroup of students, consistent with ESEA section 1111(c)(2)(B).

New York State includes American Indian or Alaska Native, Black or African American, Hispanic or Latino, Asian or Native Hawaiian/Other Pacific Islander, White, and Multiracial.

New York State uses the definitions below for these subgroups.

Race: The race choice indicates the race or races with which the student primarily identifies as indicated by the student or the parent/guardian. Race designations do not denote scientific definitions of anthropological origins. A student is reported using the race or races designation for the group to which he or she appears to belong, identifies with, or is regarded in the community as belonging. If the student or parent/guardian will not designate race or races, a school administrator selects the race or races.

- *American Indian or Alaska Native* — A person having origins in any of the original peoples of North and South America (including Central America) and who maintains cultural identification through tribal affiliation or community recognition.
- *Asian* — A person having origins in any of the original peoples of the Far East, Southeast Asia, or the Indian subcontinent, including Cambodia, China, India, Japan, Korea, Malaysia, Pakistan, the Philippine Islands, Thailand, and Vietnam.
- *Black or African American* — A person having origins in any of the black racial groups of Africa.
- *Native Hawaiian/Other Pacific Islander* — A person having origins in any of the original peoples of Hawaii, Guam, Samoa, or other Pacific Islands.
- *White* — A person having origins in any of the original peoples of Europe, North Africa, or the Middle East.
- *Hispanic or Latino* — A person having origins with, or are regarded in the community as Hispanic or Latino, regardless of whether the person also consider themselves to belong to, identify with, or are regarded in the community as belonging to an American Indian/Alaska Native, Asian, Black or African American, Native Hawaiian/Other Pacific Islander, or White race.
- *Multiracial* — A person having origins with more than one racial/ethnic group.

Other NYSED Subgroups Defined and Used for Accountability Determinations:

- Students with Disabilities: Students classified by the Committee on Special Education as having one or more disabilities.
- English Language Learners (ELLs): English Language Learners are students who, by reason of foreign birth or ancestry, speak or understand a language other than English and speak or understand little or no English, and require support in order to become proficient in English and are identified pursuant to Subparts 154-2 and 154-3 of New York State's Commissioner's Regulations.
- Economically Disadvantaged: An economically disadvantaged student is a student who participates in, or whose family participates in, economic assistance programs, such as the Free or Reduced-Price Lunch Programs; Social Security Insurance (SSI); Food Stamps; Foster Care; Refugee Assistance (cash or medical assistance); Earned Income Tax Credit (EITC); Home Energy Assistance Program (HEAP); Safety Net Assistance (SNA); Bureau of Indian Affairs (BIA); or Family Assistance: Temporary Assistance for Needy Families (TANF). If one student in a family is identified as low income, all students from that household (economic unit) may be identified as low income.

Other NYSED Subgroups Defined but not used for Accountability Determinations:

- Gender: Gender (male, female, or nonbinary) identified by the student. In the case of very young transgender students not yet able to advocate for themselves, gender may be identified by the parent or guardian.
 - Migrant: A student is a migrant child if the student is, or whose parent, guardian, or spouse is, a migratory agricultural worker, including a migratory dairy worker or a migratory fisher, and who, in the preceding 36 months, in order to obtain, or accompany such parent, guardian, or spouse, in order to obtain, temporary or seasonal employment in agricultural or fishing work has moved from one school district to another.
 - Foster Care: A student in foster care is one who is in 24-hour substitute care for children placed away from their parents and for whom the agency under title IV-E of the Social Security Act has placement and care responsibility. This includes, but is not limited to, placements in foster family homes, foster homes of relatives, group homes, emergency shelters, residential facilities, child care institutions, and pre-adoptive homes. A child is in foster care in accordance with this definition regardless of whether or not the foster care facility is licensed and payments are made by the State, tribal, or local agency for the care of the child, whether adoption subsidy payments are being made prior to the finalization of an adoption, or whether there is federal matching of any payments that are made.
- Homeless: A homeless student is one who lacks a fixed, regular, and adequate nighttime residence, including a student who is sharing the housing of other persons due to a loss of housing, economic hardship, or similar reason; living in motels, hotels, trailer parks

or camping grounds due to the lack of alternative adequate accommodations; abandoned in hospitals; or a migratory child, as defined in subsection 2 of section 1309 of the Elementary and Secondary Education Act of 1965, as amended, who qualifies as homeless under any of the above provisions; or has a primary nighttime location that is a supervised publicly or privately operated shelter designed to provide temporary living accommodations including, but not limited to, shelters operated or approved by the State or local department of social services, and residential programs for runaway and homeless youth established pursuant to article 19H of the executive law or a public or private place not designed for, or ordinarily used as, a regular sleeping accommodation for human beings, including a car, park, public space, abandoned building, substandard housing, bus, train stations, or similar setting. Homeless students do not include children in foster care placements or who are receiving educational services pursuant to subdivision four, five, six, six-a, or seven of Education Law section 3202 or pursuant to article 81, 85, 87, or 88 of Education Law.

- Armed Forces Child: A child with one or more parent or guardian who is a member of the Armed Forces and on Active Duty. The Armed Forces are the Army, Navy, Air Force, Marine Corps, the Coast Guard, or full-time National Guard. Active duty means full-time duty in the active military service of the United States. Such term includes full-time training duty, annual training duty, and attendance, while in the active military service, at a school designated as a service school by law or by the Secretary of the military department concerned.

b. If applicable, describe any additional subgroups of students other than the statutorily required subgroups (*i.e.*, economically disadvantaged students, students from major racial and ethnic groups, children with disabilities, and English learners) used in the Statewide accountability system.

New York State includes no additional subgroups beyond economically disadvantaged students, students from major racial and ethnic groups, children with disabilities, and English learners in its statewide accountability system.

c. Does the State intend to include in the English learner subgroup the results of students previously identified as English learners on the State assessments required under ESEA section 1111(b)(2)(B)(v)(I) for purposes of State accountability (ESEA section 1111(b)(3)(B))? Note that a student's results may be included in the English learner subgroup for not more than four years after the student ceases to be identified as an English learner.

☒ Yes

☐ No

d. If applicable, choose one of the following options for recently arrived English learners in the State:

☒ Applying the exception under ESEA section 1111(b)(3)(A)(i); or

- ☐ Applying the exception under ESEA section 1111(b)(3)(A)(ii); or
- ☐ Applying the exception under ESEA section 1111(b)(3)(A)(i) or under ESEA section 1111(b)(3)(A)(ii). If this option is selected, describe how the State will choose which exception applies to a recently arrived English learner.

New York State defines “recently arrived ELLs” as ELLs within 12 months of entry into United States schools. The Department will apply the exception under ESEA section 1111(b)(3)(A)(i) to exempt recently arrived ELLs from its State language arts accountability assessment for one year. Pursuant to this exception, recently arrived ELLs will not take New York State’s English Language Arts (ELA) assessment during the first year of enrollment, though they will take the New York State English as a Second Language Achievement Test (NYSESLAT). The NYSESLAT is designed to assess, annually, the English language proficiency of ELLs enrolled in Grades K-12. For students in their second year of enrollment in the United States, NYSED sought, but did not receive, a waiver under Section 8401 of the ESEA to have these students take New York State’s ELA assessment only to set a baseline for determining growth but not to measure achievement for accountability purposes. Therefore, NY will apply the exception under ESEA section 1111(b)(3)(A)(i), whereby recently arrived ELL/MLLs will be exempt from participating in the first administration of the English language arts assessment following the student’s enrollment in a United States school. Beginning with the following English language arts assessment, such student shall participate in the assessment and the student’s results shall be included in computation of the ELA Performance Index.

ii. Minimum N-Size (ESEA section 1111(c)(3)(A)):

a. Provide the minimum number of students that the State determines are necessary to be included to carry out the requirements of any provisions under Title I, Part A of the ESEA that require disaggregation of information by each subgroup of students for accountability purposes.

New York State plans to use an n-size of 20 for measuring performance. NYSED has been approved to replace the Composite Index with two indicators – Weighted Average Achievement and Core Subject Performance – for measuring academic performance at the elementary/middle and high school levels. At the elementary/middle level, New York State will compute a Weighted Average Achievement and Core Subject Performance Index for each subgroup or school when the count of eligible student records in Grades 3-8 combined in English language arts (ELA) plus math plus science in the current reporting year is equal to or greater than 20. At the high school level, New York State will compute a Weighted Average Achievement and Core Subject Performance Index for each subgroup or school when the count of students in ELA plus math plus science plus social studies in the current year four-year cohort is equal to or greater than 20. New York State will also use a minimum n-size of 20 to generate calculations for the Graduation Rate; English Language Proficiency; College, Career, and Civic Readiness; Student Growth; and Attendance (formerly called Chronic Absenteeism) indicators.

b. Describe how the minimum number of students is statistically sound.

New York State plans to use an n-size of 20 for measuring performance to ensure maximum subgroup visibility without compromising data reliability. A report from The Institute of Educational Sciences ([*Best Practices for Determining Subgroup Size in Accountability Systems*](#)), indicates that from a population perspective, an n-size in the 20 range is acceptable.

c. Describe how the minimum number of students was determined by the State, including how the State collaborated with teachers, principals, other school leaders, parents, and other stakeholders when determining such minimum number.

For the original development of New York State's consolidated State plan, New York State collaborated with stakeholders representing parents, teachers, principals, other school leaders, librarians, students with special needs, and other representative groups.

Stakeholders considered a number of approaches, including using a set percentage of the population, rather than a set number; lowering the n-size to as low as 10 to allow for greater subgroup accountability; developing an n-size based on population size, margin of error, confidence interval, and standard deviation; and maintaining the current use of 30. It was determined that using a set percentage of the population, rather than a set number, would result in different n-sizes for different groups, which would not be in compliance with the law.

At the request of stakeholders, New York State analyzed the effect of the use of n-sizes from 10 to 40 (see below) to determine which size would enable New York State to most effectively support the efforts of schools to close achievement gaps. Thirty was chosen based on these statistical analyses. N-sizes lower than 30 did not lead to the inclusion of significantly more students and schools in the accountability system to warrant lowering the reliability of the resulting decisions.

The following tables show the percentage of schools and students that would have been accountable in 2015-16 if the indicated n-sizes were used. If the number of students in any subgroup in 2015-16 was less than the threshold, 2014-15 and 2015-16 data were combined.

Elementary/Middle-Level English Language Arts

Percentage of Schools Accountable for Student Subgroups by N-Size

N-size	All Students	American Indian or Alaska Native	Asian or Native Hawaiian/Other Pacific Islander	Black or African American	Hispanic or Latino	Multiracial	White	English Language Learner	Economically Disadvantaged	Students with Disabilities
10	95.32	6.46	48.95	63.30	78.24	31.48	77.96	48.53	93.65	92.39
15	95.09	3.88	40.87	56.28	72.81	20.16	74.90	40.90	92.72	90.05
20	95.06	2.75	35.67	52.13	67.75	13.01	72.92	35.47	91.69	86.73
25	94.98	2.11	30.74	49.13	63.27	8.92	70.83	30.81	90.84	83.31
30	94.88	1.62	27.37	46.71	60.08	6.84	69.42	28.16	89.87	78.96
35	94.70	1.29	25.26	44.37	57.38	5.17	68.26	25.46	88.27	74.49
40	94.57	1.16	23.28	42.28	54.96	3.81	67.18	23.20	87.27	69.57

Percentage of Students Attending Schools Accountable for Subgroups by N-Size

N-size	All Students	American Indian or Alaska Native	Asian or Native Hawaiian/Other Pacific Islander	Black or African American	Hispanic or Latino	Multiracial	White	English Language Learner	Economically Disadvantaged	Students with Disabilities
10	99.98	52.36	94.89	97.78	99.02	75.89	99.50	96.53	99.94	99.57
15	99.97	42.62	91.80	96.12	98.14	60.46	99.22	93.49	99.87	99.03
20	99.97	37.86	89.05	94.79	97.02	47.67	98.97	90.56	99.76	97.99
25	99.96	33.83	85.76	93.57	95.76	38.85	98.63	87.24	99.64	96.67
30	99.95	31.07	83.19	92.45	94.70	33.70	98.35	85.19	99.47	94.72
35	99.93	28.84	81.36	91.15	93.68	28.29	98.08	82.68	99.15	92.46
40	99.91	27.64	79.44	89.85	92.63	23.44	97.80	80.34	98.92	89.72

Elementary/Middle-Level Mathematics

Percentage of Schools Accountable for Student Subgroups by N-Size

N-size	All Students	American Indian or Alaska Native	Asian or Native Hawaiian/Other Pacific Islander	Black or African American	Hispanic or Latino	Multiracial	White	English Language Learner	Economically Disadvantaged	Students with Disabilities
10	95.29	6.40	49.14	63.18	77.91	30.75	77.96	49.88	93.60	92.23
15	95.06	3.86	41.14	55.98	72.62	19.31	74.90	42.68	92.62	89.66
20	95.04	2.75	35.79	51.81	67.27	12.60	72.90	37.10	91.62	86.35
25	94.96	2.03	30.88	48.70	62.92	8.59	70.79	32.50	90.77	82.64
30	94.78	1.59	27.54	46.13	59.78	6.48	69.43	29.52	89.48	78.37
35	94.65	1.26	25.30	43.94	57.11	4.96	68.14	26.87	87.97	73.49
40	94.52	1.13	23.35	41.91	54.80	3.52	67.09	24.25	87.19	68.91

Percentage of Students Attending Schools Accountable for Subgroups by N-Size

N-size	All Students	American Indian or Alaska Native	Asian or Native Hawaiian/Other Pacific Islander	Black or African American	Hispanic or Latino	Multiracial	White	English Language Learner	Economically Disadvantaged	Students with Disabilities
10	99.98	52.25	94.96	97.82	99.01	75.23	99.49	96.69	99.94	99.55
15	99.97	42.77	91.94	96.13	98.17	59.14	99.22	93.95	99.87	98.95
20	99.97	38.31	89.15	94.78	96.99	47.00	98.96	91.14	99.76	97.91
25	99.96	33.36	85.91	93.52	95.78	38.13	98.61	88.09	99.64	96.48
30	99.94	31.16	83.33	92.29	94.75	32.64	98.35	85.76	99.41	94.56
35	99.93	28.35	81.45	91.08	93.74	27.73	98.05	83.48	99.11	92.06
40	99.91	27.28	79.60	89.80	92.74	22.00	97.78	80.78	98.94	89.51

In response to the gaps of data due to the challenges of the COVID-19 pandemic, the Department has used single-year data for accountability decisions since the 2022–2023 school year. As the n-size of 30 would necessitate the use of multiple years of data to generate accountability results for certain subgroups, the Department reevaluated the n-size best suited to meet the accountability needs while ensuring validity, reliability, and student privacy. With ongoing consultation from educational experts, feedback from stakeholders, and analysis of n-sizes utilized in other states, New York State will reset the n-size from 30 to 20 beginning with the 2025–2026 school year based on 2024–2025 school year results. This will allow for maximal subgroup representation with the adjustment to the use of single-year data. Strong stakeholder feedback and consistent data modeling supports the usage of an n-size of 20 that would meet the information needs of state accountability reporting while still protecting the privacy of individual students.

Beginning with 2022–2023 school year results, New York State will use single-year results, including one year of Student Growth Percentile data to measure growth between the prior and current school year, to make accountability decisions. The 2022–2023 school year results will

be used to make 2023–2024 accountability decisions and the 2023–2024 school year results will be used to make 2024–2025 accountability decisions and so forth.

d. Describe how the State ensures that the minimum number is sufficient to not reveal any personally identifiable information.⁵

New York State does not report outcomes for students in groups whose n-size is under the designated threshold, to ensure that personally identifiable information is not revealed.

For annual assessment outcome reporting, New York State does not report the performance results for subgroups with fewer than five tested students. New York State reports data for subgroups within “categories.” For example, American Indian/Alaska Native, Asian/Pacific Islander, Black, Hispanic, White, and Multiracial “subgroups” constitute the racial/ethnic groups “category.” The categories for annual reporting are racial/ethnic groups, disability status, English language learner status, economically disadvantaged status, migrant status, gender, foster care status, homeless status, and status as a child with a parent on active duty in the Armed Forces.

If a subgroup has fewer than five tested students, performance results for both that subgroup and the subgroup with the next smallest number tested in the same category will not be reported. If the sum of the number of tested students in both subgroups is still fewer than five, the performance results for the subgroup with the *next* smallest number tested within that category will also not be reported. This process continues until the sum of the number tested for the subgroups within a category whose performance results are not being reported is equal to or greater than five. This process is used so that the use of simple mathematical computations cannot result in the release of performance results associated with any student, thereby protecting student confidentiality.

For full disclosure purposes, the combined performance results for all of the small subgroups in the cases indicated above are reported under the new category, “Small Group Total.” This is done for the racial/ethnic groups category only, as the “Small Group Total” for all other categories would be the same as that for the All Students group, as all other categories contain only two subgroups. Note that if the number tested for a subgroup in a category with only two subgroups is fewer than five, performance results for both subgroups in that category will not be reported.

For accountability reporting, if the number of students is fewer than 20, performance results are not reported for that group. The subgroups for accountability reporting are All Students,

⁵ Consistent with ESEA section 1111(i), information collected or disseminated under ESEA section 1111 shall be collected and disseminated in a manner that protects the privacy of individuals consistent with section 444 of the General Education Provisions Act (20 U.S.C. 1232g, commonly known as the “Family Educational Rights and Privacy Act of 1974”). When selecting a minimum n-size for reporting, States should consult the Institute for Education Sciences report “[Best Practices for Determining Subgroup Size in Accountability Systems While Protecting Personally Identifiable Student Information](#)” to identify appropriate statistical disclosure limitation strategies for protecting student privacy.

American Indian or Alaska Native, Black or African American, Hispanic or Latino, Asian or Native Hawaiian/Other Pacific Islander, White, Multiracial, Students with Disabilities, English Language Learners, and Economically Disadvantaged Students.

If the State’s minimum number of students for purposes of reporting is lower than the minimum number of students for accountability purposes, provide the State’s minimum number of students for purposes of reporting.

New York State uses an n-size of five when reporting annual data. For additional information about how a reporting size of five protects student privacy and is statistically reliable, please see pp. 33-34.

iii. Establishment of Long-Term Goals (ESEA section 1111(c)(4)(A)):

a. Academic Achievement. (ESEA section 1111(c)(4)(A)(i)(I)(aa))

1. Describe the long-term goals for improved academic achievement, as measured by proficiency on the annual statewide reading/language arts and mathematics assessments, for all students and for each subgroup of students, including: (i) baseline data; (ii) the timeline for meeting the long-term goals, for which the term must be the same multi-year length of time for all students and for each subgroup of students in the State; and (iii) how the long-term goals are ambitious.

New York State is committed to establishing ambitious goals for improving student academic achievement and promoting greater equity in educational outcomes. In general, New York State has sought to establish goals that stretch beyond historical patterns of improvement in outcomes for students but are realistic if New York State is able to successfully implement its theory of action for improving student outcomes.

New York State has established the following methodology to create ambitious long-term goals and measures of interim progress for language arts and math:

Step 1: Establish the State’s “end” goal for the indicator. This “end” goal is the level of performance that, in the future, the State wishes each subgroup statewide and each subgroup within each school to achieve. For example, the “end” goal for performance in English language arts and mathematics is for each subgroup statewide and each subgroup within each school to achieve a Performance Index of 200. The exception to this is that the state has set the high school ELA end goal at 215. Meeting these performance indices mean that all students, on average, were proficient. (See Section below on Academic Achievement Indicators for an explanation of how the Performance Index is computed.)

Step 2: Set the period for establishing the long-term goal toward achieving the “end” goal. New York State has set the 2028–2029 as the year in which New York State will set its long-term goal.

Step 3: Set a target for the amount by which New York State plans to close the gap between the “end” goal and the long-term goal. New York State has established a 20% gap closing target for

ELA and mathematics. For example, the baseline performance for the All Students group in English language arts is a Performance Index of 120.1. The “end” goal is a Performance Index of 200, which would result in almost all students being proficient. The gap between the “end” goal and the baseline performance is 80 Index points. Twenty percent of 80 is 16 Index Points, rounded to the nearest whole number.

Step 4: Add the baseline Performance Index to the Gap Closing amount to establish the 2028–2029 school year long-term goal. In the example above, the 2028–2029 school year long-term goal for the All Students group in ELA would be 136.1 (base year performance of 120.1 + 16-point gap reduction target of 20%).

Step 5: Repeat this process for other subgroups.

Step 6: The long-term goals will be the same for the 2024–2025 to 2028–2029 school years. Annual increments called measures of interim progress will be set for each year so that the long-term goals can be met by the 2028–2029 school year. Prior to the beginning of the 2029–2030 school year, new long-term goals will be established for the next five years. New York State may also establish new long-term goals before the five-year period if schools and subgroups make substantial progress in achieving the already established long-term goals. The long-term goals for 2028–2029 are available in Attachment A.

Using 2022–2023 school year results as the baseline for English language arts and math, NYSED will update its ambitious long-term goals and measures of interim progress for the 2024–2025 to 2028–2029 school years.

Using this methodology, the statewide long-term goal for Grades 3-8 English language arts is:

Group Name	2022–2023 Baseline	2028–2029 Long Term Goal	End Goal
All Students	120.1	136.1	200
Asian/Pacific Islander	177.9	182.3	200
Black	111.3	129.0	200
Economically Disadvantaged	106.2	125.0	200
English Language Learners	88.5	110.8	200
Hispanic	103.6	122.9	200
Multiracial	122.6	138.1	200
American Indian/Alaska Native	118.9	135.1	200
Students With Disabilities	63.4	90.7	200
White	120.5	136.4	200

For Grades 3-8 mathematics:

Group Name	2022–2023 Baseline	2028–2029 Long Term Goal	End Goal
All Students	124.4	139.5	200
Asian/Pacific Islander	190.5	192.4	200
Black	102.8	122.2	200
Economically Disadvantaged	106.3	125.0	200
English Language Learners	99.7	119.8	200
Hispanic	101.7	121.4	200
Multiracial	126.0	140.8	200
American Indian/Alaska Native	117.1	133.7	200
Students With Disabilities	67.2	93.8	200
White	132.0	145.6	200

For High School language arts:

Group Name	2022–2023 Baseline	2028–2029 Long Term Goal	End Goal
All Students	131.6	148.3	215
Asian/Pacific Islander	137.4	152.9	215
Black	90.0	115.0	215
Economically Disadvantaged	98.5	121.8	215
English Language Learners	42.8	77.2	215
Hispanic	94.8	118.8	215
Multiracial	141.7	156.4	215
American Indian/Alaska Native	97.3	120.8	215
Students With Disabilities	69.6	98.7	215
White	168.3	177.6	215

For High School mathematics:

Group Name	2022–2023 Baseline	2028–2029 Long Term Goal	End Goal
All Students	59.0	87.2	200
Asian/Pacific Islander	111.3	129.0	200
Black	31.0	64.8	200
Economically Disadvantaged	45.0	76.0	200

English Language Learners	29.9	63.9	200
Hispanic	36.9	69.5	200
Multiracial	57.8	86.2	200
American Indian/Alaska Native	43.9	75.1	200
Students With Disabilities	22.2	57.8	200
White	69.5	95.6	200

2. Provide the measurements of interim progress toward meeting the long-term goals for academic achievement in Appendix A.

3. Describe how the long-term goals and measurements of interim progress toward the long-term goals for academic achievement take into account the improvement necessary to make significant progress in closing statewide proficiency gaps.

The gap reduction methodology is explicitly designed to ensure that those subgroups with the largest gaps between the baseline performance of the subgroup and the long-term goal must show the greatest gains in terms of achieving the measures of interim progress and the long-term goals. For example, in Grades 3-8 ELA, there is a 115-point difference in the baseline performance between the highest-achieving subgroup (Asians) and the lowest-achieving subgroup (students with disabilities). By 2028–2029, while the Asian subgroup is expected to make a 4-point gain, the students with disabilities group is expected to make a 27-point gain, more than six times that of the Asian group, resulting in a 23-point reduction in the gap between the two groups.

b. Graduation Rate (ESEA section 1111(c)(4)(A)(i)(I)(bb))

1. Describe the long-term goals for the four-year adjusted cohort graduation rate for all students and for each subgroup of students, including: (i) baseline data; (ii) the timeline for meeting the long-term goals, for which the term must be the same multi-year length of time for all students and for each subgroup of students in the State; and (iii) how the long-term goals are ambitious.

New York State is committed to establishing ambitious goals for improving graduation rates and promoting greater equity in educational outcomes. In general, New York State has sought to establish goals that stretch beyond historical patterns of improvement in outcomes for students, but are realistic if New York State is able to successfully implement its theory of action for improving student outcomes.

New York State has established the following methodology to create ambitious long-term goals and measures of interim progress for graduation rate.

- Step 1: Establish the State’s “end” goal for the indicator. This “end” goal is the level of performance that, in the future, the State wishes each subgroup statewide and each subgroup within each school to achieve. The “end” goal for the 4-year adjusted cohort graduation rate is 95%.
- Step 2: Set the period for establishing the long-term goal toward achieving the “end” goal. New York State has set the 2028–2029 school year as the year in which New York

State will set its long-term goal.

- Step 3: Set a target for the amount by which New York State plans to close the gap between the “end” goal and the long-term goal. New York State has established a 20% gap closing target. For example, the baseline performance for the All Students group is a graduation rate of 87.2%. The “end” goal is a 4-year adjusted cohort graduation rate of 95%. The gap between the “end” goal and the baseline performance is 7.8%. Twenty percent of 7.8% is 1.6 percentage points.
- Step 4: Add the baseline graduation rate to the Gap Closing amount to establish the 2028–2029 school year long-term goal. In the example above, the 2028–2029 school year long-term goal for the All Students group for 4-year adjusted cohort graduation rate would be 88.8% (base year performance of 87.2 + 1.6 percentage point gap reduction target).
- Step 5: Repeat this process for other subgroups.
- Step 6: The long-term goals will be the same for the 2024–2025 to 2028–2029 school years. Annual increments called measures of interim progress will be set for each year so that the long-term goals can be met by the 2028–2029 school year. Prior to the beginning of the 2029–2030 school year, new long-term goals will be established for the next five years. New York State may also establish new long-term goals before the five year period if schools and subgroups make substantial progress in achieving the already established long-term goals. The long-term goals for 2028–2029 are available in Attachment A. This methodology allows for continuous improvement planning and progress toward achieving the “end” goals established by the State.

This same methodology is used to establish the long-term goals for the extended 5-year and 6-year adjusted cohort graduation rates, except that the “end” goals for these extended graduation rates are higher than that for the 4-year adjusted cohort graduation rate.

Using 2022–2023 school year results as the baseline for 4-year, 5-year, and 6-year adjusted cohort graduation rates, NYSED will update its ambitious long-term goals and measures of interim progress for the 2024–2025 to 2028–2029 school years. Based on stakeholder feedback, beginning in the 2025–2026 school year based on 2024–2025 school year results, New York State will set statewide long-term goals and annual measures of interim progress for informational and continuous improvement planning purposes to ensure substantial academic improvement for all students. Specifically, NYSED will annually provide school and district subgroup level results that can be compared against state level measures of interim progress and long-term goals.

Using this methodology, the statewide long-term goals for the 4-year adjusted cohort graduation rates are:

Group Name	2022–2023 Baseline	2028–2029 Long Term Goal	End Goal
All Students	87.2%	88.8%	95%
Asian/Pacific Islander	93.3%	93.6%	95%
Black	82.1%	84.7%	95%
Economically Disadvantaged	82.6%	85.1%	95%
English Language Learners	70.5%	75.4%	95%
Hispanic	81.0%	83.8%	95%
Multiracial	86.3%	88.0%	95%
American Indian/Alaska Native	81.9%	84.5%	95%
Students With Disabilities	69.4%	74.5%	95%
White	91.6%	92.3%	95%

2. If applicable, describe the long-term goals for each extended-year adjusted cohort graduation rate, including (i) baseline data; (ii) the timeline for meeting the long-term goals, for which the term must be the same multi-year length of time for all students and for each subgroup of students in the State; (iii) how the long-term goals are ambitious; and (iv) how the long-term goals are more rigorous than the long-term goal set for the four-year adjusted cohort graduation rate.

The long-term goals for the adjusted 5-year cohort graduation rate are as follows:

Group Name	2022–2023 Baseline	2028–2029 Long Term Goal	End Goal
All Students	89.1%	90.5%	96%
Asian/Pacific Islander	94.1%	94.5%	96%
Black	84.4%	86.7%	96%
Economically Disadvantaged	85.2%	87.4%	96%
English Language Learners	75.3%	79.4%	96%
Hispanic	83.9%	86.3%	96%
Multiracial	89.3%	90.6%	96%
American Indian/Alaska Native	85.2%	87.4%	96%
Students With Disabilities	72.0%	76.8%	96%
White	92.8%	93.4%	96%

The long-term goals for the adjusted 6-year extended year graduation rate are as follows:

Group Name	2022–2023 Baseline	2028–2029 Long Term Goal	End Goal
All Students	88.6%	90.3%	97%
Asian/Pacific Islander	93.6%	94.3%	97%
Black	84.1%	86.7%	97%
Economically Disadvantaged	84.6%	87.1%	97%
English Language Learners	71.3%	76.4%	97%
Hispanic	82.7%	85.6%	97%
Multiracial	88.9%	90.5%	97%
American Indian/Alaska Native	80.9%	84.1%	97%
Students With Disabilities	72.1%	77.1%	97%
White	92.9%	93.7%	97%

The long-term goals for the adjusted 5-year and 6-year extended graduation rates are more ambitious than the 4-year rate, as the 5-year rate is computed using an “end” goal of 96% and the 6-year rate is computed using an “end” goal of 97%, as opposed to the 4-year rate, which is computed using a 95% “end” goal.

3. Provide the measurements of interim progress toward the long-term goals for the four-year adjusted cohort graduation rate and any extended-year adjusted cohort graduation rate in Appendix A.

4. Describe how the long-term goals and measurements of interim progress for the four-year adjusted cohort graduation rate and any extended-year adjusted cohort graduation rate take into account the improvement necessary to make significant progress in closing statewide graduation rate gaps.

The gap reduction methodology is explicitly designed to ensure that those subgroups with the largest gaps between the baseline performance of the group and the long-term goal must show the greatest gains in terms of achieving the measures of interim progress and the long-term goals. For example, for the 6-year adjusted graduation rate, there is a 22 percentage point difference in the baseline performance between the highest-achieving subgroup (Whites) and the lowest-achieving subgroup (ELLs), which will be reduced to 17 percentage points if the long-term goals for these groups are achieved.

c. English Language Proficiency. (ESEA section 1111(c)(4)(A)(ii))

1. Describe the long-term goals for English learners for increases in the percentage of such students making progress in achieving English language proficiency, as measured by the statewide English language proficiency assessment including: (i) baseline data; (ii) the State-determined timeline for such students to achieve English language proficiency; and

(iii) how the long-term goals are ambitious.

New York State is committed to establishing ambitious goals for improving educational outcomes for ELLs/MLLs. In general, New York State has sought to establish goals that stretch beyond historical patterns of improvement in outcomes for students but are realistic if New York State is able to successfully implement its theory of action for improving student outcomes for ELLs/MLLs, noted below.

New York State has established the following methodology to create ambitious long-term goals and measures of interim progress for increases in the percentage of ELLs/MLLs making progress in achieving English proficiency. As described below, New York State utilizes five levels of proficiency (Entering, Emerging, Transitioning, Expanding, and Commanding). On the initial English language proficiency assessment – New York State Identification Test for English Language Learners (NYSITELL) – students are identified as ELLs/MLLs if they score at the Entering, Emerging, Transitioning, or Expanding Levels, and those who score Commanding on the NYSITELL are not identified as ELLs/MLLs. Once identified, all ELLs/MLLs take, annually, the New York State English as a Second Language Achievement Test (NYSESLAT) to determine placement for the following year. Students may exit ELL/MLL status in one of two ways: 1) by scoring at the Commanding level on the NYSESLAT, or 2) by scoring at the Expanding level on the NYSESLAT AND scoring above designated cut points on the Grades 3-8 English Language Arts Assessment or the Regents Exam in English Language Arts.

- Step 1: Establish the State’s “end” goal for the indicator. This “end” goal is the level of performance that, in the future, the State wishes to achieve. The “end” goal for the percentage of students making progress in achieving English proficiency is 95%.
- Step 2: Set the period for establishing the long-term goal toward achieving the “end” goal. New York State has set five years as the period for its long-term goal. Therefore, the 2028–2029 school year will be the year for which the long-term goal will be established.
- Step 3: Set a target for the amount by which New York State plans to close the gap between the “end” goal and the long-term goal. New York State has established a 20% gap closing target. For example, the baseline performance for students making progress in achieving English language proficiency is 32%. The gap between the “end” goal and the baseline performance is 63%. Twenty percent of 63% is 13 percentage points, rounded to the nearest whole number.
- Step 4: Add the baseline to the Gap Closing amount to establish the 2028–2029 school year long-term goal. In the example above, the 2028–2029 school year long-term goal would be 45% (base year performance of 32% + 13 percentage points). The annual target for each of the five years will be 2.5 percentage points.
- Step 5: The long-term goals will be the same for the 2024–2025 to 2028–2029 school years. Annual increments called measures of interim progress will be set for each year so

that the long-term goals can be met by the 2028–2029 school year. Prior to the beginning of the 2029–2030 school year, new long-term goals will be established for the next five years. New York State may also establish new long-term goals before the five-year period if schools and subgroups make substantial progress in achieving the already established long-term goals.

The Department has identified that ELLs/MLLs generally become English proficient in three to five years on average, based on a longitudinal analysis of all ELLs/MLLs in a particular cohort, with factors such as initial English Language Proficiency (ELP) level at entry determining the specific number of years within which a student is expected to become English proficient. This timeline forms the basis for New York State’s long-term goals. Long-term goals are a result of both this timeline and the model selected to monitor progress (the “Transition Matrix,” described below). The Department has developed this theory of action regarding ELL/MLL progress:

- New York State holds that all students who are not proficient in English must be provided specific opportunities to progress toward and meet English language proficiency requirements. This is important because students who are not English proficient will not be able to fully demonstrate what they know and can do in English language arts and mathematics delivered in English.
- Developing language proficiency is a cumulative process that occurs over time and should occur in a timely manner. ELLs/MLLs should make meaningful progress toward English proficiency, and the New York State accountability system is designed to monitor schools’ efforts in facilitating ELL/MLL progress.

Based on this theory of action, the Department has reviewed data regarding achievement and proficiency of New York State ELLs/MLLs to identify a model for incorporating their progress into State accountability determinations, as well as to identify research-based student-level targets and goals/measures of interim progress. The Department reviewed several different models for examining and measuring ELP progress, guided by New York State’s theory of action and assessed each model for reliability, robustness, transparency, and usefulness. In addition, the Department compared its yearly statewide ELP assessment (the New York State English as a Second Language Achievement Test, or NYSESLAT) with its State English Language Arts (ELA) assessment to empirically validate whether NYSESLAT exit standards are appropriate. The results were consistent with expectations and with relationships observed across the United States. The Department further analyzed the time that it generally takes ELLs/MLLs to reach English proficiency, in order to identify important factors that contribute to the time that it takes New York State’s students to reach English language proficiency. Analyses reveal that the initial ELP level is the most important factor influencing a student’s time to English language proficiency.

Based on the previous actions, the Department selected a Transition Matrix model for incorporating ELLs’/MLLs’ attainment of ELP into State accountability determinations. The Transition Matrix model is based on initial English proficiency level and evaluates **expected** growth per year against **actual** growth. Under the Transition Matrix model, growth expectations mirror the natural language development trajectory. The Transition Matrix links initial English proficiency level to the time, in years, that a student is an ELL/MLL. Table 1 provides an

example of the growth that could be expected based on a five-year trajectory, which would inform the values in the Transition Matrix. For example, for a student who initially scores in the Entering performance level, the target growth for his/her second year would be 1.25 performance levels. The next two years, the target growth would be 1 level each year, and finally, in the student's fifth year, the target growth would slow to 0.75 performance levels. Credit would be awarded based on a student's growth over administrations of the NYSESLAT, and whether that student meets the expectations of growth based on his/her initial level of English proficiency.

New York State further enhances the robustness of the Transition Matrix model by capturing cumulative progress of students through a "safe harbor" provision for earning credit. Safe harbor is based on comparing a student's English language proficiency level with the expected level, based on the table below. For example, a student whose initial English language proficiency level is Emerging and is in year three would be expected to have made 1 level of growth or have attained level 4.25 ($2 + 1.25 + 1$). In this way, schools are not penalized for students who have an idiosyncratic growth year as long as they still demonstrate having attained the appropriate overall level and, therefore, are still on track to exiting in the appropriate timeframe.

Students who remain classified as ELLs beyond the expected trajectory as shown in Table 1 below will have a target growth of 0.75 performance levels. This target growth level will continue to be expected of students each year until they exit ELL status. In this way, schools will have a continued incentive to make progress and exit Long Term ELLs and other students who continue to hold ELL status beyond the expected trajectory.

Since the NYSESLAT was revised in 2015 to reflect the adoption of more rigorous standards, growth expectations need to be monitored and the Department is currently examining the stability and consistency of results, using multiple years of data. These analyses will be conducted again in two years, once more NYSESLAT data are available to ensure that expectations for student progress are appropriate. Stakeholder input will be gathered when this analysis is conducted.

Table: Non-linear growth to target based on five-year trajectory

Initial ELP	Year 2	Year 3	Year 4	Year 5
<i>Entering (1)</i>	1.25	1	1	0.75
<i>Emerging (2)</i>	1.25	1	0.75	
<i>Transitioning (3)</i>	1	1		
<i>Expanding (4)</i>	1			

The baseline is 32%, and the gap closing amount is 20%. Consequently, the “end” goal is 95% of students demonstrate progress using the above table, and the long-term goal for 2028–2029 is for 45% of students to demonstrate progress.

New York State results indicate that approximately 32% of students meet their progress expectations.

2. Provide the measurements of interim progress toward the long-term goal for increases in the percentage of English learners making progress in achieving English language proficiency in Appendix A.

Currently, 32% of New York State ELLs/MLLs meet their progress expectations. Since the “end” goal is to have 95% of students meeting their progress expectations, the gap is 63%. The long-term goal is to have 20% of that gap closed within 5 years, which is the 2028–2029 school year. Twenty percent of 63% equals 13 percentage points, when rounded to the nearest whole number. The annual progress for the long-term goal is divided equally by the number of years, and therefore is 2.5 percentage points.

Starting in the 2025–2026 school year based on 2024–2025 school year results, NYSED has updated its ambitious long-term goals and measures of interim progress for ELLs/MLLs under the amendments to New York State’s approved consolidated State plan. As approved by USDE, New York State has amended the long-term goal to 45% for the 2028–2029 school year. The annual progress will remain at 2.5 percentage points starting with the 2024–2025 school year results.

iv. Indicators (ESEA section 1111(c)(4)(B))

a. Academic Achievement Indicator. Describe the Academic Achievement indicator, including a description of how the indicator (i) is based on the long-term goals; (ii) is measured by proficiency on the annual Statewide reading/language arts and mathematics assessments; (iii) annually measures academic achievement for all students and separately for each subgroup of students; and (iv) at the State’s discretion, for each public high school in the State, includes a measure of student growth, as measured by the annual Statewide reading/language arts and mathematics assessments.

New York State is committed to building an accountability system of multiple measures aligned to college, career, and civic readiness. New York State has been diligent in soliciting extensive feedback from stakeholders through online surveys and dozens of meetings across the State to inform this design. In particular, stakeholders have provided detailed feedback on the selection of indicators that will incentivize all public schools to move all students to higher levels of achievement. The State also is committed to using valid and reliable indicators and measuring student growth from year-to-year.

The assessment tools used by New York State support the criteria that are set forth in the Standards for Educational and Psychological Testing (AERA, APA, NCME, 2014). The validity and reliability evidence that is collected for each assessment supports the specific uses and

interpretations of scores for each tool, and are, therefore, described in detail in each technical report.

Links to technical reports and corresponding sections for reliability and validity:

- [New York State Testing Program 2023: Grades 3-8 ELA & Math \(Sections 3 & 7\)](#)
- [New York State Alternate Assessment Technical Report 2022-23 \(Chapters 8 & 10\)](#)
- [New York State English as a Second Language Achievement Test – 2021 Operational Test Technical Report \(Chapters 5 & 6\)](#)

Consistent with New York State’s long-term goals, New York State uses Performance Indices (PI) in English language arts and mathematics to measure academic achievement. A PI is calculated separately for each subject to create the ELA and Math Achievement Indicator Indices. Providing separate calculations of the ELA Performance Index and Math Performance Index creates a robust opportunity for differentiation, and the calculations are encouraged to be used for informational and continuous improvement planning purposes.

The PI is based upon measures of proficiency on State assessments and gives schools “partial credit” for students who are partially proficient (Accountability Level 2), “full credit” for students who are proficient (Accountability Level 3), and “extra credit” for students who are advanced (Accountability Level 4). The PI will be a number between 0-250. In a school in which all students are proficient, the school would have an Index of 200. In a school in which half of the students were proficient and half of the students were partially proficient, the Index would be 150.

When an accountability system is based solely on whether or not students are proficient, this creates a potential incentive for schools to focus efforts on those students who are closest to becoming proficient and a potential disincentive to focus efforts on students who are far from the standard of proficiency. By providing partial credit for students who are partially proficient, New York State gives schools as much incentive to move students from Level 1 to Level 2 as it does to move students from Level 2 to Level 3. In schools most at risk of being identified for support and improvement, the degree to which schools are moving students from Level 1 to Level 2 is a more precise way to judge improvement and progress than the ability of the school to move students from Level 2 to Level 3.

The Department’s rationale for use of a PI is supported by the public comments provided to the USDE on draft ESSA regulations from prominent psychometricians at the Learning Policy Institute regarding the use of scale scores and PIs, as well as an article describing the work of psychometrician and Harvard professor Andrew Ho, entitled “[When Proficient Isn’t Good](#).”

The goal of an accountability system should be to incentivize schools to have all students reach their maximum potential. Under No Child Left Behind, schools were given strong incentives to work to have as many students as possible reach proficiency, but few incentives to have students reach levels beyond proficiency. An August 2016 report issued by the Thomas Fordham Institute, entitled “[High Stakes for High Achievers: State Accountability in the Age of ESSA](#),”) asserts that “NCLB meant well (as did many state accountability systems that preceded it), but it had a pernicious flaw. Namely, it created strong incentives for schools to focus all their energy

on helping low-performing students get over a modest ‘proficiency’ bar, while ignoring the educational needs of high achievers, who were likely to pass state reading and math tests regardless of what happened in the classroom. This may be why the United States has seen significant achievement growth for its lowest-performing students over the last twenty years but smaller gains for its top students.” The report also states that “research from Fordham, the Jack Kent Cooke Foundation, and elsewhere shows that these low-income ‘high flyers’ are likeliest to ‘lose altitude’ as they make their way through school. The result is an ‘excellence gap’ rivaling the ‘achievement gaps’ that have been our policy preoccupation.” A PI that gives extra credit to students who score advanced on state assessments provides schools an incentive to move all students to higher levels of performance. To ensure that schools did not divert attention away from students at lower levels of performance, the index gives additional credit to schools for increasing the percentage of students at Level 4 compared to Level 3, but only half as much credit as for moving students from Level 1 to Level 2 or from Level 2 to Level 3.

All continuously enrolled students in the tested elementary and middle level grades and all students in the annual high school cohort are included in the PI. For each subject, a PI is computed for each subgroup of students for which a school or district meets the minimum n-size requirements.

Computation of the PI: A PI is a value from 0 to 250 that is assigned to an accountability group, indicating how that group performed on a required State test (or approved alternative) in English language arts and mathematics. Student scores on the tests are converted to performance levels.

In elementary/middle- and secondary-level ELA and mathematics, the performance levels are:

Level 1 = Basic
 Level 2 = Basic Proficient
 Level 3 = Proficient
 Level 4 = Advanced

The Performance Index is computed as follows:

ELA and Math Performance Index = [(number of continuously enrolled tested students scoring at Level 2 + (Level 3 * 2) + (Level 4 * 2.5) ÷ the greater of the number of continuously enrolled tested students or 95% of continuously enrolled students] x 100

Example of Elementary/Middle School ELA and Math Academic Achievement Indicator Performance Index Calculation

Accountability Group	Subject	# of Continuously Enrolled Students	# of Continuously Enrolled Tested Students	# Level 1	# Level 2	# Level 3	# Level 4	Numerator	Denominator	PI
Low-Income	Math	102	100	10	30	40	20	160	100	160
Low-Income	ELA	100	90	20	20	30	20	130	95	137

In the above example, the numerator for the Performance Index is the sum of the number of students at Level 2; plus the number of students who scored Level 3, multiplied by two; plus the number of students who scored at Level 4, multiplied by 2.5. This number is then multiplied by 100. The denominator is number of Continuously Enrolled Tested Students, except for ELA, where the denominator for the Performance Index is 95, since only 90 out of 100 Continuously Enrolled Students were tested.

Notes:

- Students who take the New York State Alternate Achievement Test are included in the Performance Index based on their achievement level on that examination.
- Newly arrived English language learners who are exempt from taking the language arts assessment are not included in the computation of the Performance Indices.
- At the elementary/middle level, students in Grades 6, 7 and 8 who take Regents Examinations in Mathematics will have their scores included in the Elementary/Middle Performance Index in the same manner as scores for high school students are included in the High School Performance Index. Thus, for example, for both a middle level student's and a high school student's score on a Regent exam to be included in the respective Performance Indices as Level 4, the student must score at or above 85 on the examination. Similarly, both middle and high school students who score below 65 will have their results included in the Performance Index as Level 1.
- At the secondary level, the school accountability cohort consists of all students who first entered Grade 9 anywhere four years previously (e.g., the 2024 accountability cohort consists of students who first entered Grade 9 during the 2024–2025 school year), and all ungraded students with disabilities who reached their 17th birthday in that same school year, who were enrolled for more than half of the current school year and did not transfer to another district's or school's diploma-granting program. A student's assessment results are used in the fourth year after the student enters Grade 9. Students who earned a high school equivalency diploma from or were enrolled in an approved high school equivalency preparation program on June 30 of the current school year have exited the school as non-completers and are not included in the school accountability cohort and therefore not included in the numerator or denominator when calculating the academic achievement indicator at the secondary level. All students in the accountability cohort who do not take a Regents exam, the New York State Alternate Assessment, or an approved alternative to the Regents are counted as Level 1.

Based on stakeholder feedback, NYSED will not calculate a Progress Measure beginning in the 2025–2026 school year based on 2024–2025 school year results. However, New York State will set statewide long-term goals and annual measures of interim progress for informational and continuous improvement planning purposes to ensure substantial academic improvement for all students. Specifically, NYSED will annually provide school and district subgroup level results that can be compared against state level measures of interim progress and long-term goals.

b. Indicator for Public Elementary and Secondary Schools that are Not High Schools (Other Academic Indicator). Describe the Other Academic indicator, including how it annually measures the performance for all students and separately for each subgroup of students. If the Other Academic indicator is not a measure of student growth, the

description must include a demonstration that the indicator is a valid and reliable statewide academic indicator that allows for meaningful differentiation in school performance.

New York State will use a measure of student growth as one indicator for public elementary and secondary schools that are not high schools.

New York State's current accountability system, pursuant to its ESEA Flexibility waiver, uses Mean Growth Percentiles (MGP) for ELA and mathematics in Grades 4-8 to measure student growth in elementary and middle schools. MGPs are computed for students who have a valid test score in the subject in the current year and a valid test score in that same subject in the prior year in the grade immediately below the student's current grade (e.g., the student has a Grade 5 math assessment result in 2017 and a Grade 4 assessment result in 2016).

The MGP model is typically referred to as a covariate adjustment model (McCaffrey, Lockwood, Koretz & Hamilton, 2004), as the current year observed score is conditioned on prior levels of student achievement (referred to as the unadjusted model in New York State). At the core of the New York State growth model is the production of a Student Growth Percentile (SGP). This statistic characterizes the student's current-year score relative to other students with similar prior test score histories. For example, an SGP equal to 75 denotes that the student's current-year score is the same as or better than 75 percent of the students in the State with similar prior test score histories. Once SGPs are estimated for each student, group-level (e.g., subgroups or school-level) statistics can be formed that characterize the typical performance of students within a group. New York State's growth model Technical Advisory Committee recommended using a mean SGP. Hence, group-level statistics are expressed as the mean SGP within a group. This statistic is referred to as the MGP. Scores from the unadjusted model are reported for informational purposes to educators and are used for school accountability in Grades 4–8. Detailed information regarding New York State's model can be found in the [Growth Model for School Accountability 2022–23 Technical Report](#).

Starting in the 2025–2026 school year based on 2024–2025 school year results, New York State will, under ESSA, use one year of SGPs that measures growth between the prior year and current year to generate an average MGP in ELA and mathematics to create the school Growth Index. The Commissioner shall calculate an MGP for each accountability subgroup for each public school, charter school, and district by adding the SGP scores for continuously enrolled students in Grades 4-8 ELA to those in Grades 4-8 math for the current reporting year, and dividing the result by the total number of SGPs in those grades/subjects.

An index will be created for each subgroup for which the combined total of SGPs is equal to or greater than 20. An example of how the Growth Index is computed is shown below.

Year	Number of ELA SGPs	Number of Math SGPs	Sum of ELA SGPs	Sum of Math SGPs
2022–2023	30	31	1600	1578
Combined Total	61		3178	
Growth Index	(3178/61) = 52.1			

For purposes of school differentiation, the Growth Index for each subgroup in a school is converted to an Achievement Level that ranges from 1-4, as follows:

Growth Index	Level
45 or Less	1
45.1 to 50	2
50.1 to 54	3
Greater than 54	4

In the example above, because the Growth Index is 52.1, the subgroup would receive a Level 3 for the Growth Index.

Inclusive of student growth, at the elementary and middle level, New York State uses two additional other academic indicators: a Science Performance Index (PI) as part of the Weighted Average Achievement Index and a Core Subject Performance Index, starting in the 2025–2026 school year based on 2024–2025 school year results.

In 2017, the New York State P-12 Science Learning Standards (NYSP-12SLS) took effect, with instruction aligning with the NYSP-12SLS for Grades preschool through 3 and Grade 6 beginning in 2019. Under the new standards, new Grade 5 Elementary-level and Grade 8 Intermediate-level Science tests were administered in spring 2024. To mitigate the fluctuations in assessment results during this transition, NYSED paused the inclusion of the science assessment results in the Weighted Average Achievement Index and the Core Subject Performance Index calculations for the 2023–2024 school year based on 2022–2023 school year results and the 2024–2025 school year based on 2023–2024 school year results at the elementary/middle level. Starting in the 2025–2026 school year based on 2024–2025 school year results and thereafter, the Science PI will be used as another academic indicator for the elementary/middle level.

The Science Performance Index is computed using the results for all continuously enrolled students in the tested elementary and middle level grades. A PI is computed for each subgroup of students for which a school or district meets the minimum n-size requirements.

Computation of the Science PI: A Science PI is a value from 0 to 250 that is assigned to an

accountability group, indicating how that group performed on a required State test (or approved alternative) in science. Student scores on the tests are converted to performance levels as follows.

Level 1 = Basic

Level 2 = Basic Proficient

Level 3 = Proficient

Level 4 = Advanced

The Performance Index is computed as follows:

Science Performance Index = $[(\text{number of continuously enrolled tested students scoring at Level 2} + (\text{Level 3} * 2) + (\text{Level 4} * 2.5) \div \text{the greater of the number of continuously enrolled tested students or 95\% of continuously enrolled students}] \times 100$

Example of Science Performance Index

Accountability Group	Subject	# of Continuously Enrolled Students	# of Continuously Enrolled Tested Students	# Level 1	# Level 2	# Level 3	# Level 4	Numerator	Denominator	PI
Low-Income	Science	100	90	20	20	30	20	130	95	137

In the above example, the numerator for the Performance Index is the sum of the number of students at Level 2; plus the number of students who scored Level 3, multiplied by two; plus the number of students who scored at Level 4, multiplied by 2.5. This number is then multiplied by 100. The denominator is 95, since only 90% of Continuously Enrolled Students were tested.

Students in Grades 7 and 8 who take Regents Examinations in Science will have their scores included in the Elementary/Middle Performance Index in the same manner as scores for high school students are included in the High School Performance Index. Thus, for example, for both a middle level student's and a high school student's score on a Regent exam to be included in the respective Performance Indices as Level 4, the student must score at or above 85 on the examination. Similarly, both middle and high school students who score below 55 will have their results included in the Performance Index as Level 1.

The Core Subject Performance Index is a measure of how well students who participate in state assessments perform. The Core Subject Performance Index allows stakeholders to differentiate performance among subgroups of students who actually participate in state assessments as opposed to conflating performance results that are reported for all continuously enrolled students regardless of whether or not they participated in the assessment. This measure has been reported and used for accountability purposes in New York for 15 years, and is considered by stakeholders to be a critical measure of school performance.

The Core Subject Performance Index is computed as $[(\text{number of continuously enrolled tested students scoring at Level 2} + (\text{Level 3} * 2) + (\text{Level 4} * 2.5) \div \text{the number of continuously enrolled tested students}] \times 100$

The weighted average of a subgroup's Performance Indices is used to create the subgroup's Core

Subject Performance Index as illustrated below:

Example of Elementary/Middle School Core Subject Performance Index

Accountability Group	Subject	# of Continuously Enrolled Tested Students	# Level 1	# Level 2	# Level 3	# Level 4	Numerator	Denominator	PI
Low-Income	Math	100	10	30	40	20	160	100	160
Low-Income	ELA	95	25	20	30	20	130	95	137
Low-Income	Science	40	0	10	14	16	78	40	195
Low Income	Index	235	35	60	84	56	368	235	157

In the above example, the numerator for the Performance Index is the sum of the number of students at Level 2; plus the number of students who scored Level 3, multiplied by two; plus the number of students who scored at Level 4, multiplied by 2.5. This number is then multiplied by 100. To calculate the Core Subject Performance Index for the low-income subgroup, the numerators for mathematics, ELA, and science are summed and then divided by the denominators for these three subjects.

At the elementary/middle level, as there are more testing instances and subsequently more student results for Grades 3-8 ELA and math, compared to Grades 5 and 8 science, ELA and math will be weighted at a minimum of two times higher than science in the Core Subject Performance Index. The exact ratio of the weight of ELA and math to science in this calculation will vary depending on the schools' grade configuration but at a minimum will be 2:1.

For purposes of school differentiation, the Core Subject Performance Index for the All Students group and each subgroup in a school is converted to a Core Subject Performance Level that ranges from 1-4 using static cut points based on a single school year of data that will be established every three years beginning with 2023–2024 school year results. For example, static cut points will be established based on ranked outcomes from the 2023–2024 school year results and will be applied to the 2024–2025, 2025–2026, and 2026–2027 school year results. The static cut points will be established based on the ranked distribution from the 2023–2024 school year results as indicated in the chart below. The new set of cut-points will then be established based on ranked outcomes from the 2026–2027 school year results. In specific situations of a special condition such as administration of a new assessment that impacts student outcomes or extenuating or extraordinary circumstances such as a state emergency that results in interrupted learning or cancellation of examinations, the Commissioner will average three years of assessment data for all accountability subgroups to establish static cut points.

Rank	Achievement Level
10% or Less	1
10.1 to 50%	2

50.1 to 75%	3
Greater than 75%	4

Notes:

- Students who take the New York State Alternate Achievement Test are included in the Performance Index based on their achievement level on that examination.
- Students in Grades 6, 7 and 8 who take Regents Examinations in Mathematics and students in Grades 7 or 8 who take Regents Examinations in Science will have their scores included in the Elementary/Middle Performance Index in the same manner as scores for high school students are included in the High School Performance Index. Thus, for example, for both a middle level student's and a high school student's score on a Mathematics or Science Regents exam to be included in the respective Performance Indices as Level 4, the student must score at or above 85 on the examination. Similarly, both middle and high school students who score below 65 on a Mathematics Regents exam or below 55 on a Science Regents exam will have their results included in the Performance Index as Level 1.

In response to stakeholder support, NYSED sought and received USDE approval to amend New York State's consolidated State plan to exclude calculations for a Progress Measure at the elementary/middle and high school levels starting in the 2023–2024 school year based on 2022–2023 school year results and thereafter. However, New York will set statewide long-term goals and annual measures of interim progress for informational and continuous improvement planning purposes. Specifically, NYSED will annually provide school and district subgroup level results that can be compared against state level measures of interim progress and long-term goals.

c. Graduation Rate. Describe the Graduation Rate indicator, including a description of (i) how the indicator is based on the long-term goals; (ii) how the indicator annually measures graduation rate for all students and separately for each subgroup of students; (iii) how the indicator is based on the four-year adjusted cohort graduation rate; (iv) if the State, at its discretion, also includes one or more extended-year adjusted cohort graduation rates, how the four-year adjusted cohort graduation rate is combined with that rate or rates within the indicator; and (v) if applicable, how the State includes in its four-year adjusted cohort graduation rate and any extended-year adjusted cohort graduation rates students with the most significant cognitive disabilities assessed using an alternate assessment aligned to alternate academic achievement standards under ESEA section 1111(b)(2)(D) and awarded a State-defined alternate diploma under ESEA section 8101(23) and (25).

At the secondary level, New York State will use three cohorts to determine if an accountability group met the criterion in graduation rate. These are the four-year adjusted cohort graduation rate and the five-year and six-year extended adjusted cohort graduation rate. The four-year adjusted cohort graduation rate consists of all students who first entered Grade 9 anywhere four years previously and who were enrolled in the school/district. The five-year and six-year extended adjusted cohort graduation rate consists of all students who first entered Grade 9 anywhere in the five years previously and six years previously and who were enrolled in the school/district. Data

for these cohorts are captured as of August 31 of the prior school year. Students who earn diplomas from registered New York State public schools or students who are enrolled in P-Tech⁶ or dual high school college programs⁷ and have met all requirements for high school graduation are counted as high school completers.

With support from stakeholders and educational experts, NYSED received USDE approval to amend the calculation of Graduation Rate Performance Levels starting in the 2023–2024 school year based on 2022–2023 school year results. The Graduation Rate Level will be determined for each accountability subgroup by calculating the unweighted average of the 4-year, 5-year, and 6-year graduation rates. Schools will be ranked based on their unweighted average Graduation Rate in ascending order, where the higher the rank, the better the performance. Schools will be assigned an Achievement Level based on where the school falls in the rank and the table shown below.

For purposes of school differentiation, the unweighted average Graduation Rate for each subgroup in a school will be converted to a Graduation Rate Level that ranges from 1-4 based on statewide rank-based cut points as follows:

Rank	Achievement Level
10% or less	1
10.1 to 50%	2
50.1 to 75%	3
Greater than 75%	4

Starting in the 2023–2024 school year, New York State will set statewide long-term goals and annual measures of interim progress for each of the four-year, five-year, and six-year graduation rates for informational and continuous improvement planning purposes to ensure substantial academic improvement for all students. Specifically, NYSED will annually provide school and district subgroup level results that can be compared against state level measures of interim progress and long-term goals.

d. Progress in Achieving English Language Proficiency (ELP) Indicator. Describe the Progress in Achieving ELP indicator, including the State’s definition of ELP, as measured by the State ELP assessment.

New York State utilizes five levels of proficiency (Entering, Emerging, Transitioning, Expanding, and Commanding). On the initial English language proficiency assessment – New York State Identification Test for English Language Learners (NYSITELL) – students are identified as ELLs/MLLs if they score at the Entering, Emerging, Transitioning, or Expanding

⁶ [NYS Pathways in Technology \(P-TECH\)](#) is a six-year program in collaboration with an IHE and industry partner designed to have students graduate with a high school and associate’s degrees and an offer of employment.
⁷ Institutions of Higher Education (IHEs) partner with public school districts to create early college high schools that provide students with the opportunity and preparation to accelerate the completion of their high school studies while concurrently earning a minimum of 24 but up to 60 transferable college credits.

Levels, and those who score Commanding on the NYSITELL are not identified as ELLs/MLLs. The assessment was created and supported using validity and reliability evidence that is referenced in the Standards for Educational and Psychological Testing (AERA, APA, & NCME, 2014). This includes validity evidence related to content, internal structure, external structure, and various measures of reliability, such as internal consistency, standard error of measurement, and inter-rater reliability.

Once identified, all ELLs/MLLs take the State’s ELP assessment, the New York State English as a Second Language Achievement Test (NYSESLAT), yearly, to determine placement for the following year. Students may exit ELL/MLL status by demonstrating English proficiency in one of two ways: 1) by obtaining an overall score in the Commanding range on the NYSESLAT, or 2) by obtaining an overall score in the Expanding range on the NYSESLAT AND scoring above designated cut points on the Grades 3-8 English Language Arts Assessment or Regents Exam in English.

The Department has determined that ELLs/MLLs generally become English proficient in three to five years, based on a longitudinal analysis of all ELLs/MLLs in a particular cohort, with factors such as initial ELP level at entry determining the specific number of years within which a student is expected to become English proficient. The Department has reviewed data regarding achievement and proficiency of New York State ELLs/MLLs to identify a model for incorporating their progress into State accountability determinations, as well as to identify research-based student-level targets and goals/measures of interim progress. The Department reviewed several different models for measuring ELP progress, guided by New York State’s theory of action, and assessed each model for reliability, robustness, transparency, and usefulness. In addition, the Department compared its NYSESLAT with its State English Language Arts (ELA) and Mathematics assessments, and examined ELLs’/MLLs’ mean time to proficiency, including consideration of initial ELP level.

After concluding this analysis, the Department selected a Transition Matrix Table for incorporating ELLs’/MLLs’ attainment of ELP into State accountability determinations. The Transition Matrix Table model is based on initial English language proficiency level and incorporates expected growth per year against actual growth. Under the Transition Matrix Table model, growth expectations can mirror the natural language development trajectory, and the timeline to proficiency, which is based on New York State longitudinal student data, can be incorporated directly into the model. The Transition Matrix Table appears as a grid, and links English language proficiency levels to the time in years that a student is an ELL/MLL. Credit is awarded based on a student’s growth from one level to the next, over the course of years in the New York State school system. In other words, since analyses of student data show that ELLs/MLLs generally become English language proficient in three to five years, the model can set growth targets for up to five years for students based on their initial English proficiency.

The Transition Matrix Table model is intended to be used with all ELL/MLL students in grades 1 – 12, as long as a student has a current and prior year NYSESLAT score.

A “safe harbor” rule will be applied to the model, in which students are given credit either for meeting specified growth targets, or by reaching proficiency levels that are implied through growth targets. Therefore, if a student exceeds growth in his or her first year, but does not meet

the growth target in their second year, as long as the student meets the proficiency level target in the second year, the student will receive credit.

To hold schools accountable for all ELLs/MLLs, considerations for Long-Term ELLs/MLLs will also be incorporated into the model, with growth targets carrying over into additional years for those students who do not reach Commanding within the specified period. In this way, schools will have a continued incentive to make progress and exit Long Term ELLs/MLLs.

A comprehensive accountability system seeks to measure how schools support students at all levels. As noted above and detailed in Table A, the Department uses a student's initial ELP level at entry to determine the specific number of years within which a student is expected to become English proficient. To ensure schools are accountable for progress among all students, the overall performance of the school will be linked to supporting student progress regardless of their students' entry levels. Thus, for a school to achieve either a level 3 or 4 achievement level (Table E), students must minimally meet or exceed student progress goals detailed in Tables B and C.

The following steps are taken to determine a school's achievement level.

1. Determine initial level of proficiency and years in program for all applicable students.
2. Determine progress goals for each student based on entry level and years in program.
3. Calculate each school's success ratio based on students' results compared to students' progress goals.
4. Use the computed school success ratio to assign the school a level 1-4 performance.

Detailed explanation of each step:

Step 1: Determine initial level of proficiency for all students.

Applicable students take the New York State Identification Test for English Language Learners (NYSITELL) and are classified into one of five levels: Entering, Emerging, Transitioning, Expanding, and Commanding. Student previously classified take the New York State English as a Second Language Achievement Test (NYSESLAT) to determine current level of proficiency. Table A details the expected levels for students based on their initial ELP classification and years in the program.

Table A: Cumulative Progress (Expected Levels)

	Year			
Initial ELP	2	3	4	5
Entering	32.25	33.25	34.25	35
Emerging	33.25	34.25	35	
Transitioning	34	35		
Expanding	35			

Step 2: Determine progress goals for each student based on entry level and years in program.

Table B provides the expected growth of a student given an initial ELP level and year in program. ELP progress and levels are determined using the New York State English as a Second Language Achievement Test (NYSESLAT).
Revised State Template for the Consolidated State Plan

Language Achievement Test (NYSESLAT). Table C provides the probability of a student meeting the expected progress detailed in Table B using results from the 2016 NYSESLAT. A student's current level and year in program is then used to determine that student's progress goal for the year.

Table B. Progress Goals

	Year			
Initial ELP	2	3	4	5
Entering	1.25*	1	1	0.75
Emerging	1.25	1	0.75	
Transitioning	1	1		
Expanding	1			
* In levels				

Table C: Expected Student Progress, Based on Statewide Probability of Meeting Progress Goal

Initial Level	Year	Probability	N	Std. Deviation
Entering	2	0.72	15045	0.45
	3	0.58	13403	0.49
	4	0.42	9664	0.49
	5	0.47	11718	0.50
Emerging	2	0.48	8071	0.50
	3	0.33	5459	0.47
	4	0.24	4187	0.43
Transitioning	2	0.29	6249	0.45
	3	0.29	4609	0.45
Expanding	2	0.08	17764	0.28

Step 3: Calculate each school's success ratio based on students' results compared to students' progress goals.

A school's success ratio is determined by comparing a student's actual progress to that student's progress goal. The formula for calculating the success ratio is as follows:

- For all ELLs/MLLs in a school determine whether each student met the progress goal.
- Aggregate (count) the number of students meeting the progress goal; this equals "# students meeting progress goals."
- For all ELLs/MLLs in a school identify the initial ELP status and year combination and the uniform statewide likelihood that a student with that combination of initial status and year will meet the progress goal.
- Aggregate (sum) each student's probability of meeting the progress goal; this equals "Sum of students expected progress."

Success Ratio = # students meeting progress goals / Sum of students expected progress

It is important to note that the statewide aggregate of “Sum of students expected progress” is equal to the statewide basis for the long-term goal.

Therefore, expectations for every continuously enrolled English language learner student with a current and prior year NYSESLAT score are used to compute the denominator while schools only get credit for students who make annual progress in the computation of the numerator.

Step 4: Use the computed school success ratio to assign the school a level 1-4 performance.

The resulting success ratio is then used to place schools into one of four Achievement Levels. The conversion to each of the four levels is detailed in Table D. From the examples above, a success ratio of 1.0 corresponds to a Level 3; a success ratio of 0.5 corresponds to a Level 2; and a success ratio of 1.25 corresponds to a Level 4. Thus, to score at the highest level, schools must demonstrate substantial success in supporting student progress above what is expected.

Table D: Success Ratio to Achievement Level Conversion

Success Ratio	Level
0 - 0.49	1
0.50 - 0.99	2
1.0 - 1.24	3
1.25+	4

For the ELP indicator, if the increase in the percent of schools identified as Level 1 for the “all students” subgroup from the previous year is greater than 7 percentage points for Elementary/Middle schools or 9 percentage points for high schools, then the Commissioner will intervene to limit the percent of schools identified as Level 1 for each subgroup so that the statewide increase for any subgroup from the prior year is no more than 7 percentage points for elementary and middle schools and 9 percentage points for high schools. To accomplish this for each subgroup, including the all students group, the Commissioner will rank order the subgroups initially identified as Level 1 by performance for that indicator, and all subgroups that remain within the thresholds identified above will retain the Level 1 rating, and all subgroups that exceed the threshold identified above will be classified as Level 2.

e. School Quality or Student Success Indicator(s). Describe each School Quality or Student Success Indicator, including, for each such indicator: (i) how it allows for meaningful differentiation in school performance; (ii) that it is valid, reliable, comparable, and statewide (for the grade span(s) to which it applies); and (iii) of how each such indicator annually measures performance for all students and separately for each subgroup of students. For any School Quality or Student Success indicator that does not apply to all grade spans, the description must include the grade spans to which it does apply.

New York State’s selection of measure of school quality and student success was informed by extensive stakeholder engagement. More than 2,400 stakeholders responded to an online survey, and more than 1,000 persons attended regional meetings at which participants responded to direct questions about indicators of school quality and student success. New York State solicited feedback about indicators that could be used beginning with 2017-18 school year results, as well as those that might be added to the system in the future. See pages 9–20 for a discussion of the extensive process by which New York State sought public feedback on the proposed measures.

At the elementary-, middle- and high school levels, New York State initially used chronic absenteeism as its measure of school quality and student success. Research shows that both student engagement and regular school attendance are highly correlated with student success. Students who miss more than 10% of instruction have dramatically lower rates of academic success than do students who are not chronically absent.⁸ Using chronic absenteeism to differentiate between schools was intended to encourage schools to engage in aggressive efforts to ensure that students do not miss large amounts of instruction. In a survey conducted by the New York State Education Department, to which more than 2,400 persons responded, more than two-thirds strongly supported or supported the use of chronic absenteeism as a measure of school quality and student success. Since this time, the Department has conducted ongoing reviews of stakeholder feedback and has performed extensive research and modeling to continually ensure a meaningful and effective measure for school quality and student success.

Due to the ongoing challenges in achieving regular school attendance following the COVID-19 pandemic, the Department maintains its priority to boost regular attendance and to reflect on current data to inform decision-making for the most effective indicators for student success. From 2018 to 2022, chronic absenteeism in New York State drastically increased from 20.4% to 37.3%.⁹ Research continues to show how high absenteeism rates may negatively affect academic achievement, standardized test scores, graduation rates, and social-emotional and cognitive development.¹⁰ Moreover, the effects of increased student absenteeism have disproportionately impacted students of color, students who are economically disadvantaged, and students who are ELLs. These effects underscore the need to address widening equity gaps with strategies and resources that can be provided to approach all attendance needs for affected subgroups. Although the Chronic Absenteeism indicator provides insight for targeting interventions to students with the highest attendance needs, widening the scope of the attendance measure can provide schools and districts with critical information to incorporate preventative interventions into their improvement planning.

The Department has received support from stakeholder feedback to use an Attendance indicator to replace the Chronic Absenteeism indicator for measuring school quality and student success

⁸ Balfanz, R., & Byrnes, V. (2012). *The importance of being in school: a report on absenteeism in the nation’s public schools*. Johns Hopkins University Center for Social Organization of Schools. https://www.attendanceworks.org/wp-content/uploads/2017/05/Mapping-the-Early-Attendance-Gap_Final-4.pdf; Attendance Works. (2015). *Mapping the early attendance gap: charting a course for student success*. <https://www.attendanceworks.org/mapping-the-early-attendance-gap/>.

⁹ Attendance Works. (2023, October 12). *Rising tide of chronic absence challenges schools*. <https://www.attendanceworks.org/rising-tide-of-chronic-absence-challenges-schools/>

¹⁰ Ansari, A., & Gottfried, M. A. (2021). The grade-level and cumulative outcomes of absenteeism. *Child Development*, 92(4), e548-e564. <https://doi.org/10.1111/cdev.13555>

beginning with the 2025–2026 school year. The Attendance indicator aims to expand the measure of attendance beyond those that are chronically absent and will be based on the attendance of all students in a school or subgroup, rather than only those that are considered chronically absent. Replacing the Chronic Absenteeism rate with the Attendance indicator underscores that a student’s attendance is important, whether a student’s absenteeism rate is considered chronic or not. The negative effects of missing school manifest even before a student’s attendance reaches the level of chronic absenteeism.

Starting in the 2025–2026 school year based upon 2024–2025 school year results, the Attendance indicator measures the attendance rate of all enrolled students and assigns a performance level based on the percentage of school days attended. Using this methodology to generate an Attendance indicator would provide schools and districts with student-level targets that allow more students to contribute to the attendance-related accountability indicator, as well as incentivize schools to focus on implementing interventions to improve all students’ attendance rates. The Attendance indicator will be calculated separately for the All Students group and each subgroup in a school. To be included in the calculation, a student must be enrolled for 30 days (cumulative) during the school year, regardless of the point in time at which they enter the school or district. Extending the minimum enrollment period from 10 to 30 instructional days before counting a student in the attendance metric ensures that the data more accurately reflects the attendance patterns of students who are consistently part of the school or district.

Suspensions will not be considered absences because suspended students must receive alternate instruction if the student is of compulsory school age. Similarly, a student who is not present in school for an extended period for medical reasons would receive instruction at home and would not be reported as absent. Preliminary modeling by the New York State Education Department indicates that there is significant dispersion of results on this measure across schools and subgroups, and thus, the measure meaningfully differentiates school performance.

For purposes of school differentiation, the Department will assign individual Performance Levels from 1 to 4 for each enrolled student based on the percentage of instructional days attended as follows:

% Days Attended	Level
85% or less	1
85.1 to 90%	2
90.1 to 95%	3
Greater than 95%	4

For each subgroup, the student Performance Levels will be used to calculate an Attendance Index using the following formula:

$$\frac{(Level\ 2) + 2(Level\ 3) + 2.5(Level\ 4)}{\#\ of\ students\ enrolled\ \geq\ 30\ days} \times 100$$

The calculated Attendance Index will be converted to an Attendance Performance Level from 1-4 based on statewide static cut points that will provide schools and districts with clear targets for continuous improvement. Static cut points will be established every three years beginning with 2023–2024 school year results. For example, static cut points will be established based on ranked

outcomes from the 2023–2024 school year results and will be applied to the 2024–2025, 2025–2026, and 2026–2027 school year results. The static cut points will be established based on the ranked distribution from the 2023–2024 school year results as indicated in the chart below. The new set of cut-point will then be established based on ranked outcomes from the 2026–2027 school year results:

Rank	Achievement Level
10% or less	1
10.1 to 50%	2
50.1 to 75%	3
Greater than 75%	4

Additionally, at the high school level, New York State will use a College, Career, and Civic Readiness Index as a measure of school quality and student success. Such an indicator drew substantial support from respondents to the survey mentioned above, with two-thirds strongly supporting or supporting the use of a College, Career, and Civic Readiness Index. New York State believes that a measure that incentivizes schools to ensure that students graduate with the most rigorous possible high school credential will enable more students to succeed than a measure that merely values completion. In addition, research demonstrates that students benefit from participation in advanced coursework, even if students are unable to achieve college-ready scores on exams associated with such coursework or to earn college credit when enrolled in a course that offers both high school and college credit.

New York State’s College, Career, and Civic Readiness Index will give credit to schools for students who pass high school courses and additional credit for students who achieve specified scores on nationally recognized exams associated with these courses or who earn college credit for participation in dual enrollment courses. Including this indicator as a measure of school quality and student success will encourage more schools to offer advanced coursework to more students. Additional elements of the index will include successful completion of a career technical course of study, receipt of an industry-recognized credential, completion of the Seal of Civic Readiness, and completion of the Seal of Biliteracy, as well as results from students who participate in the New York State Alternate Assessments. The College, Career, and Civic Readiness Index is a number that will range from 0 to 200¹¹ and will be computed by multiplying each student’s readiness measure by the appropriate weighting, summing those weighted results for all students, and dividing that readiness total by the number of students in the 4-year graduation cohort. Students not in the graduation cohort who obtain a Regents Diploma and a Seal of Biliteracy are included in the numerator and denominator. The denominator of the College, Career, and Civic Readiness (CCCR) index is the number of students in the 4-year graduation cohort. Students who obtain a Regents Diploma and a Seal of Biliteracy in their fifth or sixth year after first entering Grade 9 are also included in both the numerator and denominator of the CCCR index calculation. These students are members of the 5-year and 6-year graduation cohorts and thus would not be included in the 4-year graduation

¹¹ It is theoretically possible for a subgroup to have an Index of more than 200 if all students in the graduation cohort for a subgroup graduate with a readiness measure that is weighted as a 2 and the subgroup also has students from prior two reporting years who earn a high school equivalency diploma and are added to the index. Should this occur, the index will be capped with a score of 200.

cohort.

Readiness Measure	Weighting
• Regents Diploma with Advanced Designation • Regents or Local Diploma with CTE Endorsement • Cohort Regents Diploma with Seal of Biliteracy • Annual Regents Diploma with Seal of Biliteracy • Regents Diploma and score of 3 or higher on an AP exam • Regents Diploma and score of 4 or higher on IB exam • P-Tech and Regents Diploma Requirements • Regents Diploma with Smart Scholars • Regents Diploma with Smart Transfer Early College • Regents Diploma with Seal of Civic Readiness • Regents Diploma and high school credit through participation in dual enrollment (in high school and accredited college) course • Skills and Achievement Commencement Credential with an average score of 4 on the New York State Alternate Assessment Examinations (NYSAA) in language arts, mathematics, and science	2
• Regents Diploma and high school credit earned through participation in an AP or IB course. • Regents Diploma with CDOS Credential • Skills and Achievement Commencement Credential with an average score of 3 on the New York State Alternate Assessment Examinations (NYSAA) in language arts, mathematics, and science.	1.5
• Regents Diploma • Local Diploma • Skills and Achievement Commencement Credential with an average score of 2 on the New York State Alternate Assessment Examinations (NYSAA) in language arts, mathematics, and science.	1
• High School Equivalency Diploma¹² • CDOS Credential	.5
• No High School or High School Equivalency Diploma	0

The school graduation cohort consists of all students who first entered Grade 9 anywhere four years previously (e.g., the 2020 graduation cohort consists of students who first entered Grade 9 during the 2020–2021 school year), and all ungraded students with disabilities who reached their 17th birthday in that same school year and did not transfer to another district’s or school’s

¹² The weighting given to students who earn a high school equivalency diploma is not based on graduation cohort membership. Instead, a school earns credit for the student in the year in which the student earns his or her high school equivalency diploma, so long as the student earns the diploma within 24 months of the date in which the student was articulated by the high school to a high school equivalency program.

diploma-granting program.

For the calculation of Performance Levels, the College, Career, and Civic Readiness Index for each subgroup in a school will be converted to an Index Level that ranges from 1-4 that will be based on a statewide rank-based cut point system as follows:

Rank	Achievement Level
10% or less	1
10.1 to 50%	2
50.1 to 75%	3
Greater than 75%	4

Schools will be ranked in descending order. The higher the rank, the better the performance. Subgroups will be assigned a Performance Level based on where the school falls in the rank and the table shown above.

Starting in the 2025–2026 school year based on 2024–2025 school year results, with support from stakeholders and educational experts, NYSED sought and received USDE approval to use Core Subject Performance as a measure of school quality and student success at the high school level. New York State will compute a Core Subject Performance Index for cohort students who participated in ELA, math, social studies, and science examinations. The Core Subject Performance Index will be computed separately for the All Students group and each subgroup in a school. Schools will be ranked based on their Core Subject Performance Index in ascending order, where the higher the rank the better the performance. For the purposes of school differentiation, the Core Subject Performance Index for each subgroup in a school will be converted to a Core Subject Performance Level that ranges from 1-4 using static cut points based on a single school year of data that will be established every three years beginning with 2023–2024 school year results. For example, static cut points will be established based on ranked outcomes from the 2023–2024 school year results and will be applied to the 2024–2025, 2025–2026, and 2026–2027 school year results. The static cut points will be established based on the ranked distribution from the 2023–2024 school year results as indicated in the chart below. The new set of cut-points will then be established based on ranked outcomes from the 2026–2027 school year results. In specific situations of a special condition such as administration of a new assessment that impacts student outcomes or extenuating or extraordinary circumstances such as a state emergency that results in interrupted learning or cancellation of examinations, the Commissioner will average three years of assessment data for all accountability subgroups to establish static cut points.

Rank	Achievement Level
10% or Less	1
10.1 to 50%	2
50.1 to 75%	3
Greater than 75%	4

In addition, at the high school level, Science and Social Studies Performance Indices are also used as measures of school quality and student success and are included in the High School

Weighted Average Achievement Index. The PI for secondary-level science and social studies is calculated using the following equation:

$$PI = [(number\ of\ accountability\ cohort\ members\ scoring\ at\ Level\ 2 + (Level\ 3 * 2) + (Level\ 4 * 2.5) \div number\ of\ accountability\ cohort\ members] \times 100.$$

Example of High School Science and Social Studies Performance Indices

Accountability Group	Subject	# of Students in Accountability Cohort	# Level 1	# Level 2	# Level 3	# Level 4	Numerator	Denominator	PI
Low-Income	Science	100	5	15	50	30	190	100	190
Low-Income	Social Studies	100	8	12	45	40	202	100	202

Note: All students in the accountability cohort who do not take a Regents exam, the New York State Alternate Assessment, or an approved alternative to the Regents are counted as Level 1.

The June 2022 Regents Examination in United States History and Government was cancelled. As a result, social studies results were significantly impacted and thus impacted the Weighted Average Achievement and Core Subject Performance calculations at the secondary level. New York State excluded the Social Studies Performance Index as a measure of school quality and student success at the secondary level for the 2023–2024 and 2024–2025 school years. Science Performance Index continues to be used, and the Social Studies Performance Index will be reintroduced as a measure of school quality and student success at the secondary level starting in the 2025–2026 school year based on 2024–2025 school year results.

v. Annual Meaningful Differentiation (ESEA section 1111(c)(4)(C))

a. Describe the State’s system of annual meaningful differentiation of all public schools in the State, consistent with the requirements of section 1111(c)(4)(C) of the ESEA, including a description of (i) how the system is based on all indicators in the State’s accountability system, (ii) for all students and for each subgroup of students. Note that each state must comply with the requirements in 1111(c)(5) of the ESEA with respect to accountability for charter schools.

New York State will differentiate all public schools in the State, including charter schools, into the following categories using each of the indicators specified in Section iv for which a school or subgroup will be held accountable for performance: Schools identified for Comprehensive Support and Improvement, Schools identified for Additional Targeted Support and Improvement, Schools identified for Targeted Support and Improvement, and Schools identified for Local Support and Improvement. New York State will no longer identify Recognition Schools and will continue to pursue opportunities to meaningfully support and acknowledge schools that have excelled in student outcomes. To determine the category into which a subgroup will be differentiated, New York State assigns a Performance Level from 1-4 for each measure for which

a subgroup in a school is held accountable.

b. Describe the weighting of each indicator in the State’s system of annual meaningful differentiation, including how the Academic Achievement, Other Academic, Graduation Rate, and Progress in ELP indicators each receive substantial weight individually and, in the aggregate, much greater weight than the School Quality or Student Success indicator(s), in the aggregate.

In the 2025–2026 school year based on 2024–2025 school year results and all subsequent years thereafter, New York State will not explicitly weight indicators, but will rather use a series of decision rules to differentiate between schools. These decision rules will give the greatest weight to academic achievement indicators at both the elementary/middle and the secondary levels.

The weighted average of a subgroup’s Performance Indices is used to create the subgroup’s Weighted Average Achievement Index. The numerator for the Performance Index is the sum of the number of students at Level 2; plus the number of students who scored Level 3, multiplied by two; plus the number of students who scored at Level 4, multiplied by 2.5. This number is then multiplied by 100. The denominator at the elementary/middle level is the greater of the number of continuously enrolled tested Students or 95% of continuously enrolled students with or without valid test scores. The denominator at the high school level is the four-year cohort as of June 30th, which is students who entered Grade 9 in the same year and were enrolled in the school, district, and state on June 30th four years later. At the high school level, a student’s assessment results are used in the fourth year after the student enters Grade 9.

At the elementary/middle level, four of the five indicators measure academic achievement (Weighted Average Achievement, Core Subject Performance, Growth Index, and Progress Toward English Language Proficiency). New York State’s Weighted Average Achievement Index is a combination of its Academic Achievement indicators (ELA and Math Performance Indices) and Science Performance Index (an Other Academic Indicator) for elementary and middle schools. New York State’s Core Subject Performance is another combination of its ELA and Math Performance Indices and Science Performance Index. The Growth Index measures student growth in Grades 4–8 ELA and math, and the Progress Toward English Language Proficiency uses achievement goals in ELA.

Additionally, starting in the 2025–2026 school year based on 2024–2025 school year results and all subsequent years thereafter, within the Weighted Average Achievement and Core Subject Performance Indices for the elementary/middle level, eligible student records for academic achievement in Grades 3–8 ELA and math and Grades 5 and 8 science are included. As there are more testing instances and subsequently more student results for ELA and math, compared to science, ELA and math will be weighted at a minimum of two times higher than science in the Weighted Average Achievement Index and the Core Subject Performance Index. The exact ratio of the weight of ELA and math to science in these calculations will vary depending on the schools’ grade configuration but at a minimum will be 2:1.

Example of Elementary/Middle School ELA, Math, and Science Weighted
Average Achievement Index

Accountability Group	Subject	# of Continuously Enrolled Students	# of Continuously Enrolled Tested Students	# Level 1	# Level 2	# Level 3	# Level 4	Numerator	Denominator	PI
Low-Income	Math	102	100	10	30	40	20	160	100	160
Low-Income	ELA	100	90	20	20	30	20	130	95	137
Low-Income	Science	40	35	5	15	9	6	48	38	126
Low-Income	Index	242	225	35	65	79	46	338	233	145

At the secondary level, four of the six indicators measure academic achievement (Weighted Average Achievement, Core Subject Performance, Progress toward English Language Proficiency, and Graduation Rate). New York State's Weighted Average Achievement Index is a combination of its Academic Achievement indicators (ELA and Math Performance Indices) and Science and Social Studies Performance Indices (SQSS Indicators) for high schools. New York State's Core Subject Performance is another combination of its ELA and Math Performance Indices and Science and Social Studies Performance Indices, while the Progress Toward English Language Proficiency uses achievement goals in ELA. Graduation Rate is included in this aggregate as well. Additionally, starting in the 2025–2026 school year based on 2024–2025 school year results, when calculating the Weighted Average Achievement and Core Subject Performance Indices for the secondary level, ELA and math are each given a weight of three and science and social studies are each given a weight of two.

Example of High School ELA, Math, Science, and Social Studies Weighted
Average Achievement Index

Accountability Group	Subject	# of Students in Accountability Cohort	# Level 1	# Level 2	# Level 3	# Level 4	Numerator	Denominator	PI
Low-Income	Math	100	10	30	40	20	160	100	160
Low-Income	ELA	100	10	20	30	40	180	100	180
Low-Income	Science	100	5	15	50	30	190	100	190
Low-Income	Social Studies	100	8	12	45	40	202	100	202
Low Income	Index						$\frac{((160 \times 3) + (180 \times 3) + (190 \times 2) + (202 \times 2))}{10} = 180.4$		

For purposes of school differentiation at the elementary/middle and high school level, the Weighted Average Achievement Index for the All Students group and each subgroup in a school

will be converted to a Weighted Average Achievement Index Level that ranges from 1-4 based on statewide ranking.

Rank	Achievement Level
10% or Less	1
10.1 to 50%	2
50.1 to 75%	3
Greater than 75%	4

The following rules are applied when the All Students group in the school has insufficient results to be held accountable for one or more accountability measures:

1. **Weighted Average Achievement Index or Core Subject Performance Index (elementary and middle schools):** If the All Students group does not meet the minimum N count for a Weighted Average Achievement Index or Core Subject Performance Index determination, then the school will be held accountable using the established accountability process for small schools (self-assessment process), as discussed in section c below.
2. **Weighted Average Achievement Index (high schools):** If the All Students group in a school does not meet the minimum N count for a Weighted Average Achievement Index determination, then the school will be held accountable using the established accountability process for small schools (self-assessment process), as discussed in section c below.
3. **Core Subject Performance Index and Graduation Rate (high schools):** If the All Students group in a school does not meet the minimum N count for both Core Subject Performance Index and Graduation Rate determinations, then the school will be held accountable using the established accountability process for small schools (self-assessment process), as discussed in section c below.
4. **Other Measures (Growth Index; English language proficiency; Attendance; and College, Career, and Civic Readiness Index):** For elementary/middle schools, if the All Students group in a school does not meet the minimum N count for Growth Index, ELP, and Attendance, then the school will be subject to the self-assessment process. For high schools, if the All Students group does not meet the minimum N count for ELP, Attendance, and College, Career, and Civic Readiness, then the school will be subject to the self-assessment process. (Note: A subgroup that has sufficient results to generate a Weighted Average Achievement Index and Growth Index or a Weighted Average Achievement Index and Graduation Rate is highly likely to have sufficient results for a determination to be made regarding the Attendance Index and the College, Career, and Civic Readiness Index.)

c. If the States uses a different methodology or methodologies for annual meaningful differentiation than the one described in 4.v.a. above for schools for which an accountability determination cannot be made (e.g., P-2 schools), describe the different methodology or methodologies, indicating the type(s) of schools to which it applies.

New York State uses a different methodology for annual meaningful differentiation than the one described in 4.v.a above only for schools for which the methodology described in 4.v.a is

Revised State Template for the Consolidated State Plan

inappropriate or cannot be implemented, such as K-1 schools, schools with fewer than 20 continuously enrolled student results, and new high schools that have not yet graduated a cohort of students. As described below, New York has made special provisions for making annual meaningful differentiations when a school does not enroll students in grades in which state assessment are administered, does not have enough students to meet the minimum n-size to hold the school accountable for the academic achievement measure, or at the secondary level, does not have high school completion results for use in making graduation rate determinations.

Currently, New York State holds schools in which either Grades 1 or 2 is the terminal grade accountable for the performance of former students when these students take the Grade 3 assessments in another school within the district (i.e., backmapping). These schools are responsible for the performance of students who were continuously enrolled in the school's highest grade (Grade 1 or 2). Schools serving only kindergarten are required to submit nationally normed (if available) achievement test data for English language arts and mathematics to the Department, called the Self-Assessment process. New York State will maintain this current system under ESSA.

Currently, schools with any configuration of Grades K through 12 that do not participate in the regular State assessment program are required to submit nationally normed (if available) achievement test data for English language arts and mathematics to the Department. Department staff then review these data to determine the accountability status of the school. New York State is considering maintaining this current system under ESSA.

Schools with fewer than 20 continuously enrolled student results who have participated in State assessments, or any configuration of Grades K through 12 that do not participate in the regular State assessment program, are required to submit locally administered achievement test data for English language arts and mathematics to the Department, called the Self-Assessment process. If the LEA administers nationally normed assessments, it must submit the data from these assessments.

Schools for which data for all indicators are not available will have preliminary determinations made based upon indicators for which information is available, as well as alternative metrics mutually agreed upon by the school district and the State. For example, a newly opened high school might substitute the percentage of students who remain enrolled at the end of Grade 9 for the high school graduation rate.

v. Identification of Schools (ESEA section 1111(c)(4)(D))

a. Comprehensive Support and Improvement Schools. Describe the State's methodology for identifying not less than the lowest-performing five percent of all schools receiving Title I, Part A funds in the State for comprehensive support and improvement, including the year in which the State will first identify such schools.

New York State will identify schools for Comprehensive Support and Improvement (CSI), based on lowest performance and low high school graduation rates, beginning with 2017-18 school year results and every three years thereafter. Schools that are identified will use the 2018-19 Revised State Template for the Consolidated State Plan

school year to develop their plans for implementation in the 2019-20 school year. New York State will identify approximately 5% of the public elementary and middle schools and 5% of the public high schools in the State for Comprehensive Support and Improvement by using the following decision rules:

Decision Rules for Identifying Elementary and Middle Schools for Comprehensive Support and Improvement:

For the 2023–2024 school year based on 2022–2023 school year results and the 2024–2025 school year based on 2023–2024 school year results, a threshold on the decision tables was determined by progressing through the scenarios until a minimum of five percent of the lowest performing elementary/middle schools in the state that received Title I, Part A funds plus any non-Title I elementary/middle schools that met the criteria for identification AND a minimum of five percent of the lowest performing high schools that received Title I, Part A funds plus any non-Title I high schools that met the criteria for CSI identification.

Starting in the 2025–2026 school year based on 2024–2025 school year results, the Decision Rules for Identifying Elementary/Middle Schools will be as follows:

- CSI identifications will be based on the performance of all students in the school (i.e., the All Students group only).
- In the year of identification for CSI, such as in the 2025–2026 school year based on 2024–2025 school year results, the Department will determine which scenarios to use for identifying low performing schools and determining which previously identified schools meet the criteria to exit the CSI support model. The scenarios used in the identification year will serve as the anchor for scenarios used for identification in the following two years before the next CSI identification cycle, which occurs every three years.
- In a CSI identification year, elementary/middle schools will be preliminarily identified for CSI if the All Students group meets Scenario 1 or 2 in the Elementary/Middle School Identification Scenario table below. If Scenarios 1 and 2 do not identify the lowest performing five percent of Title I elementary/middle schools in the State, then the Department will utilize Scenario 3 to ensure at least the lowest performing Title I elementary/middle schools are identified for CSI. Any non-Title I school that meets the criteria used to identify Title I schools will also be included.
- The Department will utilize the same scenarios from the CSI identification year to determine whether each current school identified for CSI meets criteria for exiting the CSI support model. If a school identified for the CSI support model makes progress in the second year following identification or any year thereafter, it may exit the support model, while schools that do not meet the exit criteria will remain identified for CSI. The Department will apply the same scenarios from the CSI identification year and exit criteria to the schools identified for ATSI.

The table below will be used to identify elementary and middle schools for CSI:

Scenarios	Weighted	Core	Growth	ELP	Attendance
1	Level 1	Level 1	At Least One Level 1		
2	Level 2	Level 1	Level 1	Level 1 or 2 or None	Level 1 or 2 or None
3	Level 1	Level 1	Level 2	Either Level 2	

Decision Rules for Identifying High Schools for Comprehensive Support and Improvement:

Starting in the 2025–2026 school year based on 2024–2025 school year results, the Decision Rules for Identifying High Schools will be as follows:

- CSI identifications will be based on the performance of all students in the school (i.e., the All Students group only).
- In the year of identification for CSI, such as in the 2025–2026 school year based on 2024–2025 school year results, the Department will determine which scenarios to use for identifying low performing schools and determining which previously identified schools meet the criteria to exit the CSI support model. The scenarios used in the identification year will serve as the anchor for scenarios used for identification in the following two years before the next CSI identification cycle, which occurs every three years.
- In a CSI identification year, secondary schools will be preliminarily identified for CSI if the All Students group meets Scenario 1 or 2 in the High School Identification Scenario table below. If Scenarios 1 and 2 do not identify the lowest performing five percent of Title I high schools in the State, then the Department will utilize Scenario 3 to ensure at least the lowest performing Title I schools are identified for CSI. Any non-Title I school that meets the criteria used to identify Title I schools will also be included.
- The Department will utilize the same scenarios from the CSI identification year to determine whether each current school identified for CSI meets criteria for exiting the CSI support model. If a school identified for the CSI support model makes progress in the second year following identification or any year thereafter, it may exit the support model, while schools that do not meet the exit criteria will remain identified for CSI.
- The Department will apply the same scenarios from the CSI identification year and exit criteria to the schools identified for ATSI.

Use the table below to identify high schools for CSI:

Scenarios	Weighted	Core	Grad Rate	ELP	Attendance	CCCR
1	Level 1	Level 1	Level 1	At Least One Level 1		
2	Level 1 or 2	Either Level 1		At Least One Level 1		
3	Level 1 or 2	Either Level 1		Level 1 or 2 or None	Level 1 or 2	Level 1 or 2

b. Comprehensive Support and Improvement Schools. Describe the State’s methodology for identifying all public high schools in the State failing to graduate one third or more of their students for comprehensive support and improvement, including the year in which the State will first identify such schools.

All public schools, beginning with 2017-18 school year accountability, that have graduation rates below 67% for the four-year graduation rate cohort and do not have graduation rates at or above 67% for the five- or six-year cohorts will be preliminarily identified for CSI based upon results as of August 2017 of the 2013 four-year graduation rate cohort, the 2012 five-year graduation rate cohort, and the 2011 six-year graduation rate cohort. Districts may appeal the preliminary determination because of extenuating or extraordinary circumstances such as the school has met the 67% criteria based on “non-lagged” 2017-18 school year data.

c. Comprehensive Support and Improvement Schools. Describe the methodology by which the State identifies public schools in the State receiving Title I, Part A funds that have received additional targeted support under ESEA section 1111(d)(2)(C) (based on identification as a school in which any subgroup of students, on its own, would lead to identification under ESEA section 1111(c)(4)(D)(i)(I) using the State’s methodology under ESEA section 1111(c)(4)(D)) and that have not satisfied the statewide exit criteria for such schools within a State-determined number of years, including the year in which the State will first identify such schools.

New York State will identify schools with chronically low performing subgroups after a period of three years. All districts will be given an opportunity to appeal the preliminary identification of schools prior to a final determination. Beginning with schools that have been identified for Additional Targeted Support and Improvement based on 2021–2022 school year results, any school identified for Targeted Support and Improvement that has been identified for Additional Targeted Support and Improvement based on the performance of one or more accountability subgroups and continues to be identified for Additional Targeted Support and Improvement for three consecutive school years for the performance of the same accountability subgroup(s) shall be preliminarily identified for Comprehensive Support and Improvement.

d. Frequency of Identification. Provide, for each type of school identified for comprehensive support and improvement, the frequency with which the State will,

thereafter, identify such schools. Note that these schools must be identified at least once every three years.

New York State will identify schools for CSI based on the lowest performing five percent and low high school graduation rates beginning with 2017-18 school year results and every three years thereafter.

USDE approved accountability waivers for the 2019–2020 and 2020–2021 school years due to the impact of the COVID-19 pandemic. New York State resumed identification of schools for CSI based on the lowest performing five percent and low high school graduation rates beginning with the 2022–2023 school year based on 2021–2022 school year results and will identify schools for CSI starting in the 2025–2026 school year based on 2024–2025 school year results and every three years thereafter.

e. Targeted Support and Improvement. Describe the State’s methodology for annually identifying any school with one or more “consistently underperforming” subgroups of students, based on all indicators in the statewide system of annual meaningful differentiation, including the definition used by the State to determine consistent underperformance. (ESEA section 1111(c)(4)(C)(iii))

For schools identified for Targeted Support and Improvement (TSI), New York State will annually apply Scenarios 1 and 2 of the same scenario tables that are used for identification of schools for CSI to identify schools for TSI for the following subgroups: English language learners, economically disadvantaged students, racial/ethnic groups, and students with disabilities.

If a school had been identified as a Priority or Focus School in the 2017-18 school year, and the school was identified as among the lowest 5% of public school for a subgroup, based on 2017-18 school year data, the school will be identified as Consistently Underperforming. All other schools were identified as consistently underperforming if they were among the lowest 5% of public schools for a subgroup’s performance for two consecutive years.

USDE approved accountability waivers for the 2019–2020 and 2020–2021 school years due to the impact of the COVID-19 pandemic. New York State resumed identification of schools for TSI using the same business rules that have been used for identification of schools for CSI, annually, for the same subgroups as indicated above beginning with 2021–2022 school year results and will identify schools for TSI annually thereafter.

To further align the TSI identification criteria with New York State’s scaffolded system of supports, beginning with the 2025–2026 school year based on 2024–2025 school year results, New York State will identify schools with consistently underperforming subgroups for TSI if one or more subgroups meet scenario criteria for three consecutive years. New York State will apply Scenarios 1 and 2 of the decision table used for identifying elementary/middle level schools for CSI or the decision table used for identifying high schools for CSI to identify schools for TSI.

The first year that one or more subgroups meet the TSI identification criteria, the subgroup(s) and school will be identified for Potential Targeted Support and Improvement 1 (PTSI-1), initiating needs assessment for continuous improvement. If one or more subgroups identified for PTSI-1 meet the TSI identification criteria, representing a second consecutive year of underperformance, the subgroup(s) and school will be identified for Potential Targeted Support and Improvement 2 (PTSI-2). If one or more subgroups identified for PTSI-2 meets TSI identification criteria for a third consecutive year, the subgroup(s) and school will be identified for TSI.

f. Additional Targeted Support. Describe the State’s methodology, for identifying schools in which any subgroup of students, on its own, would lead to identification under ESEA section 1111(c)(4)(D)(i)(I) using the State’s methodology under ESEA section 1111(c)(4)(D), including the year in which the State will first identify such schools and the frequency with which the State will, thereafter, identify such schools. (ESEA section 1111(d)(2)(C)-(D))

By the beginning of the 2018–2019 school year, any school that has a subgroup other than the All Students group whose performance on its own would have caused the school to be identified for CSI using the State’s method for identification of schools for CSI, the State will identify for Additional Targeted Support and Improvement (ATSI). Additionally, New York State will identify for ATSI any subgroup in the school that is identified for TSI in the years in which New York State identifies schools for CSI.

USDE approved accountability waivers for the 2019–2020 and 2020–2021 school year due to the impact of the COVID-19 pandemic. New York State resumed identification of schools for ATSI based on whether a school identified for TSI has a subgroup whose performance on its own would have caused the school to be identified for CSI using the state’s method for identification of schools for CSI in the 2022–2023 school year using 2021–2022 school year results. New York State will identify schools for ATSI in the 2025–2026 school year based on 2024–2025 school year results and every three years thereafter in the same year that schools are identified for CSI.

g. Additional Statewide Categories of Schools. If the State chooses, at its discretion, to include additional statewide categories of schools, describe those categories.

New York State also plans to continue to identify Target Districts, based on the following criteria:

- The district includes one or more schools identified for CSI, ATSI, or TSI.

vi. Annual Measurement of Achievement (ESEA section 1111(c)(4)(E)(iii)): Describe how the State factors the requirement for 95 percent student participation in statewide mathematics and reading/language arts assessments into the statewide accountability system.

NYSED will factor the 95% participation rate requirement into the Academic Achievement Index, as described above. New York State plans to use an n-size of 40 for determining participation rate in order to ensure that the non- participation of two students does not result in a group of students failing to meet the 95% assessment participation rate requirement.

New York State is continuing efforts to encourage participation in the Grades 3-8 ELA and mathematics tests across the State:

- In developing the new assessments (first administered in spring 2023), NYSED **incorporated extensive feedback from educators and parents**. For example, the new ELA test includes multiple-choice and constructed response questions in both sessions. In prior years, all constructed response questions were grouped into one session, which could lead to student fatigue.
- All questions on the assessments are written, reviewed multiple times, and selected for inclusion by committees of **New York State teachers** with experience supporting all students in the grade level, including English language learners and students with disabilities.
- NYSED's **Parent Resources website** provides a number of documents that explain the purposes and uses of assessment results as well as answers to frequently asked questions. These are shared widely across the state.
- The shift to **full implementation of computer-based testing** in 2026 provides opportunities for advantages such as faster turnaround of student results, additional flexibility in administration windows, reduced administrative preparation, reduction or elimination of standalone field testing, an exploration of adaptive testing models, and fiscal savings for districts. Many of these options reduce burdens on teachers and school staff, which can translate into additional instructional time for students.
- NYSED partners with Regional Information Centers to provide **common instructional reports** to every school in New York State. These reports show how students in the class, school, district, and region performed on each question from the assessment. Data about the questions such as standard alignment is also provided to increase the usability of the reports.
- NYSED **releases at least 75% of the questions** on every test form. This allows for transparency and, when combined with resources such as the Performance Level Descriptions, demonstrates the operationalization of the learning standards.
- Results from the assessments also assist NYSED, LEAs, and individual schools in identifying the level and types of support that schools need to continuously improve.
- Senior staff members from NYSED engage monthly with stakeholders representing administrators, educators, parents, and other key interest groups. Assessment is consistently a topic of conversation, and that time is used to address questions and concerns while emphasizing the benefits of widespread participation.
- The Department has engaged the advice of nationally recognized consultants, and its own Technical Advisory Committee, to ensure that the technical quality of the tests is maintained as changes are made.

Multiple NYSED offices are involved in monitoring statewide assessment administrations including the Office of State Assessment, Office of Special Education, Office of Bilingual Education and World Languages, Office of School Personnel Review, and Office of Accountability. Each of these offices plays a role in ensuring that students are assessed in a

reliable, valid, and fair way and that assessment participation is maximized at the local level.

New York State is in the first year of a three-year transition to full implementation of computer-based testing (CBT) in 2026 for our elementary and intermediate testing program. The digital administration platform associated with CBT allows for real-time monitoring of statewide assessment participation and follow-up with schools whose participation rates are inconsistent with expectations. Over the past several years, the expansion of CBT has coincided with increased statewide participation in New York State. NYSED has emphasized the benefits of online test administration, such as faster turnaround of student results, additional flexibility in administration windows, reduced administrative preparation, reduction or elimination of standalone field testing, an exploration of adaptive testing models, and fiscal savings for districts. The opportunities associated with these benefits will encourage schools, students, and parents to participate in the assessment program.

vii. Continued Support for School and LEA Improvement (ESEA section 1111(d)(3)(A))

a. Exit Criteria for Comprehensive Support and Improvement Schools. Describe the statewide exit criteria, established by the State, for schools identified for comprehensive support and improvement, including the number of years (not to exceed four) over which schools are expected to meet such criteria.

Schools identified for CSI will exit the support model if, in the second year following identification or any year thereafter, they do not meet the criteria for identifying schools and meet one or more of the following conditions:

- Weighted Average Achievement Index or Core Subject Performance Index is higher than at the time of identification.
- Graduation Rate is higher than at the time of identification.
- Additionally, for schools identified for having Graduation Rate less than 67%, the Graduation Rate for the 4-, 5-, or 6-year cohort is 67% or higher for two consecutive years.

b. Exit Criteria for Schools Receiving Additional Targeted Support. Describe the statewide exit criteria, established by the State, for schools receiving additional targeted support under ESEA section 1111(d)(2)(C) including the number of years over which schools are expected to meet such criteria.

Schools identified for ATSI will exit the support model if, in the second year following identification or any year thereafter, the identified subgroups do not meet the identification criteria and the subgroups meet one or more of the following conditions:

- Weighted Average Achievement Index or Core Subject Performance Index is higher than at the time of identification.
- Graduation Rate (unweighted average 4-, 5-, and 6-year graduation rate) is higher than at the time of identification.

Schools identified for TSI will exit if, in the second year following identification or any year thereafter, the subgroups identified for TSI do not meet the identification criteria.

c. More Rigorous Interventions. Describe the more rigorous interventions required for schools identified for comprehensive support and improvement that fail to meet the State’s exit criteria within a State-determined number of years consistent with section 1111(d)(3)(A)(i)(I) of the ESEA.

If a school identified for Comprehensive Support and Improvement does not meet the exit criteria, and that school is re-identified as a CSI school on the new list of schools that is promulgated every three years, New York State will place the re-identified Comprehensive Support and Improvement school into the New York State Receivership Program pursuant to Section 211-f of State Education law (the New York State School Receivership law) and Commissioner’s Regulations 100.19. In addition, if a school that is currently identified as a Priority School does not meet the exit criteria and is identified as a CSI school on the initial ESSA Accountability Designation list, that school will also enter the Receivership program. The State will handle alternative high schools that are identified as among the lowest performing in the State for more than three years slightly differently from how it will handle other schools. Rather than automatically placing these schools into Receivership, the Commissioner will partner with the district to determine the most appropriate interventions for that school. The interventions under consideration may still include Receivership. The Receivership program is outlined in more detail later in this section. New York State will continue to employ its Differentiated System of Supports and Accountability to ensure that schools across the state receive the support and interventions needed to ensure their success. This tiered approach toward accountability aligns with the State’s vision that the Department should support schools throughout the identification process and reserve the Department’s more intensive supports and interventions for the schools that are struggling to make gains.

NEW YORK STATE’S DIFFERENTIATED SYSTEM OF SUPPORTS AND ACCOUNTABILITY

New York State’s differentiated system of supports and accountability allows the schools identified as having the greatest needs to be the ones that receive the most support from the State. This approach has been developed using feedback from stakeholders, research-based best practices, and the lessons that the Department has learned through our previous school improvement efforts.

In general, schools that are having difficulty making gains will receive more support and more oversight than will the schools that are showing improvement.

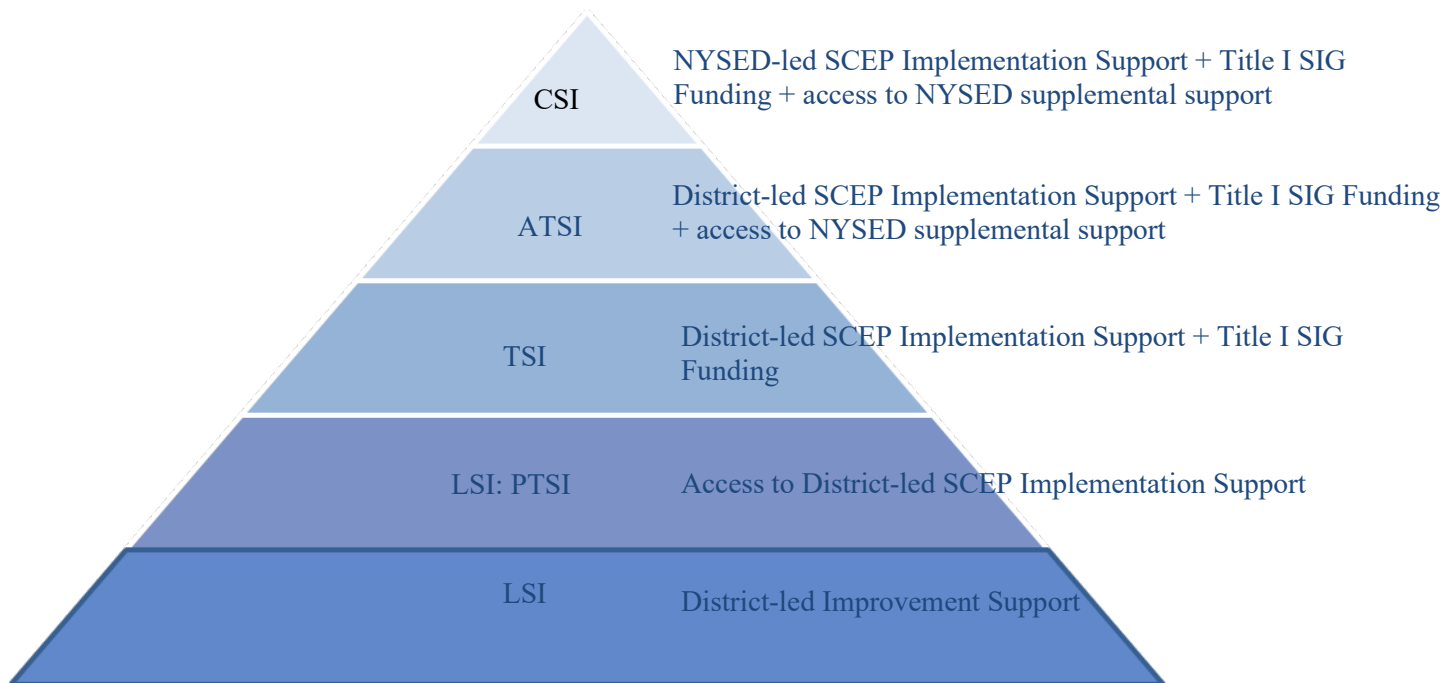
As part of New York State’s commitment to equity, the State aims to use a scaffolded continuum to determine the appropriate level of support for all schools in the state. The supports provided to schools will increase if the school continues to be identified under the State’s accountability system. The Office of Accountability differentiates support through a scaffolded continuum to ensure each school and district has appropriate entry points leading to a collaborative approach of enhancing systems and structures around continuous improvement centered around meeting the needs of the local population of students.

CONTINUUM OF SUPPORT: LSI-PTSI-TSI-ATSI-CSI

The State recognizes that schools and districts use various systems and processes to review evidence of success, seek opportunities for continuous improvement, and ensure more equitable opportunities for all students. New York State will continue to support all schools and districts with tools, resources, and assistance that can be used to weave into existing local improvement efforts. This continuum of support outlines the scaffolded and differentiated approach to supporting schools and districts. All schools across the state fall somewhere in this continuum.

A critical component of this vision of support is to ensure that the State encourages capacity-building so that schools can have long-term, sustainable success and can continue to improve when they are no longer identified for additional support through the accountability system. As part of this, New York State will provide formal processes designed to strengthen local capacity and require the use of these processes for schools identified through the accountability system.

The State will use its accountability system to classify schools in one of five “Support Models” within this continuum, explained in more detail throughout the pages that follow:



While the support for schools looks different based on their support model, embedded within each of these support models is the opportunity for schools to have ownership and agency around what their plan for support and improvement looks like. As schools are identified with more significant needs based on outcomes from the accountability system, more support becomes available directly from the Department.

LOCAL SUPPORT AND IMPROVEMENT (LSI):

Schools identified for Local Support and Improvement, previously known as “good standing,” will continue to use local systems for continuous improvement and will partner with the Department for tools, resources, and technical assistance as they find value.

POTENTIAL TARGETED SUPPORT AND IMPROVEMENT (PTSI):

As part of the accountability system outlined earlier, New York State will identify a school for Targeted Support and Improvement if the school has one or more subgroups that are identified through the accountability system for three consecutive years and will identify a school for CSI if the “All Students” subgroup of the school is identified in the years in which CSI determinations are made. This approach will enable the State to best direct its support to schools in need, but it will also result in some schools meeting eligibility criteria for identification during years in which they are not formally identified. These schools will be identified for Local Support and Improvement, or LSI, and each subgroup that meets the eligibility criteria for the first year will be identified for Potential Targeted Support and Improvement, or PTSI-1. If any subgroup(s) identified for PTSI-1 meets the eligibility criteria, representing a second consecutive year of underperformance, the subgroup(s) and school will be identified for Potential Targeted Support and Improvement 2, or PTSI-2. There are two different examples of schools that could fall into this support model First, since classification in the TSI support model only occurs after three consecutive years of low subgroup performance, schools that have their first or second year of low subgroup performance would not qualify for TSI. Instead, these schools will be identified for PTSI-1 or 2. In addition, schools that have their All Students subgroup meet the eligibility criteria for CSI in the two years in which CSI determinations are not made would also qualify for PTSI supports.

Schools in the PTSI support model have the option of using the State’s Needs Assessment and continuous improvement resources to develop their own annual improvement plan for the following year, known as the School Comprehensive Education Plan (SCEP). New York State will seek a waiver from the United States Department of Education to allow the State to provide Title I 1003 School Improvement Grant funding to districts with schools in the PTSI support model that use the State’s Needs Assessment and improvement planning processes, provided that the district supports these schools as they support schools in the TSI support model. Schools that are identified for the PTSI support model may also choose to continue to incorporate their local Needs Assessment and improvement planning systems and structures if desired.

TARGETED SUPPORT AND IMPROVEMENT (TSI):

Schools that have one or more subgroups (not the All Students subgroup) that are identified for subgroup performance for three consecutive years will be placed into the TSI support model. The State supports these schools by:

- Providing tools and resources to complete the State’s formal locally driven Needs Assessment process;
- Providing tools and resources to complete the State’s formal annual improvement plan, known as the SCEP;

- Providing tools and resources to support the implementation of the SCEP during the following school year; and
- Providing the district with Title I School Improvement Grant (SIG) funding to support the completion of the Needs Assessment and plan development process and the implementation of the SCEP.

In conjunction with this support, schools in the TSI support model are required to complete the following:

- Conduct annual surveys of parents, staff, and students.
- Complete the State Needs Assessment process led by a team of stakeholders from the school.
- Develop, in consultation with parents and school staff, an annual SCEP based on the State Needs Assessment that is submitted to the district for approval.
- Identify an evidence-based intervention to be included within the SCEP.
- Engage in SCEP Implementation Support organized through the district.

ADDITIONAL TARGETED SUPPORT AND IMPROVEMENT (ATSI)

Schools that have one or more subgroups, that are not the All Students subgroup, that have been identified for TSI will move to the ATSI support model if the subgroup meets the CSI identification criteria in the year in which schools are identified for ATSI.

The State supports these schools by:

- Inviting these schools to participate in NYSED Supplemental Support Programs;
- Providing tools and resources to complete the State's formal locally driven Needs Assessment process;
- Providing tools and resources to complete the State's formal annual improvement plan, known as the SCEP;
- Providing tools and resources to support the implementation of the SCEP during the following school year; and
- Providing the district with Title I SIG funding to support the completion of the Needs Assessment, plan development process, and the implementation of the SCEP.

In conjunction with this support, schools in the ATSI support model are required to complete the following:

- Conduct annual surveys of parents, staff, and students.
- Complete the State Needs Assessment process led by a team of stakeholders from the school.
- Develop, in consultation with parents and school staff, an annual SCEP based on the State Needs Assessment that is submitted to the district for approval.
- Identify an evidence-based intervention to be included within the SCEP.
- Engage in SCEP Implementation Support organized through the district.

Schools in the ATSI support model will engage in support similar to schools in the TSI support model with two notable additions. First, in recognition that the previous level of support was not adequate to prevent these schools from being re-identified, districts with schools in the ATSI support model will be eligible for additional funding to support the Needs Assessment, SCEP development, and SCEP implementation process. Second, these schools will be eligible to participate in the Department's Supplemental Support Program, outlined in more detail on the pages that follow.

COMPREHENSIVE SUPPORT AND IMPROVEMENT (CSI)

As part of the State's continuum of support, schools that are part of the CSI support model will receive more support than the schools that are part of the LSI, PTSI, TSI, and ATSI support models. The State supports these schools by:

- Assigning a State Education Department Associate to each school in this support model.
- Providing tools and resources to complete the State's formal locally driven Needs Assessment process, with designated check-ins during the process with the State Associate.
- Providing tools and resources to complete the SCEP with designated check-ins during the process with the State Associate, who will ensure that all SCEPs adhere to the State's minimum expectations.
- Providing tools and resources to support the implementation of the SCEP during the following school year, with designated check-ins during the process with the State Associate.
- Providing the district with Title I School Improvement Grant (SIG) funding to support the completion of the Needs Assessment and plan development process and the implementation of the SCEP.
- Providing access to the State's Supplemental Support programs.

In conjunction with this support, schools in this support model are required to complete the following:

- Conduct annual surveys of parents, staff, and students.
- Complete the State Needs Assessment process led by a team of stakeholders from the school.
- Develop, in consultation with parents and school staff, an annual SCEP based on the State Needs Assessment that is submitted to the district for approval.
- Identify an evidence-based intervention to be included within the SCEP.
- Engage in SCEP implementation support organized through the State.
- Complete a school Civic Empowerment Project.

In recognition that the needs of schools in the CSI support model are greater than schools in the other support models, New York State will provide districts with schools in the CSI support

model Title I 1003 SIG funding at a level greater per school than the amount allocated per school in the ATSI and TSI support models.

CONTINUUM OF SUPPORT: DISTRICTS

Districts play an important role in the success of a school, and it would be shortsighted to only place responsibility for school success upon schools. In recognition of this, New York State will continue to identify Districts through its accountability system, and require that Districts engage with the Department in a variety of ways, including:

- Completion of an annual Needs Assessment that includes components related to their support of identified schools.
- Development of an annual improvement plan based on the Needs Assessment findings.
- In districts with a significant portion of schools identified for the TSI, ATSI, or CSI support models, the completion of a Resource Allocation Review process designed to support the equitable distribution of resources within the district to ensure that each school is supported sufficiently.

New York State's Role in School Improvement

The State's role in School Improvement will be rooted in helping develop capacity and ensure that school personnel have the skills to sustain success when the school is no longer identified. At the center of the Department's approach to school support and improvement is an understanding that support and improvement are most likely to occur through partnership and collaboration. While the support for schools looks different based on their support models, embedded within each of these support models is the opportunity for schools to have ownership and agency around what their plan for support and improvement looks like. This approach allows the State to support schools differently, based on the trajectory of the school and the length of time that the school has been identified.

Department staff will utilize its collective knowledge, experience, access to data, ability to provide financial supports, and authority as an oversight entity to support the improvements necessary to increase student outcomes in struggling schools. The ways in which the State helps the school and district find the best solutions will vary. In some cases, the State may be best able to support the school through technical assistance and guidance. In other cases, the State may be best able to support the school through resource support. Additionally, the State may be able to best help the school through organizational shifts, and, when necessary, progressive interventions. Often, schools will best benefit from a combination of these supports, which is why the State sees support and technical assistance as being closely linked to oversight and intervention.

The State's efforts toward supporting identified schools involve eight critical components:

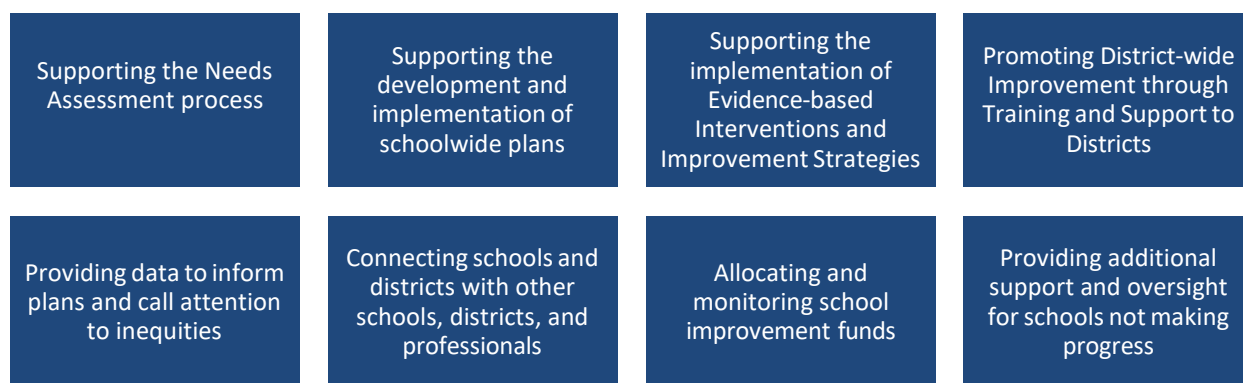
- Supporting the Needs Assessment process
- Supporting the development and implementation of schoolwide plans
- Supporting the implementation of Evidence-based Interventions and school-

specific Improvement Strategies

- Promoting District-wide Improvement through Training and Support to Districts
- Providing data to inform plans and call attention to inequities
- Connecting schools and districts with other schools, districts, and professionals
- Allocating and monitoring school improvement funds
- Providing additional support and oversight for schools not making progress

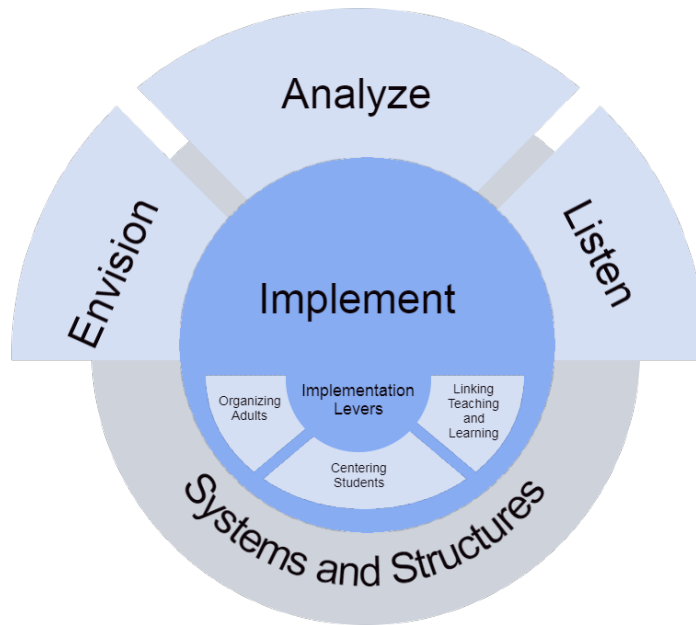
The State will provide ongoing support and guidance to identified schools and districts as they undertake a series of required actions designed to best promote improvement and identify and implement the solutions best suited for each school.

As stated earlier, the Department will provide support for schools in eight different ways, each of which is outlined below:



Supporting the Needs Assessment Process

In order for the State to help schools identify the best solutions for the specific challenges that the schools face, the State will support a locally driven formal Needs Assessment process that thoroughly examines qualitative and quantitative data in conjunction with an on-site analysis of the quality and effectiveness of the education program in identified schools. A primary objective of this process is to build capacity at the local level to identify existing needs. Schools and districts will be supported to build capacity for continuous improvement through a sequence of Needs Assessment activities. These activities will be designed to be led by school teams, with the support of their district and, for schools identified for CSI, an assigned Department liaison. This process is organized around three core principles: Envision, Analyze, and Listen.



Upon initial identification, schools will convene a team of stakeholders to engage in a series of activities as part of the formal Needs Assessment. These activities will include an Envisioning activity, during which the team discusses its aspirations for the school, Analyze activities that involve the review and analysis of state data, local data, and survey data, and Listening activities, during which the team will conduct student interviews. Each of these activities is designed to support the team’s ability to determine where additional resources (e.g., time, attention, support) are necessary for the school to improve. More information can be found at: <https://www.nysed.gov/accountability/needs-assessment>.

The results of the Needs Assessment will play a critical role in informing the school improvement plan. The multi-step Needs Assessment process is intended to provide a full picture of the school so that root causes for the school’s identification can be identified and addressed.

The review of data will involve analyzing critical measures to learn more about the school and to consider possible root causes for the school’s identification. Examples of data that may be reviewed during this process include:

1. Longitudinal data that show trends over time, including data by subgroup
2. Survey results from surveys of students, teachers, and families
3. Suspension data
4. Office referral data
5. In-School/Out-of-School Suspension Data
6. Teacher Turnover data
7. Teacher Attendance
8. The average number of professional learning opportunities that a teacher has within a school year
9. Promotion Rates by grade

10. Student Attendance
11. Average Class Size
12. Average number of minutes of instruction provided per day (exclusive of recess, lunch, study halls)
13. The percentage of students in each high school who earn 5 or more credits during the school year (HS)
14. Student participation in and performance on college entrance and/or college placement exams (HS)
15. Dropout rates (HS)
16. Percent of students passing Regents examinations with a score of 90 or higher (HS)
17. Percent of students receiving Regents Diplomas with advanced designation. (HS)
18. Student enrollment in and successful completion of dual-credit coursework (HS)
19. Student participation in Advanced Placement (AP), International Baccalaureate (IB), and honors courses (HS)
20. Student participation in and successful completion of Career and Technical Education (CTE) courses (HS)
21. Number of Counselors per students
22. Number of Social Workers per student
23. Number of Nurses per student
24. Number of Librarians per student
25. Student access to highly qualified teachers
26. The percent of all teachers teaching one or more assignments outside of certification.
27. Access to minimum Physical Education requirements
 - a. Percent of K- Grade 3 students who receive daily physical education for a minimum total of 120 minutes per week (exclusive of recess)
 - b. Percent of Grades 4-6 students who receive physical education three days per week for a minimum total of 120 minutes per week (exclusive of recess)
 - c. Percent of Grades 7-8 students who receive physical education instruction equivalent to 3 periods for one semester and 2 periods for the other semester (exclusive of recess)
28. Access to recommended state arts requirements
 - a. Percent of Grades 1-3 students who have 20% of the weekly time spent in school allocated to dance, music, theatre, and visual arts
 - b. Percent of Grades 4-6 students who have 10% of the weekly time spent in school be allocated to dance, music, and theatre and visual arts
 - c. Percent of Grades 7-8 students who receive 55 hours per year of instruction in dance, music, theatre, and visual arts taught by a certified arts instructor
29. Average number of minutes of Social Studies instruction per week (Elementary School)
30. Average number of minutes of Science instruction per week (Elementary School)
31. Average Attendance at PTA meetings
32. Participation Rate at Parent-Teacher Conferences
33. School Safety
 - a. Number of Violent and Disruptive Incident Reports
 - b. Number of Incidents of Discrimination and/or Harassment
 - c. Number of Incidents of Cyber-bullying

- 34. Student access to safe and clean facilities
 - a. The number of accidents reported annually
 - b. The number of health and safety violations reported annually

Diagnostic Tool for School and District Effectiveness

New York State’s Diagnostic Tool for School and District Effectiveness (DTSDE) Framework and Phases of Implementation provide further guidance to schools to help them understand how they are organized for success and where they may want to provide additional resources.

The DTSDE, originally developed in 2012, is a research-based tool that outlines six critical tenets of school and district success, and, within each tenet, sub-tenets, and indicators that further outline successful practices. The DTSDE Tenets are organized as follows:

Tenet 1 – Systems and Organization: Effective schools establish school-wide systems and structures that promote continuous improvement and success for all students.

Tenet 2 – School Leadership: Visionary leaders create a school community and culture that leads to success, well-being, and high academic outcomes for all students.

Tenet 3 – Curriculum: Effective schools provide students with rigorous, coherent, and relevant curricula that prepare all students for success.

Tenet 4 – Instruction: Effective teachers engage with students in a manner that promotes mastery and allows students to stretch their knowledge and deepen their understanding.

Tenet 5 – Social-Emotional Learning: Effective schools develop a systematic approach to Social-Emotional Learning to ensure that all students can develop social-emotional learning skills necessary for success within and beyond school.

Tenet 6 – Parent and Community Engagement: Effective schools develop a systematic approach to Family and Community Engagement to empower parents to effectively advocate for their child’s learning and for the improvement of the school.

The DTSDE Framework outlines effective practices organized along the DTSDE Tenets. The framework is a reference tool to assist schools in examining practices and engaging in reflective dialogue. The DTSDE Phases of Implementation is a companion document to the DTSDE Framework. While the Framework provides a reference to organize educators’ thoughts around the various practices of effective schools, the Phases of Implementation serves as a tool to assist educators in planning as they consider the appropriate next steps for the school.

At the State level, the DTSDE enables the Department to communicate with districts and schools, using a shared language/vocabulary of school improvement. Extensive professional development on the DTSDE process and rubric for Department staff has increased the

Department's internal capacity to support districts and schools in the school improvement process. At the LEA level, the DTSDE has provided districts with a framework to assess school effectiveness, organize resources, and create targeted improvement plans through the District Comprehensive Improvement Plan (DCIP). Finally, at the school level, the DTSDE rubric and the associated professional development increase the capacity of administrators and staff to self-assess both the strengths and the weaknesses of the educational and student support programs.

Supporting the Development and Implementation of Schoolwide Plans

New York State has developed a cycle of continual school improvement based on identifying school and district needs through the Comprehensive needs assessment and then having schools and districts develop improvement plans that are based on the results of the review. The State has promoted a continual improvement process that is based on five essential steps:

1. Identifying needs
2. Strategically identifying solutions to address those needs
3. Identifying benchmarks to determine whether the strategies have been successful
4. Monitoring the effectiveness of those strategies that have been implemented and tracking progress toward benchmarks
5. Revising the strategies when gains are not made and benchmarks are not reached

This process has been formalized through the improvement planning cycle. Under ESSA, identified schools will be required to work with stakeholders to develop an annual improvement plan, known as a School Comprehensive Educational Plan (SCEP). This plan must:

- Include an analysis of the achievement of previous goals
- Be based on the pertinent data from the school, including, but not limited to, the results of the school's Comprehensive needs assessment process, a review of additional State-reported and State-supported data, the results of the school's resource audit, and data from annual surveys
- Identify the initiatives that will be implemented
- Explicitly delineate the school's plan for annually increasing student performance through comprehensive instructional programs and services, as well as the plan for enhancement of teacher and leader effectiveness. The SCEP must focus on the accountability subgroup(s) and measures for which the school has been identified.
- Be developed in consultation with parents, school staff, and others in accordance with the requirements of Commissioner's Regulations §100.11 pertaining to Shared-Decision Making in order to provide a meaningful opportunity for stakeholders to participate in the development of the plan and comment on the SCEP before it is approved. The plan must be formally approved by the school board and be made widely available through public means, such as posting on the Internet, distribution through the media, and distribution through public agencies. In addition, the plan will include a section that outlines the extent of stakeholder involvement in the improvement planning process. The State will reject plans from CSI schools that do not provide adequate evidence of involvement from parents and families.

- Be implemented no later than the beginning of the first day of regular student attendance

The process has been designed to provide a road map for improvement that districts and schools can use throughout the year. In addition, the Department will continue to provide ongoing technical assistance through feedback on plans submitted, statewide trainings and webinars, and individual assistance and support. Under ESSA, the State will be responsible for supporting the development of improvement plans for schools in the CSI support model, while the district will support the development of improvement plans for schools in the ATSI and TSI support models. The State will provide guidance, resources, and support to districts to assist them with this responsibility.

In addition, to support the development of local capacity to write high-quality improvement plans, the Department has released an SCEP Rubric that is designed for school teams to self-assess their initial draft and determine where revisions may be necessary.

Supporting the Implementation of Evidence-Based Interventions and School-Specific Improvement Strategies

During conversations with a variety of stakeholders throughout New York State, the Department repeatedly heard that intervention is a serious step that must be applied selectively to schools that are struggling to make gains. The Department also heard from numerous stakeholders that it must remember that the struggles facing a school are often not the result of a lack of effort. Stakeholders suggested that one-size-fits-all requirements can present additional challenges or may not be appropriate for the circumstances of the school, and, therefore, flexibility was necessary for districts and schools to identify the best solutions for their specific circumstances.

New York State has incorporated the feedback from stakeholders with the lessons learned over the years to develop a system that moves away from overly prescriptive requirements upon identification, and instead uses the requirements for schools identified for additional support as a way to promote best practices and develop capacity for schools and districts to be successful when they are no longer identified. Additional actions will be necessary for schools that do not show progress, a process that is outlined in the section: *Providing Additional Support and Oversight for Schools Not Making Progress*.

Under ESSA, identified schools will be required to include at least one evidence-based intervention in their annual plans. As part of the development of the SCEP, the SCEP Development Team consisting of school stakeholders will review multiple sources of information and feedback to identify areas of need and determine potential root causes. The SCEP Development Team should consider these areas of needs and root causes when deciding which evidence-based intervention(s) it will pursue. New York State will provide a State-supported list of evidence-based strategies that, if implemented according to the parameters outlined, will meet the evidence-based intervention requirement. In addition, the State will serve as a resource to connect districts and schools identified for CSI, ATSI, and TSI to clearinghouses that have identified Evidence-based Interventions. Schools identified for CSI, ATSI, and TSI will have the flexibility to identify an Evidence-based Intervention to address the root causes identified during the needs assessment process.

To empower students and parents, New York State will require that all schools in the CSI

support model engage in a Civic Empowerment Project designed to increase student and family participation in decision-making. The State will provide a list of options in which schools may address this requirement and allow schools to design their own proposals. The options will support the following: expanding stakeholder voice, providing opportunities to practice democracy, and promoting civic engagement.

As an additional way to promote best practices and to position schools for success, schools identified for CSI, ATSI, and TSI will be required to conduct annual surveys of parents, teachers, and students. Districts will have the flexibility to determine the survey instrument that best suits the needs of the district. These surveys should be used to measure change over time, assist in the Needs Assessment process, and provide data to inform the annual planning process.

PLAN IMPLEMENTATION SUPPORT

As part of the design of the improvement plan, school teams will identify targets that they will look to achieve at specific points in the year to determine if their implementation plan is on track or if it may need to be modified. The first of these data points, known as “Early Progress Milestones,” occurs approximately 6–10 weeks into the school year. The second data point, known as the “Mid-Year Benchmark,” occurs around the halfway point in the year. The team that wrote the plan is expected to meet when the data identified for these targets is available to reflect on implementation to date, review the data in relation to the targets identified in the plan, and determine how to proceed.

In conjunction with the State’s vision for growing local capacity to support the establishment of continuous improvement systems and structures, principals of schools in the CSI, ATSI, and TSI support models will meet with their identified liaison prior to the team meeting for a “Planning Session,” during which they will review the available data and plan together how the principal can best facilitate the upcoming team meeting. The Planning Sessions for schools in the ATSI and TSI support models will be held by a district liaison and the principal, and the Planning Sessions for schools in the CSI support model will be conducted by the State Liaison and the principal.

SUPPLEMENTAL SUPPORT PROGRAMS

Since the 2019–2020 school year, the Department has provided a variety of “Supplemental Support” programs for schools in the ATSI and CSI support models to complement the support provided by the district. As part of the Department’s commitment to promoting agency and shared accountability, participation in these programs is optional for schools in the ATSI and CSI support models.

Each year-long Supplemental Support program combines on-site coaching with opportunities to participate in a cohort model and connect with others in the position of the school participant.

The following programs make up the Supplemental Support menu of options:

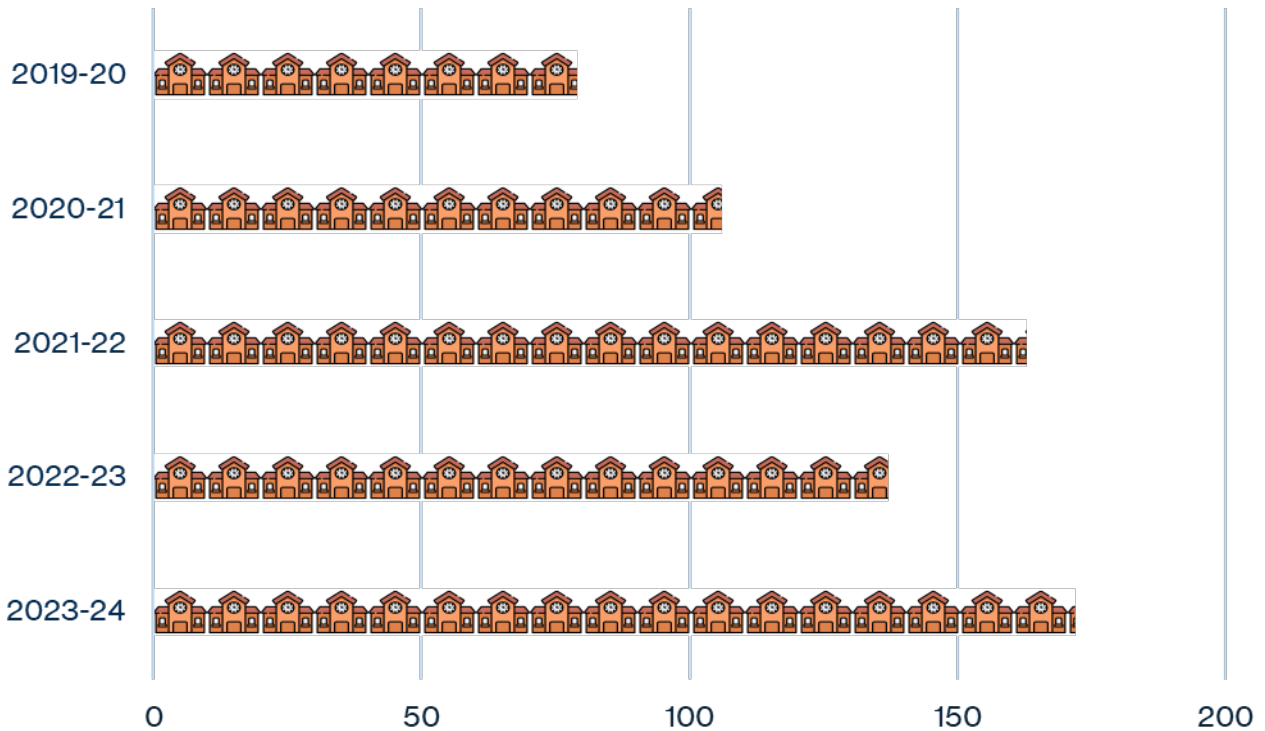
- **Enhancing Principal Leadership (EPL):** EPL is a two-year program on principal leadership development following a cohort model. The program offers personalized support to principals to develop leadership skills that lead to success, well-being, and

high academic outcomes for all students. EPL is open to any principal of a school in the CSI or ATSI support model.

- **Supporting New Principals:** This program was designed to support the needs of those that are brand new to the principal position through coaching and networking opportunities with other new principals.
- **Assistant Principal Mentoring:** The Assistant Principal Mentoring Program provides mentoring and learning opportunities to strengthen assistant principals on their pathway to the principalship through virtual cohort sessions and individualized mentoring sessions. This program is open to assistant principals of schools in the CSI or ATSI support model.
- **Targeted Support/Specialized Support:** The Targeted Support program provides direct coaching to schools in the New York State Receivership program to employ strategies to achieve their Demonstrable Improvement Indicators.
- **Instructional Coaching Consortium (ICC):** ICC provides support for existing instructional coaches through regional cohorts and in-person coaching.
- **Coaching for Excellence (CfE):** The CfE program provides funding and training to support the establishment of a new instructional coach in a school that otherwise would not have an instructional coach.
- **Advancing Equity:** The Advancing Equity program is designed to support schoolwide teams interested in incorporating the principles of the NYSED Culturally Responsive and Sustaining Education Framework.
- **High School Redesign:** The High School Redesign program provides ongoing support and resources to schoolwide teams that are interested in incorporating the principles of Design Thinking to reconsider how their high school is organized.
- **Developing Restorative Practitioners:** The Developing Restorative Practitioners program offers training and support to schoolwide teams that are interested in starting or extending restorative practices within their buildings.
- **Extending Digital Learning:** Extending Digital Learning provides schools with opportunities to share practices related to incorporating technology in their building.

Schools enroll in the option that they feel will best move their school forward based on their existing needs. Approximately 45% of eligible schools opted to participate in a supplemental support in 2019–2020 school year, the first year they were offered. The timing of this coincided with the rapid shift to remote learning at the start of the pandemic, and we heard multiple times how grateful schools were to have NYSED and their coaches as thought partners as they navigated the extraordinary events of Spring 2020. In subsequent years, New York State has expanded its offerings based on feedback from the field and has also seen participation increase.

Schools Supported Through Supplemental Support



Participants in the Supplement Support Programs have expressed how transformative the experience has been in surveys conducted at the conclusion of the programs and in other data collected. Below are just a few of the comments provided by participants:

*“In all my years working in districts in need of improvement, **this program has proven to be the greatest initiative to promote growth**. It allows for a grass-root approach versus a top-down, which is difficult to move staff forward. Our CfE coach is well established and respected amongst staff, which allows her to promote all necessary changes need to school improvement.”*

- Principal of a school in Coaching for Excellence

*“I would absolutely recommend CfE to any coach. The level of support was **outstanding!**”*

- Coaching for Excellence Coach

“CfE has developed my skills as a leader, mentor, specialist and instructional coach through the school visits, meetings, support and validation. The networking events were fantastic!”

- Coaching for Excellence coach

*“EPL has helped me to gain a group of like-minded colleagues that I am able to access should I need assistance. EPL has also provided me with a coach that allows to me to share my ideas and the coach acts as a sounding board. The feedback that I have received from the coach has been **incredibly beneficial** as I move forward with many schoolwide initiatives.”*

- Enhancing Principal Leadership Principal

*“Receiving such clear recommendations on how to be a more intentional leader with clarity **has made a difference**. I have increased my time in the classroom and have found that to be **quite rewarding**. All the resources I have received have been beneficial, especially those on leadership and organization.”*

- Enhancing Principal Leadership Principal

*“EPL has been **extremely beneficial** in that I became very reflective of my leadership practice, which led to **improvements in my practice**.”*

- Enhancing Principal Leadership Principal

*“I would summarize my experience in the Assistant Principal Mentoring Program as **Transformational**.”*

- Assistant Principal Mentoring Participant

Promoting District-wide Improvement through Training and Support to Districts

The Department will continue to provide guidance to LEAs on how the district can best support its identified schools.

Topics might include conducting Needs Assessments, developing plans based on Needs Assessments, identifying root causes, addressing root causes through Evidence-based Interventions, and monitoring and revising school-level plans.

In addition, New York State plans on identifying Target Districts in need of additional support. Similar to the approach taken with schools, Target Districts will be expected to undertake an annual Needs Assessment and develop an improvement plan that is based on the results of that Needs Assessment. As part of this plan, Target Districts will be required to identify how they are assessing the capacities of and providing supports to the principals in identified schools. Target Districts will also be required to review school-level and district-level data and describe how the district will address identified resource inequities.

The Department is also supporting districts with a significant portion of identified schools through a Resource Allocation Review process that examines the resource decisions that districts make, such as how funding is distributed within a district and how staff are assigned and supported across the district. This process is described in more detail later in this section.

Providing Data to Inform Plans and Call Attention to Inequities

The Department has access to multiple sources of data that can be helpful for schools and districts seeking to identify areas in need of improvement. The State will share this data so that schools and districts can make comparisons within the district and across the State. This review will help inform the Need Assessment process so that schools and districts can identify specific areas to address and identify specific goals and benchmarks to determine if progress is being made. The State will provide guidance so that schools and districts can analyze these data to determine where improvement is necessary and where inequities have been identified.

As part of the State's ESSA plan, New York State will annually publish on its website the per-pupil expenditures for each LEA and each school in the State for the preceding fiscal year, and also publish a State Equity Report, which will compare the rates of assignment of ineffective, out-of-field, and inexperienced teachers between minority and low-income students in Title I schools and non-low-income, non-minority students in non-Title I schools. These data will provide an additional source of information for districts and schools as they attempt to identify and address areas of need.

In addition, New York State will establish annual cycles of resource allocation reviews of districts with significant numbers of identified schools. These reviews will include an analysis of the school and district Resource Audits conducted during the Needs Assessment process, along with an analysis of school-level fiscal data, human resource data, and data from certain Opportunity to Learn Standards, to explore potential gaps in resource allocation among schools identified for TSI, ATSI, CSI, and LSI. Following this review, the State will engage districts in which inequities are identified to determine the most appropriate actions that may be necessary to reduce and eliminate these inequities.

Connecting Schools and Districts with Other Schools, Districts and Professionals

New York State recognizes that learning is social, and that learning is most likely to flourish when strong relationships exist. For that reason, each of the Supplemental Support programs uses a cohort-learning model and provides opportunities for participants to connect with one another both in person and virtually.

The Department's extensive provision of technical assistance and support also allows the Department to be uniquely positioned to learn which schools and districts are attempting to address similar challenges. Consequently, the Department is able to connect schools and districts with similar challenges with one another and, when applicable, create a community of practitioners.

In addition, the State is uniquely positioned to connect schools with other schools that have successfully addressed challenges and made gains.

The State also has a number of Regional Technical Assistance providers able to support schools identified for support. The Board of Regents portfolio includes 37 regional Boards of Cooperative Educational Services (BOCES). Each BOCES is led by a District Superintendent, who is both its Chief Executive Officer and the Commissioner's representative in the field. This structure is unique within the United States and allows the Department to have an unparalleled

statewide presence and effect at the local level. The BOCES are linked through a formal network that includes the Assistant Superintendents of Instruction from each BOCES, instructional administrators from each of the Big 5 city school districts, and Department senior staff. These representatives convene and communicate regularly, serving as a conduit for the exchange of information and best practices across the State. BOCES employ more than 34,000 staff, who provide services to school districts and operate 12 Regional Information Centers (RICs) that annually provide districts with over \$300 million in technology-related services. The BOCES governance structure; their statewide presence; and their cadre of practitioners and experts in data analysis, assessment, curriculum and instruction, and technology have made BOCES a reliable and consistent infrastructure for the delivery of professional development programs and technical assistance as New York State.

New York State has a long history of providing extensive specialized Technical Assistance to identified subgroups of students through External Technical Assistance Centers. and Regional Bilingual Education Resource Networks (RBERNs) have continued to provide high-quality technical assistance, professional development, and information dissemination (materials) to school districts.

Another major resource for teachers in New York State is the State's network of Teacher Centers. Teacher Centers collaborate with teachers, districts, schools, institutions of higher education, and other education stakeholders (including several private sector partners) to provide tens of thousands of professional development opportunities every year. Teacher Centers are primary supporters and trainers of the development and implementation of New York State's Professional Development Plan requirement and its alignment with the New York State Professional Development Standards. Teacher Centers also support the Department's implementation of APPR requirements.

Allocating and Monitoring School Improvement Funds

New York State recognizes the important role that resources can play in improvement, and the State is committed to ensuring that schools are not just receiving funds for improvement, but that schools are also using their resources strategically to promote success and develop sustainable solutions.

Over the years, New York State has modified the School Improvement Grant (SIG) 1003 (a) monitoring process so that attention is focused not just on whether the money is being spent as intended, but whether the spending decisions are resulting in improved outcomes. This shift to expecting districts and schools to consider the return on investment has led districts and schools to look more closely at the implementation of their various initiatives. Districts and schools are more focused on improving achievement because the Department is monitoring for results. This shift also allows New York State to identify the districts in which expenditures are not having their desired effects so that technical assistance can be provided.

New York State also has found that those receiving school improvement funds need flexibility. With the focus shifting toward ensuring a return on investment, schools and districts need to be able to amend their budgets so that schools and districts can revise their approaches when gains are not being made. While the State strongly believes that allocations should be applied to areas identified through a needs assessment, New York State has found that prescribing actions based on the needs assessment can result in spending that may not address school-specific challenges.

Several years ago, New York State developed a mechanism that outlined specific restrictions for how school improvement allocations were to be spent as the result of a school's last DTSDE review. The State learned that this approach was too narrow, and has since adopted a more holistic approach toward the use of school improvement funds. New York State has found that this flexibility is necessary and consistent with the State's expectations that school improvement expenditures result in tangible improvements. In order to monitor for improved outcomes, the State must ensure that schools and districts have ownership over the spending choices that districts and schools have made.

New York State will provide school improvement funds to schools and to districts to support the annual Needs Assessment process and the development and implementation of the annual SCEP. Districts with schools in the TSI, ATSI, and CSI support models will receive funds, and in conjunction with the State's approach to differentiated accountability, the amount provided to districts is differentiated as well, so that the amount awarded to support the implementation of the SCEP in a school in the CSI support model is greater than the amount provided to support the implementation of an SCEP in a school in the ATSI support model, which is greater than the amount provided to implement the SCEP in a school that is in the TSI support model.

Providing Additional Support and Oversight for Schools Not Making Progress

New York State's system of differentiated accountability outlined earlier ensures that schools identified as having the greatest needs will receive the most attention from New York State. Central to this approach is recognition that because the needs of schools and districts vary, New York State should base its approach on the specific needs of each school and district.

Additional Interventions Available

In past years, New York State has pursued dramatic school change through a variety of interventions and policy initiatives that will continue to be available for use. These initiatives have been supported by a strong statutory and regulatory framework. The range of interventions allows New York State to identify an approach toward intervention and support that is most appropriate in addressing the specific needs of the district or school.

The current interventions available for addressing the needs of low-performing schools in New York State include the Schools Under Registration Review (SURR) process, Education Partner Organizations (EPOs), Distinguished Educators, Joint Intervention Team reviews, Commissioner's Regulations concerning requirements for identified schools, and the New York State Receivership Law.

Schools Under Registration Review (SURR)

Any public school in a school district that is identified as being among those that are farthest from meeting the benchmarks established by the Commissioner or as being a poor learning environment may be identified as a School Under Registration Review (SURR). A SURR must undergo a resource, planning, and program audit, and develop and implement a restructuring plan that outlines how the school will implement one of four federal intervention models. If a SURR fails to demonstrate adequate improvement within three academic years, the

Commissioner shall recommend to the Board of Regents that its registration be revoked. Following revocation of a school's registration, the Commissioner has the authority to develop a plan to ensure that the educational welfare of affected students is protected.

In July 2015, the Board of Regents made adjustments to the SURR provisions to incorporate the New York State Receivership Law that was adopted in 2015. As a result, any school identified as being under Registration Review that was also identified as a Struggling School or Persistently Struggling School pursuant to Section 100.19 under the Receivership Law was required to implement school receivership.

As a result of this adjustment, schools that have been identified as being among the lowest-performing for more than three consecutive years are placed under Receivership. Alternative schools (e.g., Transfer high schools and Special Act schools) will not be automatically placed into Receivership; instead, the Commissioner will work with the district, should any alternative school be identified as among the lowest-performing for more than three consecutive years, to determine the most appropriate interventions for that school. The School Under Registration Review process remains in effect and can be utilized for schools that have been identified as the farthest from meeting the benchmarks established by the Commissioner or as being a poor learning environment.

In July 2015, the Board of Regents revised the conditions for which a school could be identified as a poor learning environment and, therefore, be identified as a SURR by the Commissioner. A school may now be identified as a poor learning environment if there is evidence that the school does not maintain required programs and services or evidence of failure to appropriately refer for identification and/or provide required programs and services to students with disabilities pursuant to Commissioner's Regulations or evidence of failure to appropriately identify and/or provide required programs and services to English language learners pursuant to Commissioner's Regulations.

Education Partner Organization (EPO)

Under Education Law 211-e, districts with schools that have been identified as Priority under New York State's approved ESEA Flexibility Waiver have the ability to contract with Educational Partnership Organizations (EPOs) to turn around the identified school(s). The EPO assumes the powers and duties of the superintendent of schools for purposes of implementing the educational program of the school, including, but not limited to, making recommendations to the board of education on budgetary decisions, staffing population decisions, student discipline decisions, decisions on curriculum, and determining the daily schedule and school calendar, all of which shall be consistent with applicable collective bargaining agreements. The EPO contract includes district performance expectations and/or benchmarks for school operations and academic outcomes, and failure to meet such expectations or benchmarks may be grounds for termination of the contract prior to the expiration of its term.

Distinguished Educators

A school district designated as Focus or a school designated as Priority or Focus may be required to cooperate with a distinguished educator appointed by the Commissioner, pursuant to section 100.17(c)(3)(i) of Commissioner's Regulations. The distinguished educator also provides

oversight of the district comprehensive improvement plan or school comprehensive improvement plan, and serves as an ex-officio member of the local board of education. All improvement plans are subject to review by the distinguished educator, who shall make recommendations to the board of education. The board of education must implement such recommendations, unless it obtains the Commissioner's approval to implement an alternate approach.

Joint Intervention Team Review Process

Currently, all schools identified as Priority Schools or Focus Schools are required to undergo an annual diagnostic review, using a diagnostic tool of quality indicators as prescribed by the Commissioner. The Commissioner appoints a Joint Intervention Team, typically referred to as an Integrated Intervention Team, to conduct an on-site school review. More information about this process can be found in the *Diagnostic Tool for School and District Effectiveness* section above.

New York State Receivership

In April 2015, the New York State Legislature passed Subpart H of Part EE of Chapter 56 of the Laws of 2015 – Education Law 211-f. This law established school receivership. Under New York State's receivership law, a school receiver has the authority to: develop a school intervention plan; convert schools to community schools providing wrap-around services; reallocate funds in the school's budget; expand the school day or school year; establish professional development plans; order the conversion of the school to a charter school in a manner that is consistent with applicable State laws; remove staff and/or require staff to reapply for their jobs, in collaboration with a staffing committee; and negotiate collective bargaining agreements, with any unresolved issues submitted to the Commissioner for decision. The school receiver may be either the superintendent of the district or an independent receiver.

Section 211-f designates current Priority Schools that have been in the most severe accountability status since the 2006-07 school year as Persistently Struggling Schools and vests the superintendents of these districts with the powers of an independent receiver. The superintendent is given an initial one-year period to use the enhanced authority of a receiver to make demonstrable improvement in student performance at the Persistently Struggling School, or the Commissioner will direct that the school board appoint an independent receiver and submit the appointment for approval by the Commissioner. The law also establishes that any school that was a Priority School for three consecutive years is considered a Struggling School, and the superintendent is given the powers of a receiver. For these schools, the superintendent is given an initial two-year period to make demonstrable improvement, as opposed to the one-year period given to Persistently Struggling Schools. If a "Struggling School does not make demonstrable improvement, the Commissioner will direct that the school board appoint an independent receiver and submit the appointment for approval by the Commissioner.

An independent receiver, which can be an individual, a not-for-profit organization, or another school district, has sole responsibility to manage and operate the school and has all the enhanced authority of a school receiver. Independent receivers are appointed for up to three school years, and serve under contract with the Commissioner.

For the 2015-16 and 2016-17 school years, the Governor and State Legislature appropriated \$150 million to support schools that had been identified as Persistently Struggling as of July 2015 and

schools that had been identified as Persistently Struggling or Struggling for the entirety of the 2016-17 school year. Funds that were not used by schools in 2015-16 and 2016-17 remain available for use in the 2017-18 school year.

CSI schools that are part of the receivership program will have the same interventions as above, with the additional accountability requirement of needing to make demonstrable improvement to avoid being taken over by an independent receiver. In addition, CSI schools in the Receivership program will continue to be closely monitored by Department staff through the use of the Receivership Demonstrable Improvement Leading Indicators reports, along with monitoring visits and phone check-ins between Receivership schools, the district, and the Department.

In addition to the supports and interventions outlined for CSI schools and TSI schools, New York State will require any school that is not identified as a CSI or TSI school, but receives a Level 1 on any indicator for any accountability subgroup, to complete a self-assessment and inform its district of the additional assistance that the school needs to improve. The district, in turn, must identify the support that the district will provide in its consolidated application for federal funds.

New York State believes that the combination of having progressive intervention systems and multiple levers available for more extensive interventions, when necessary, will allow New York State to consider the most appropriate interventions for the identified school and selectively apply interventions as deemed appropriate.

d. Resource Allocation Review. Describe how the State will periodically review resource allocation to support school improvement in each LEA in the State serving a significant number or percentage of schools identified for comprehensive or targeted support and improvement.

New York State recognizes that the strategic use of resources is a critical component of improving student outcomes. New York State will support effective resource allocation through the cycles of resource allocation reviews of districts with significant numbers of identified schools described previously. The State also promotes the effective use of resources by ensuring that resources are closely analyzed as part of the Needs Assessment process, during which school teams closely examine how they use their time, space, and staff. LEAs will receive guidance and training to support their ability to conduct Resource Audits and promote the effective use of resources.

e. Technical Assistance. Describe the technical assistance the State will provide to each LEA in the State serving a significant number or percentage of schools identified for comprehensive or targeted support and improvement.

New York State will significantly expand its current technical assistance offerings to provide support so that the schools identified as having the greatest needs will be the ones that receive the most attention from New York State. New York State will provide support and technical assistance through the eight key functions outlined previously:

- Supporting the Needs Assessment process
- Supporting the development and implementation of schoolwide plans
- Supporting the implementation of Evidence-based Interventions and School-Specific Improvement Strategies
- Promoting District-wide Improvement through Training and Support to Districts
- Providing data to inform plans and call attention to inequities
- Connecting schools and districts with other schools, districts, and professionals
- Allocating and monitoring school improvement funds
- Providing additional support and oversight for schools not making progress

Supporting the Needs Assessment process

- Providing resources and guidance to empower school teams to conduct their own Needs Assessment
- Working closely with schools in the CSI support model as they conduct their Envision-Analyze-Listen Needs Assessment activities

Providing additional support and oversight for schools not making progress

- Outlining a continuum of support models to ensure that schools receive the support they need
- Identifying a progressive continuum within the CSI support model so that the schools within the CSI support model are provided the appropriate level of support and oversight
- Considering additional interventions when applicable, such as identifying a school as SURR or utilizing a Distinguished Educator

Supporting the development and implementation of schoolwide plans

- Providing guidance and training to schools and districts on the development of improvement plans
- Working alongside schools in the CSI support model as they write their plans
- Ensuring that all plans for schools in the CSI support model meet minimum expectations
- Supporting the development of local capacity to develop and monitor initiatives through both written guidance and direct technical assistance with the school leader
- Providing on-site and off-site support to assist schools in the Receivership program

School-Specific Improvement Strategies

- Connecting schools and districts to Evidence-based Interventions
- Providing Supplemental Support Programs to schools in the ATSI and CSI support models
- Requiring schools identified for CSI, ATSI, and TSI to complete annual surveys of parents, teachers, and students
- Assisting districts with identifying surveys to use

Promoting District-wide Improvement through Training and Support to Districts

- Providing training on supporting identified schools

Providing data to inform plans and call attention to inequities

- Offering data comparing schools to schools within the district and across New York State
- Publishing per-pupil expenditures for each district and school on the New York State website
- Publishing a New York State Equity Report that identifies rates of assignment to Ineffective, Out-of-Field, and Inexperienced teachers between minority and low-income students in Title I schools and non-low-income, non-minority students in non-Title I schools at the district level
- Establishing annual cycles of resource allocation reviews of districts with significant numbers of identified schools
- Engaging with districts where inequities are identified to determine the most appropriate actions that to reduce and eliminate these inequities

Connecting schools and districts with other schools, districts, and professionals

- Providing opportunities for identified schools and districts to connect with schools and districts facing similar challenges
- Providing opportunities for identified schools to connect with higher-performing schools with similar demographics
- Connecting schools to Regional Technical Assistance providers, such as BOCES, RSE-TASC and RBERNs

Allocating and monitoring school improvement funds

- Providing differentiated SIG awards to ensure that those with the greatest needs receive the most support

Providing additional support and oversight for schools not making progress

- Providing financial support to support participation in state-run programs that have the greatest potential for return on investment
- Outlining a continuum of supports across all of the support models, and a differentiated support structure for those within CSI
- Considering additional interventions when applicable, such as identifying a school as SURR or utilizing the Distinguished Educator

f. Additional Optional Action. If applicable, describe the action the State will take to initiate additional improvement in any LEA with a significant

number or percentage of schools that are consistently identified by the State for comprehensive support and improvement and are not meeting exit criteria established by the State or in any LEA with a significant number or percentage of schools implementing targeted support and improvement plans.

New York State’s system of differentiated accountability will allow New York State to focus its attention on the districts and schools that are not making progress. New York State’s process of identifying districts allows districts to be involved with New York State’s efforts to support improvement and encourages districts to pursue a cohesive, systemic approach to improvement at both the district and school level. In addition to the supports and interventions outlined earlier, the Department is currently piloting a district-level Technical Assistance Review process and will expand this pilot and implement a district-level review process to assist districts with multiple identified schools.

5. Disproportionate Rates of Access to Educators (ESEA section 1111(g)(1)(B)):
Describe how low-income and minority children enrolled in schools assisted under Title I, Part A are not served at disproportionate rates by ineffective, out-of-field, or inexperienced teachers, and the measures the SEA will use to evaluate and publicly report the progress of the SEA with respect to such description.¹²

As described further in Section D of this plan, the Department has undertaken many initiatives over the past seven years that focused on the goal of ensuring that all students across New York State, regardless of their physical location, acquire the knowledge, skills, and abilities that students need to realize personal success in college, career, and life. Despite earnest effort, we have not yet achieved this goal, and past NYSED efforts have not yet delivered the desired improvements in equity and educational excellence. As we know, too many schools and students chronically struggle, and subgroup achievement gaps persist.

We also know that, among school based factors, nothing matters more to improving student outcomes than teaching and school leadership.¹³ Accordingly, the Department is committed to the principle that all students should have equitable access to great teachers and school leaders.

Consistent with the requirements of ESSA, what follows is a technical description of the rates at which low-income and minority students in Title I schools are assigned to ineffective, out-of-field, and inexperienced teachers, compared to non-low-income, non-minority students in non-Title I schools. For a description of how the Department intends to improve equitable access to experienced, qualified, and effective teachers and school leaders, please see Section D.

The Department will use the following definitions for low-income students, minority students, ineffective teachers, out-of-field teachers, and inexperienced teachers:

Key Term	Statewide Definition
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Ineffective teacher	Teacher who receives an Ineffective rating on his/her overall composite rating. ¹⁴
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¹² Consistent with ESEA section 1111(g)(1)(B), this description should not be construed as requiring a State to develop or implement a teacher, principal, or other school leader evaluation system.

¹³ See, e.g., Leithwood, K., Seashore-Louse, K., Anderson, S., and Walhstrom, K., “How Leadership Influences Student Learning: Review of the Research”. New York City, NY: Wallace Foundation and “Teachers Matter: Understanding Teachers' Impact on Student Achievement”. Santa Monica, CA: RAND Corporation, 2012.

¹⁴ Teaching and school leadership are multi-dimensional professions and research overwhelmingly confirms the importance of using multiple measures of educator effectiveness when determining summative evaluation ratings for teachers and school leaders. Teacher and principal summative annual evaluation ratings in New York State include measures of student growth (multiple measures where collectively bargained) and observations of practice based on rubrics aligned to the State’s Teaching and Leadership Standards. The Department is currently undergoing a multi-

Key Term	Statewide Definition
Out-of-field teacher	Teacher who does not hold certification in the content area for all the courses that he/she teaches. ¹⁵
Inexperienced teacher	Teachers with three or fewer years of experience.
Low-income student	Student who participates in, or whose family participates in, economic assistance programs, such as the free or reduced-price lunch programs, Social Security Insurance (SSI), Food Stamps, Foster Care, Refugee Assistance (cash or medical assistance), Earned Income Tax Credit (EITC), Home Energy Assistance Program (HEAP), Safety Net Assistance (SNA), Bureau of Indian Affairs (BIA), or Family Assistance: Temporary Assistance for Needy Families (TANF). If one student in a family is identified as economically disadvantaged, all students from that household (economic unit) may be identified as economically disadvantaged.
Minority student	Student who is identified as American Indian or Alaska Native, Asian, Black or African-American, Hispanic or Latino, Native Hawaiian/Other Pacific Islander, or multiracial.

Using the most recently available data (2015-16 school year), the Statewide analysis is as follows¹⁶:

STUDENT GROUPS	Rate at which students are taught by an ineffective teacher	Disproportionality between rates	Rate at which students are taught by an out-of-field teacher	Disproportionality between rates	Rate at which students are taught by an inexperienced teacher	Disproportionality between rates
Low-income students enrolled in schools	Box A: enter rate as a percentage	Enter value of (Box A) – (Box B) 1.0%	Box E: enter rate as a percentage	Enter value of (Box E) – (Box F) 17%	Box I: enter rate as a percentage	Enter value of (Box I) – (Box J) 16%

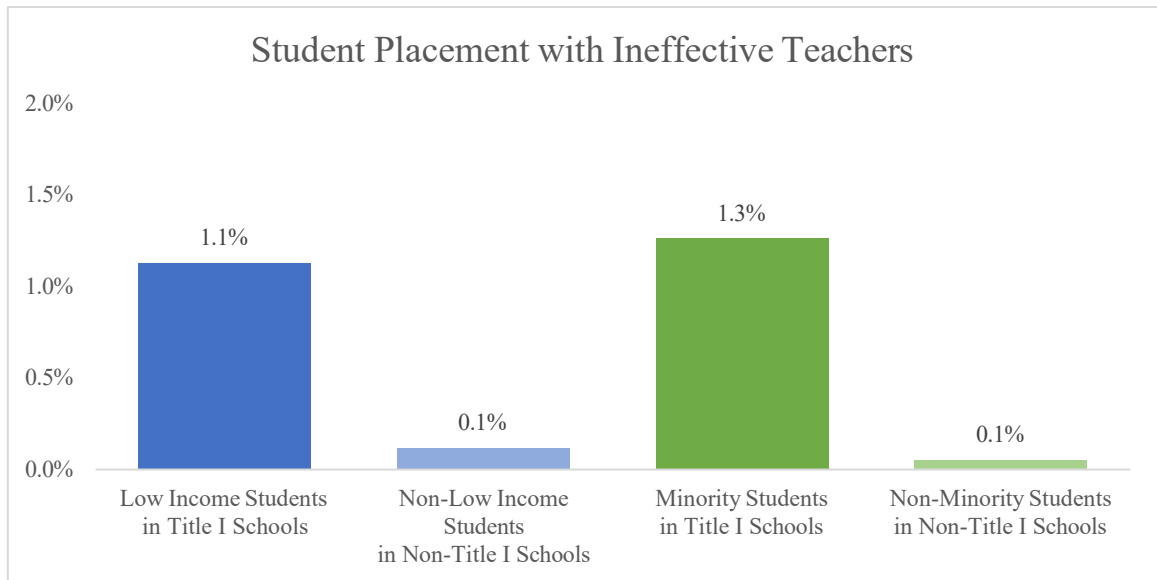
year process to review and revise its ELA and math Learning Standards, State assessment program, and educator evaluation system. During this time, measures based on the State’s growth model and grades 3-8 ELA and math State assessments will be used for advisory purposes only. Educators whose original evaluations included these measures will receive a second set of scores and ratings that use alternate measures of student growth (“transition ratings”). These transition ratings will be used in applicable school years for the purposes of the equity analysis.

¹⁵ Although the Department currently has student-teacher linkage information for all courses, we do not yet have the ability to determine whether or not every course that every teacher teaches is a course for which he/she is appropriately certified. Until that time, we will calculate rates of student assignment to out-of-field teacher by using our existing indicator of whether a teacher is not certified for any of the courses that they teach.

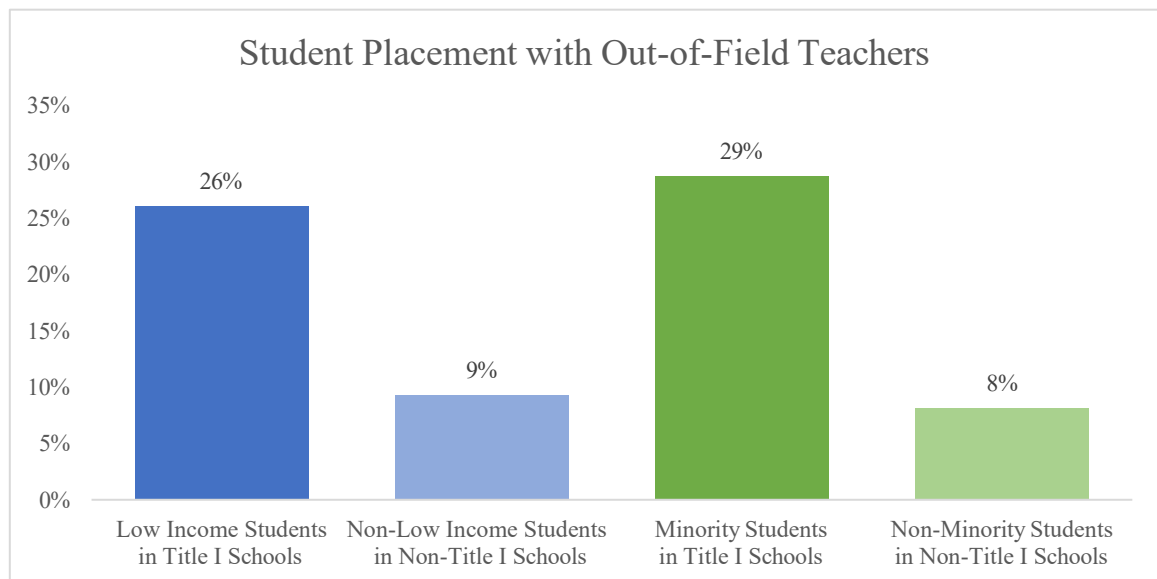
¹⁶ This analysis is based on 1,538,156 students and includes elementary, middle, and high schools.

receiving funds under Title I, Part A	1.1%		26%		32%	
Non-low-income students enrolled in schools not receiving funds under Title I, Part A	Box B: enter rate as a percentage 0.1%		Box F: enter rate as a percentage 9%		Box J: enter rate as a percentage 16%	
Minority students enrolled in schools receiving funds under Title I, Part A	Box C: enter rate as a percentage 1.3%	Enter value of (Box C) – (Box D) 1.2%	Box G: enter rate as a percentage 29%	Enter value of (Box G) – (Box H) 21%	Box K: enter rate as a percentage 33%	Enter value of (Box K) – (Box L) 17%
Non-minority students enrolled in schools not receiving funds under Title I, Part A	Box D: enter rate as a percentage 0.1%		Box H: enter rate as a percentage 8%		Box L: enter rate as a percentage 16%	

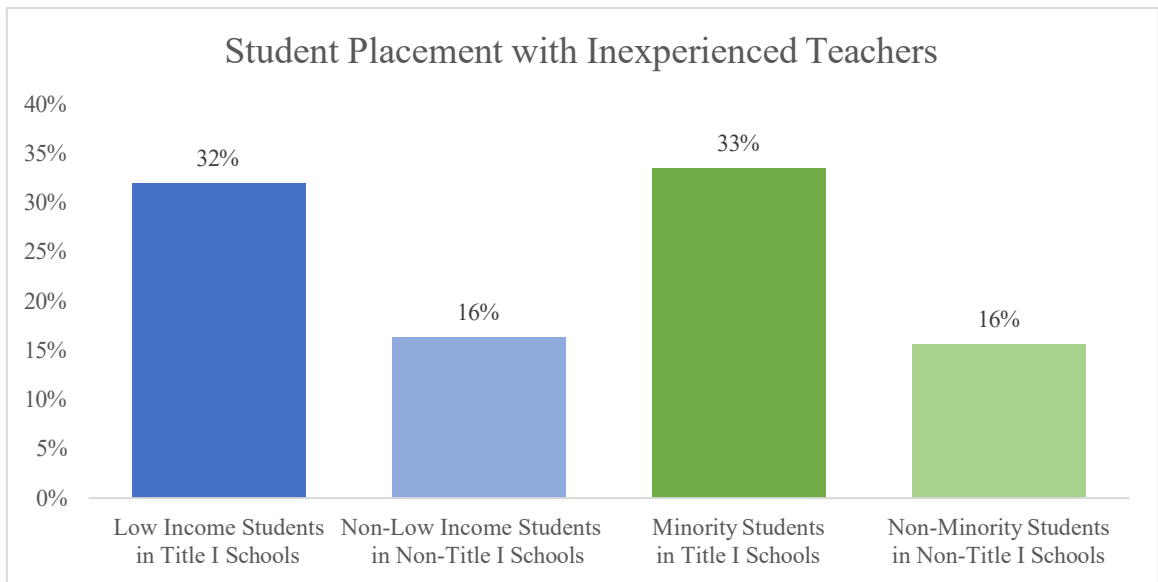
As the table above makes clear, across New York State, low-income and minority students are much more likely to be assigned to ineffective, out-of-field, and inexperienced teachers. Specifically:



- Low income students in Title I schools are **11 times more likely** to be taught by a teacher who received a rating of Ineffective, compared to students who are not low income in non-Title I schools.
- Minority students in Title I schools are **13 times more likely** to be taught by a teacher who received a rating of Ineffective, compared to non-minority students in non-Title I schools.

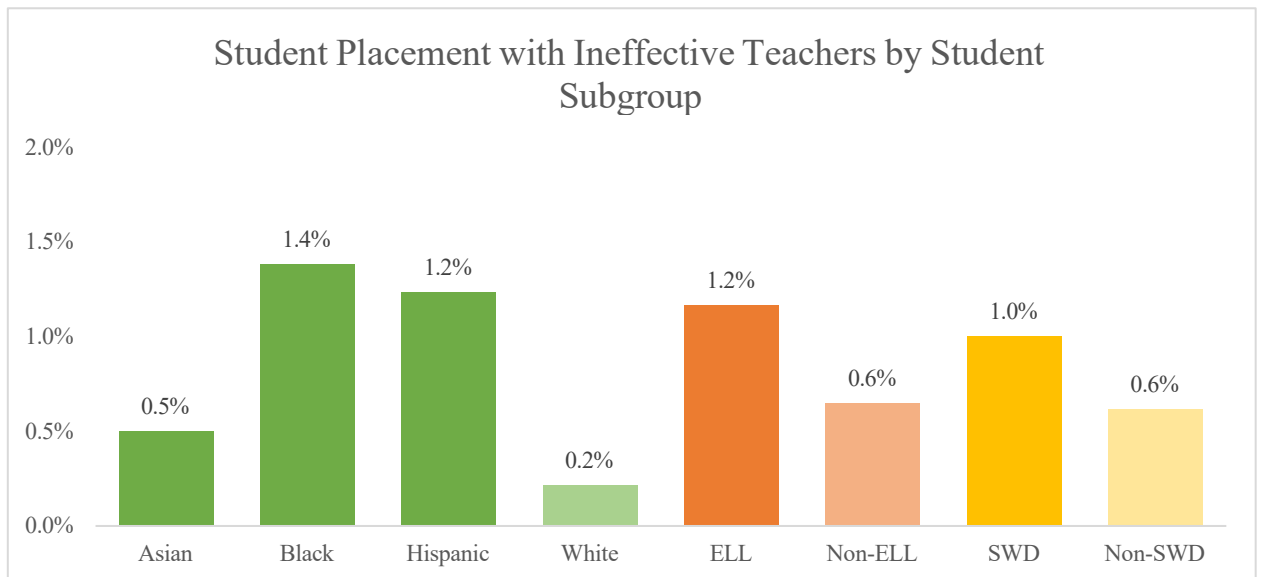


- Low income students in Title I schools are **nearly three times more likely** to be taught by an out-of-field teacher, compared to students who are not low income in non-Title I schools.
- Minority students in Title I schools are **more than three and a half times more likely** to be taught by an out-of-field teacher, compared to students who are not low income in non-Title I schools.

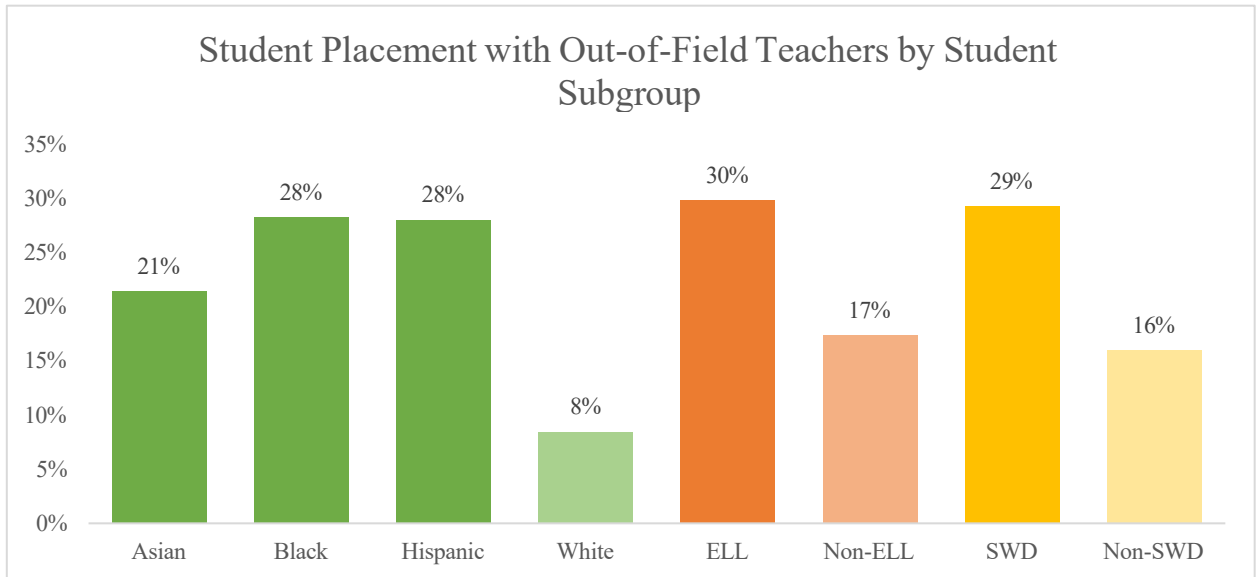


- Low income students in Title I schools are **twice as likely** to be taught by a teacher with 3 or fewer years of experience, compared to students who are not low income in non-Title I schools.
- Minority students in Title I schools **more than two times more likely** to be taught by a teacher with 3 or fewer years of experience, compared to non-minority students in non-Title I schools.

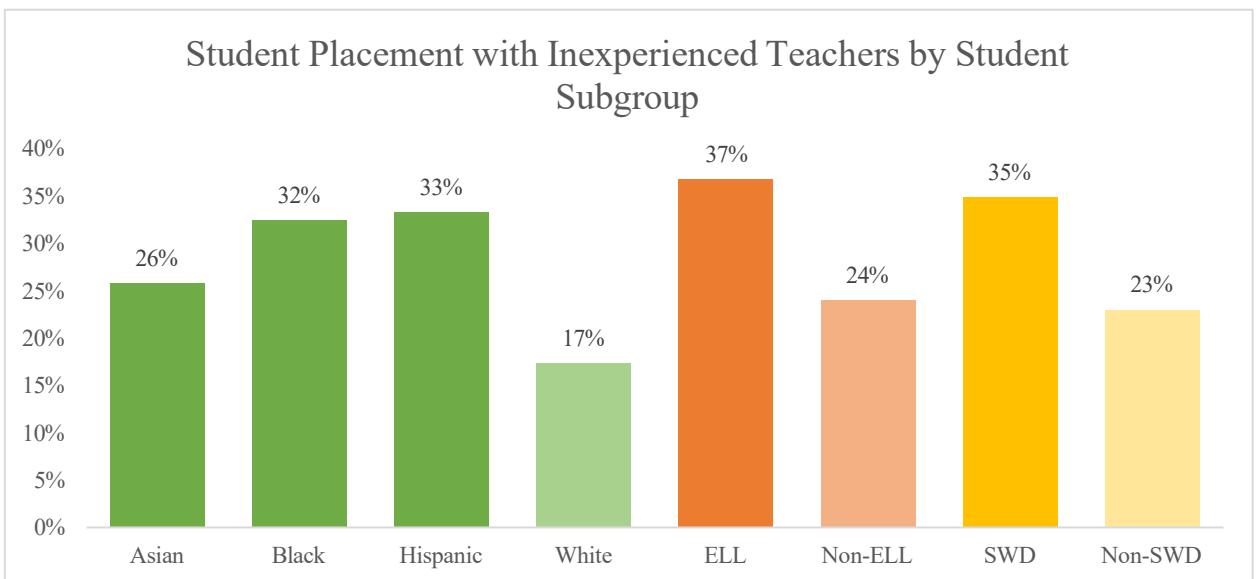
Similar trends are seen within student subgroups:



- Asian students are **more than twice as likely**, and Black and Hispanic students **more than ten times as likely** as White students to be placed with a teacher who received a rating of Ineffective.
- ELL students are **twice as likely**, and students with disabilities are **nearly twice as likely**, to be placed with a teacher who received a rating of Ineffective, compared to their counterparts.



- Asian students are **more than two and a half times as likely**, and Black and Hispanic students **more than three times as likely**, as White students to be placed with an out-of-field teacher.
- ELL students and students with disabilities are **nearly twice as likely** to be placed with an out-of-field teacher than are their counterparts.



- Asian students are **more likely than White students**, and Black and Hispanic students are **nearly two times as likely** as White students, to be placed with an out-of-field teacher than are their counterparts.
- ELL students and students with disabilities are all **more likely** to be placed with an out-of-field teacher than are their counterparts.

As previously stated, the Department seeks to ensure that all students have equitable access to effective, qualified, and experienced teachers and school leaders. Given our persistent subgroup achievement gaps, this goal is one that we must achieve with great urgency.

The Department firmly believes that investment in our educator workforce is the critical component in closing the achievement gap and helping all of New York State's students become college, career, and civic ready. Specifically, the Department believes that by:

- 1) Strengthening the preparation of new teachers, principals, and other school leaders through the development of P-20 educator preparation partnerships;
- 2) Recruiting and supporting promising, diverse candidates to enter those preparation programs;
- 3) Ensuring that new teachers and school leaders have comprehensive, differentiated supports that help them transition from pre-service to employment and leveraging experienced, effective teachers and school leaders to serve as mentors;
- 4) Establishing a collective understanding of what great teaching and leadership looks like for all educators across the entire continuum of their careers and ensuring that teachers and school leaders have comprehensive systems of feedback and support;
- 5) Providing tools and resources to support LEAs to implement these systems of feedback and support, including through building the capacity of school leaders;
- 6) Ensuring that there are opportunities for job-embedded professional learning and collaboration that promote the ability of teachers and school leaders to meet the needs of our diverse student population, including building an understanding of the principle of Universal Design for Learning, positive behavior interventions and supports, and social and emotional learning; and
- 7) Creating and sustaining teacher and school leader leadership opportunities through career continuum pathways that are responsive to local needs.

We will better be able to meet our goal of ensuring that all students have access to great teachers and school leaders who can provide them with the support that they need to be college, career, and civic ready. Research and our own New York State-specific experience tells us that the combination of strong preparation, mentoring and induction; meaningful systems of feedback and support for educators; professional development; and leadership opportunities, when implemented as part of a comprehensive system that leverages partnerships between schools and educator preparation programs, are important parts of district-wide strategies to increase student achievement and equitable access.

Although there are districts and BOCES across the State that are already engaged in some or all the strategies outlined above, we know that the familiarity and readiness of districts and BOCES varies. To assist those LEAs that are already undertaking some or all this work while at the same

time building capacity Statewide, the Department will provide the following types of technical assistance and support to LEAs:

1. Provision of equity reports
2. Continued investments in the professional development of teachers and school leaders
3. Expansion of toolkits and other resources associated with the Educator Effectiveness Framework and Leadership Pathway Continuums
4. Outlines of key indicators for Talent Management Systems
5. Example LEA profiles

As described further in Section D of this plan, the Department will provide support and technical assistance to LEAs as they work to understand the equity metrics; identify sources of appropriate data and methods for additional local analyses; and guide LEAs in the design of comprehensive systems of professional learning, support, and advancement for all educators. There will be regular opportunities for diverse stakeholders to reflect upon, refine, and help shape enhancements to the Department's plan.

To promote transparency, in future years, the Department will publish Equity Reports at both the State and district level on its Public Data Access site, data.nysed.gov, that describe differences in rates of assignment to ineffective, out-of-field, and inexperienced teachers between minority and low-income students in Title I schools and non-low-income, non-minority students in non-Title I schools. These reports will be published so existing gaps and progress in closing those gaps will be able to be compared from year to year. For a complete description of the metrics that may be included in these reports, please see Section D of this application.

6. School Conditions (ESEA section 1111(g)(1)(C)): Describe how the SEA agency will support LEAs receiving assistance under Title I, Part A to improve school conditions for student learning, including through reducing: (i) incidences of bullying and harassment; (ii) the overuse of discipline practices that remove students from the classroom; and (iii) the use of aversive behavioral interventions that compromise student health and safety.

It is a priority of the Board of Regents that New York State schools foster a culture and climate that makes school a safe haven where every student feels welcome and free from bias; harassment; discrimination; and bullying, especially for traditionally marginalized youth, including, but not limited to, youth of color; Lesbian, Gay, Bisexual, Transgender and Queer (LGBTQ) youth; and youth with disabilities. A meta-analysis of 80 studies analyzing bullying involvement rates (for both bullying others and being bullied) for 12 to 18-year-old students reported a mean prevalence rate of 35% for traditional bullying involvement and 15% for cyberbullying involvement.¹⁷ Students who experience bullying are at increased risk for poor

¹⁷ Modecki, K. L., Minchin, J., Harbaugh, A. G., Guerra, N. G., & Runions, K. C. (2014). *Bullying prevalence across contexts: A meta-analysis measuring cyber and traditional bullying*. *Journal of Adolescent Health*, 55, 602-611. Retrieved from [http://www.jahonline.org/article/S1054-139X\(14\)00254-7/abstract](http://www.jahonline.org/article/S1054-139X(14)00254-7/abstract)

school adjustment, sleep difficulties, anxiety, and depression¹⁸ and are twice as likely as non-bullied peers to experience negative health effects, such as headaches and stomachaches.¹⁹

Respect is a learned behavior, and it has never been more important than today that schools take proactive steps to keep students safe from bullying and harassment. Prevention starts before an incident occurs, and, to be successful, schools must:

- Send a unified message against bullying, harassment, intimidation, and discrimination to students, staff, and parents
- Ensure supportive and positive classroom environments
- Practice de-escalation techniques
- Communicate with students, staff, and parents about their roles in prevention and intervention
- Take student complaints seriously and ensure that they are addressed quickly and competently
- Ensure that student discipline practices are equitable and proportionate to the incident
- Reduce the overuse of punitive and exclusionary responses to student misbehavior

With these goals in mind, the Department will support districts in creating conditions that maximize all students' learning, especially for traditionally marginalized youth, including youth of color, LGBTQ youth, and youth with disabilities, through activities, policies, and strategies that reduce bullying, harassment, and the overuse of punitive and exclusionary responses to student misbehavior. The Department will also promote the understanding of diverse cultural characteristics, positive disciplinary practices, improving school climate, and providing students with social-emotional support. The Department continues to develop and build upon existing guidance and resources to combat harassment, bullying, and discrimination, and to enhance efforts to build and maintain positive and healthy school climates. Efforts will be expanded to provide capacity-building guidance; strategies; best-practice resources; and professional development for school administrators, instructional staff, and non-instructional staff in the following areas to advance these initiatives:

Dignity for All Students Act (DASA)

New York State's Dignity for All Students Act seeks to provide New York State's public elementary and secondary school students with a safe and supportive environment that is free from discrimination; intimidation; taunting; harassment; and bullying on school property, and at school functions, including, but not limited to, discrimination based on a person's actual or perceived race, color, weight, national origin, ethnic group, religion, religious practice, disability, sexual orientation, gender, or sex.

Social-Emotional Wellness and Adverse Childhood Experiences (ACES)

¹⁸ Center for Disease Control, National Center for Injury Prevention and Control (2015). Understanding bullying.

¹⁹ Gini, G., & Pozzoli, T. (2013). Bullied children and psychosomatic problems: A meta-analysis. Pediatrics.

One out of four children attending school has been exposed to a traumatic event that can affect learning and/or behavior.²⁰ Trauma can affect school performance and learning and cause unpredictable or impulsive behavior, as well as physical and emotional distress. It is critical to develop and create trauma-sensitive schools that help children feel safe so that they can learn.

Reduce Exclusionary Discipline and Implement Restorative Practices

Recent research has demonstrated that student suspensions and expulsions do long-term harm, and students who are suspended are disproportionately more likely to drop out of school, and, in adulthood, be unemployed, reliant on social-welfare programs, and imprisoned.

To be successful in implementing a positive school climate in all schools, we must evaluate current school discipline practice, move away from zero-tolerance discipline policies, and encourage the use of restorative practices in schools. Restorative practices encourage healthy relationships between staff and students and seek to resolve conflict rather than just punish offenders. Successful implementation of restorative practice results in reducing harmful behavior, repairing harm, and restoring positive relationships.²¹

Eliminate Aversive Behavioral Interventions

The Department defines aversive interventions as an intervention that is intended to induce pain or discomfort to a student for the purpose of eliminating or reducing maladaptive behaviors. Beginning in 2006, the Department set a general prohibition on the use of aversive behavioral interventions, and existing Commissioner's Regulations 200.22 specifically prohibits the use of aversive interventions as part of a behavioral intervention plan. The Department will continue to leverage staff expertise and resources created by the Office of Special Education to provide technical assistance related to the effective use of Positive Behavioral Intervention and Supports (PBIS) systems; functional behavioral assessments; behavioral intervention plans; behavioral specialists; suspension monitoring; and other professional development to support schools, particularly those that are identified under IDEA and/or the State Performance Plan.

Measure School Climate by Using School Climate Surveys

The Department is encouraging schools to administer the [U.S. Department of Education school climate surveys](#) to students, parents, and staff. Students' ability to succeed in school relies not only on quality teaching and academic resources, but also on a supportive school environment that fosters students' growth as individuals and affirms their worth as human beings within the educational and social setting of school.²² A school culture where differences are not merely

²⁰ National Child Traumatic Stress Network Schools Committee. (October 2008). *Child Trauma Toolkit for Educators*. Los Angeles, CA & Durham, NC: National Center for Child Traumatic Stress

²¹ *Restorative Practices: Fostering Healthy Relationships & Promoting Positive Discipline in Schools A Guide for Educators*

²² Payne, E., & Smith, M. (2013). *LGBTQ kids, school safety, and missing the big picture: How the dominant bullying discourse prevents school professionals from thinking about systemic marginalization or... Why we need to rethink LGBTQ bullying*. *QED: A Journal in GLBTQ Worldmaking*, (1), 1-36

tolerated and accepted, but are embraced and integrated into school life and curriculum, requires a thoughtful examination of school culture.

To facilitate incorporating these tenets into daily practice in schools, the Department will continue to develop and build upon existing guidance and resources and to enhance efforts to build and maintain positive school climates. Efforts will be expanded to provide capacity-building guidance, strategies, best-practice resources, and professional development for school administrators, instructional staff, and non-instructional staff, as follows:

- Require that LEAs collect data on incidents of violence and bullying, discrimination or harassment, and report these to the Department
- Identify Persistently Dangerous, and Potentially Persistently Dangerous Schools, using a School Violence Index (SVI) that is a proportion of violent incidents to enrollment
- Provide on-site monitoring and training in the reporting and preventing of school violence to LEAs that are identified as Persistently Dangerous and Potentially Persistently Dangerous Schools and upon request
- Evaluate LEA reporting practices as a part of the Department's targeted technical assistance
- Publish and distribute guidance to LEAs about the importance of developing sound violence prevention programs to assist schools in developing policies and practices to build a culture and climate that is free of intimidation, harassment, and bullying
- Issue guidance for parents in the most frequently spoken languages in New York State, consistent with the information provided in Section (A)(3) related to Native Language Assessments
- Collaborate with New York State and local agencies (e.g., departments of social services) to provide training programs for school counseling and pupil personnel services staff in Adverse Childhood Experiences (ACEs) and restorative practices
- Develop guidance for schools on best practices for student discipline to reduce disproportionate suspension and exclusion policies
- Require that LEAs collect and submit data on incidents in schools of corporal punishment, which is prohibited in New York State
- Collaborate with New York State and local agencies (e.g., departments of social services) to develop resources for LEAs related to improving school climate
- Expand and build upon existing guidance and resources to enhance efforts to build and maintain a positive school climate, in particular in the areas of DASA training for school and district personnel, including LGBTQ students, students of color, and students with disabilities
- Expand efforts to provide school staff with capacity-building guidance, strategies, and best-practice resources in social-emotional wellness and in supporting the social-emotional needs of marginalized students
- Develop guidance and technical assistance for schools to assist them in implementing policies to transition away from exclusionary discipline practices
- Support a pilot implementation of the USDE surveys in a small number of districts in the 2016-17 school year to develop a business process for a larger implementation in 2017-18. Consider future use of climate surveys as part of the ESSA accountability system

- Continue to promote the use of the USDE climate surveys as an effective tool for measuring school climate during statewide and regional meetings with the field

In addition, the Department will continue to foster school climates that are safe and engaging. When students are physically healthy; emotionally supported; have safe routes to school; and access to quality after school programs, recess and extra-curricular activities, and health and wellness programs, student attendance will improve.

7. School Transitions (ESEA section 1111(g)(1)(D)): Describe how the State will support LEAs receiving assistance under Title I, Part A in meeting the needs of students at all levels of schooling (particularly students in the middle grades and high school), including how the State will work with such LEAs to provide effective transitions of students to middle grades and high school to decrease the risk of students dropping out.

To meet the needs of New York State’s richly diverse students and families, the Department will support the development of resources, the coordination of aligned initiatives, the provision of technical assistance, and support of LEA-planned and LEA-implemented prekindergarten through Grade 12 (P-12) transition programs.

The Department recognizes that all transitions are critical processes rather than isolated events. Students and families experience many transitions as they move into, through, and out of the school setting: from home environments to school, from school level to school level, from program to program, and from school to higher education and/or career. The ease and continuity of transitions play a significant role in each student’s learning, well-being, and desire to stay in school. Successful transition programs reduce dropout rates and increase graduation rates.²³ There are key transition points along the P-12 continuum that can be targeted for transition programs, including early childhood education to elementary, elementary to middle, middle to high school, and high school to postsecondary education and careers.

Various New York State dropout prevention initiatives align well with quality P-12 transition programs. Strategically planned multifaceted and multi-tiered transition programs at key transition points and aligned dropout prevention initiatives significantly affect student postsecondary education and career success. These programs assist students in meeting the demands of the P-12 New York State Learning Standards; support appropriate promotion practices; decrease dropout rates; and increase graduation rates, ultimately leading students to earn a New York State Regents Diploma.

The Department supports school districts in facilitating successful P-12 transitions by encouraging the entire school community (district leadership, teachers, support service personnel, students, families, community partners, and other relevant stakeholders) to form collaborative transition teams that are an ongoing presence in each cohort’s P-12 academic experience. The transition team’s purpose is to ensure that the needs of each cohort of students

²³ Chappell, S. L., PhD, O’Connor, P., PhD, Withington, C., MA, & Steglin, D. A., PhD. (April 2015). [A Meta-Analysis of Dropout Prevention Outcomes and Strategies](#) (pp. 1-41, Tech.). Clemson University, SC: National Dropout Prevention Center/Network.

are identified and met before, during, and after key transition points. Successful transition teams should begin planning two years before each transition point, and implement activities no later than one year before each transition point. Transition teams will:

- Be composed of decision-makers at both ends of each key transition point
- Reflect the diverse characteristics, circumstances, and needs of the district's community of learners and families
- Develop and implement whole group, small group, and individual outreach strategies to engage families – especially families whose circumstances do not provide for many opportunities to, or who are reluctant to, engage with the school community
- Continually analyze the strengths and weaknesses of various transition program components by surveying and collecting feedback from students, families, teachers, and other stakeholders

The Department will provide ongoing guidance and technical assistance to school districts as they develop before school, afterschool, summer, and extra-curricular activities. Schools that are intentional about offering and connecting youth with quality out-of-school-time programs see increases in academic achievement, positive behavior, and family and student engagement. Schools that regularly convene an advisory committee that includes community-based partners can help ensure that afterschool and summer offerings are coordinated and that community resources are effectively leveraged to provide student supports that extend beyond the school day. Students and families should also be informed about the process to obtain available guidance and counseling supports.

Coordinating Transitions from Early Childhood Education to Elementary School

The Department believes that high-quality early childhood education programs are critical as children transition from home to a formal school setting. This vision is supported by the Governor and the State legislature, which currently allocates over \$800 million in annual funding for prekindergarten programming in school districts throughout New York State. Each year, the Board of Regents recommends the continued expansion of investments in early childhood programs so that all school districts and families benefit from the assurance of ongoing, coordinated, and dependable funding for early childhood educational programs in their communities.

Child-focused, experiential learning starts before kindergarten and must build on individual child needs and experiences, and exposes young children (birth through age eight) to planned interactions and stimulation so that children can develop the full range of knowledge, skills, and dispositions needed to be successful learners. Instruction in early childhood programs should be focused on the [five domains of children's development](#) and should be designed to meet a child's individual needs and experience. The domains are: Approaches to Learning; Physical Development and Health; Social and Emotional Development; Communication, Language and Literacy; and Cognition and Knowledge of the World.

In 2015, New York State began a process of review and revision of its current English Language Arts (ELA) Learning Standards, which were adopted in 2011. Through numerous phases of public comment and virtual and face-to-face meetings with committees, the NYS P-12 ELA Learning Standards were developed. These revised standards reflect the collaborative efforts and expertise of all constituents involved. An Early Learning Standards Task Force (Task Force) was also convened in 2017 to conduct an in-depth review of the Prekindergarten – Grade 3 ELA standards for clarity, alignment, and developmental appropriateness, and to provide guidance and support for the early grades.

To maximize success in early education experiences for children and to prepare them to transition to elementary school, districts must actively engage families as home-school partners. One way to welcome families is by performing home visits, an approved use of Title I and Title III funding. Home visits have been shown to lead to improvement in child and family outcomes by increasing parental involvement in children’s education, supporting parents’ capacity to develop their children’s early literacy and language skills, and helping children achieve school success into the elementary grades.²⁴ In addition, schools should partner with Head Start, day care centers, before and after school programs, and other community-based organizations to promote a shared vision and understanding of how what children need to know and be able to do at various stages of development. With this in mind, the Department’s Office of Early Learning convened a Think Tank with staff from the [New York State Head Start Collaboration](#) office and local Head Start providers, with the mutual goal of creating a tool to improve coordination, communication and collaboration between school districts, Head Start, and other community-based organizations in providing early childhood education programs. The Department working in collaboration with the ESSA Think Tank has developed a comprehensive [Collaboration Tip Sheet](#), which has been distributed to hundreds of early childhood education providers across New York State.

One of the first and most dramatic transitions for young children and their families is the transition of children into kindergarten. Whether children are coming from home, day care, a prekindergarten program, or another early childhood setting, building relationships and collaborations between families and schools is critical to facilitating a smooth transition of students to kindergarten. This is a time of great change for children, parents, and families, during which new relationships, new expectations, and new competencies are being developed. Often, this is the period in a child’s life when the length of a structured school day becomes longer, and there is a shift to a more academic focus. The Department believes that full-day kindergarten should be fully funded and available to all children. Research shows that the value of children attending a full-day kindergarten program allows teachers more time to promote formal and informal learning, reduces the number of transitions in a child’s day, and allows children to get used to a schedule similar to that which they will have in first grade.²⁵ For all children, even

²⁴ Association of State and Tribal Home Visiting Initiatives. *Home Visiting Provisions in Every Student Succeeds Act*. December 2015

²⁵ Walston, J. T., and West, J. (2004). *Full-day and half-day kindergarten in the United States: Findings from the Early Childhood Longitudinal Study*, U.S. Department of Education, National Center for Education Statistics

those who are away from home for the first time, full-day kindergarten sets the stage for first grade and beyond by helping students make the transition to more structured learning.²⁶

To help educators navigate these changes for children and families, the Department supports LEAs in having a comprehensive plan for supporting the incoming students and their families as they transition into a P-12 system. The Department's [Tool to Assess the Effectiveness of Transitions from Prekindergarten to Kindergarten](#) provides schools and their partners with a means to assess the effectiveness of their existing transitional supports and to plan for improvement. This tool provides strategies in four areas: Analysis of Early Childhood Programs Serving Students Prior to Kindergarten; Analysis of Shared Professional Development; Analysis of how Data are used to Improve Instruction; and Analysis of Parent Engagement and Family Support. As critical as the transition into kindergarten is, it is not the only transition for which LEAs should have a plan.

The Department also encourages LEAs to extend their plans to include the transition of students from kindergarten to first grade, first grade to second grade, and so forth, with particular attention paid to those periods in a child's education during which milestone shifts in environment and learning take place: when moving from elementary school to middle school and middle school to high school. Of particular importance is the transition from second to third grade, which should be a gradual, ongoing process, requiring support and collaboration between school staff, families, and communities. The process is multi-dimensional, including physical, emotional, social, and cognitive development. Children who make smooth transitions from second to third grade are better able to make the most of learning opportunities.²⁷

Coordinating Transitions from Elementary School to Middle School

The Department acknowledges and respects the many adjustments that elementary students and their families make transitioning to middle school and will serve as a repository for evidence-based transition tools to assist LEAs in determining the most effective strategies for children as they move through this developmentally dynamic time.

Incoming middle school students are faced with challenges of having to more heavily rely on themselves to independently navigate and function in a much larger and more complicated logistical and academic environment with many more teachers and classrooms. Initial challenges result from leaving the elementary school environment in which, traditionally, one classroom teacher manages the education, schedule, and logistics of one group of students who navigate the school year together as one unit. Not only can a middle schooler's individual class schedule change from day to day, but also sometimes an entire school's bell schedule can vary from day to day. Families may need assistance in acquiring and utilizing successful strategies to support children navigating this new academic landscape. Adjusting to this new introduction to the

²⁶ National Education Association and Collaborative Communications Group. *Full-Day Kindergarten: An Advocacy Guide*

²⁷ Public Schools of North Carolina State Board of Education | Department of Public Instruction (date) *Transition Planning for 21st Century Schools*

secondary school environment is an academic and social-emotional challenge for students as they are provided more individual freedom and responsibility.

An appropriate transition program from elementary to middle school includes opportunities for elementary students and families to gain insight into anticipated changes in how middle school students experience school. Starting at the end of elementary school, through the summer, and well into the first middle school year, LEAs are encouraged to hold meaningful in-person information sessions, meetings, and activities, such as middle school visits designed for students and for families. For example, encouraged student activities include providing opportunities for middle school students to mentor elementary school students; middle school orientation and student shadowing days; and student panels, support groups, or clubs designed specifically for transitioning to middle school. Elementary school to middle school transition teams for incoming sixth graders should begin their planning in fourth grade. Planned activities should be implemented during fifth grade; the summer between fifth and sixth grade; and the beginning of and well into, if not entirely, through sixth grade.

Coordinating Middle School to High School Transitions

The Department serves as a resource in supporting LEA transition teams to develop appropriate transition activities designed for middle school students to learn about themselves, each other, their academic futures, and various career fields that may align with students' interests. LEAs participating in the dropout prevention initiatives presented above are encouraged to align them with the LEA's transition programs. An appropriate transition program from middle school to high school includes opportunities for middle school students and families to gain insight into anticipated changes in how students experience high school. The Department allows continued opportunities for New York State middle school students to earn high school credit, as mentioned in Section (A)(2). For example, many New York State students spend their middle school years meeting high school graduation requirement in Languages Other Than English (LOTE)/World Languages.

It is advantageous for entering high school students and their families to already have a working understanding of high school-specific topics and policies, such as requirements for each pathway to graduation in New York State; high school credits; Advanced Placement courses; and policies in areas such as attendance and homework and participation in expanded learning activities, sports, and clubs.

Starting during middle school, over each summer, and well into entering high school, LEAs are encouraged to hold meaningful in-person activities, information sessions, meetings, and events such as high school visits designed for entering students and their families. A sampling of encouraged student activities includes providing opportunities for high school students to mentor middle school students; high school orientation and student shadowing days; and student panels, support groups, or clubs designed specifically for transitioning to high school.

Entering high school is a major milestone for students, but information of mixed quality gathered from siblings, friends, and the media can bring about unrealistic expectations. It is important that

incoming high school students and their families are well-informed and well-equipped with information to support students before, during, and after their transition to high school.

Coordinating Secondary Transitions

New York State is committed to preparing every student for success in college, career, and citizenship. Achieving this will require significant attention to critical transition points for students within our education system, particularly into and through our secondary system. By strengthening secondary transitions in partnership with critical partners, New York State will provide every child with equitable access to the highest quality educational opportunities, services, and supports designed to make these transitions seamless. New York State's plan illustrates an intentional effort to expand initiatives that serve students traditionally underrepresented in postsecondary education.

Successful secondary schools involve teachers, students, and families in continual planning to support students' academic and social success in middle school, high school, and beyond. Students who have a successful transition into ninth grade are more likely to achieve academically, emotionally, and socially – mitigating dropout risks and improving graduation rates. Research demonstrates that the most significant evidence-based dropout prevention strategies are family engagement, behavioral intervention, and literacy development. Additional strategies are academic support, afterschool programs, health and wellness, life skills development, mentoring, school/classroom environment, service-learning, and work-based learning.²⁸

The above dropout prevention strategies align well with components of successful transition strategies across the P-12 spectrum, but more acutely during secondary and postsecondary transitions. Strategies include providing students and their families accurate and useful information, supporting students' academic and social success, and continual monitoring and strengthening of transition programs based on success criteria such as attendance, achievement, and dropout rates.²⁹ To improve dropout and graduation rates, the Department encourages LEAs to incorporate transition strategies into a variety of related Department-coordinated initiatives such as:

- The [Liberty Partnerships Program \(LPP\)](#) is an initiative that offers comprehensive pre-collegiate/dropout prevention programs and services to middle school and high school youth in New York State's urban, suburban, and rural communities through collaboration between higher education institutions, schools, and community stakeholders. Dropout prevention strategies are designed around family engagement, youth development/leadership, and support services for families. Program activities include

²⁸ Chappell, S. L., PhD, O'Connor, P., PhD, Withington, C., MA, & Steglin, D. A., PhD. (April 2015). *A Meta-Analysis of Dropout Prevention Outcomes and Strategies* (pp. 1-41, Tech.). Clemson University, SC: National Dropout Prevention Center/Network. <http://dropoutprevention.org/meta-analysis-dropout-prevention-outcome-strategies/>

²⁹ Williamston, R. (2010) *Transition from Middle School to High School*. Education Partnerships, Inc.

skills assessment, tutoring, academic and personal counseling, family counseling and home visits, mentoring, and dropout prevention staff development.

- The [Science and Technology Entry Program \(STEP\)](#) initiative funds colleges and universities to work in collaboration with LEAs. Students in STEP are 7th to 12th graders who are either economically disadvantaged, or African American, Hispanic/Latino, Alaskan Native or American Indian. While the programs were originally designed to specifically prepare students to enter college and to improve their participation rate in mathematics, science, technology, health-related fields, and the licensed professions, the services and programming that students receive throughout the middle and high school years promote graduation from high school by navigating students through any obstacles that students may encounter. These programs have evolved into a gathering of students with similar interests and goals who are provided leadership and guidance by caring adults, leading to success in the pursuit of educational attainment.
- The [Smart Scholars Early College High School Program](#) is an initiative where Institutions of Higher Education (IHEs) partner with public school districts to create early college high schools that provide students with the opportunity and preparation to accelerate the completion of their high school studies while, concurrently, earning between 24 and 60 transferable college credits. This program is targeted at students who are traditionally underrepresented in postsecondary education. Many of these students would be at risk of not graduating from high school, let alone not pursuing postsecondary studies, were it not for the academic and social supports that students receive from this program, and the motivation that earning college credits provides. Students receive additional academic and social support from the school/college partnerships to ensure that students are at grade level and are ready to participate in rigorous high school and collegiate courses. This “dual or concurrent enrollment” initiative serves to increase high school graduation and college completion rates, while reducing student tuition costs because of the compressed time needed to complete a college degree.
- [NYS Pathways in Technology \(P-TECH\)](#) is a six-year program in collaboration with an IHE and industry partner designed to have students graduate with a high school and associate’s degrees and an offer of employment. This initiative is designed to target those students who have often experienced feelings of marginalization due to factors such as race/ethnicity/gender; socio-economic status; lack of familial academic achievement; attendance issues; and disability status. Few students entering high school have a concrete understanding of what it takes to graduate high school, successfully complete college, and find a career. For those students, whose lives and academic goals have been negatively affected by feelings of marginalization and isolation, that concept is even more abstract. Getting through the day becomes a singular focus, with little energy left to plan for the future. These students are at risk of dropping out of high school, as they cannot see that high school graduation serves as the first rung on the ladder to their future success. The emphasis of the NYS P-TECH Program is on small learning cohorts, starting in 9th grade, focused on individualized supports, project-based learning, and professional skills that will assist students in completing the requirements for their high

school diploma and the two-year college degree needed to obtain employment in targeted, high-demand, middle skills jobs. Additionally, integrating workplace learning with industry partners positions these students to be first in line for job opportunities, as these students will have already made industry connections and exhibited competency by the time that they complete their two-year degree. This integrated approach, beginning Day 1 of 9th grade, is the key to helping struggling students remain in school and invest in their futures.

- [The MBK Challenge Grant Program](#) funds LEAs to implement at least two of the six My Brother's Keeper milestones. Each of the MBK Challenge grant milestones contribute to keeping students in school and moving them to a high school diploma, entry to postsecondary education, and career:
 - Entering school ready to learn, as evidenced by universal Pre-K access
 - Reading at grade level by third grade, as evidenced by a significant narrowing of the achievement gap for disadvantaged youth, particularly boys of color
 - Graduating from high school ready for college and career, as evidenced by a closing of graduation rate achievement gaps for disadvantaged youth, particularly young men of color
 - Increasing access to postsecondary education or training, as evidenced by an increase of disadvantaged youth, particularly young men of color, completing Advanced Placement, International Baccalaureate, or college credit courses while in high school
 - Entering the workforce successfully with middle skills jobs, as evidenced by disadvantaged youth, particularly young men of color, having access to internship experiences while in high school
 - Reducing code of conduct violations and providing a second chance, as evidenced by disadvantaged youth, particularly young men of color, having a reduction in in-school and out-of-school suspensions, and behavior-related referrals.
- The [Family and Community Engagement Program](#) is an initiative focused on building respectful and trusting relationships between home, community, and school. When that trust is established, students not only fare better in school, but also they complete their education and go on to college and career success. Family and community engagement in education has become an essential strategy in building a pathway to college and career readiness. Research repeatedly correlates family engagement with student achievement.^{30,31} To support students in today's competitive global society, schools must make family engagement not only a priority, but an integral part of the education process.

These Department-coordinated initiatives help to improve graduation rates and prevent students from dropping out of school by creating a positive educational experience. The Department will

³⁰ Southwest Educational Development Laboratory. *A New Wave of Evidence; The Impact of School, Family, and Community Connections on Student Achievement. Annual Synthesis 2002*

³¹ Castrechini, S., & London, R. A. (2012). *Positive student outcomes in community schools*. Washington, DC: Center for American Progress

ensure that schools identified for CSI and/or TSI will have access to these resources to the degree that a school's Comprehensive Needs Assessment or DTSDE findings suggest is appropriate.

Coordinating High School to Postsecondary Transitions

When students transition out of elementary school, their destination is middle school. When they transition from middle school, their collective destination is high school. Transitioning out of high school is quite complex because there is a wide variety of individual destinations, including, but not limited to, entering the workforce, military, technical schools, and college. For many students, choosing a path that fits them is the first real high-stakes life decision that they make for themselves. The sooner that they choose, the more time that they have to prepare. Nevertheless, as is well known, the process of making such life decisions can be quite complicated and time-consuming.

In addition to ensuring that students progress through academic curricula, including college preparatory Advanced Placement classes, and actively explore and/or pursue specific career-related coursework and experiences in the arts, languages, and Career and Technical Education, schools should be sure to include meaningful opportunities very early on during the high school experience for students to learn about themselves and their interests, strengths, needs, resources, and aspirations. To support that preparation process, the Department will utilize the College, Career, and Civic Readiness Index as a measure of school quality and student success. This approach is intended to incentivize schools to ensure that students graduate with the most rigorous possible high school credential that will enable more students to succeed, rather than a measure that merely values completion.

Also, to ensure that students are well informed and develop reasonable expectations for postsecondary destinations, the Department encourages LEAs to provide students with many hands-on opportunities to explore options. Early exposure to the realities of postsecondary destinations, such as the workforce, military, and college (such as commuting versus living on campus), can equip students with the tools that the students need to make informed postsecondary plans.

Once the decision-making process is complete and a high school student has chosen a postsecondary path, even harder preparatory work begins. One of the most difficult parts of transitioning out of high school is procedural. Each postsecondary path has its own set of what can be quite comprehensive and time-consuming preparatory requirements. To allow students sufficient time to follow through on postsecondary plans, LEAs are encouraged to be early and proactive in their outreach to high school students and their families. It is important to have open, varied, and, if necessary, language-diverse lines of communication to convey important deadlines, and family support services to help students and their families prepare and submit documentation by their corresponding deadlines.

Even though it is important for students not to rush through such an important process, it is also important for LEAs to convey to high school students and their families, by example and explicitly through instruction, the importance of organization, strategic planning, and time management. It is never too early in the high school experience for students to develop these

skills. Due to the scope of the demands on students who are transitioning out of high school, the transition team for each graduating class should start planning as early as when the class is in ninth grade for activities to be implemented as early as tenth grade. Ultimately, the goal of a successful high school-to-postsecondary transition program is for students to develop the knowledge and skills to meaningfully transition to postsecondary opportunities and to exercise civic responsibility.

A. Title I, Part C: Education of Migratory Children

1. Supporting Needs of Migratory Children (*ESEA section 1304(b)(1)*): Describe how, in planning, implementing, and evaluating programs and projects assisted under Title I, Part C, the State and its local operating agencies will ensure that the unique educational needs of migratory children, including preschool migratory children and migratory children who have dropped out of school, are identified and addressed through:

- i. The full range of services that are available for migratory children from appropriate local, State, and Federal educational programs;**
- ii. Joint planning among local, State, and Federal educational programs serving migratory children, including language instruction educational programs under Title III, Part A;**
- iii. The integration of services available under Title I, Part C with services provided by those other programs; and**
- iv. Measurable program objectives and outcomes.**

New York State is committed to providing migratory children and youth with the resources and supports necessary to enable them to progress steadily toward college and career readiness. The full range of services that are available for migratory children and youth begins with the identification and recruitment of eligible migrant children, ages 3 through 21, including preschool migratory children and youth and migratory children and youth who have dropped out of school. “Identification” is the process of determining the location and presence of migrant children. “Recruitment” is defined as establishing contact with migrant families, explaining the New York State Migrant Education Program (NYS-MEP), securing the necessary information to make a determination that the child involved is eligible for the program, and certifying the child’s eligibility on the national Certificate of Eligibility (COE).

Upon migratory students’ identification and recruitment, New York State will assess the unique needs of migratory children and youth to determine what educational programs and support services these students need to participate effectively in school. These needs assessments occur at the statewide level, as well as at the individual level, as part of a larger continuum of processes and practices to better serve the needs of migrant children and their families.

As per requirements under ESSA Sec. 1306. [*20 U.S.C. 6396*], the Comprehensive Needs Assessment (CNA) seeks to identify the concerns and needs of migrant students and to gather input on developing evidence-based solutions from a broad-based group of stakeholders at the statewide level through the Needs Assessment Committee (NAC). The NAC represents the geographic diversity of New York State and includes, but is not limited to, parents; guardians; school and district administrators; guidance counselors; Title III/English as a New Language

(ENL) program directors and staff; teachers; program and administrative staff from community health, legal, and support service agencies; and farmers and fishers from agricultural and fishing organizations. The CNA process is also intended to be ongoing, with annual data updates and subsequent trend analysis, and serves as the foundation for the continual improvement cycle for future development and revision of the State Migrant Service Delivery Plan (SDP) in response to emerging or immediate needs.

At the same time, the regional Migrant Education Tutorial and Support Services (METS) Program Centers, in consultation with schools and parents, assess the needs of all individual migrant-eligible students by using the Student Intake Form and Academic Services Intensity Rubric (ASIR) each year, as per requirements of the approved Service Delivery Plan (SDP) and Measurable Performance Outcomes (MPOs).

In this continuum of needs assessments, the CNA yields global, wide-ranging information that informs the development of a comprehensive and inclusive menu of programs and services, while the individual assessment that is conducted once during the academic year and once during the summer through the Student Intake Form and ASIR addresses students' individual needs for specific educational programs and support services.

Upon the completion of the CNA, as outlined above, the improvement cycle continues with establishing the State Migrant Service Delivery Plan Planning Committee to translate the CNA findings into Measurable Program Outcomes and State Performance Targets (SPTs).

The SDP Committee reviews the legislative mandate, the non-regulatory guidance, and the CNA statewide trend analysis to identify subgroups of children with unique needs, including preschool migratory children and youth and migratory children and youth who have dropped out of school. The SDP Committee then designs a collaborative planning structure to solicit feedback from all stakeholders including, but not limited to, program staff at the regional METS Program Centers and Statewide Support Services Program Centers, as well as parents with the Local and State Parent Advisory Councils (PACs), in order to leverage local, State, and federal educational programs serving migratory children and youth, including language instruction educational programs under Title III, Part A, and to integrate services available under Title I, Part C with services provided by those other programs.

At the same time, the regional METS Program Centers and Statewide Support Services Program Centers provide a full range of services based on individual student needs. These services ensure that the unique needs of migratory children and youth and their families are addressed appropriately. As outlined in the SDP, and in consultation with schools and parents, these services are provided to each focus population during the summer and regular school year. The regional METS Program Centers provide direct instructional and support services and also participate in joint planning with school- and district-based services through Title I, Part A; Title III, Part A; early childhood programs; and other local, State, and federal programs to ensure the integration of services available under Title I, Part C with services provided by these and other programs. Services to the targeted subgroups include:

1. Preschool Children:
 - Instructional services in response to academic needs
 - Referrals to community or district preschool
 - Referrals to district kindergarten
 - Support services and advocacy in response to needs
2. Grades K-8 Students:

- Instructional services in response to academic needs
 - Support services and advocacy in response to needs
3. Grades 9-12 Students:
- Graduation Plan (GP)
 - Instructional services in response to academic needs
 - Support services and advocacy in response to needs
4. Out-of-School Youth and Students Who Have Dropped Out of School:
- Personal Learning Plan (PLP)
 - Instructional Services in English as a New Language (ENL)
 - Support services and advocacy in response to needs

The NYS-MEP Measurable Program Outcomes (MPOs) are:

Goal Area: English Language Arts	
<i>State Performance Target</i>	<i>Decrease the gap between Grades 3-8 migrant students and the economically disadvantaged subgroup on the NYS Assessment in English Language Arts by 15% each year, starting in 2017.</i>
<i>Overall Strategy</i>	<i>Provide academic instruction to support the development of foundational skills and content knowledge based on State and local standards.</i>
<i>Strategy 1.1</i>	<i>Each year, beginning in fall 2016, all migrant students in Grades K-12 will have a complete, updated NYS-MEP Migrant Student Needs Assessment within 45 school days of enrollment in the METS program.</i>
<i>Strategy 1.2</i>	<i>Each migrant student in Grades K-8 on the Academic Services Intensity Rubric Level 3 will complete an initial NYS Migrant ELA Assessment within 45 school days of enrollment in the METS program each school year. Level 3 students will complete a post assessment, using the same instrument, following a schedule to be determined annually by the NYS-MEP.</i>
<i>Strategy 1.3</i>	<i>Beginning in fall 2016, all K-8 migrant students at Level 3 on the Academic Services Intensity Rubric targeted for ELA services through the NYS-MEP Migrant Student Needs Assessment will receive 30 or more hours of supplemental instruction in ELA during the regular school year, and 5 or more additional hours of ELA instruction if present during summer.</i>
<i>Implementation Indicator</i>	<i>1.1. Each year, beginning in fall 2016, 90% of migrant students in Grades K-12 will have a complete, updated NYS-MEP Migrant Student Needs assessment within 45 school days of enrollment in the METS</i>

	<i>program.</i>
<i>Implementation Indicator</i>	<i>1.2 Each year, 90% of K-8 migrant students targeted for Level 3 ELA services will receive 30 or more hours of supplemental instruction in ELA during the regular school year and additional 5 or more hours of instruction if present during summer.</i>
Measurable Program Outcome	<i>1.3 Beginning in fall 2016, 80% of Grades 3-8 migrant students receiving Level 3 supplemental academic instruction in ELA during the regular school year will gain 10 or more NCEs from the Fall to Spring administration of the NYS Migrant ELA Assessment.</i>

Goal Area: Mathematics	
<i>State Performance Target</i>	<i>Decrease the gap between Grades 3-8 migrant students and the economically disadvantaged subgroup on the NYS Assessment in Mathematics by 15% each year, starting in 2017.</i>
<i>Overall Strategy</i>	<i>Provide academic instruction to support the development of foundational skills and content knowledge based on State and local standards.</i>
<i>Strategy 2.1</i>	<i>Each migrant student in Grades K-8 on the Academic Services Intensity Rubric Level 3 will complete an initial NYS Migrant Mathematics Assessment within 45 school days of enrollment in the METS program each school year. Level 3 students will complete a post assessment using the same instrument following a schedule to be determined annually by the NYS-MEP.</i>
<i>Strategy 2.2</i>	<i>Beginning in fall 2016, all K-8 migrant students at Level 3 on the Academic Services Intensity Rubric targeted for Mathematics services through the NYS-MEP Migrant Student Needs Assessment will receive 30 or more hours of supplemental instruction in Mathematics during the regular school year, and an additional 5 or more hours of Mathematics instruction if present during summer.</i>
<i>Implementation Indicator</i>	<i>2.1 Each year, 90% of K-8 migrant students targeted for Level 3 Mathematics services will receive 30 or more hours of supplemental instruction in Mathematics during the regular school year, and an additional 5 or more hours of instruction if present during summer.</i>

Measurable Program Outcome	2.2 Beginning in fall 2016, 80% of Grades 3-8 migrant students receiving Level 3 supplemental academic instruction in Mathematics during the regular school year will gain 10 or more NCEs from the Fall to Spring administration of the NYS Migrant Mathematics Assessment.
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Goal Area: Graduation	
<i>State Performance Target</i>	<i>Decrease the gap in the statewide 4-year cohort graduation rate between migrant students and all NYS students by 10% annually, beginning in 2017.</i>
<i>Overall Strategy</i>	<i>Provide academic instruction to support the development of foundational skills and content knowledge based on State and local standards.</i>
<i>Strategy 3.1</i>	<i>Each year, beginning in fall 2016, all Grade 9-12 migrant students at Level 3 on the Academic Services Intensity Rubric will receive 30 or more hours of supplemental academic instruction during the regular school year, and an additional 5 or more hours of instruction if present during summer.</i>
<i>Strategy 3.2</i>	<i>Each year, beginning in fall 2016, all migrant students in Grades 9-12 at Level 3 on the Academic Services Intensity Rubric will complete a MEP Graduation Plan Part One, within 45 school days of enrollment in the METS program.</i>
<i>Strategy 3.3</i>	<i>Each year, beginning in fall 2016, all migrant students in Grades 9-12 will participate in 4 or more hours of advocacy and individual support.</i>
<i>Implementation Indicator</i>	<i>3.1 Each year, beginning in fall 2016, 90% of Grades 9-12 migrant students at Level 3 on the Academic Services Intensity Rubric will receive 30 or more hours of supplemental academic instruction during the regular school year, and an additional 5 or more hours of instruction if present during summer.</i>
<i>Implementation Indicator</i>	<i>3.2 Each year, beginning in fall 2016, 90% of migrant students in Grades 9-12 at Level 3 on the Academic Services Intensity Rubric will complete or update a NYS-MEP Graduation Plan Part One within 45 school days of enrollment.</i>
<i>Implementation Indicator</i>	<i>3.3 Beginning in 2016, 70% of migrant students in Grades 9-12 will participate in 4 or more hours of advocacy and individual support.</i>
Measurable Program Outcome	3.4 70% of migrant students who started Grade 9 while enrolled in the

	<i>NYS-MEP will pass Algebra I³² by the start of Grade 11.</i>
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Goal Area: Out-of-School Youth (OSY)	
<i>State Performance Target (Statement of Intention)</i>	<i>Provide and coordinate education and support services that meet the prioritized needs of out-of-school youth.</i>
<i>Strategy</i>	<i>Provide instruction to support the development of language proficiency, educational goals or life skills.</i>
<i>Strategy 4.1</i>	<i>Beginning in fall 2016, all migrant OSY will have a complete, updated NYS Migrant Student Needs Assessment within 45 working days of enrollment in the METS program.</i>
<i>Strategy 4.2</i>	<i>Each OSY determined to be a candidate for educational services will have a NYS-MEP Personal Learning Plan (PLP) within 45 working days of enrollment in the METS program.</i>
<i>Strategy 4.3</i>	<i>Beginning in fall 2016, OSY determined to be candidates for instruction in English through the NYS-MEP Migrant Student Needs Assessment will participate in 12 or more hours of English instruction within each program year.</i>
<i>Implementation Indicator</i>	<i>4.1 Beginning in fall 2016, 65% of migrant OSY determined to be candidates for educational services, increasing to 75% by 2018, will complete a NYS-MEP Personal Learning Plan (PLP) within 45 working days of their COE approval date.</i>
<i>Implementation Indicator</i>	<i>4.2 Each year, beginning in fall 2016, 70% of OSY determined to be candidates for instruction in English on the Migrant Student Needs Assessment will participate in 12 or more hours of English language instruction within each program year.</i>
<i>Measurable Program Outcome</i>	<i>4.3 80% of migrant OSY who participate in 12 or more hours of English instruction will demonstrate pre-post gains of 10% on the NYS Migrant Assessment of English Learning.</i>

³² The focus on Algebra I is based on the Government Performance and Results Act (GPRA) of 1993. It was enacted by Congress to provide for the establishment of strategic planning and performance measurement in the Federal Government, in this case of the Migrant Education Program. It states: "4. The percentage of MEP students who entered 11th grade that had received full credit for Algebra I." The thinking here is that Algebra I is considered a gateway course and those students who complete it (or a higher Mathematics course) are considered more likely to graduate.

Goal Area: Preschool Migratory Children	
<i>State Performance Target (Statement of Intention)</i>	<i>Provide and/or coordinate education and support services that meet the prioritized needs of preschool children, ages 3-5.</i>
<i>Strategy</i>	<i>Provide referrals and/or educational services to migratory children, ages 3-5, to prepare them to enter Kindergarten ready to learn.</i>
<i>Strategy 5.1</i>	<i>Beginning in fall 2016, all migratory preschool children, ages 3-5, will have a complete, updated NY State Migrant Student Needs Assessment (SNA) to drive programs and services.</i>
<i>Strategy 5.2</i>	<i>Each Level 2 migratory preschool child, ages 3-5, determined to be a candidate for educational services will have an initial NY State Early Childhood Assessment (ECA) score.</i>
<i>Strategy 5.3</i>	<i>Beginning in fall 2016, Level 2 migratory preschool children, ages 3-5, determined to be candidates for educational services will participate in 12 or more hours of educational services within each program year.</i>
<i>Implementation Indicator</i>	<i>Each year, beginning in fall 2016, 70% of Level 2 migratory preschool children, ages 3-5, determined to be candidates for educational services will participate in 12 or more hours of educational services within each program year.</i>
<i>Measurable Program Outcome</i>	<i>70% of Level 2 migratory preschool children, ages 3-5, who participate in 12 or more hours of educational services will demonstrate pre-post gains of 10% on the NYS-MEP Early Childhood Assessment (ECA).</i>

2. Promote Coordination of Services (ESEA section 1304(b)(3)): Describe how the State will use Title I, Part C funds received under this part to promote interstate and intrastate coordination of services for migratory children, including how the State will provide for educational continuity through the timely transfer of pertinent school records, including information on health, when children move from one school to another, whether such move occurs during the regular school year.

The New York State Migrant Education Program (NYS-MEP) is responsible for promoting inter- and intra-state coordination of services for migrant children, including the provision for educational continuity through the timely transfer of pertinent school records and relevant health

information when students move from one school to another, regardless of whether such a move occurs during the regular school year. To comply with this requirement, New York State uses Title I, Part C funds to employ and deploy two student information systems – the MIS2000 system and the national Migrant Student Exchange System (MSIX) – to input, analyze, report, and share accurate and timely migrant student information, both within New York State and across the country.

Statewide, recruiters and migrant educators work collaboratively with other states, local educational agencies, and other migratory student service providers to identify and recruit migrant students who make inter- and intra-state moves. To ensure interstate collaboration, the NYS-MEP is committed to using the MSIX “advanced notification system” with regional partner states, including Pennsylvania and Vermont, as well as with any other states to which students relocate during the year. The MSIX advanced notification system allows users to send or receive notification via email through MSIX regarding the move of a student. For example, when a student moves from New York State to another state, the NYS-MEP sends notification through the MSIX advanced notification system, indicating that the student has moved to the receiving state. If possible, information on the destination town or county will be provided, as well. Similarly, when a student is identified in New York State who recently moved here from another state, the NYS-MEP sends a notification, indicating that the student has moved to New York State.

To promote intrastate coordination of services for eligible migrant children, the NYS-MEP employs the MIS2000 student data management system to transfer students’ records within New York State through the different regional Migrant Education Tutorial and Support Services (METS) Program Centers. When a migrant-eligible student and family moves within New York State, the regional recruiter and the data specialist involved will contact the receiving METS and regional recruiter, accordingly, to provide the intra-state referral, along with any other pertinent data. Concurrently, the Statewide Identification and Recruitment/MIS2000/MSIX (ID&R) Program Center forwards every departure form showing a move within New York State to the regional recruiter responsible for the relevant catchment area. This system of information redundancy ensures that, when a student moves from one area of New York State to a different location within New York State, all relevant personnel can retrieve educational information, including services, and needs assessment information, from the New York State server through the MIS2000 student information management system to help ensure educational continuity for the student.

In collaboration with the regional METS Program Centers, the Statewide ID&R Program Center also introduces the features and functions of the MSIX systems at statewide, regional, and local meetings and conferences to school and district personnel and, if appropriate, grants access and provides training, to better serve the needs of migrant children and their families. At the same time, such information is shared and corroborated with the Office of Information and Report Services (IRS) at the Department, in order to verify relevant student data from New York State’s Student Information Repository System (SIRS). Such data is collected and reported in accordance with all New York State and federal regulations to safeguard the security and privacy of student information at all levels of program implementation.

The NYS-MEP seeks to maintain ongoing interstate and intrastate coordination of services for migratory children and youth, both within New York State and with other states, local educational agencies, and other migratory student service providers in order to improve the effectiveness of programs. In addition to the timely exchange of school records, as well as information on health screenings and health problems that might interrupt the student's education, the NYS MEP uses Title I, Part C funds to support credit accrual and recovery programs internally within New York State and externally as students move between states. This includes having Migrant Educators raising awareness of and providing information to all stakeholders regarding such subjects as:

- Self-contained, semi-independent programs of study available through the National Portable Assisted Study Sequence (PASS) Program Center
- Graduation requirements and the utilization of different pathways toward graduation
- Making up incomplete or failed courses
- Designing customized programs for students who either failed courses or did not complete courses, in order to facilitate on-time graduation
- Independent study and online or blended courses
- Exemptions from certain course(s) and/or exam requirements
- The awarding of transfer credit for work done outside of the registered New York State high school awarding the credit.

The NYS-MEP also collaborates with other states by utilizing Title I, Part C funds to participate in the national Consortium Incentive Grant (CIG) Programs overseen by the Office of Migrant Education (OME) at USED. These grant programs include the Graduation and Outcomes for Success for Out-of-School Youth (GOSOSY) and the Identification and Recruitment Rapid Response Consortium (IRRC) that serve to build capacity in states with growing secondary-aged migrant out-of-school youth populations, as well as to improve the proper and timely identification of all migrant children. These initiatives, among others, help to strengthen inter- and intra-state coordination of services for migratory children and youth and their families.

3. Use of Funds (*ESEA section 1304(b)(4)*): Describe the State's priorities for the use of Title I, Part C funds, and how such priorities relate to the State's assessment of needs for services in the State.

New York State's priorities for the use of Title I, Part C funds are driven by the approved State Service Delivery Plan (SDP) which, by turn, was developed in response to the mandated Comprehensive Needs Assessment (CNA). As per requirements under ESSA Sec. 1306. [*20 U.S.C. 6396*], and as part of the larger comprehensive State plan, the SDP addresses the special educational needs of migratory children and youth and ensures that the New York State Migrant Education Program (NYS-MEP):

- Is integrated with other programs under the Elementary and Secondary Education Act (ESEA), as amended by ESSA

- Provides migratory children and youth opportunities to meet the same challenging State academic content and academic achievement standards that all children are expected to meet
- Provides migratory children and youth opportunities to develop life skills, including self-advocacy, identity development, self-efficacy, job and career planning, and professional development
- Specifies measurable program goals and outcomes
- Is the product of joint planning for the use local, State, and federal resources, including programs under Title I Part A; language instruction educational programs under Title III, Part A; and early childhood programs
- Encompasses the full range of services that are available for migrant children from appropriate local, State, and federal educational programs
- Provides for the integration of available NYS-MEP services with other federal-, state-, or locally operated programs

To accomplish these goals, the CNA process incorporated a systematic set of procedures that was used to determine the unique educational needs of migratory children and youth, including preschool migratory children and youth and migratory children and youth who have dropped out of school. This included the development of a NYS-MEP Theory of Action (ToA) that focuses on (1) Subject Content and Instruction, (2) Advocacy to Self-Advocacy, and (3) Identity Development – the trinity of foci that forms the base of the NYS-MEP and its implementation – as evidenced by identified needs and the research literature. The CNA process set priorities and determined criteria for solutions through the use of Title I, Part C funds in terms of money, people, facilities, and other resources. This initiative led to actions taken that seek to improve programs, services, and organizational structure, and operations of the NYS-MEP. From the CNA process, the following Concern Statements were identified and the subsequent Solution Statements (i.e., the Plan) were developed in response:

Goal Area: Meeting NYS Learning Standards - Pre-K Through Grade 5

#	Solution Statement	Required or Suggested
<u>We are concerned</u> that migrant students lack the foundational skills and learning strategies necessary to meet New York State Learning Standards.		
1A (3)	Support local curricula and implement instructional strategies, in order to ensure that our students have foundational skills.	Required
1A (4)	Collaborate with school personnel as to how to best meet the instructional needs of children served and provide academic instruction in skills and strategies necessary to meet the New York State Learning Standards.	Required
<u>We are concerned</u> that not all migrant preschoolers (P3-P5) have access to community preschool programs, including access to community special needs programs.		
2A (2)	Refer migrant children and families to local early childhood programs and services, where available. Provide lists to staff and families of local programs and services.	Suggested

2A (3)	Provide annual training to migrant educators and families on opportunities and resources for early childhood programs and services.	Required
<u>We are concerned</u> that migrant students are unable to navigate content-area vocabulary, literacy and text, and identify and utilize Tier 2 vocabulary, as defined by the New York State Learning Standards.		
3A (1)	Provide training to migrant educators on strategies to promote and support language acquisition, literacy development, and content learning.	Required
3A (2)	Provide experiential “hands-on” learning opportunities.	Required

Goal Area: Meeting NYS Learning Standards - Grade 6 Through Graduation

#	Solution Statement	Required or Suggested
<u>We are concerned</u> that migrant adolescents lack the specific skills and strategies necessary for success on the NYS Regents exams or comparable NYS Learning Standards assessments.		
1B (1)	Staff will provide opportunities for students to engage in high-order, standards-aligned thinking and application activities.	Required
1B (2)	Staff will participate in professional development to learn the skills and strategies necessary to be successful on assessments, which they will share/teach and/or reinforce with their students (such as: test-taking strategies, academic vocabulary, writing process, building background/foundational knowledge).	Required
1B (3)	Promote migrant students’ participation in the school community (such as: before/after school activities, clubs, sports, music, drama activities) and provide advocacy and assistance to help overcome barriers. <i>Includes 3B (4).</i>	Required
<u>We are concerned</u> that migrant adolescents lack exposure to non-traditional credit accrual, as well as to college, career and vocational opportunities.		
2B (3)	The Migrant Education Program (MEP) will create a flowchart of approved pathways toward high school graduation, and staff will be trained to support and advocate for their students using this information.	Required
2B (new solution)	Facilitate students’ participation in activities related to post-secondary options (such as: college visits, vocational training site visits, information on apprenticeships, military options).	Required
<u>We are concerned</u> that migrant students face cultural, linguistic, and immigration status barriers and, therefore, experience challenging social and emotional issues.		

3B (1)	Staff will work with each student to identify a caring adult in the student's life to support his or her social and emotional development.	Required
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Goal Area: Basic Skills, Language, Acculturation and Life Skills

#	Solution Statement	Required or Suggested
<u>We are concerned</u> that OSY's lack of English Proficiency limits their full participation in the community, especially in the areas of expanded work opportunities.		
1-C (1)	Provide access to ESL instruction (such as: in-home instruction, transportation to classes, virtual learning, field trips [optional, based on safety], independent study etc.).	Required
1-C (2)	Employ OSY advocates and/or educators (preferably bilingual) who inspire and motivate youth, remove barriers, and form relationships that teach self-advocacy skills.	Required
<u>We are concerned</u> that OSY are at high risk of being exploited.		
2-C (2)	Provide instruction via mini-lessons or ongoing instruction that includes issues of workers' rights, health, human rights, sexual exploitation, housing regulations, immigration laws, history of agricultural labor, self-advocacy, leadership skills, identity development, resilience, etc.	Required
2-C (3)	Develop collaborations and relationships with organizations that specialize in workers' rights and/or provide essential services and resources to farmworkers. Create and implement protocols for documenting concerns and making referrals.	Required
<u>We are concerned</u> that OSY students face barriers that isolate them, limit their community participation, and prevent them from accessing needed services and resources.		
3-C (1)	Provide comprehensive professional development to METS staff such as: • Networking with Community Resources (Health, Legal, Emergency Assistance, etc.) and how to access needed services • Migrant lifestyle, immigration policy, workers' rights, history of agricultural labor, discrimination, human trafficking and sexual exploitation, human rights, cultural competencies, etc. • Case management skills, prioritizing needs, confidentiality, professionalism, maintaining healthy boundaries, etc. • Training on current topics/issues affecting farmworkers (bed bugs, Dream Act, DACA, Comprehensive Immigration Reform, Affordable Care Act, Farmworker Fair Labor Practices Act, etc.)	Required
3-C (2)	Assign a bilingual advocate to each OSY to provide ongoing support and outreach.	Suggested

3-C (4)	Provide opportunities for OSY to share their experiences and engage in discussions of current events, issues affecting the migrant community, and other areas of interest.	Suggested
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Migrant Education Program Evaluation

NYSED's commitment to and strategy for comprehensive evaluation of the New York State Migrant Education Program (NYS-MEP) are outlined in the State Service Delivery Plan (SDP). NYSED will evaluate the SDP in a manner congruent with the law, regulation and guidance that pertain to the Title I, Part C – Education of Migratory Children program using program monitoring, MEP-specific assessments, structured and supported statewide migrant data collection, and third-party evaluation of joint planning and integration with statutorily specified programs, program implementation, state performance targets, and Measurable Performance Outcomes (MPOs). The MEP program evaluation is designed to drive program improvement and determine the extent to which:

- The NYS-MEP jointly plans and coordinates with Title III, Part A, McKinney-Vento Homeless Assistance Act, and other federal, state and local programs as specified by the Every Student Succeeds Act (ESSA) of 2015;
- The NYS-MEP is meeting and/or making progress towards the State Performance Targets for migrant students established to meet the goals of the Title I, Part C migrant education program;
- The specific implementation efforts outlined in the SDP are implemented; and
- SDP implementation efforts are associated with progress on the MPOs.

Evaluation Plan:

The NYS-MEP and the evaluation process are designed to support the new data and implementation measures as specified in the SDP. These include the NYS-MEP Migrant Student Needs Assessment (SNA); NYS-MEP Academic Services Intensity Rubric (ASIR); NYS-MEP Student Graduation Plan (GP); NYS-MEP Personal Learning Plan (PLP); NYS-MEP English Language Arts (ELA) and Mathematics Assessments; and the NYS-MEP Basic Oral Language Screening Tool (BOLST). Among these, the NYS-MEP Academic Services Intensity Rubric (ASIR) and the NYS-MEP Student Needs Assessment (SNA) are most central to understanding changes in the approach and strategies to serving migratory children and youth. The ASIR and SNA were adopted to increase uniform statewide determination of the level and type of academic services each migrant student will receive, including assurances for serving Priority for Services (PFS) students. The service levels and types established in the ASIR inform the implementation indicators and MPOs outlined in the SDP and will be reviewed annually. Each new measure, together with other data relevant to the evaluation, will be included in an annual, comprehensive data collection plan that identifies the specific data to be collected, by whom, for whom, by when, and where it is to be recorded. Evaluation of the NYS-MEP will be conducted annually beginning in the 2017-2018 program year. The evaluation will examine and report on progress toward each state performance targets, implementation indicators, and MPOs, both statewide and by the Migrant Education Tutorial and Support Services (METS) program centers. Statewide migrant student performance on state performance targets will be disaggregated by PFS, non-

PFS, and by the level of services targeted and received. Data will be drawn from the Migrant Student Information Exchange (MSIX), the statewide migrant student data and information system (MIS2000), the NYSED Student Information Repository System (SIRS), MEP assessments and implementation documents (outlined above), and METS and parent surveys as needed. To aid in improving program performance, the evaluation will provide statewide and regional estimates of the relationship between program implementation and student outcomes, including measures of statistical confidence in those estimates.

Data regarding the extent to which regional programs are jointly planning and coordinating with other programs and implementing the SDP as specified will be gathered through the NYS-MEP monitoring process and supplemented where needed by the external evaluators. Using a rubric and monitoring guide that are aligned to the specific components of the SDP; the regional METS Annual Work Plans (WP) and Annual Performance Reviews (APR); and Title I, Part C regulations and guidance; the NYS-MEP conducts monitoring annually. Additionally, regional and statewide interim results will be provided to and reviewed with each regional METS program center in February and August of each year, beginning in 2017, for the purpose of promoting ongoing internal data review and related decision-making.

Evaluation results will be used to drive program improvement, inform regional and state-level staff members of progress and performance, inform migrant parents of the status of NYS-MEP efforts, communicate with NYSED staff about the NYS-MEP, and comply with the reporting requirements of the Office of Migrant Education (OME) at USDE. The ongoing data collection plan, semi-annual progress reporting, and external evaluation will each be used to inform implementation changes and program improvements. Program monitoring will be used to assure compliance with federal regulations and the approved SDP plan, as well as to provide input into program improvement. The annual external evaluation reports will be used to communicate with parents, migrant program staff, NYSED, and OME about the status of the NYS-MEP state performance targets, MPOs, and program implementation.

NYS-MEP evaluation activities will occur as follows:

Evaluation Component	Timeframe	Conducted By
Revised Data Collection Framework	Fall 2016; revised annually	NYS-MEP staff and contractors with external evaluator input
SDP Implementation	Fall 2016 and ongoing	METS and NYS-MEP contractors
Interim results	February 2018, and each subsequent August and February	NYS-MEP with external evaluator support
Program Monitoring	Spring 2018 and annually thereafter	NYS-MEP
External Evaluation	Initial results: Fall 2018, Full Report Fall 2019	External evaluator

C. Title I, Part D: Prevention and Intervention Programs for Children and Youth who are Neglected, Delinquent, or At-Risk

1. Transitions Between Correctional Facilities and Local Programs (*ESEA section 1414(a)(1)(B)*): Provide a plan for assisting in the transition of children and youth between correctional facilities and locally operated programs.

Youth in the juvenile justice system face many barriers to completing education while these youth are held in facilities (and once the youth are released). For example, according to data from the National Technical Assistance Center for the Education of Neglected or Delinquent Children and Youth, 14% of students served under Subpart 1 in New York State had IEPs and 41% of students served under Subpart 2 had IEPs.³³ However, significant delays in the transfer of youth's educational records between schools and facilities, including Individualized Educational Plans, often result in delays in the provision of appropriate academic and/or non-academic services. In addition, many facilities do not consistently utilize curricula aligned with New York State standards, which can result in credits not transferring or being accepted by the home school district. As a result, national data shows that the majority of youth – 66 percent – do not return to school after release from secure custody.³⁴

In addition to the barriers faced by many students served in neglected and/or delinquent facilities, recently enacted “Raise the Age” legislation will affect service delivery models. Under the new legislation, 16 and 17-year-old students previously served in County Jails will instead be served at other facilities, such as secure/non-secure detention facilities and other voluntary placement agencies. There are major concerns about the system's capacity to support students, as there are currently only 8 secure detention facilities across New York State, as opposed to more than 60 County Jails. Beyond simply the number of facilities, detention facilities do not receive State Aid for core educational services in the same manner as do jails. The Office of Children and Family Services (OCFS) and the placing county share the cost of care, maintenance, and supervision through a 49/51 percent split of the cost for care for such youth. Removing 16 and 17-year-old students will reduce the total amount of funding available to operate the educational program for 18-21-year-old students served in County Jails by approximately 30%. The new funding levels and capacity limitations will make it difficult for County Jails, secure/non-secure Detention Facilities, and other voluntary placement agencies to adequately address the educational, social, and emotional and needs of students, especially students with disabilities and ELL/MLL students.

To ensure that students served in Neglected and Delinquent facilities graduate from high school and meet college-and career-readiness standards, the Department will work closely with the New York State Office of Children and Family Services (OCFS), the New York State Department of Corrections and Community Supervision (DOCCS), Local Educational Agencies (LEAs), and other agencies, as appropriate, to identify criteria that can be included in a formal transition plan that the Department will direct all Neglected and Delinquent facilities across New York State to implement in order to transition youth seamlessly between schools, facilities, and agencies. Anticipated actions include:

³³[National Technical Assistance Center for the Education of Neglected or Delinquent Children and Youth.](#)

- Developing an advisory group consisting of, but not limited to, appropriate Department staff from Title I, Part D; ACCES-VR (Vocational Rehabilitation); Career and Technical Education; OCFS and DOCCS staff; representatives from other State agencies such as the Division of Criminal Justice Services-Juvenile Justice who work with Neglected and Delinquent students; community service partners; LEAs; and other organizations to explore criteria to be included in the Statewide Transition Plan
- Designing a Statewide Transition Plan (STP), based on research, best/promising practices, and input from the advisory group
- Providing training resources/guidance to Neglected and Delinquent facilities regarding the implementation of STP via webinars and online resources
- Disseminating and implementing the STP in each Neglected/Delinquent facility in New York State. Department staff will provide technical assistance to facilities and LEAs. The Department will direct facilities to complete transition plans for all youth.

The Department will collaborate with DOCCS and OCFS and other Neglected and Delinquent educational programs/agencies to ensure that students in neglected and delinquent facilities are provided a well-rounded educational program that is comparable to students in traditional public schools. Specifically, the Department will ensure that students receive the appropriate number of hours of daily instruction by certified teachers in mathematics, science (including labs), social studies, English Language Arts, physical education, technology, art/music, health, foreign language, career and technical education, and high school equivalency (if applicable). The Department will also work with partnering agencies to ensure that special education services, including related services such as speech therapy, counseling, physical therapy, and occupational therapy, and appropriate services for English Language Learners/Multi-Language Learners are provided to all identified students. In addition, the Department will seek to ensure that every student has access to library services and technology-based learning opportunities in support of credit recovery and college/career exploration activities.

To support this work, the Department will direct each LEA in New York State to identify a dedicated liaison to support all students upon entry into a facility, while they are in the facility, and as the student returns to their district from a Neglected and Delinquent facility and ensure that they receive all appropriate educational () and “wrap-around” supports, services, and opportunities to promote social-emotional growth.

In addition, NYSED will study the effect on State and local funding for core instruction at county jails and detention centers of the recently enacted “Raise the Age” legislation. The Department will generate field guidance to districts and facilities in order to address programmatic and fiscal changes that result from the new legislation.

2. Program Objectives and Outcomes (ESEA section 1414(a)(2)(A)): Describe the program objectives and outcomes established by the State that will be used to assess the effectiveness of the Title I, Part D program in improving the academic, career, and technical skills of

³⁴ *Federal Interagency Reentry Council, “Reentry Myth Buster: On Youth Access to Education upon Reentry (New York, 2012).*

children in the program.

To ensure that students served in Neglected and Delinquent facilities graduate from high school, develop career and technical skills, and meet college- and career- readiness standards, the Department has established the following process-based and outcome-based objectives:

Process-Based Objectives:

- The Department will convene a Neglected and Delinquent Advisory Group composed of appropriate statewide stakeholders to develop a Statewide Transition Plan within one year
- The Department will design, disseminate, and provide training on a Statewide Transition Plan with input from the Neglected and Delinquent Advisory Group within two years
- Neglected and Delinquent Facilities will implement the Statewide Transition Plan
 - 30% of facilities will implement within three years
 - 60% of facilities will implement within four years
 - 100% of facilities will implement within five years

Outcome-Based Objectives:

- Academic Achievement: Increase the percent of eligible students achieving grade level performance on assessments in ELA, Mathematics, Social Studies and Science by 10% by the end of school year 2021-2022.
- Career and Technical Education (CTE): Increase the percent of eligible students who receive CTE credits in each eligible program by 5% the end of school year 2021-2022.
- Graduation Rate: Increase the percent of eligible students who graduate from high school with a diploma by 10% by the end of school year 2021-2022.

D. Title II, Part A: Supporting Effective Instruction

- B. Use of Funds (*ESEA section 2101(d)(2)(A) and (D)*): Describe how the State educational agency will use Title II, Part A funds received under Title II, Part A for State-level activities described in section 2101(c), including how the activities are expected to improve student achievement.**

Over the past seven years, the Department has focused its initiatives on a single goal: ensuring that all students across New York State, regardless of their physical location, acquire the knowledge, skills, and abilities that they need to realize personal success in college, career, and life. Central to this goal is the belief that we must increase student achievement for all students in New York State while at the same time close gaps in student achievement between our lowest- and highest-performing students. Taken together, these initiatives have been designed to create a comprehensive, systemic approach to advance excellence in teaching and learning and to promote equity in educational opportunity throughout New York State. This system consists of:

- Well-designed learning standards and aligned curricula that are measured by meaningful assessments

- Core instruction (standards, curricula, and assessments) delivered by well-prepared, highly effective, racially/ethnically/linguistically diverse and culturally competent teachers, principals, and other school leaders who have received high quality, differentiated professional development that is informed by evidence of educator practice and data on the longitudinal academic growth of students
- The analysis and use of these data to inform improvements in instruction to propel and accelerate the yearly academic progress of students

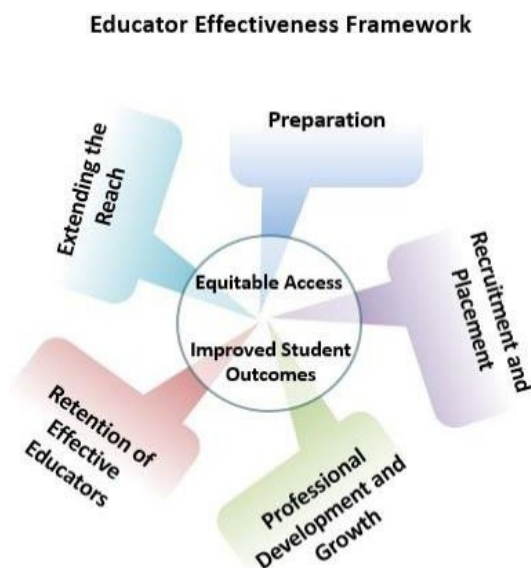
The Department has consistently affirmed its commitment to this goal over the past seven years, including through recent projects such as our [2015 Plan to Ensure Equitable Access to Effective Educators](#) (“State’s Equity Plan”), the [Strengthening Teacher and Leader Effectiveness \(STLE\) Grant](#), the Teacher Incentive Fund (“TIF”) 3 Grant, the [Teacher Opportunity Corps](#), and the [New York State My Brother’s Keeper Initiative](#) (“My Brother’s Keeper”) - all of which are focused on the management of human capital in ways that help close and, over time, eliminate equity gaps so that all young people have the chance to reach their full potential. More recently, with assistance from the Wallace Foundation, the Department launched the [Principal Preparation Project](#) to enhance the preparation of future school building leaders and support for the development of current school principals.

Although data collected by the Department suggest that these initiatives are having a positive effect on student outcomes (e.g., rising graduation rates, increases in student proficiency on State assessments), there are still persistent gaps in achievement for our most vulnerable students (e.g., ELLs/MLLs, students with disabilities, students in poverty). The Department believes, and research consistently demonstrates, that, among school-based factors, teaching matters most to improving student outcomes, and leadership is second only to classroom instruction as an influence on student learning.³⁵ As such, the Department proposes to use its Title IIA funding to promote initiatives that similarly focus educational improvement efforts in New York State on the cornerstone belief that students thrive in the presence of great teachers and great school leaders. To make possible the opportunity for every student to have access to a great teacher and school leader, we cannot ignore the key factors that influence educators’ decisions on whether to enter and stay in the field. Recent research from the [Learning Policy Institute](#)³⁶ continues to confirm that there are five major factors that influence an educator’s decision to enter and stay in the field: 1) salaries and other compensation; 2) preparation and costs to entry; 3) hiring and personnel management; 4) induction and support for new teachers; and 5) working conditions, including school leadership, professional collaboration and shared decision-making, accountability systems, and resources for teaching and learning.

³⁵ See, e.g., Leithwood, K., Seashore-Louse, K., Anderson, S., and Walhstrom, K., “How Leadership Influences Student Learning: Review of the Research”, New York City, NY: Wallace Foundation and “Teachers Matter: Understanding Teachers’ Impact on Student Achievement”. Santa Monica, CA: RAND Corporation, 2012.

³⁶ Sutchter, L., Darling-Hammond, L., and Carver-Thomas, D. (2016). A Coming Crisis in Teaching? Teacher Supply, Demand, and Shortages in the U.S. Palo Alto, CA: Learning Policy Institute.
Podolsky, Anne, Kini, T., Bishop, J. and Linda Darling-Hammond (2016). Solving the Teacher Shortage: How to Attract and Retain Excellent Educators. Palo Alto, CA: Learning Policy Institute.

As such, the Department believes that the best way to ensure equitable access to great teachers and school leaders is to assist LEAs and IHEs in developing comprehensive systems of educator support and development that are focused on the following key components: 1) preparation; 2) recruitment and hiring; 3) professional development and growth; 4) retention of effective educators; and 5) extending the reach of the most effective educators to the most high-need students, which we call the Educator Effectiveness Framework (“Framework;” see diagram below).



By helping LEAs and IHEs to create comprehensive systems that meet the needs of all their students and that support educators along the entire continuum of their careers, we are actively working to:

- 1) Attract more diverse, culturally competent, and highly effective teachers, principals, and other school leaders to the profession;
- 2) Provide options, opportunities, and pathways for those aspiring teachers, principals, and other school leaders to acquire the knowledge, skills, and abilities – both through coursework and rich clinical experiences - that educators need to better meet the needs of all students;
- 3) Provide early career and ongoing support to ensure that those better-prepared teachers, principals, and other school leaders can enter the profession, have the support that they need to stay in the profession, and improve their practice over time; and
- 4) Create opportunities for teachers, principals, and other school leaders who are recognized by their peers and administrators as highly effective practitioners to take on differentiated roles and responsibilities that extend the reach of these educators and allow them to share their expertise with their colleagues.

In doing so, we will better be able to ensure that all students in New York State have a great teacher and a great school leader, which will help us to achieve our shared goal of ensuring that each student is prepared for success in college, career, and citizenship.

To assist LEAs in the development of comprehensive systems aligned to the Framework, we propose to engage in a facilitated root cause analysis with LEAs that is centered on our equity analytics. In future school years, the Department will produce a State-level equity report and district-level equity reports that examine the rates at which different subgroups of students (Statewide and within-district) are assigned to out-of-field, inexperienced, and ineffective educators. In addition to traditional measures of educator equity, such as teacher qualifications and effectiveness data, the Department will include analytics that research shows are important considerations for equity, such as teacher and principal turnover/retention, absences, tenure status, and demographics.

These reports will serve as a starting point to help LEAs determine where there may be gaps in equitable access to effective, qualified, and experienced educators between different subgroups of students, as well as where there may be gaps in access to culturally and linguistically diverse educators. As a next step, the Department will create tools and other resources to assist LEAs in conducting needs/gap and root cause analyses focused on the elements of the Framework to determine which aspects of the LEAs' talent management systems are most in need of improvement (see sample metrics in the table below). Much of this information is already collected by the Department from LEAs across the State. In these instances, the goal of the Department is to provide districts with both their own data as well as Statewide information and information about similar districts to determine areas of focus. For indicators that are not yet collected, or that are collected only locally, the Department will work with stakeholders to determine the best ways to collect and report this information so that it can be used to drive decision making.

Framework Component	Sample Metrics
Preparation: collaboration or formal partnership between LEAs and Institutions of Higher Education (IHEs) or other eligible partners.	• Rigor of selection criteria • Prep program coursework • Academic success of prep program candidates • On-the-job effectiveness • Extended clinically rich placements • Percentage of graduates from historically underrepresented and economically disadvantaged populations
Recruitment and Placement: activities to attract the most effective educators to LEAs and the schools that need them.	• Compensation structure, including recruitment and transfer awards • Application per vacancy ratio, particularly for hard-to-staff areas • Strategic staffing, including diversity, cultural competency, and evaluation results • Strength of induction and onboarding programs

Professional Development and Growth: differentiated ongoing support for educator effectiveness, based on evidence of educator practice and student learning, including individualized support for new and early career educators to advance their professional practice and improve their ability to produce positive student outcomes.	• Professional development and mentoring structures, systems, and offerings • Use of a needs assessment to determine professional learning • Access to and time available for professional development • Effect on instructional outcomes • Effect on student outcomes • Link to evaluation results
Retention of Effective Educators: a systematic, coordinated approach to providing new and sustained leadership opportunities, with additional compensation, recognition, and job-embedded professional development for teachers and administrators to advance excellent teaching and learning, as well as advance the use of evaluation data in development, compensation, and employment decisions.	• Retention rates of the most effective teachers and principals vs. those of the least effective • Gaps in turnover rates between highest- and lowest-need schools • Building-level analysis of retention patterns • Leadership opportunities for the most effective educators • Tenured granted/denied based on effectiveness rating • Results/Analysis of exit surveys, where administered • Other existing PBCS efforts to retain the most effective educators • Link to evaluation results
Extending the Reach: leveraging the most effective educators in a multitude of ways for the maximum effect on improved student outcomes and equitable access.	• Assignment of students to the most effective educators • Number of students affected by the most effective educators (district-wide and disaggregated by subgroup) • Effect on instructional and student outcomes • Gap in access to most effective educators between highest-need and lowest-need students/buildings • Number of teacher leaders/principal leaders in district and current roles/responsibilities

The Department will work with higher education teacher and school leader preparation programs to provide appropriate and ongoing support to LEAs in curriculum development and in the expansion of instruction and professional development. For those LEAs that want to take a deeper look at their equity data and develop strategies centered on the various components of the Framework to address gaps in equitable access, the Department will host a series of labs or convenings at which LEA teams can come together with the assistance of Department staff and other technical assistance providers to better understand data and how they can be used to drive the development of comprehensive systems of educator development and support that are

grounded in evidence-based strategies. Possible areas for consideration during the equity labs include strengthening existing mentoring/induction programs, expanding recruitment activities to attract a wider pool of diverse candidates, providing specific professional development in targeted areas of need, working with principals to determine strategic staff assignments/teacher teams and creating collaborative environments for professional learning and engagement in decision-making, or implementing and refining leadership continuum pathways that leverage the expertise of teacher and principal leaders. Additionally, these equity labs will allow LEAs to better understand the data points that the Department uses and how we conduct our analyses so that LEAs are better equipped to conduct building-level analyses that mirror those done by the Department at the State and LEA level.

Helping LEAs to identify gaps in equitable access; determine the root causes of those gaps; conduct needs/gap analyses; and select appropriate, evidence-based strategies focused on different components of the Framework to address those areas of need, is an important foundation for meeting our goal of ensuring that all students have access to great teachers and leaders. However, it is equally important that we help LEAs to identify new and existing resources to implement these strategies. To that end, the Department proposes to work with LEAs to identify existing funding sources and initiatives that are already in place that can help strengthen these systems. As the first step in this work, Department staff will begin collecting information on the specific ways that LEAs are using their Title II, Part A allocations and review Professional Development Plans and Continuing Teacher and Leader Education (CTLE) plans to ensure alignment and to determine whether those activities are designed to close equity gaps. In this way, the equity work will have a natural funding stream to help LEAs tackle their specific areas of need.

By undertaking this initiative, the Department believes that it can help school districts, BOCES, and institutions of higher education improve the quality and effectiveness of teachers, principals, and other school leaders, thus increasing the numbers of those educators who are effective in improving student academic achievement and ensuring that all students have equitable access to effective educators. This work is especially crucial in schools identified for CSI or TSI status, as explained in Section (A)(4).

While the Department will begin to work more closely with LEAs to address gaps in equitable access to effective, qualified, culturally-responsive, and experienced educators, it will also undertake a number of other State-level initiatives focused on the different components of the Framework, with the goal of ensuring that our own policies and initiatives advance our goal of ensuring that educators have access to comprehensive systems of professional learning, support, and advancement along the entire continuum of their careers.

Preparation, Recruitment, and Placement

As previously noted, the quality of the preparation that aspiring teachers, principals, and other school leaders receive is a key factor in determining whether those educators enter and,

particularly, remain in the profession; we also know that there is an important relationship between educator preparation and qualification and positive effects on student outcomes.³⁷

We also know that the quality of the preparatory experience of aspiring teachers, principals, and other school leaders in New York State varies significantly. Accordingly, building on the recommendations of the [TeachNY Advisory Council](#) and the [Principal Preparation Project](#), the Department has constituted a Clinical Practice Work Group to explore whether it is necessary to enhance the existing regulatory requirements, in order to help ensure that teachers, principals, and other school leaders are prepared on day one to work effectively to improve student outcomes and to present the workgroup's recommendations to the Department and Board of Regents. These enhancements may include:

- Increasing and strengthening field experiences and student teaching and encouraging preparation programs to align field experiences with evidence-based practices
- Requiring Institutions of Higher Education and other preparation program providers to align program completion with a candidate's demonstration of positive effects on student outcomes, including multiple measures, where practicable (e.g., portfolios, evidence from observations, student growth/achievement)
- Requiring all education programs to sign a partnership agreement with one or more school districts that identifies the responsibilities of each partnering institution, the mentor teacher, the faculty members, and the teacher candidate

Specific to the preparation of school building leaders and consistent with the recommendations of the Principal Preparation Project, Department staff will explore the following approaches to ensure better professional learning and support for aspiring leaders³⁸:

- Organize certification around the 2015 Professional Standards for Educational Leaders (PSEL)
- Strengthen university-based School Building Leader (SBL) programs by closely linking the 2015 PSEL with extended school-based internships

³⁷ See, e.g., Ingersoll, R., Merrill, L., and May, H. (2014). "What are the effects of teacher education and preparation on beginning teacher attrition?" Research Report (#RR-82). Philadelphia: Consortium for Policy Research in Education, University of Pennsylvania.

Guha, R., Hyler, M.E., and Darling-Hammond, L. (2016). "The Teacher Residency: An Innovative Model for Preparing Teachers." Palo Alto, CA: Learning Policy Institute.

Manna, Paul (2015). "Developing Excellent School Principals to Advance Teaching and Learning: Considerations for State Policy." The Wallace Foundation. Retrieved from: <http://www.wallacefoundation.org/knowledge-center/Pages/Developing-Excellent-School-Principals.aspx>

³⁸ For a full list of the recommendations of the Principal Preparation Project, please see [the Department's landing page](#) for this initiative. Where necessary, the Department will utilize a portion of the newly available set-aside under Title II, Part A for activities that support principals and other school leaders in this work.

- Create pathways, options, and/or opportunities that lead to full-time, year-long, school-based internships for aspiring principals
- Adapt preparation to account for a variety of settings
- Add a competency-based expectation to initial certification. This calls upon aspiring school building leaders to take what they learn in a university-based SBL program and apply this learning successfully in an authentic school-based setting to improve staff functioning, student learning, or school performance. Before a university attests that an aspiring school building leader who has completed its SBL program is “certification ready,” the superintendent or mentor who is sponsoring the aspiring leader’s internship must also attest that the candidate demonstrated readiness for certification by successfully completing a set of projects that demonstrate competency with respect to the State-adopted certification standards.

Taken together, the potential revisions to the educator preparation and certification frameworks in New York State, as described above, are premised on the belief that better preparation of teachers, principals, and other school leaders starts with a strong alignment between what is needed to be successful, what is taught in educator preparation programs, and what standards we expect for someone to be certified. Without clear agreement among participants (teachers, principals, deans, etc.) about this foundation, the ability to create strong coherence between what happens in preparation and certification and what happens on day one as a teacher and school leader will not be a part of our system; rather, we will continue to have only pockets of excellence – where this alignment and coherence exist – and the ability to ensure that New York State has a better prepared workforce may be negatively affected.

Recognizing the importance of creating sustainable clinical residency models for teacher and school leader preparation, the Department will explore devoting a portion of its Title IIA funding to expand preparation programs that provide greater opportunities for candidates (both teachers and school leaders) to apply the knowledge and skills acquired in authentic settings. This funding may advance residency programs or other innovative preparation models that provide aspiring teachers, principals, and other school leaders with greater opportunities for practical experience throughout their preparation programs.

In addition to exploring opportunities to strengthen the clinical practice that teacher and school leader candidates receive prior to completing their preparation programs, the Department will also seek to engage a cross-section of P-20 stakeholders to explore the existing regulatory requirements for preparation program coursework for New York State-approved programs. Although the current preparation program coursework requirements for New York State-approved programs very clearly describe what the Department expects from preparation programs, information collected by the Department shows that all programs are not preparing candidates in a consistent manner. Additionally, in certain areas, such as multicultural education, existing coursework requirements may not be ensuring that aspiring teachers and leaders acquire the knowledge and skills needed to meet the needs of all students. To that end, the Department will work with stakeholders to create guidance and clear expectations for all preparation programs across the State. These could include, but may not be limited to, programs to prepare

school building leaders. These programs may also include the preparation and certification of principal supervisors.

Further, recognizing that for preparation programs to ensure that they are addressing the needs of the schools that employ the programs' graduates, the Department staff intend to work with IHEs and other providers to create tools and other resources that will facilitate feedback loops between preparation programs and the LEAs that employ program graduates. This can include, for example, surveying recent graduates about their experiences not only in classroom learning, but also in terms of field and student placement experiences. Additionally, the Department will explore the feasibility of enhancing data collection related to New York State public school students who go on to attend a SUNY or CUNY school to determine whether there are particular content areas or concepts in which students need additional support. These additional data will help to inform the professional learning and support that is provided to both aspiring and current teachers.

Just as important as ensuring that aspiring teachers, principals, and other school leaders are truly prepared to enter the profession is ensuring that promising, diverse candidates are identified and recruited into the profession. Consistent with the recommendations of the [TeachNY Advisory Council](#), the Department will also encourage the creation of P-20 partnerships that allow school districts and BOCES to work with institutions of higher education and other preparation program providers on efforts to recruit and prepare educators to meet LEAs' needs. This is particularly important for New York State, as research shows that the vast majority of teacher preparation candidates become teachers in the same region in which their teacher preparation programs are located. Thus, the Department believes that creating these partnerships will be particularly beneficial for LEAs in New York State.

In addition to focusing recruitment efforts on candidates who are academically promising, the Department also believes that it is important to ensure that the pipeline of future educators includes culturally competent and ethnically and linguistically diverse candidates such that the demographics of the educator workforce can better mirror the demographics of New York State's student population. Research consistently confirms that students benefit significantly when they have access to educators who can work effectively and inclusively across cultural lines³⁹ as well as with whom students can identify.⁴⁰ To that end, the Department will work with SUNY and other higher education partners to explore how best to leverage the recommendations of the TeachNY Advisory Council, which include:

³⁹ "[Closing the Gap: Creating Equity in the Classroom](#)". Hanover Research Equity in Education Research Brief. 2017.

⁴⁰ Dee, Thomas S. "Teachers, Race, and Student Achievement in a Randomized Experiment". The Review of Economics and Statistics, February 2004, Vol. 86, No. 1, Pages: 195-210.

Gershenson, S., Holt, S., and Papageorge, N. "Who Believes in Me? The Effect of Student-Teacher Demographic Match on Teacher Expectations." Economics of Education Review, Volume 52 (June 2016). Pages 209-224.

Dee, Thomas and Emily Penner. "[The Causal Effects of Cultural Relevance: Evidence from an Ethnic Studies Curriculum](#)." NBER Working Paper No. 21865.

Ehrenberg, Ronald, Goldhaber, D., and Brewer, D. "Do Teachers' Race, Gender and Ethnicity Matter?" ILR Review, April 1995. Vol. 48, No. 3. Pages: 547-561.

Mittleman, Joel. "[What's in a Match? Disentangling the Significance of Teacher Race/Ethnicity](#)" (June 15, 2016).

- 1) Developing recruitment plans with strategies that are designed to increase the diversity of students entering educator preparation programs
- 2) Ensuring that the financial needs of students with lower socioeconomic status are being met
- 3) Creating pilot programs that recruit and select applicants who are committed to and appreciate the needs of urban and rural school communities
- 4) Creating formative assessments of cultural competence and other qualities and supporting the admission and retention of excellent teacher and school leader candidates

Professional Development and Growth

For teachers, principals, and other school leaders to have the greatest effect on students and to remain in the profession, these educators need to have support and opportunities for professional growth throughout the educators' careers. Research suggests that this support is particularly important during the early part of an educator's career⁴¹ and can improve the recruitment, retention, and growth of educators.

Recognizing the importance of support for educators who are entering the profession, New York State requires that all teachers and principals who have an initial certificate and who are working toward a professional certificate complete a mentoring experience⁴² in their first year of teaching or school building leadership service in a public school district.⁴³

Each school district and BOCES, in its Professional Development Plan, must include a description of its mentoring program, including:

- The procedure for selecting mentors, which shall be published and made available to staff of the school district or BOCES and upon request to members of the public
- The role of mentors, which shall include, but not be limited to, providing guidance and support to the new educators
- The preparation of mentors, which may include, but shall not be limited to, the study of the theory of adult learning, the theory of educator development, the elements of a mentoring relationship, peer coaching techniques, and time management methodology
- Types of mentoring activities, which may include, but shall not be limited to, modeling instruction for the new educator, observing instruction, instructional planning, peer coaching, team coaching, and orienting the new educator to the school culture

⁴¹ Johnson, Susan Moore and Susan M. Kardos. "Keeping New Teachers in Mind". Educational Leadership, vol. 59, no. 6, 2002, pp 12-16.

⁴² ["Leap Year: Assessing and Supporting Effective First-Year Teachers"](#). TNTP Report. 2013.

⁴³ Pursuant to section 100.2(dd) of the Commissioner's Regulations, the mentoring program is to be developed and implemented locally, consistent with any collective bargaining obligation required by article 14 of the Civil Service Law.

⁴³ This requirement can be waived for certificate holders who have at least two years of teaching or educational leadership service, respectively, prior to receiving the initial certificate.

- Time allotted for mentoring, which may include, but shall not be limited to: scheduling common planning sessions; releasing the mentor and the new educator from a portion of their instructional and/or non-instructional duties; and providing time for mentoring during superintendent conference days, before and after the school day, and during summer orientation sessions

The purpose of the mentoring requirement is to provide beginning educators in teaching or school leadership with support to deepen their knowledge and skills and more easily make the transition to a first professional experience under an initial certificate. Research included in the [TeachNY Advisory Council Report](#) has shown that educators who engage in collaborative activities that encourage high-level collegiality, such as mentoring, are more likely to report greater career satisfaction and stay in the educators' current roles. In addition to the benefit to new and early career educators, mentoring activities also enable veteran educators to experience a renewed dedication to their profession. However, the quality of this experience currently varies significantly across districts in New York State.

As such, Department staff will explore revisions to the current first-year mentoring requirement to require mentoring that spans the first 180 school days of employment in an LEA. To ensure that this experience is as effective as possible, the Department will seek additional Mentor Teacher Internship Program funding and other resources to assist LEAs and IHEs in developing mentoring programs that provide educators with appropriate differentiated supports. Consistent with the recommendations of the Principal Preparation Project, there should be a natural continuation between the clinical experience/internship that aspiring school leaders receive and the ongoing, high-quality coaching and mentoring that these new school leaders receive through the first year of their career. The same should also be true for teachers.

Providing new teachers and school leaders with comprehensive systems of support that include a mentoring program is a key factor in both retaining new educators and increasing their effectiveness. However, having a mentoring program is not enough, in and of itself, to provide support to new educators. Just as important as the program are the experienced educators who serve as mentors to their peers. Thus, the Department will also work to provide LEAs with tools and resources, aligned to best practice, that will allow the LEAs to recruit, select, develop, and reward educators who serve in mentorship roles. Consistent with current research⁴⁴ and the Department's Leadership Pathways Continuum, the Department will encourage districts and BOCES to leverage teacher and principal leaders to serve as mentors. In addition, for those districts and BOCES that participate in the Department's equity lab work, the Department will review the status of mentoring in the LEA through review of Professional Development Plans and conversations with stakeholders and will work with LEAs to help them adopt evidence-

⁴⁴ [“Good Principals Aren’t Born — They’re Mentored”](#). Wallace Foundation. Publication. Web.
[“High Quality Mentoring and Induction Practices.”](#) New Teacher Center. 2016. Publication. Web.
 Harrison, Cindy and Joellen Killian. [“Ten Roles for Teacher Leaders.”](#) *Educational Leadership*, vol. 65, no. 1, 2007, pp 74-77.
 Whitebook, March and Dan Bellm. [“Mentors as Teachers, Learners, and Leaders”](#). 2014. Publication. Web.

based strategies to bolster current mentoring programs. Recommendations may include revising mentor selection criteria to ensure rigor, including the utilization of educators who have National Board Certification; determining clear-cut roles and expectations for mentor-mentee relationships; providing more robust professional learning to mentors about their role, having mentors provide feedback through informal observation; and for schools or districts in hard-to-staff communities where there may be low capacity to provide quality mentoring, leveraging well-trained mentors in a regional model. Where LEAs undertake these evidence-based initiatives, the Department will work to document the successes of these approaches in order to provide case studies that other districts across the State may wish to adapt. Further, the Department will work to facilitate peer-to-peer collaboration between LEAs to help disseminate effective mentoring strategies.

Recognizing that educators need support beyond just their first year of teaching or school leadership, Department staff will develop and encourage districts/BOCES to adopt induction models that provide a menu of differentiated supports to educators during the first three years of their careers that are tailored to what educators need to succeed. These systems will promote the personal and professional growth of educators and recognize the multi-dimensional nature of the profession. Further, the Department will work with stakeholders, including institutions of higher education, to explore how Master's degree programs, which prospective teachers are already required to obtain for professional certification, can be better aligned with this type of ongoing mentorship. This could include, for example, allowing other entities, such as Teacher Centers, to provide support and development that leads to the professional certificate. Among other goals, these induction models should provide feedback to educators, the preparation programs that prepare them, and the leadership of the school district. These opportunities, particularly when combined with pre-service supports, are an important lever in ensuring that educators receive ongoing, job-embedded professional learning and authentic experiences with diverse populations (e.g., English Language Learners, Students with Disabilities) during both preparation and through the early part of educators' careers.

The importance of taking a systemic approach to mentorship, induction, and other support for early career educators cannot be understated. However, the Department also believes that all educators, regardless of how far along they are in their careers, can benefit from ongoing professional learning that is differentiated based on need. Over the last several years, New York State has made significant investments in supporting teachers, principals, and other school leaders. Despite these efforts, a review of documentation and data, stakeholder interviews, focus groups, and surveys all reveal that access to and time for high-quality professional learning vary considerably across New York State.

To that end, the Department has been working over the past year on a new Statewide framework for professional learning that is designed to build educator capacity across New York State. To undertake this work, the Department convened a task force⁴⁵ of stakeholders from across the State who were charged with developing a strategy for more coordinated, quality professional

⁴⁵ This Task Force included a broad range of stakeholders, including BOCES leaders, district leaders, principals, teachers, higher education representatives, and SED staff members.

learning for teachers and leaders. Ultimately, the Department believes that the strategy will 1) provide equitable access for all educators to high-quality professional learning that is relevant, actionable, and ongoing; 2) improve performance, coordination, and communication of statewide professional learning partners; 3) empower regional professional development leaders to reimagine professional learning for schools and districts; and 4) embody thoughtful design, rich and meaningful experiences, and continual feedback and improvements. In order to achieve these goals, the new statewide framework calls for two strands of work: the development of statewide supports available to all educators and partners across New York State and investment in regional expertise that will empower regions to reimagine and implement high-quality professional learning supports for educators.

Further, in keeping with our belief that members of the school community (students, teachers, parents, etc.) thrive when there are excellent leaders in those school buildings, and recognizing the need to ensure that there are high-quality principals in our highest needs schools, particularly those that have been identified for Comprehensive Support and Improvement, the Department will set aside a portion of its Title IIA funds, including the newly available set-aside to support school leaders, to support leadership development programs for principals of these schools. Focus areas and support systems for the use of this funding will be developed collaboratively, based on needs identified by a broad range of stakeholders, including the Department, school leaders, and preparation programs. Where necessary, these supports should address needs at multiple levels (i.e., statewide, regional, LEA level). Examples of potential uses of funds include the establishment of Principals Centers, communities of practice, residency and other extended internships, mentoring programs, and on-site expert technical assistance and coaching for principals.

Extending the Reach of Effective Educators

In addition to providing support to educators throughout their careers, research suggests⁴⁶ and the Department believes that it is also important to ensure that educators have a career trajectory. For this to be possible, LEAs must take explicit actions to recognize their most effective educators and to cultivate teacher and principal leadership through the creation of leadership continuum pathways. When thoughtfully and systemically implemented, leadership opportunities provide a way for LEAs to 1) cultivate a shared understanding of what teachers, principals, and other school leaders should know and be able to do at all stages of their careers (e.g., from novice through highly effective); 2) recognize what highly effective practice truly looks like; 3) provide opportunities for educators who consistently demonstrate that they are highly effective to share their expertise with their colleagues and leverage that expertise for the benefit of the entire school system; and 4) improve the retention and impact of the most effective teachers and school leaders. Importantly, this systemic approach to leadership continuum pathways that is grounded

⁴⁶ Heneman, Herbert G., Anthony T. Milanowski. “[Assessing Human Resource Alignment: The Foundation for Building Total Teacher Quality Improvement](#).” 2007. Publication. Web.

Goldhaber, Dan. “[Teacher Pay Reforms: The Political Implications of Recent Research](#)”. 2009. Publication. Web. “Leadership Matters: What the Research Says About the Importance of Principal Leadership” (NASSP, NAESP, Wallace Foundation)

“Leading from the Front of the Classroom: A Roadmap to Teacher Leadership that Works” (The Aspen Institute, Leading Educators). 2014

in clear definitions of accomplished practice can further facilitate the collaborative P-20 approach to preparing and supporting educators described earlier in this section.

Through the Teacher Incentive Fund (TIF) 3 and Strengthening Teaching and Leader Effectiveness (STLE) grant programs, NYSED built on the evaluation framework by establishing criteria for career ladder pathways tied, in part, to demonstrated effectiveness in classrooms and school buildings. NYSED did not mandate or create the specific duties and responsibilities of the career ladder; rather, NYSED offered LEAs the opportunity to create, or build upon, career ladders for teachers and principals that provided opportunities for additional duties and compensation, in addition to supporting recruitment, retention and equitable distribution of the most effective educators. Acting as incentives, these types of programs encouraged LEAs to establish mechanisms to recognize outstanding teachers and principals. As a direct result, in 2015, the Department worked with a broad range of diverse stakeholders across New York State to develop a [Career Ladder Pathways Framework](#).

Through ongoing stakeholder engagement and feedback, the Department continues to evolve its definition of this work to encompass multiple design options that can be tailored based on localized context and need. As such, we have moved beyond a *ladder* model, with its implied vertical ascension, to the more universal *continuum*, which encompasses many varieties of career opportunities, including a ladder approach. As such, leadership continuum pathways:

1. Are grounded in the Department's core beliefs
2. Are designed to address the elements of the Educator Effectiveness Framework
3. Permit LEAs significant flexibility, with minimum State guidelines
4. Emphasize implementation and refinement through continual improvement processes

The Department will work to ensure that LEAs adopt systems for leadership continuum pathways that focus on clearly defined leadership roles and responsibilities that provide high-performing educators with meaningful opportunities for career advancement, ultimately aiding in the attraction, development, and retention of great educators who can best meet the needs of the LEA and all students. Importantly, the Department believes that the career advancement opportunities should be developed collaboratively, reflective of localized context and need, and, specific to teacher leadership, available for all teachers and not just those who aspire to be principals. As LEAs consider educator leadership continuum pathways and roles, it is important to develop strong systems that emphasize accountability and professional development and are sustainable over time.

Teacher and school leader leadership opportunities that are developed collaboratively and systemically are an important strategy for LEAs to consider when implementing comprehensive systems of professional learning, support, and advancement for educators. Educator leaders can serve as coaches and mentors to their peers, cooperating educators for teacher and school building leader candidates, faculty within educator preparation programs, providers of professional development, and in a whole host of other capacities. Therefore, in working with LEAs to address gaps in equitable access to educators, where evidence suggests that development or refinement of leadership continuum pathways may help to address one or more challenge areas, the Department will provide guidance and resources, including the Career Ladder Pathways Framework and other tools and resources aligned with best practice, to assist

LEAs in implementing a leadership continuum pathway that is both responsive to local context and that addresses needs. Further, the Department will use surveys, webinars, and other media to ensure that the current tools and resources continue to reflect the needs and values of stakeholders across New York State, including specific outreach to school districts and BOCES leaders, teacher and principal leaders, and relevant stakeholder organizations, including the Professional Standards and Practices Board. The Department will also focus on additional opportunities for teacher leadership outside of a formal career continuum.

2. Use of Funds to Improve Equitable Access to Teachers in Title I, Part A Schools (ESEA section 2101(d)(2)(E)): If an SEA plans to use Title II, Part A funds to improve equitable access to effective teachers, consistent with ESEA section 1111(g)(1)(B), describe how such funds will be used for this purpose.

See response to question #1.

3. System of Certification and Licensing (ESEA section 2101(d)(2)(B)): Describe the State's system of certification and licensing of teachers, principals, or other school leaders.

New York State teachers, administrators, and pupil personnel service providers are required to hold a New York State certificate to be employed in the State's public schools. The certificates, issued by the Office of Teaching Initiatives (OTI), certify that an individual has met required degree, coursework, assessment, and experience requirements.

To be eligible for initial certification in New York State, teachers must meet the following requirements⁴⁷:

1. Completion of a New York State Registered Program, including required workshops
2. Institutional Recommendation
3. Pass the following certification exams: 1) Educating All Students Test (EAS); 2) a Teacher Performance Assessment (edTPA);⁴⁸ and 3) Content Specialty Tests (CSTs)
4. Fingerprint Clearance

Below is an overview of the different certification exams.

1. Educating All Students (EAS) Test:

⁴⁷ Candidates who believe that they meet all the coursework requirements to obtain an initial certificate, but who have not completed a NYS Registered Program, can request an individual evaluation of transcripts to determine eligibility for an Initial Certificate. Candidates must submit original credentials for evaluation by the Office of Teaching Initiatives. Candidates must also meet any non-coursework requirements, such as the New York State Teacher Certification Examinations and fingerprint clearance, as specified.

⁴⁸ During the March 2017 Board of Regents meeting, Department staff presented a number of recommendations from its edTPA Task Force including 1) establishing a standard setting committee comprised of P-12 teachers and higher education faculty to recalibrate the edTPA passing score; 2) having the standard setting committee establish a phase-in schedule that will gradually increase the passing score over a period of time, as is done in several other states; and 3) extending the edTPA Safety Net (ATS-W) until June 30, 2018, or until the new passing score is approved by the Commissioner.

Framework: Diverse student populations, English Language Learners, students with disabilities and other special learning needs, community engagement, teacher responsibilities, and school-home relationships.

Exam expectations:

- Measure the professional and pedagogical knowledge and skills necessary to teach all students effectively in New York State public schools
- Use knowledge of diversity within the school and community to address the needs of all students, create a sense of community, and promote students' appreciation of and respect for all students
- Demonstrate the ability to communicate with and engage parents, with the goal of encouraging parents to participate in and contribute to their child's learning
- Understand the rights and responsibilities in situations involving interactions between teachers and students, parents/guardians, community members, colleagues, school administrators, and other school personnel

2. Teacher Performance Assessment (edTPA):

Framework: Student-centered, multiple-measure assessment of skills and competencies, instruction, planning, and assessment.

Assessment structure:

- Evidence of candidate teaching performance is drawn from a subject-specific learning segment: 3–5 lessons from a unit of instruction for one class of students
- Teacher candidates submit authentic artifacts (lesson plans, video clips of instruction, student work samples) from actual teaching during a clinical field experience
- Candidates also submit commentaries that provide a rationale to support the candidates' instructional practices, based on student learning strengths and needs
- Candidates' evidence is evaluated across five scoring components of teaching: Planning, Instruction, Assessment, Analysis of Teaching, and Academic Language

Exam expectations: Measure candidates' ability to differentiate instruction to diverse learners and provide an evidence-based process that can be used to determine candidates' readiness to enter a classroom and become the teacher of record prior to receipt of an initial certificate to teach in New York State.

3. Redeveloped Content Specialty Tests ("CSTs"):

The CSTs measure content knowledge in a particular subject area, and are aligned with the New York State learning standards. Currently, there are 41 CSTs, of which 20 have been redeveloped.

In addition to the assessments listed above, to move from an Initial Certificate to a Professional

Certificate, applicants must have three years of paid, full-time classroom teaching experience; a master's degree; complete a mentored experience in their first year; and be a permanent resident or US citizen.⁴⁹

Transitional Certificates:

In addition to traditional pathways to certification, New York State also has a system of transitional certificates, which provide opportunities for alternative routes into teaching, including for individuals with advanced degrees and mid-career professionals from other occupations.

Transitional A Certificate

Issued to an individual in a specific career and technical education title (in agriculture, health, or a trade) who does not meet the requirements for an Initial Certificate, but who possesses the requisite occupational experience. The transitional certificate is valid for up to three years, while the holder of the certificate completes the requirements for the Initial Certificate.

Transitional B Certificate (Alternative Teacher Preparation Programs)

Alternative teacher preparation (ATP) programs in New York State are equivalent to traditional teacher preparation programs in content, but are offered in a different format. Through collaborative agreements between teacher education institutions and school districts, candidates who already hold at least a bachelor's degree may enroll in an ATP program at an institution of higher education and will, upon completion of the program, be recommended for Initial or Professional teacher certification.

Upon a candidate successfully completing the program's introductory component and associated fieldwork experience and the candidate passing the Content Specialty Test (CST) in his or her certificate areas and the EAS exam, the candidate is issued a three-year New York State Transitional B teaching certificate. Each candidate who successfully completes the introductory component is eligible to be hired in a New York State public school as a fully certified teacher. Over the next three years, the candidates teach under the supervision of school-based mentors and college supervisors as the teacher of record while completing the ATP program. The goal of ATP programs is to increase the number of qualified teachers in difficult-to-staff subject and geographic areas.

Transitional C Certificate

Issued to an individual with a graduate academic or graduate professional degree who is enrolled in an alternative graduate teacher certification program at the graduate level. Candidates must pass the EAS and the CST (where such CST is required for the certificate title). This certificate is valid for up to three years while the individual is matriculated in the Transitional C program. When the student completes or leaves the program, the certificate is no longer valid. The candidate is expected to pass the edTPA while working under the Transitional C, and then, upon successful exam and program completion, the candidate qualifies for professional certification.

⁴⁹ The requirement may be revised, depending on the status of the Deferred Action for Childhood Arrivals policy.

Transitional G Certificate

Issued to a college professor with a graduate degree in science, technology, engineering, or mathematics who has successfully taught at the college level for at least two years. The Transitional G certificate will allow an individual to teach mathematics or one of the sciences at the secondary level, without completing additional pedagogical study, for two years. After two years of successful teaching experience with the district on a Transitional G certificate, the teacher is eligible for the Initial Certificate in that subject area.

Certification of School Building Leaders

What follows is a description of the current requirements for initial certification as a school building leader in New York State. As described further in Sections D(1) and D(6), the Department has launched the [Principal Preparation Project](#), which aims to enhance the preparation of future school building leaders and support for the development of current school principals and which may change the structure described below.

To be eligible for Initial certification in New York State, school building leaders must meet the following requirements:

1. Completion of a New York State Registered Program, including required workshops
2. Institutional Recommendation
3. Master's Degree
4. Two certification exams: 1) Educating All Students Test (EAS); 2) a two-part school building leader assessment
5. Three years of paid, full-time classroom teaching or pupil personnel service
6. Fingerprint clearance
7. 500 hours of internship

The school building leader certification exam was revised in 2013 and is designed around the 2008 ISLLC Standards and the following competencies: 1) instructional leadership for student success; 2) school culture and learning environment to promote excellence and equity; 3) developing human capital to improve teacher and staff effectiveness and student achievement; 4) family and community engagement; and 5) operational systems, data systems, and legal guidelines to support achievement of school goals. The complete framework is available here: [New York State Teacher Certification Examinations: School Building Leader Assessment Design and Framework](#).

In order to move from an Initial Certificate to a Professional Certificate, school building leaders must have three years of paid, full-time administrative experience; complete a mentored experience during their first year; and be a permanent resident or US citizen.⁵⁰

Recognizing that there are still significant gaps in access to qualified and effective educators in

⁵⁰ The requirement may be revised, depending on the status of the Deferred Action for Childhood Arrivals policy.

emerging and hard-to-staff subject areas, the Department will continue to work with stakeholders to determine what, if any, revisions are necessary to existing certification pathways/requirements that will promote increased numbers of qualified candidates.

4. Improving Skills of Educators (ESEA section 2101(d)(2)(J)): Describe how the SEA will improve the skills of teachers, principals, or other school leaders in order to enable them to identify students with specific learning needs, particularly children with disabilities, English learners, students who are gifted and talented, and students with low literacy levels, and provide instruction based on the needs of such students.

The Department recognizes the importance of ensuring that teachers, principals, and other school leaders have the knowledge, skills, and abilities to meet the needs of all students, including students with disabilities, English language learners, students who are gifted and talented, and students with low literacy levels. Central to this is ensuring that educators are able to identify students with specific learning needs and to provide differentiated instruction based on those needs. As such, both the existing system of certification in New York State and the ongoing professional development and support of educators are designed to ensure that all educators can identify and meet the needs of all students.

Foundationally, the Department has developed a set of teaching standards called the NYS Teaching Standards. The broad conceptual domains of these standards are as follows: 1) Knowledge of Students and Student Learning; 2) Knowledge of Content and Instructional Planning; 3) Instructional Practice; 4) Learning Environment; 5) Assessment for Student Learning; 6) Professional Responsibilities and Collaboration; and 7) Professional Growth. Underneath those broad domains, there is a set of elements and corresponding performance indicators that expresses the Department's expectation of what teachers should know and be able to do in order to be effective practitioners. Explicit in Domains 1 through 5 are elements and indicators centered on ensuring that teachers are able to identify, teach to, and assess the progress of all students in a way that is responsive to their unique needs. For illustrative purposes, the elements of Domain 1 and 3 are included below.

Element I.1: Teachers demonstrate knowledge of child and adolescent development, including students' cognitive, language, social, emotional, and physical developmental levels.

Element I.2: Teachers demonstrate knowledge of current research in learning and language acquisition theories and processes.

Element I.3: Teachers demonstrate knowledge of and are responsive to the diverse learning needs, strengths, interests, and experiences of all students.

Element I.4: Teachers acquire knowledge of individual students from students, families, guardians, and/or caregivers to enhance student learning.

Element I.5: Teachers demonstrate knowledge of and are responsive to the economic, social,

cultural, linguistic, family, and community factors that influence their students' learning.

Element I.6: Teachers demonstrate knowledge and understanding of technological and information literacy and how they affect student learning.

Element III.1: Teachers use research-based practices and evidence of student learning to provide developmentally appropriate and standards-driven instruction that motivates and engages students in learning.

Element III.2: Teachers communicate clearly and accurately with students to maximize their understanding and learning.

Element III.3: Teachers set high expectations and create challenging learning experiences for students.

Element III.4: Teachers explore and use a variety of instructional approaches, resources, and technologies, in an effort to meet diverse learning needs, engage students, and promote achievement.

Element III.5: Teachers engage students in the development of multidisciplinary skills, such as communication, collaboration, critical thinking, and use of technology.

Element III.6: Teachers monitor and assess student progress, seek and provide feedback, and adapt instruction to student needs.

The entire set of [Teaching Standards](#) is available for review on the Department's website.

For principals, the Department has adopted [the 2008 ISSLC standards](#).⁵¹ Standards 2, 4, and 6 most directly address expectations for educational leaders to meet the needs of all students.

Importantly, New York State's teacher and principal evaluation system requires that teachers and principals receive multiple observations/school visits annually. These observations and school visits must be based on practice rubrics that are aligned to New York State's teaching and leadership standards. Before being used for teacher or principal evaluations, proposed rubrics are submitted to the Department for review and approval to ensure that, among other things, they are appropriately aligned to the State's standards. The results of these evaluations are required to be used for a number of employment-related decisions, including differentiated professional development for all educators. Further, teachers who receive a rating of Developing or Ineffective in a school year must receive an improvement plan aligned to areas in need of improvement for implementation in the following school year. This plan must include a

⁵¹ The Department has launched the Principal Preparation Project with support from the Wallace Foundation, which aims to enhance State support for the development of school building leaders. One of the issues that the advisory group for this project is undertaking is whether to recommend to the Board of Regents that the Department move from the 2008 ISSLC standards to the 2015 PSEL standards. The 2015 PSEL standards more explicitly address the need for education leaders to address the needs of a diverse student population than do the 2008 ISSLC standards.

description of the areas in need of improvement, the ways in which improvement will be assessed, the timeline for improvement, and differentiated activities that will be offered to the educator that will help him or her improve in the focus areas that have been identified.

In addition to the adoption of teaching and leadership standards, Department regulations also provide for specific pedagogical course work requirements for accredited teacher preparation programs. Section 52.21 of the Commissioner's Regulations describes in detail the requirements of teacher preparation programs and different certificate areas. Among these requirements are pedagogical coursework requirements that include:

(i) human developmental processes and variations, including, but not limited to: the effect of culture; heritage; socioeconomic level; personal health and safety; nutrition; past or present abusive or dangerous environment; and factors in the home, school, and community on students' readiness to learn—and skill in applying that understanding to create a safe and nurturing learning environment that is free of alcohol, tobacco, and other drugs and that fosters the health and learning of all students, and the development of a sense of community and respect for one another

(ii) learning processes, motivation, communication, and classroom management—and skill in applying those understandings to stimulate and sustain student interest, cooperation, and the achievement of each student's highest level of learning in preparation for productive work, citizenship in a democracy, and continuing growth

(iii) means for understanding the needs of students with disabilities, including at least three semester hours of study for teachers to develop the skills necessary to provide instruction that will promote the participation and progress of students with disabilities in the general education curriculum. The three semester-hour requirement shall include study in at least the following areas: the categories of disabilities; identification and remediation of disabilities; the special education process and State and federal special education laws and regulations; effective practices for planning and designing co-teaching and collaboration with peers; individualizing instruction; and applying positive behavioral supports and interventions to address student and classroom management needs. When such requirements cannot be completed in three semester hours, the remaining study requirements may be included in other courses. This three-semester-hour requirement may be waived at the discretion of the Commissioner, upon a showing that the program provides, through other means, adequate instruction in preparing candidates to understand the needs of students with disabilities.

(iv) language acquisition and literacy development by native English speakers and students who are English language learners—and skill in developing the listening, speaking, reading, and writing skills of all students, including at least six semester hours of such study for teachers of early childhood education, childhood education, middle childhood education, and adolescence education; teachers of students with disabilities, students who are deaf or hard-of-hearing, students who are blind or visually impaired, and students with speech and language disabilities; teachers of English to speakers of other languages; and library media specialists. This six - semester hour-requirement may be waived upon a showing of good cause satisfactory to the Commissioner, including but not limited to a showing that the program provides, through other

means, adequate instruction in language acquisition and literacy development⁵²

(v) curriculum development, instructional planning, and multiple research-validated instructional strategies for teaching students within the full range of abilities— and skill in designing and offering differentiated instruction that enhances the learning of all students in the content area(s) of the certificate

(vi) uses of technology, including instructional and assistive technology, in teaching and learning—and skill in using technology and teaching students to use technology to acquire information, communicate, and enhance learning

(vii) formal and informal methods of assessing student learning and the means of analyzing one's own teaching practice—and skill in using information gathered through assessment and analysis to plan or modify instruction, and skill in using various resources to enhance teaching

(viii) history, philosophy, and the role of education; and the rights and responsibilities of teachers and other professional staff, students, parents, community members, school administrators, and others with regard to education; and the importance of productive relationships and interactions among the school, home, and community for enhancing student learning—and skill in fostering effective relationships and interactions to support student growth and learning, including skill in resolving conflicts

(ix) means to update knowledge and skills in the subject(s) taught and in pedagogy

(x) means for identifying and reporting suspected child abuse and maltreatment, which shall include at least two clock hours of coursework or training regarding the identification and reporting of suspected child abuse or maltreatment, in accordance with the requirements of section 3004 of the Education Law

(xi) means for instructing students for the purpose of preventing child abduction, in accordance with Education Law section 803-a; preventing alcohol, tobacco and other drug abuse, in accordance with Education Law section 804; providing safety education, in accordance with Education Law section 806; and providing instruction in fire and arson prevention, in accordance with Education Law section 808

(xii) means for the prevention of and intervention in school violence, in accordance with section 3004 of the Education Law. This study shall be composed of at least two clock hours of course work or training that includes, but is not limited to, study in the warning signs within a developmental and social context that relate to violence and other troubling behaviors in children; the statutes, regulations, and policies relating to a safe, nonviolent school climate;

⁵² In addition to this general requirement, programs leading to an initial certificate in childhood education for birth through grade 2 and grades 1 through 6, middle childhood education for grades 5 through 9 include an additional requirement for coursework in teaching the literacy skills of listening, speaking, reading, and writing to native English speakers and students who are English language learners, including methods of reading enrichment and remediation.

effective classroom management techniques and other academic supports that promote a nonviolent school climate and enhance learning; the integration of social and problem-solving skill development for students within the regular curriculum; intervention techniques designed to address a school violence situation; and how to participate in an effective school/community referral process for students exhibiting violent behavior.

(xiii) means for the prevention of and intervention in harassment, bullying and discrimination in accordance with section 14 of the Education Law. Such study shall include six clock hours, of which at least three hours must be conducted through face-to-face instruction, of course work or training on the social patterns of harassment, bullying and discrimination; as defined in section 11 of the Education Law, including but not limited to, those acts based on a person's actual or perceived race, color, weight, national origin, ethnic group, religion, religious practice, disability, sexual orientation, gender or sex; the identification and mitigation of harassment, bullying and discrimination; and strategies for effectively addressing problems of exclusion, bias and aggression in educational settings. Specific to the preparation of teachers for students who are gifted and talented, Section 52.21 of the Commissioner's Regulations further details that programs leading to extensions for gifted education for classroom teaching certificates shall require:

(a) study that will permit the candidate to obtain the following knowledge, understanding and skills:

(1) knowledge of the characteristics of gifted students who learn at a pace and level that is significantly different from their classmates;

(2) knowledge of various tools and methods for identifying and assessing gifted students, and skill in using such tools and methods;

(3) knowledge and understanding of appropriate curriculum design for gifted student;

(4) knowledge and skills for planning, providing, coordinating, and evaluating differentiated teaching and learning environments to challenge and assist gifted students in learning to their highest levels of achievement; and

(5) skill in collaborating with other school staff, families and the community to provide appropriate individualized instruction for gifted students; and

(b) college-supervised field experiences of at least 50 clock hours teaching gifted students.

Specific to the preparation of literacy teachers, Section 52.21 of the Commissioner's Regulations further details that programs leading to initial certificates for teaching literacy (birth through grade 6) or for teaching literacy (grades 5 through 12) must include, in addition to the general pedagogical core described above, study that prepares candidates with:

1. knowledge of the theories of literacy development and individual differences, including but not limited to: an understanding of difficulties that may be confronted in acquiring

the literacy skills of listening, speaking, reading, and writing; and the principles and practices of assessing student literacy performance;

2. proficiency in providing instruction and assessment in cooperation with other school staff, including but not limited to: creating instructional environments; teaching all aspects of literacy acquisition, including but not limited to phonemic awareness, phonics skills, word identification, vocabulary skills, study strategies and strategies for building comprehension, constructing meaning, and building literacy in the content areas; assessing students' literacy performance, including but not limited to identifying dyslexia; providing appropriate instruction for students experiencing difficulty in acquiring literacy skills; and providing literacy services to students in compensatory or special education programs; and
3. proficiency in organizing and enhancing literacy programs, including but not limited to: communicating information about literacy to various groups; developing literacy curricula; and communicating assessment results to parents, caregivers, and school personnel.

Additionally, for the literacy certificate (birth through grade 6), at least 50 clock hours of college-supervised practica in teaching literacy to students at both the early childhood and childhood levels; and for the literacy certificate (grades 5 through 12), at least 50 clock hours of college-supervised practica in teaching literacy to students at both the middle childhood and adolescent levels.

Further, all teacher preparation programs must provide candidates with at least 100 hours of field experience related to coursework prior to student teaching or practicum, and this field experience must, among other requirements, provide candidates with experiences in a variety of communities and across the range of student developmental levels of the certificate, experiences practicing skills for interacting with parents or caregivers, experiences in high-need schools, and experiences with each of the following student populations: socioeconomically disadvantaged students, students who are English language learners, and students with disabilities.

Moving past preparation and into certification requirements, both the edTPA and Educating All Students (EAS) certification exams, which are required for teacher certification in New York State, address this area.

Additionally, the Department has the following initiatives designed to ensure that teachers, principals, and other school leaders have the ability to identify students with specific learning needs and provide instruction based on those needs, once they are certified. These initiatives include:

Continuing Teacher and Leader Certification Requirements (CTLE)

In March 2016, the Board of Regents adopted new requirements for certificate holders. Classroom teachers, school leaders, and teaching assistants can no longer earn valid-for-life certificates; rather, they move from an Initial to a Professional Certificate (Level III for teaching assistants). Holders of Professional Certificates must re-register with the Department every 5

years. To renew their registration, educators must complete 100 clock hours of Continuing Teacher and Leader Education (CTLE) during the registration period. A table summarizing requirements for different types of certificates is [available](#).

CTLE activities must be offered in appropriate subject areas and must:

1. Expand educators' content knowledge and the knowledge and skills necessary to provide rigorous, developmentally appropriate instructional strategies and to assess student progress
2. Be research-based and provide educators with opportunities to analyze, apply, and engage in research
3. Include the necessary opportunities for professionals to obtain CTLE to meet the English Language Learner provisions
4. Be designed to ensure that educators: a) have the knowledge, skills, and opportunity to collaborate to improve instruction and student achievement in a respectful and trusting environment; b) have the knowledge and skills to meet the diverse needs of all students; c) have the knowledge and skill to create safe, secure, supportive, and equitable learning environments for all students; d) have the knowledge, skills, and opportunity to engage and collaborate with parents, families, and other community members as active partners in children's education
5. Use disaggregated student data and other evidence of student learning to determine professional development learning needs and priorities, to monitor student progress, and to help sustain continual professional growth
6. Promote technological literacy and facilitate the effective use of all appropriate technology
7. Be evaluated, using multiple sources of information, to assess its effectiveness in improving professional practice and student learning

CTLE Language Acquisition Requirements

Holders of Professional English to Speakers of Other Languages Certificates or Bilingual Extension Annotations are required to complete a minimum of 50 percent of the required CTLE clock hours in language acquisition aligned with the core content area of instruction taught, including a focus on best practices for co-teaching, and integrating language and content instruction for English Language Learners. All other Professional Certificate holders must complete a minimum of 15 percent of the required CTLE clock hours in language acquisition addressing the needs of English Language Learners, including a focus on best practices for co-teaching, and integrating language and content instruction for English language learners.

Level III Teaching Assistant certificate holders must complete a minimum of 15 percent of the required CTLE clock hours dedicated to language acquisition addressing the needs of English Language Learners and integrating language and content instruction for English Language Learners.

Professional Development Plans

As a condition of receiving Title IIA funding and in accordance with New York State law, every district is required to develop a professional development plan that meets the following criteria:

1. The planning, implementation, and evaluation of the plan were conducted by a professional development team that included a majority of teachers and one or more administrator(s), curriculum specialist(s), parent(s), higher education representative(s), and others identified in the plan.
2. The plan focuses on improving student performance and teacher practice as identified through data analysis.
3. The plan describes professional development that:
 - a) is aligned with New York State content and student performance standards;
 - b) is aligned with [New York State Professional Development Standards](#);
 - c) is articulated within and across grade levels;
 - d) is continual and sustained;
 - e) indicates how classroom instruction and teacher practice will be improved and assessed;
 - f) indicates how each teacher in the district will participate; and
 - g) reflects congruence between student and teacher needs and district goals and objectives.
4. The plan describes how the effectiveness of the professional development will be evaluated, and indicates how activities will be adjusted in response to that evaluation.

5. Data and Consultation (ESEA section 2101(d)(2)(K)): Describe how the State will use data and ongoing consultation as described in ESEA section 2101(d)(3) to continually update and improve the activities supported under Title II, Part A.

The Department's use of Title II, Part A funding is centered on 1) helping school districts and BOCES develop comprehensive systems of support for teachers and school leaders that will help ensure that all students have equitable access to effective, experienced, and appropriately qualified teachers and leaders; and 2) creating and refining State-level programs that address the entire continuum of educators' careers, from preparation through career end.

The collection of data, creation of LEA-level equity reports, and facilitated protocol for identifying and addressing root causes of inequities, by its nature, requires the Department to use data and consult with LEAs to refine both State-level and local uses of funds in ways that maximize improvements in student achievement. For other initiatives designed to create or refine State-level systems related to educator development and support, the Department will create feedback loops, including the use of surveys and focus groups, that allow the Department to collect data, solicit feedback from stakeholders, and make refinements to support continual improvement.

Further, as a general matter, the Commissioner and other senior leadership in the Department will continue to regularly meet with a broad cross-section of stakeholders, the intention of which is to consult with the field and collect information about ongoing initiatives to ensure that the work of the Department is meeting the needs of educators and the community. Most directly related to initiatives related to Title II, Part A are groups such as New York State United Teachers, the NYS Teacher Advisory Council, the Professional Standards and Practices Board (PSPB), institutions of higher education, the School Administrators Association of New York State (SAANYS), the District Superintendents of Boards of Cooperative Educational Services (BOCES), and the NYS Council of School Superintendents.

We believe that this approach to using data and ongoing consultation will enable the Department to improve its activities while, at the same time, imposing the minimum required burden on school districts and BOCES.

6. Teacher Preparation (*ESEA section 2101(d)(2)(M)*): Describe the actions the State may take to improve preparation programs and strengthen support for teachers, principals, or other school leaders based on the needs of the State, as identified by the SEA.

See responses in Section (D)(1). Additionally, what follows is a description of the goals and recommendations of the Principal Preparation Project. While many of the concepts found here are contained within Section (D)(1), the Department's goal of preparing all students for success in college, career, and citizenship cannot be accomplished if all students do not have access to a great teacher and a great school leader. For that to occur, all school building leaders need to be well-prepare and well-supported. Principals today must have the knowledge, skills, and dispositions to address the learning needs of an increasingly diverse student population.

Unpacking what is needed to ensure that all school building leaders can be visionary instructional leaders, as described in Section A(4) of this application, requires addressing a series of obstacles. Three in particular arise:

- 1) Many principals are certified, but are not adequately prepared to be effective.
- 2) Too many principals are not adequately prepared to address the learning needs of an increasingly diverse student population.
- 3) Better alignment is needed between what is expected on the job; what is taught in principal preparation programs; and the knowledge, skills, and dispositions that are assessed to determine candidate readiness for initial school building leader certification.

To develop recommendations to address these issues, a 37-member Advisory Team met for 9 months under the auspices of the Principal Preparation Project. This diverse group of stakeholders consensually agreed to present 11 recommendations for the Commissioner and the Board of Regents; these are designed to overcome the obstacles that impede progress. These recommendations are:

- 1) Base initial principal certification on the most current national standards for educational leaders, but with emphasis added on educating all students to high levels of performance, the necessity of cultural competence, the utility of culturally relevant curricula, and the role that school leaders should play in efforts to instill a love of learning in young people.
- 2) Make initial school building leader certification competency-based. To accomplish this, translate the Professional Standards for Educational Leaders into competencies that become the basis for determining certification readiness. That is to say, aspiring school building leaders become eligible for certification by taking the knowledge, skills, and dispositions that were acquired in a university-based preparation program and applying them in a school setting to improve staff functioning, student learning, or school performance.
- 3) Provide better and set different pathways, options, and/or opportunities leading to full-time, extended-period, school-based internships for all aspiring principal candidates. As much as is practicable, furnish candidates with an internship that enables them to experience the full range of the roles and duties of a principal.
- 4) Provide incentives and set expectations that promote stronger and more sustainable P-20 partnerships involving districts and universities (and, if useful, BOCES and/or third-party organizations with interest and expertise in this arena)
- 5) Pair internships with high-quality coaching and mentoring support that extends through the first full year that a principal candidate is on the job (enumerating what will be done to assure quality mentoring)
- 6) Consistent with existing language within NYS regulations pertaining to competency-based practices and the internship, create a mechanism that: (a) employs a clinically rich experience; (b) calls upon a knowledgeable in-district expert to observe and attest that a candidate has demonstrated competency with respect to a particular certification standard; (c) culminates in the issuance of a micro-credential that is recognized by NYS; and (d) provides a mechanism whereby micro-credentials can be combined in partial fulfillment of requirements for SBL certification. Micro-credentials may take the form of an annotation to an SBL certificate that signals particular expertise of the bearer of the certificate.
- 7) Revise expectations within Continuing Teacher and Leader Education (CTLE) requirements so that, in order to re-register once every 5 years, principals must demonstrate that they have acquired the knowledge, skills, and dispositions (i.e., culturally-responsive practices) that prepare them to supervise instruction in ways that address the learning needs of a diverse student population.
- 8) Create funding opportunities and non-pecuniary incentives to encourage districts and universities (and, if desired, Boards of Cooperative Education Services) to implement models of continual professional learning and to support to educators during the first three years of their career as school building leaders. These include, but are not limited to, sustainable induction models that may be tied to a principal preparation portfolio in ways that provides feedback to the individual school building leader, to the university-based SBL program, and to the school district leadership. Take steps to furnish school building leaders on-going, job-embedded professional learning and authentic experiences with diverse student populations (including English language learners, students with disabilities, etc.) during preparation and the first year on the job.

- 9) Reinforce expectations in current New York State statutes/regulations that require university-based preparation programs to maintain national accreditation (via the Council for the Accreditation of Educator Preparation, or CAEP). In part, these expectations call for higher education institutions to set goals, targets, and milestones (and report success in efforts) to increase the number and percent of candidates from historically under-represented populations who enroll and complete programs of study. Similarly, create expectations and incentives that prompt districts to set goals (and report on success in efforts) to recruit, select, develop, and place individuals from historically under-represented populations within the ranks of school building leaders
- 10) In support of the above, identify and deploy nonpublic sources of funds to improve the ability of district hiring managers to identify, recruit, select, place, and develop talented principals (both aspiring and current school building leaders). Design and implement indicators and measures to gauge the efficacy of SED efforts to: (a) support and enhance the growth of individual principals and the staff members in the schools that the principals lead; and (b) support P-20 partnerships in their efforts to improve the identification, recruitment, selection, placement and development of aspiring school building leaders (especially, but not exclusively, those from historically under-represented populations).
- 11) As a possible option (prior to full-scale implementation of State-adopted changes to the process of school building leader certification), design and offer a step-up plan that includes meaningful incentives and that makes possible a pilot involving a P-20 partnership (opt-in participation for BOCES) and a process of learning from the pilot

Taken together, these recommendations reflect a commitment to leadership for equity; in this context, the term equity means that the learning needs of every student are supported in an environment where all students are valued; respected; and experience academic success without regard to differences in age, gender, socio-economic status, religion, race, ethnicity, sexual orientation, disability, native language, national origin, or immigration status. The Department will continue to work to advance these recommendations to improve both the preparation and support of educators.

Educational excellence can be found in every corner of the State. Yet, while in some schools it is alive in every classroom, in other schools, islands of excellence are few and far between.

For New York State, the notion of striving for educational excellence and equity means:

- To achieve educational excellence, we must create conditions that ensure every student attends a school with a high-performing teacher and leader.⁵³ We can accomplish this by focusing on what matters most. Namely, we will revise the standards and competencies for preparing school leaders so that New York State standards for principal preparation correspond to the most current national standards and better match the demands of the job. Similarly, we must adjust processes (supervision, evaluation, and professional development) so that they align with and support the new leader preparation standards.
- To achieve educational equity, we must provide more, better, and different opportunities to advance learning so that all students have the support needed to experience success.

⁵³ “High-performing” educators prepare young people for success in K12 and beyond.

We can accomplish this by expecting better of ourselves as educators. The Department will pursue this by (a) creating targets that call for annually increasing the statewide overall rate of student uptake in pre-collegiate (e.g., AP, IB, etc.) coursework, (b) creating targets that call for annual increases in the statewide performance in these courses for students, and (c) creating targets that call for annual statewide decreases in the gaps by gender and race/ethnicity in uptake and performance on these pre-collegiate courses. The Department, in partnership with LEAs, will couple these expectations with enhanced outreach and support for identified subgroups, and report publicly on progress made toward identified targets.

5. Data and Consultation (ESEA section 2101(d)(2)(K)): Describe how the State will use data and ongoing consultation as described in ESEA section 2101(d)(3) to continually update and improve the activities supported under Title II, Part A.

The Department's use of Title II, Part A funding is centered on 1) helping school districts and BOCES develop comprehensive systems of support for teachers and school leaders that will help ensure that all students have equitable access to effective, experienced, and appropriately qualified teachers and leaders; and 2) creating and refining State-level programs that address the entire continuum of educators' careers, from preparation through career end.

The collection of data, creation of LEA-level equity reports, and facilitated protocol for identifying and addressing root causes of inequities, by its nature, requires the Department to use data and consult with LEAs to refine both State-level and local uses of funds in ways that maximize improvements in student achievement. For other initiatives designed to create or refine State-level systems related to educator development and support, the Department will create feedback loops, including the use of surveys and focus groups, that allow the Department to collect data, solicit feedback from stakeholders, and make refinements to support continual improvement.

Further, as a general matter, the Commissioner and other senior leadership in the Department will continue to regularly meet with a broad cross-section of stakeholders, the intention of which is to consult with the field and collect information about ongoing initiatives to ensure that the work of the Department is meeting the needs of educators and the community. Most directly related to initiatives related to Title II, Part A are groups such as New York State United Teachers, the NYS Teacher Advisory Council, the Professional Standards and Practices Board (PSPB), institutions of higher education, the School Administrators Association of New York State (SAANYS), the District Superintendents of Boards of Cooperative Educational Services (BOCES), and the NYS Council of School Superintendents.

This approach to using data and ongoing consultation will enable the Department to improve its activities while, at the same time, imposing the minimum required burden on school districts and BOCES.

6. Teacher Preparation (*ESEA section 2101(d)(2)(M)*): Describe the actions the State may take to improve preparation programs and strengthen support for teachers, principals, or other school leaders based on the needs of the State, as identified by the SEA.

See responses in Section (D)(1). Additionally, what follows is a description of the goals and recommendations of the Principal Preparation Project. While many of the concepts found here are contained within Section (D)(1), the Department's goal of preparing all students for success in college, career, and citizenship cannot be accomplished if all students do not have access to a great teacher and a great school leader. For that to occur, all school building leaders need to be well-prepared and well-supported. Principals today must have the knowledge, skills, and dispositions to address the learning needs of an increasingly diverse student population.

Unpacking what is needed to ensure that all school building leaders can be visionary instructional leaders, as described in Section A(4) of this application, requires addressing a series of obstacles. Three in particular arise:

- 4) Many principals are certified, but are not adequately prepared to be effective.
- 5) Too many principals are not adequately prepared to address the learning needs of an increasingly diverse student population.
- 6) Better alignment is needed between what is expected on the job; what is taught in principal preparation programs; and the knowledge, skills, and dispositions that are assessed to determine candidate readiness for initial school building leader certification.

To develop recommendations to address these issues, a 37-member Advisory Team met for 9 months under the auspices of the Principal Preparation Project. This diverse group of stakeholders consensually agreed to present 11 recommendations for the Commissioner and the Board of Regents; these are designed to overcome the obstacles that impede progress. These recommendations are:

- 12) Base initial principal certification on the most current national standards for educational leaders, but with emphasis added on educating all students to high levels of performance, the necessity of cultural competence, the utility of culturally relevant curricula, and the role that school leaders should play in efforts to instill a love of learning in young people.
- 13) Make initial school building leader certification competency-based. To accomplish this, translate the Professional Standards for Educational Leaders into competencies that become the basis for determining certification readiness. That is to say, aspiring school building leaders become eligible for certification by taking the knowledge, skills, and dispositions that were acquired in a university-based preparation program and applying them in a school setting to improve staff functioning, student learning, or school performance.
- 14) Provide better and set different pathways, options, and/or opportunities leading to full-time, extended-period, school-based internships for all aspiring principal candidates. As much as is practicable, furnish candidates with an internship that enables them to experience the full range of the roles and duties of a principal.

- 15) Provide incentives and set expectations that promote stronger and more sustainable P-20 partnerships involving districts and universities (and, if useful, BOCES and/or third-party organizations with interest and expertise in this arena)
- 16) Pair internships with high-quality coaching and mentoring support that extends through the first full year that a principal candidate is on the job (enumerating what will be done to assure quality mentoring)
- 17) Consistent with existing language within NYS regulations pertaining to competency-based practices and the internship, create a mechanism that: (a) employs a clinically rich experience; (b) calls upon a knowledgeable in-district expert to observe and attest that a candidate has demonstrated competency with respect to a particular certification standard; (c) culminates in the issuance of a micro-credential that is recognized by NYS; and (d) provides a mechanism whereby micro-credentials can be combined in partial fulfillment of requirements for SBL certification. Micro-credentials may take the form of an annotation to an SBL certificate that signals particular expertise of the bearer of the certificate.
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- 20) Reinforce expectations in current New York State statutes/regulations that require university-based preparation programs to maintain national accreditation (via the Council for the Accreditation of Educator Preparation, or CAEP). In part, these expectations call for higher education institutions to set goals, targets, and milestones (and report success in efforts) to increase the number and percent of candidates from historically under-represented populations who enroll and complete programs of study. Similarly, create expectations and incentives that prompt districts to set goals (and report on success in efforts) to recruit, select, develop, and place individuals from historically under-represented populations within the ranks of school building leaders
- 21) In support of the above, identify and deploy nonpublic sources of funds to improve the ability of district hiring managers to identify, recruit, select, place, and develop talented principals (both aspiring and current school building leaders). Design and implement indicators and measures to gauge the efficacy of SED efforts to: (a) support and enhance the growth of individual principals and the staff members in the schools that the principals lead; and (b) support P-20 partnerships in their efforts to improve the identification, recruitment, selection, placement and development of aspiring school

building leaders (especially, but not exclusively, those from historically under-represented populations).

- 22) As a possible option (prior to full-scale implementation of State-adopted changes to the process of school building leader certification), design and offer a step-up plan that includes meaningful incentives and that makes possible a pilot involving a P-20 partnership (opt-in participation for BOCES) and a process of learning from the pilot

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E. Title III, Part A, Subpart 1: English Language Acquisition and Language Enhancement

1. Entrance and Exit Procedures (*ESEA section 3113(b)(2)*): Describe how the SEA will establish and implement, with timely and meaningful consultation with LEAs

⁵⁴ “High-performing” educators prepare young people for success in K12 and beyond.

representing the geographic diversity of the State, standardized, statewide entrance and exit procedures, including an assurance that all students who may be English learners are assessed for such status within 30 days of enrollment in a school in the State.

New York State believes that all English Language Learners/Multilingual Learners (ELLs/MLLs) should receive the same full range of educational supports and resources as their English-speaking peers. That access begins with accurate identification of their language status. Under existing State regulations, New York State utilizes uniform ELL/MLL identification and exit criteria throughout the State and will continue to utilize these criteria. Commissioner Regulations Part 154 requires LEAs to implement an [ELL/MLL identification process](#) when a student initially enrolls or reenters a New York State public school. The identification process must commence no later than initial enrollment or reentry, and must be completed within 10 school days.

The identification process is as follows: After registration and enrollment, a Home Language Questionnaire (HLQ) is completed. If the native language is not English or the student's primary language is other than English, an individual interview is conducted in English and in the student's native/home language by qualified personnel. Qualified personnel are defined as a Bilingual Education or ESOL teacher, or a teacher trained in cultural competency, language development and the needs of ELLs/MLLs. The interview should include a review of the student's current academic performance or work samples.

If the results of the interview confirm that the native/home language is other than English, the student takes the initial English language proficiency assessment – the New York State Identification Test for English Language Learners (NYSITELL).

If there is a possibility that the student is also a Student with Interrupted Formal Education (SIFE), or if the student has an Individualized Education Plan, separate protocols are followed. SIFE are identified through the [Multilingual Literacy SIFE Screener \(MLS\)](#). The MLS is a statewide diagnostic tool created to determine SIFEs' literacy levels in their native/home language, in order to provide or to design appropriate instruction for SIFEs. ELLs/MLLs with Individualized Education Plans are identified and exited in accordance with Commissioner's Regulations [Part 154-3](#).

All ELL/MLL identification determinations are eligible for review within 45 days to address possible instances of misidentification. Once identified, all ELLs/MLLs take annually the New York State English as a Second Language Achievement Test (NYSESLAT) to determine placement for the following year. Both the NYSITELL and NYSESLAT utilize five levels of proficiency (Entering, Emerging, Transitioning, Expanding, and Commanding). On the NYSITELL, students are identified as ELLs/MLLs if they score at the Entering, Emerging, Transitioning, or Expanding levels. Those who score at the Commanding level are not identified as ELLs/MLLs. Students may exit ELL/MLL status in one of two ways: 1) by scoring at the Commanding level on the NYSESLAT, or 2) by scoring at the Expanding level on the NYSESLAT AND scoring above designated cut points on the Grades 3-8 English Language Arts Assessment or Regents Exam in English.

The above-identified ELL/MLL entrance and exit procedures were created as part of a larger set of regulatory amendments to Commissioner's Regulations Part 154 in 2014. The Department's process leading to these regulatory amendments began in 2012 with focus group discussions representing over 100 key stakeholders from across New York State. Those discussions informed the development of a statewide survey of policy options, released in June 2012, and which resulted in over 1,600 responses from teachers, principals, superintendents, advocates, and other stakeholder representative of New York State's geographic diversity and interested in the education of ELL/MLL students and in ensuring that ELL/MLL students receive instruction that is culturally responsive. The Department then used the survey results and focus group discussions to develop proposed policy changes and enhancements. These proposed changes were then shared with stakeholders for feedback and were also shared with the U.S. Department of Justice Office of Civil Rights, U.S. Department of Education staff responsible for Titles I and III of ESEA, and members of the New York State Board of Regents for review and feedback.

2. SEA Support for English Learner Progress (ESEA section 3113(b)(6)): Describe how the SEA will assist eligible entities in meeting:

- i. The State-designed long-term goals established under ESEA section 1111(c)(4)(A)(ii), including measurements of interim progress towards meeting such goals, based on the State's English language proficiency assessments under ESEA section 1111(b)(2)(G); and**
- ii. The challenging State academic standards.**

New York State has numerous vehicles for assisting ELLs/MLLs in meeting statewide long-term goals for English language proficiency. New York State funds eight Regional Bilingual Education Resource Network (RBERN) technical assistance support centers, with seven RBERNs assigned to geographic zones and one Statewide Language RBERN, that provide technical assistance and professional development to better enable the State's ELLs/MLLs to gain English proficiency and learn academic content, as well as to increase their performance, reduce dropout rates, and increase graduation rates. The RBERNs provide support and assistance to teachers, school leaders, support staff, families, and students in all LEAs and schools across the State. The RBERN network is the Department's main program initiative for the provision of professional development, in-service training, information dissemination, and technical assistance related to the education of ELLs/MLLs. Each RBERN holds an annual Regional Parent/Guardian/Caregiver Institute, which reaches over 100 participants in each region and has the goal of providing resources to ELL/MLL parents in a culturally responsive and linguistically accessible manner. For the 2016-17 school year, each RBERN conducted between 200 and 400 professional development sessions in its region.

Other professional development and support activities hosted by the Department include an Annual ELL/MLL Literacy Conference (600 people were in attendance at the first convening in 2016), a training on The Fundamentals of Leading Advanced Literacies: Instruction in Linguistically Diverse Settings (taught by Dr. Nonie Lesaux and Joan Kelley), and extensive training facilitated by the City University of New York Bridges to Academic Success program to support implementation of a SIFE low literacy curriculum in schools throughout New York

State. The Department also holds monthly ELL/MLL Leadership Council conference calls for school administrators.

The Department will continue to provide ongoing professional development to LEAs in a variety of ways. These will include utilizing the resources of our RBERNs, well-known researchers, and notable experts in the field to build capacity for school district ELL/MLL leaders and core leadership teams charged with spearheading systemic improvements for ELLs/MLLs. Professional development will include, but not be limited to, the provisions of ESSA and New York State's plan, the implementation of the New York State Next Generation P-12 English Language Arts (ELA) and Mathematics Standards, and the New Language Arts Progressions (NLAP), as well as the Home Language Arts Progressions (HLAP).

Furthermore, the Department has created numerous resources to help New York State's educators meet New York State's challenging academic standards. These include a Multilingual Literacy Screener (MLS) designed to support LEAs and schools in the identification of SIFE, P-12 Math Curriculum Modules translated into the top five languages spoken in New York State, and the PENpal Home Language Questionnaire (HLQ) Toolkit (which is the first technologically based solution to enhance appropriate identification of an ELL). The PENpal toolkit, with an interactive HLQ, currently provides verbal translation into 26 languages.

The Department is working to address a shortage of Bilingual Education (BE) and English to Speakers of Other Languages (ESOL) teachers, through several activities to support the expansion of qualified staff to serve ELLs/MLLs via contracts with ten universities for Clinically Rich-Intensive Teacher Institutes. To date, 186 teachers have completed the coursework necessary for certification in either ESOL or the BE Extension in Spanish/English. The Department has a pending Memorandum of Understanding (MOU) with Queens College of the City University of New York to train leaders in LEAs and schools with large ELL/MLL populations, and is processing an MOU with Queens College for an online Bilingual Education Extension program in both Spanish and Chinese.

Additionally, the Department has numerous resources for ELL/MLL parents. The ELL/MLL Parent Bill of Rights outlines 17 of the most critical rights of ELL/MLL parents and is translated into the following nine languages: Arabic, Bengali, Chinese, French, Haitian-Creole, Korean, Russian, Spanish, and Urdu. The Department also has a parent guide available in 25 languages (Albanian, Arabic, Bengali, Burmese, Chinese Simplified, Chinese Traditional, French, German, Haitian-Creole, Hindi, Italian, Japanese, Karen, Korean, Nepali, Portuguese, Punjabi, Russian, Somali, Spanish, Swahili, Ukrainian, Urdu, Uzbek, and Vietnamese), and a multilingual parent hotline, housed at the New York University Language RBERN, which allows ELL/MLL parents to seek educational advice in their native/home languages and in a culturally responsive manner. Finally, the Department has produced, publicly posted and disseminated a parent orientation video, available in these languages: Arabic, French, Haitian-Creole, Russian, Simplified Chinese, Traditional Chinese, and Spanish.

3. Monitoring and Technical Assistance (ESEA section 3113(b)(8)): Describe:

- i. How the SEA will monitor the progress of each eligible entity receiving a Title III, Part A subgrant in helping English learners achieve English proficiency; and**
- ii. The steps the SEA will take to further assist eligible entities if the strategies funded under Title III, Part A are not effective, such as providing technical assistance and modifying such strategies.**

In accordance with Commissioner's Regulations Part 154, each LEA must develop a Comprehensive ELL/MLL Education Plan (CEEP) that describes how the LEA meets the educational needs of ELLs/MLLs, including all subgroups of ELLs/MLLs. Additionally, each LEA submits an annual Data/Information Report to the Department. The Department reviews each CEEP and Data/Information Report to ensure compliance with Commissioner's Regulations Part 154 and Title III.

To be eligible for Title III funds for ELLs/MLLs, LEAs must have instructional programs for ELLs/MLLs that comply with Commissioner's Regulations Part 154 and Title III. The eight RBERNs across New York State also work with LEAs by providing technical assistance and professional development. The Department is developing a District/School Self-Evaluation Tool to enable LEAs to assess the degree to which their academic instruction meets ELLs'/MLLs' needs and is culturally responsive to ELL/MLL populations. This Self-Evaluation Tool includes goals, objectives, and rating scales, and requires LEAs to identify and review evidence regarding the quality of their ELL/MLL programs. If strategies and practices identified in LEAs' CEEPs and Data/Information Reports, in Corrective Action Plans, and via the District/School Self-Evaluation Tool are found to be ineffective or out of compliance, the Department will conduct in-person monitoring, as well as provide technical assistance, including data analysis and professional development for educators and administrators.

F. . Title IV, Part A: Student Support and Academic Enrichment Grants

- 1. Use of Funds (ESEA section 4103(c)(2)(A)): Describe how the SEA will use funds received under Title IV, Part A, Subpart 1 for State-level activities.**

New York State is committed to offering all students a safe, supportive, and well-rounded school experience. In accordance with ESEA Section 4104, the Department will use up to 1% of these funds to support administrative costs associated with carrying out responsibilities related to public reporting on how Title IV, Part A funds are being expended by Local Educational Agencies (LEAs), including the degree to which LEAs have made progress toward meeting the objectives and outcomes for the program. Up to 4% of SEA-level funds will be used to strengthen and expand the Department's work in the following high-priority areas:

1. Supporting LEAs in providing programs and activities that offer well-rounded and culturally responsive educational experiences to all students.

The Department is committed to supporting LEAs across New York State to ensure that every student – including students from traditionally under-served and under-represented racial, ethnic,

and socio-economic groups – has equitable and sustained access to highly effective schools that provide a well-rounded, culturally responsive education and rigorous coursework that enables students to become prepared for college, career, and civic responsibility. Toward that end, the Department will leverage programmatic and fiscal supports to increase the number of schools across New York State that demonstrate the following characteristics in serving every student:

- Visionary instructional leaders partner with all stakeholders. Visionary instructional leaders create a professional, respectful, and supportive school culture and community that values and promotes diversity and leads to success, well-being, and high academic and career expectations and outcomes for all students. This is accomplished through the use of collaborative systems of continual and sustainable school improvement.
- All students receive curricula in all disciplines that are challenging, engaging, and integrated. The curricula are tied to appropriate formative and summative assessments, which are aligned to New York State Learning Standards. This results in instruction that is relevant and responsive to student needs and modified to maximize student growth and learning outcomes.
- Teachers and staff engage in ongoing professional development to equip themselves with effective, research-based, strategic instructional practices. Teachers and staff use multiple measures, so that targeted instruction maximizes student learning outcomes. Teachers and staff address the needs and interests of diverse learners and design lessons and activities that are responsive to what students need to learn. These efforts allow students to consistently experience high levels of engagement and achievement.
- The school community identifies, promotes, and supports social, emotional, physical, and cognitive development throughout the school day. This is accomplished by designing systems, programs, and strengths-based experiences that identify and foster healthy relationships, as well as safe, inclusive, and respectful environments. These efforts lead to students developing social emotional skills and barriers to learning being removed.
- The school has active partnerships that are culturally and linguistically inclusive and in which families, students, community members, and school staff respectfully collaborate. These partnerships support student academic progress, social-emotional growth, well-being, and personal and civic responsibility, so that students have the opportunity to reach their full potential.
- The school community identifies, promotes, and supports multiple pathways to graduation and career readiness that are based on individual strengths, needs, interests, and aspirations. These pathways create access to multiple opportunities for students to pursue advanced coursework and actively explore and/or pursue specific career-related coursework and experiences in the arts, languages, and Career and Technical Education. Consequently, students develop the knowledge and skills to meaningfully transition to postsecondary opportunities and to exercise civic responsibility.
- The school community continually and critically examines and challenges its own cultural assumptions, in an effort to understand how they shape schoolwide policies and practices, so as to inform plans for continual movement toward a school environment that is inclusive, as well as linguistically and culturally responsive.
- The school community promotes cultural responsiveness and appropriate responses to individuality and differences, as reflected in policies, programs, and practices. The school

examines its cultural assumptions to inform practice and professional development on culturally and linguistically responsive pedagogy.

The Department will work to ensure that all students have access to a robust array of courses, activities, and programs in English, reading/language arts, writing, science, technology, engineering, mathematics, foreign languages, civics and government, economics, visual and performing arts, music, theater, history, geography, computer science, career and technical education, health and wellness, and physical education. The Department will also work to ensure that all students have access to effective, data-driven academic support services, including multi-tiered systems of support via Academic Intervention Services and/or Response to Intervention models. Further, the Department will encourage schools and districts to utilize curricula and education experiences that employ Universal Design for Learning principles, and create opportunities for students to see themselves in daily teaching and learning activities.

In addition to academic supports, the Department will work to ensure that students have access to non-academic support services, such as social-emotional, behavioral, mental health, and social services provided by specialized instructional support personnel, such as school counselors, school social workers, school psychologists, school nurses, speech language pathologists, audiologists, behavioral specialists, and licensed creative arts therapists. The Department will promote the practice of integrating learning supports (e.g., behavioral, mental health, and social services), instruction, and school management within a comprehensive, cohesive approach that facilitates multidisciplinary collaboration. The Department will continue to promote school and district use of its [Social and Emotional Development and Learning \(SEDL\) Guidelines](#). This guidance document aims to give New York State school communities a rationale and the confidence to address child and adolescent affective development as well as cognitive development.

The Board of Regents also strongly supports providing students access to extra-curricular opportunities so that students can serve their schools and their communities, participate in community-based internships, and engage in sports and the arts. The Department recognizes that, for many students, the provision of access to these types of well-rounded educational experiences must include supports, services, and opportunities that take place outside of the school day. The Department believes that community organizations can play a crucial role in bringing essential resources and expertise to schools, complementing and supplementing what the rest of the school day delivers. Community partnerships expand the types of learning experiences to which students are exposed, bringing arts instruction, civics and service, hands-on science, sports and physical fitness, and/or vocational education and career readiness activities into the school schedule. To ensure that all students benefit from school-community partnerships, the Department will require schools and districts undertaking a Comprehensive Needs Assessment as part of CSI or TSI school improvement and creating plans based off of such assessment to incorporate input from relevant community partners that work in the school or work with the students that the school serves in a community-based setting, such as afterschool providers, summer program providers, early care providers, community colleges, health providers, and mental health providers.

In addition, the Department will allow Title I schools that meet alternative criteria to implement a Schoolwide program, even if their poverty rates are below 40 percent in order to ensure that all students have access to a well-rounded education. As was the case under the ESEA Flexibility Waiver, New York State will use such waivers so that an LEA may implement interventions consistent with the turnaround principles or interventions that are based on the needs of the students in the school and designed to enhance the entire educational program in any of its identified schools, even if those schools do not have a poverty percentage of 40 percent or more. In making determinations about waiver requests, the Department plans to develop a rubric to assess each request against standardized criteria. The Department anticipates that waiver requests will be reviewed throughout the year to provide timely support and technical assistance to LEAs and schools during the planning process.

2. Supporting LEAs in fostering safe, healthy, supportive, and drug-free environments that support student academic achievement

The Department believes that effectively engaging parents and families is critical to establishing safe, healthy, and supportive environments for students in all schools across the State. To ensure that all students are supported by strong home-school-community partnerships, the Department will promote State-, district-, and school-level strategies for effectively engaging parents and other family members in their children's education, based on inclusive, equitable school cultures that recognize and foster student diversity. The Board of Regents recognizes that (1) improved student achievement is linked to engaging parents and families in the education process, (2) parents and families are the first educators of children, and (3) education is the shared responsibility of schools, parents and families, and the community. The Department also prioritizes family engagement as a critical component in a child's education for the following reasons:

- Family engagement supports children's school readiness academically, socially, and emotionally
- Home-school partnerships are formed when families are engaged in their child's learning
- Families that support their child's learning more easily recognize gaps, if they occur, and can advocate for needed services
- Families that are engaged in the early years tend to continue to stay engaged throughout their child's education, making smooth transitions from home to school throughout the P-12 continuum
- Family involvement benefits educational systems, as it is a contributory factor in all school improvement efforts

With these tenets in mind, the Department will continue to provide capacity-building resources and professional development for school administrators, instructional staff, and non-instructional staff who interact directly with families. The Department will provide LEAs with guidance and best practice-based resources, such as the [Dual Capacity Building Framework for Family-School Partnerships](#), to help support the targeted and effective use Title I, Part A and/or Title IV, Part A funds for parent and family outreach and engagement activities.

The Department recognizes that immigrant and ELL/MLL parents and families are often not fully engaged by schools due to language barriers, lack of understanding of cultural backgrounds, or lack of awareness of best practices to build connections with these communities. To help families and children to feel a sense of belonging and to provide them with information to enable informed educational decisions, the Department will provide support to school and districts to ensure that the cultures of all members of the school community are incorporated into engagement and improvement plans. Toward that end, the Department will build on previous work, such as [The Blueprint for English Language Learners \(ELLs\) Success](#) and the [Parents' Bill of Rights to the new Part 154 regulations](#), to develop guidelines for engaging parents and families of all subgroups of students, with emphasis on engaging parents and families of students identified as immigrant, ELL/MLL, migrant, and homeless. The Department will work to create clear definitions of effective, culturally and linguistically competent family engagement and provide additional supports to schools to help them meet their parent and family engagement requirements under ESSA. For example, the Department will direct LEAs to:

- Engage immigrant, ELL/MLL, migrant, and homeless parents in defining what high-quality parent engagement looks like within their school and district community
- Provide timely translation and interpretation of materials in the languages that families best understand, including training for family facing staff and leaders on how to access services and gather feedback to continually improve services
- Develop and implement improvement plans for CSI and TSI schools that specifically address the needs of immigrant, ELL/MLL, migrant, and homeless parents and families identified through a Comprehensive Needs Assessment
- Engage community-based organizations to help inform and deliver family engagement strategies that are culturally and linguistically appropriate
- Participate in trainings provided by community-based organizations, community walks, or home/shelter visits to help staff gain an understanding of and respect for parents' and students' cultural and linguistic backgrounds, including those of any unaccompanied immigrant youth and undocumented families
- Implement best-practice models to enhance ELL/MLL parents' abilities to support their children's education, understand the school system, and parents' rights, as well as to engage in effective two-way communication
- Share best-practice models and strategies that show evidence of effectively engaging immigrant families

Cultivating relationships with all families is critical. Early learners transition from home and early learning programs upon entering public schools and must feel welcome from the first point of contact. An additional way to welcome families is by performing home visits; an approved use of Title I, Part A, Title IV, Part A, and Title V, Part B funding. Home visits have been shown to lead to improvement in child and family outcomes by increasing parental involvement in their children's education, supporting parents' capacity to develop children's early literacy and language skills, and helping children achieve school success into the elementary grades.⁵⁵

⁵⁵ Association of State and Tribal Home Visiting Initiatives. *Home Visiting Provisions in Every Student Succeeds Act*. December 2015

It is essential to offer training opportunities that familiarize parents with school, its expectations, and how best to support and advocate for children. Supporting families by offering adult literacy and job training adult education courses within the school building or collaborating with adult education classes offered at New York State's regional [Board of Cooperative Educational Services \(BOCES\)](#) assists in building parental skill sets. Districts can also support parents' and caregivers' needs to connect with peers by hosting parenting workshops and community cafés to assist families in understanding what children need to learn. The Department also believes that it is critical for LEAs to form meaningful collaborative relationships and partnerships with community-based agencies and organizations. District staff should become familiar with community resources and connect families to organizations and services that can help them to meet their non-academic needs.

Title IV, Part A Supported State-level activities will be coordinated with the Department's ongoing efforts to foster family and community engagement, as outlined below:

- Diagnostic Tool for School and District Effectiveness ([DTSDE](#)) Domain 6 is Family and Community Engagement; families are mentioned in other domains, such as #2 School Leader Practices and Decisions and #5 Social and Emotional Developmental Health. Programs are required to disseminate parent surveys. The National PTA Standards appear throughout the DTSDE. The importance of family partnerships is further underscored in the range of supports that New York State will provide to schools identified for CSI and TSI.
- Family engagement is included in prepared Dignity Act guidance documents; Caring for Students with Life Threatening Allergies and Substance Abuse Prevention Resources; and guidance related to elements of the various expanded learning opportunities. The Department provides supportive guidance on Academic Intervention Services. The various guidance is available at the [Student Support Services website](#).
- Parent consultations are built into the program decision-making process for special education. The Department issued "[Special Education in New York State for Children Ages 3–21 A Parent's Guide](#)" and "[Information for Parents of Preschool Students with Disabilities Ages 3-5](#)." Department-funded Early Childhood Direction Centers provide information and referral services for children with disabilities ages birth through five, as well as professional development and technical assistance for families and preschool providers to improve results for preschool students with disabilities. The Pyramid Model framework includes a module for parents.
- In the area of Early Learning, the Department developed a [Quality Assurance Protocol](#) tool for evaluating prekindergarten programs. This tool includes a section on family engagement and partnerships that support transitions for children and families into early learning programs and from there to kindergarten. In addition, the Department contributed to the NYS Early Childhood Advisory Council's (ECAC) Developmentally Appropriate Practice briefs, including a Brief on [Family Engagement](#).
- Charter schools that are authorized by the Board of Regents are held accountable for providing a strong culture and climate that supports family engagement. All applications for these new charter schools require extensive and ongoing family and community

engagement and the involvement of families and communities in the planning, implementation, and design of each school.

- In the area of Higher Education, the NYS Teacher Standards includes family and community engagement principles and reference the need for ongoing work with families and the community to improve student outcomes.
- In the area of Adult Career and Continuing Education, the Department supports Family Literacy programs and [Literacy Zones](#); a reform initiative to close the achievement gap in urban and rural communities of concentrated poverty and high concentrations of families and individuals with limited literacy or English language proficiency.
- The New York State Library sponsors local library programs to engage families through programming such as the summer reading programs and programming throughout the year.
- [EngageNY](#) includes a Toolkit for Parent and Family Resources to help parents understand Regents Reform initiatives.

In addition to strong parent and family engagement, NYSED recognizes that schools and their communities play unique roles and have ongoing opportunities to positively influence every single student and his or her family, as it relates to health and well-being along the life continuum. The health and physical well-being of our students is a critical foundation for ensuring student learning. Student health is linked directly to students' academic success and future success in life. By building a strong health literacy foundation, schools can provide students with the knowledge needed to make healthful decisions and become healthy, productive adults. Research demonstrates that students who are both physically healthy and emotionally supported are more likely to attend school, be engaged, and be ready to learn.⁵⁶

While Physical Education and Health are currently required subjects for all students in grades K-12, the current standards and regulations are outdated. The Department is committed to revising current physical education and health regulations. In addition to revising regulations, the Department will encourage LEAs to adopt a Whole School, Whole Community, Whole Child model, because health-related factors such as hunger, physical and emotional abuse, and chronic illness can lead to poor school performance.⁵⁷ Research shows that school health programs positively affect educational outcomes, health-risk behaviors, and health outcomes.⁵⁸ NYSED will work to build LEA- and school-level capacity in these areas through the following:

- Publish and distribute guidance to LEAs about the importance of developing a strong health literacy foundation in school and adopting a Whole School, Whole Community, Whole Child model
- Expand and build upon existing guidance and resources to enhance school efforts to coordinate with other providers within the community to develop sustainable infrastructures for health and wellness initiatives

⁵⁶ Michael, S. L., Merlo, C. L., Basch, C. E., Wentzel, K. R. and Wechsler, H. (2015), [Critical Connections: Health and Academics](#). *J School Health*, 85: 740–758. doi:10.1111/josh.12309

⁵⁷ Dunkle MC, Nash MA. *Beyond the Health Room*. Washington, DC: Council of Chief State School Officers, Resource Center on Educational Equity; 1991

⁵⁸ Basch CE. *Healthier Students Are Better Learners: A Missing Link in School Reforms to Close the Achievement Gap*. *Equity Matters: Research Review No. 6*. New York: Columbia University; 2010

- Promote LEA use of the Centers for Disease Control and Prevention (CDC) School Health Index (SHI); a free, online self-assessment and planning tool that schools can use to evaluate and improve their health and safety policies and practices. The SHI is based on CDC's research-based guidelines for school health programs, which identify the policies and practices most likely to be effective in reducing youth health risk behaviors. It is the most comprehensive assessment of the implementation of the Whole School, Whole Community, Whole Child Model.
- Issue guidance encouraging schools to assess and evaluate current policies and practices in place in the areas of Health Services, Nutrition Services, Counseling, Psychological and Social Services, Healthy School Environment, Health Promotion for Staff, Health Education Family – Community Involvement, and Physical Education

Finally, the Department plans to continue efforts to develop and implement a statewide School Climate Index. In January 2013, the Board of Regents directed the Department to reconvene the Safe Schools Task Force to advise on ways to improve school safety in New York State. The task force developed a prioritized list of recommendations that was shared with the Board in September 2014. One of the top priority recommendations from the task force was to develop and implement a statewide School Climate Index (SCI), a multi-dimensional measure that allows schools to assess school climate and, where necessary, apply programmatic interventions aimed at improvement. New York State's proposed SCI will include three measures:

- School climate surveys administered to students, parents, and school personnel
- School Violence Index (SVI), which is calculated from data collected as part of Violent and Disruptive Incident Reporting (VADIR), based on a revised methodology
- Chronic absenteeism rates by school building, which was calculated for the first time in the 2015-16 school year from data reported by districts in the Student Information Repository System (SIRS)

Measuring school climate is a crucial step in improving school climate. By developing a climate index, a school can begin to develop an improvement plan with specific action items based on the results of the annual SCI. The SCI will:

- Facilitate dialogue and strengthen communication and collaboration among school administrators, staff, students, parents, and the community
- Incorporate task force recommendations for improving data collection that facilitate promoting safe and healthy schools; produce accurate data; and strengthen how schools and the Department can work together to compile information, track trends, and respond constructively to school safety and dignity indicators
- Provide school administrators with a multi-dimensional measure of school climate aimed at engaging students, staff, parents, and community

The Department plans to administer the United States [Department of Education school climate surveys](#) that were released in spring 2016 and are free for schools, districts, and states to use. The surveys, which are designed for middle and high school students (Grades 5 and up); school personnel; and parents, guardians, and community members, may be implemented using the web

hosting platform that USED also provided. After the survey is administered, informational reports on the survey outcomes in the areas of engagement, safety, and environment will be available to school administrators for their review and action. The Department conducted a pilot in six school districts across New York State in 2016-17. Department staff are currently engaged in the following activities:

- Gathering feedback from pilot partners about what worked and what did not
- Refining the climate index calculation
- Meeting with vendors to learn about tools that are already in use in schools that will make implementation less burdensome
- Meeting with regional information center staff to discuss their capacity to assist schools and the Department in this effort
- Determining what information will be reported to the Department
- Determining what resources districts/schools need to develop action plans
- The Department plans to expand the survey pilot to all interested LEAs in the 2017-18 school year and may move to make the surveys required starting in the 2018-2019 school year. The Department is considering that the surveys, in the future, may be added to the accountability system as a measure of School Quality and Student Success.

3. Supporting LEAs in increasing access to personalized, rigorous learning experiences supported by technology.

To improve the academic achievement and digital literacy of all students, and to enhance equitable access to quality learning experiences, the Department will support new and existing programs that focus on the utilization of technology to personalize learning; increase access to high-quality, rigorous learning experiences; and provide professional development to assist teachers in effectively utilizing technology to improve teaching and learning. The Department will work with stakeholders to provide guidance regarding digital literacy for students and will promote equitable access for all students to effective school library programs.

The Department recognizes that technology is a powerful tool that provides opportunities to more efficiently and effectively personalize learning, including providing individualized support and resources. Personalized learning is centered on tailoring instruction and learning experiences to support individual learners' strengths and needs, in turn promoting cultural and linguistic responsiveness for all students. The Department also recognizes that technology can be utilized to provide opportunities, through online, blended, and distance learning, for increased equity in accessing high-quality courses and learning experiences that might not otherwise be available, such as in rural and high-needs schools, as well as in schools that serve special populations.

The [USNY Statewide Learning Technology Plan](#), approved by the Board of Regents in 2010, outlines the educational technology mission and vision of the Board of Regents. The Plan identifies the Regents' expectation that "multiple environments will exist for teaching and

learning, unbound by place, time, income, language or disability... Students will access learning resources anywhere, anytime through the use of technology.”⁵⁹

A 2014 statute, co-sponsored by State Senator Catharine Young and Assemblywoman Catherine Nolan, and signed into law, required the Commissioner of Education to establish a temporary Online Learning Advisory Council to develop recommendations to advance online and blended learning in New York State. The Council was charged with providing the Legislature, Governor, and Commissioner of Education with the following:

- Guidance for use of a statewide online and blended learning network
- Best practices and model school district policies to inform implementation of an online and blended learning program, including broadband access
- Academic programming suited for online and blended learning
- Partnerships with institutions of higher education and other relevant stakeholders for workforce opportunities using online and blended learning
- A review of teaching and professional development policies and practices ⁶⁰

The Council, composed of nominated representatives from P-20 education stakeholder groups, delivered [a Report](#) to the Governor, NYS Legislature, and the Commissioner in November 2015. According to [the Report](#), “Based on the Council’s findings, we believe New York as a whole is behind other states in many pedagogical innovations – particularly regarding online learning. These innovations warrant significant planning and work.”⁶¹

Under the Research, Methodologies, and Examples, section of the report, the Council highlighted that “[o]nline learning should be embraced for its potential to improve educational equality. Online learning can break down geographical, financial, and social-cultural barriers in alignment with the philosophy of democratic, readily accessible education for all citizens; its benefits for facilitating improved access and equity are relevant (NYSUT,n.d). When used strategically, technology can help schools with limited funding to equal the playing field.”⁶²

The recommendations of the Council included “the development of high quality online learning courses and scalable systems of support to provide equitable access to [online learning] programs for students throughout New York State” and a “commitment to professional development...to support a transformation in pedagogy using online learning tools.”⁶³

The Council recognized that there currently exist in New York State “encouraging opportunities to create access to new online learning experiences and to create a digital transformation with online learning tools.” Significantly, “unprecedented opportunity” exists “to advance online

⁵⁹ [USNY Statewide Technology Plan](#).

⁶⁰ *New York State Online Learning Advisory Council (OLAC) Report to New York’s Governor, Legislature, and Commissioner of Education. Final Report. November 12, 2015.*

⁶¹ *OLAC Report p. 24*

⁶² *OLAC Report p. 14*

⁶³ *OLAC Report p. 7*

learning in its schools, and also to advance educational technology more broadly, with the investment of \$2 billion in the Smart Schools Bond Act.”⁶⁴

The Smart Schools Bond Act (SSBA) was passed in the 2014-15 Enacted Budget and approved by the voters in a statewide referendum held during the 2014 General Election on Tuesday, November 4, 2014. The SSBA authorized the issuance of \$2 billion of general obligation bonds to finance improved educational technology and infrastructure to improve learning and opportunity for students throughout the State. Through this funding stream, New York State districts have an unprecedented opportunity to upgrade infrastructure and purchase the technology hardware required to bring New York State schools into the 21st Century and address issues of equity related to access to technology. However, expenses such as professional development, staffing, and program costs, while essential to creating the pedagogical shifts necessary to utilize the upgraded technology to improve student achievement, are not allowable for reimbursement with SSBA funds.

The Online Learning Advisory Council, in their Report, made the following proposal: “If New York’s policymakers and lawmakers wish to advance online learning experiences for children,” including the benefits of facilitating culturally and linguistically responsive teaching and increasing equitable access to high-quality learning experiences, “it is critical that this investment [SSBA] be leveraged to ensure that not only hardware and broadband connectivity are addressed, but teachers and school leaders are also developed to ensure that practices evolve, instructional resources are used effectively, and practices are sufficiently supported so as to be sustainable.”⁶⁵

The Department recognizes that quality, ongoing teacher and administrator professional development on best practices and instructional methodologies related to educational technology is critical to successful implementation. The Department also understands that professional development continues to be a significant need in order for districts to realize their educational technology goals, based on analysis of district self-reported data included in District Instructional Technology Plans, which are required by Commissioner’s Regulation 100.12.

To address the expectations of the Board of Regents as stated in the USNY Statewide Technology Plan; address the recommendations brought forth by the New York Online Learning Advisory Council to the NYS Legislature, Governor’s Office, and Commissioner of Education; and further the work already occurring across the State, including initiatives made possible through Smart Schools Bond Act reimbursement funds, the Department plans to continue to support new and existing programs that focus on the utilization of technology to enhance teaching and learning, including

- Using technology to personalize learning
- Using technology to increase access to high-quality, rigorous learning experiences (such as through online, distance, and blended learning)

⁶⁴ *OLAC Report p. 5*

⁶⁵ *OLAC Report p. 5*

- Support professional development to assist teachers in effectively utilizing technology to improve teaching and learning

The Department also recognizes that digital literacy is vital to success in college, careers, and citizenship. The [USNY Statewide Learning Technology Plan](#) identifies that “technology is a path for teaching and learning, but it is also a body of practices, skill, and knowledge to be learned. All New York State learners will develop technological literacy to enter college, become productive members of the workforce, and succeed as citizens.”⁶⁶ The Department will continue its work with stakeholder groups to create guidance on digital literacy for students.

The Department will further support the academic achievement and digital literacy of all students by promoting equitable access for all students to effective school library programs, which includes instruction delivered by State-certified school librarians and access to professionally curated resources that:

- Improve student academic achievement
- Develop strong skills in inquiry and across multiple literacies, including digital literacy
- Help prepare college- and career-ready graduates
- Provide an engaging and safe space that connects students to the school
- Provide student opportunities to engage in the creative process through STEAM initiatives

The Department will promote equitable access for all students to effective school library programs through a three-tiered approach. In Tier One, the Department will offer guidance on the use of Title 1 funds for activities such as: hiring certified school librarians, providing up-to-date literacy materials, including librarians in school and district-wide professional development opportunities, and supporting collaboration between school librarians and classroom teachers to infuse educational technology across classrooms. Tier Two would consist of Department support for LEA definitions of effective school library programs, appropriate staffing levels, and sharing of examples of model programs and promising practices. Tier Three includes the Department incorporating measures of effective school library programs as a non-accountability measure on the State’s data dashboard.

In addition to the three priority areas listed above, New York State will also provide training, technical assistance, and capacity-building to LEAs and will monitor LEAs that receive a Title IV, Part A allocation. Finally, the Department will work to identify and eliminate any State barriers to the coordination and integration of programs, initiatives, and funding streams that meet Title IV Part A purposes so that LEAs can better coordinate with other agencies, schools, and community-based services and programs.

2. Awarding Subgrants (*ESEA section 4103(c)(2)(B)*): Describe how the SEA will ensure that awards made to LEAs under Title IV, Part A, Subpart 1 are in amounts that are

⁶⁶ [USNY Statewide Technology Plan](#).

consistent with ESEA section 4105(a)(2).

In accordance with ESEA Section 4105, NYSED will use funds reserved under section 4104(a)(1) to award subgrants, on an allocational basis, to local educational agencies receiving Title I Part A funds, or consortia of such LEAs, in order to enable the agencies or consortia to support activities authorized under one or more of sections 4107, 4108, and 4109(a). In compliance with Section 4105(a)(2), NYSED will award such subgrants with priority given to local educational agencies, or consortia of local educational agencies, with the greatest need based on the number or percentage of children counted under section 1124(c), in a manner that ensures geographic diversity among subgrant recipients representing rural, suburban, and urban areas, and in a manner that distribute the total amount of funds available to the State under section 4104(a)(1).

G. Title IV, Part B: 21st Century Community Learning Centers

1. Use of Funds (ESEA section 4203(a)(2)): Describe how the SEA will use funds received under the 21st Century Community Learning Centers program, including funds reserved for State-level activities.

New York State views 21st-Century Community Learning Centers (21st CCLC) as extensions of its classrooms, providing critical academic support, enrichment, and family engagement activities to students. In accordance with ESEA Section 4202, the Department will allocate not less than 95% of funds to LEAs for implementation of approved activities. Funds for State-level activities will include a 2% set-aside for grant administration and a 3% set-aside for monitoring and evaluation, including administering the peer review process. Specific State-level activities currently underway that will continue include:

- The Department uses federal 21st CCLC funds to award two Technical Assistance Resource Centers (TARCs) contracts, one for New York City sub-grantees and one for Rest of the State subgrantees, to assist the Department in supporting and monitoring subgrantees' use of funds, and one State-level evaluation contract to measure the Department's administration of the 21st CCLC grant program and its effectiveness in New York State. The resource centers assist the Department in monitoring sub-grantees' use of funds and provide professional development and technical assistance to sub-grantees.
- Development of a State-level data collection and reporting system is currently in progress, using set-aside funds, to support the State-level evaluation. This will enable the Department to measure the effectiveness of the 21st CCLC programming in New York State. Currently, subgrantees are required to enter data annually into the federal Annual Performance Reporting (APR) system administered by the Tactile Group. Those data are not available to states or the State-level evaluator and, therefore, cannot be used to report on program effectiveness in New York State. The development of a State-level data system will make this possible.
- STEM/STEAM professional development and other resources are made available to 21st CCLC subgrantees via the TARCs and/or the website that the Centers maintain. The bi-

annual professional development events coordinated by the TARCs include STEM and/or STEAM-themed offerings for subgrantees.

- Support for effective partnerships occurs through professional development opportunities, website resources, and ongoing technical assistance provided by the two TARCs contracted by the Department and by Department program staff.

The Department is considering additional non-academic measures of student outcomes, as a result of participation in 21st CCLC programming. Various assessments, including, but not limited to, social-emotional assessments, are being tested by local program evaluators. The measures that New York State is required to provide for the annual performance reporting to the federal government include report card grades and State assessment score data for regularly attending student participants. These measures are known to be lagging indicators of success that tend to occur after improvements in such measures as school attendance, student engagement, social and emotional well-being, and reduction in disciplinary issues have taken place. With an understanding of this fact, New York State's State-level evaluator has facilitated networking sessions for local evaluators interested in piloting interim indicators of student success and improvement as predictors of academic measures of success that would help inform the State's ability to measure the program's effectiveness in New York State.

2. Awarding Subgrants (ESEA section 4203(a)(4)): Describe the procedures and criteria the SEA will use for reviewing applications and awarding 21st Century Community Learning Centers funds to eligible entities on a competitive basis, which shall include procedures and criteria that take into consideration the likelihood that a proposed community learning center will help participating students meet the challenging State academic standards and any local academic standards.

In making awards to eligible applicants, the Department anticipates using substantially similar processes and criteria to those that were used to administer approximately \$80 million in funds as part of a Request for Proposals (RFP) that was issued in Fall 2016. Specific processes and criteria are detailed below:

Procedures for Awarding Subgrants:

The Department utilized a prequalification requirement to increase accountability of external organization grantees. As per the RFP: The State of New York has implemented a [statewide prequalification process](#) designed to facilitate prompt contracting for not-for-profit vendors. All not-for-profit vendors are required to pre-qualify by the grant application deadline. This includes all currently funded not-for-profit institutions that have already received an award and are in the middle of the program cycle.

A rigorous peer review process was conducted that adheres to the requirements set forth in this legislation, which requires that peer reviewers be selected for their expertise in providing effective academic, enrichment, youth development, and related services to children, and that also requires that peer reviewers not include applicants or their representatives. Peer reviewers are recruited primarily via the 21st CCLC listserv, which reaches 21st CCLC State Coordinators

nationwide. Peer reviewers apply via an online application, and Department staff review applications and select reviewers based on expertise and experience. Selected peer reviewers are required to sign a document that denies any conflict of interest with any current applicants and are assigned applications for review outside of the reviewer's geographic location. Peer reviewers are required to attend a training webinar that provides them with detailed instructions for completing reviews, as well as guidance regarding strengths and weaknesses to look for, a review of timelines, advice on how to write appropriate, constructive comments, how to use the rating scale, and the importance of the reviewer's role and the potential effect of inaccurate scoring. Training addresses how to read and evaluate budget narratives and budget proposals, including how to determine whether expenses are allowable under the program, required cost caps are adhered to, and sufficient description of requested funding is provided. The webinar is recorded for later reference, as well as to accommodate any reviewers who are unable to attend the live training. Reviewers' expertise, combined with the reviewer training and the strength of the scoring rubric, supported reliable and consistent scores; however, due to the nature of this process, individual scores, at times, vary by more than 15 points. In these cases, as set forth in the RFP, a third reviewer rates the application and the two scores mathematically closest to each other are averaged for the final score.

New subgrant awardees are required to meet with Department program staff to ensure agency capacity. Prior to final award, Department program staff will meet with potential lead agency awardees that have not administered a grant with the Department in the past, and those agencies that have had prior single audit findings in relation to 21st CCLC funding to confirm agency capacity to administer the 21st CCLC grant. The purpose of this meeting is for the Department to clearly articulate the fiscal requirements of the grant.

To manage on-going risk of subgrant awardees, the 21st CCLC program office is finalizing a newly created Risk Assessment Tool. This tool will be used to assess the risk of each awarded subgrantee to prioritize monitoring, evaluation, and technical assistance visits starting in Year 1 of the grant award, and then annually thereafter to reassess risk based on fiscal and programmatic factors.

Criteria for Awarding Subgrants:

In its most recent Request for Proposals, the Department focused on highest-need schools (priority points) to direct resources to areas where transitions are likely to be most difficult. To be eligible for Title IV Part B funding, at least 2/3 of the students an applicant serves must attend:

1. Schools eligible for schoolwide programs under Title I, Section 1114 of the Every Student Succeeds Act, or
2. Schools with at least 40 percent of students eligible for free or reduced priced lunch and the families of these students.

In compliance with ESEA Section 4204(i)(1), New York State awarded priority points to applications that will serve primarily students who attend a school (e.g., public school, private school, or charter school) that meets one or more of the following criteria:

- Priority Schools⁶⁷, including Struggling and Persistently Struggling Schools
- Focus Schools⁶⁸
- High-Need Rural Schools.
- Persistently Dangerous Schools
- Limited English Proficiency Student count equal to or greater than 5%

For subgrantees proposing to serve students in more than one school, at least 2/3 of the students served must attend a school on one of the competition priority lists above to be eligible for priority points.

In addition, the Department directed applicants to utilize Title IV, Part B funds to support the following types of activities to help ensure that participating students meet the challenging New York State academic standards and any local academic standards:

- Expanded Learning Time programming that brings external organization resources to more students. All programs must be implemented through a partnership that includes at least one LEA receiving funds under Title I, Part A and at least one (1) BOCES, nonprofit agency, city or county government agency, faith-based organization, institution of higher education, Indian tribe or tribal organization, or for-profit corporation with a demonstrated record of success in designing and implementing before school, after school, summer learning, or expanded learning time activities.⁶⁹ Applicants must collaborate with partners, including the eligible school(s) that the students attend. A partnership signifies meaningful involvement in planning, as well as specific individual or joint responsibilities for program implementation. Multiple program options may be used by recipients of 21st CCLC funding, including before school, after school, weekends, holidays, or summer recess. Program funds may also be used to expand learning time to provide activities within the school day in schools implementing an expanded learning time program that provides students with at least 300 additional program hours per year before; during; or after the traditional school day, week, or year.
- New York State Guidelines for Social and Emotional Development focused on supporting development of the “whole child.” Activities should be aligned and coordinated with the regular school day and school day teachers, challenging New York State learning standards, school and district goals, and preparing students for college and careers. The [NYS Guidelines for Social and Emotional Development and Learning](#) should be reflected in the proposed program.
- High-Quality Family Engagement as an integral part of all programming. Students and parents should be meaningfully involved in the planning and design of the program, and should continue to have ongoing, meaningful involvement in planning throughout the

⁶⁷ This will be updated to reflect CSI designations starting in 2018-2019 based on 2017-18 school year data.

⁶⁸ This will be updated to reflect TSI designations starting in 2018-2019 based on 2017-18 school year data.

⁶⁹ A local educational agency (LEA) could apply without a partner if the LEA demonstrated that it was unable to partner with a community-based organization in reasonable geographic proximity and of sufficient quality to meet the requirements of 21st CCLC. An LEA wishing to apply under this provision was required to notify the NYS Education Department’s Office of Student Support Services in advance.

duration of the program. Families of participants should be provided ongoing opportunities for meaningful engagement in children's education, including opportunities for literacy and related educational development. Services for families should be based on a needs assessment to determine what families need and want. In addition to the mandatory offering of family literacy programming, subgrantees are required to establish an advisory committee that includes all relevant stakeholders, including parents and students (when age-appropriate). Schools that regularly convene an advisory committee that includes community-based partners can help ensure that afterschool and summer offerings are coordinated and that community resources are effectively leveraged to provide student supports that extend beyond the school day.

- The administration of the Quality Self-Assessment (QSA) Tool by all 21st CCLCs twice each year for the purposes of self-assessment and planning for program improvement. Applicants must design the program to include the 10 essential elements of high-quality expanded learning opportunity programs outlined in the [Network for Youth Success Quality Self-Assessment \(QSA\) Tool](#). The 10 essential elements of high-quality programs, listed below, are the foundation for all professional development provided to 21st Century programs by the Department, and the 21st Century Technical Assistance Resource Centers (TARCs): Environment and Climate; Administrative and Organization; Relationships; Staffing and Professional Development; Programming and Activities; Linkages Between the Day and After School; Youth Participation and Engagement; Parent, Family, and Community Partnerships; Program Sustainability and Growth; Measuring Outcomes; and Evaluation.
- External local program evaluation requirement to ensure that the subgranted program is implemented with fidelity and that student outcomes are measured for program effectiveness. Subgrantees are required to have a comprehensive program-level evaluation plan conducted by an external evaluator that enables ongoing program assessment and quality improvement, following the requirements detailed in the New York State 21st CCLC Evaluation Manual.⁷⁰ Grantees are required to ensure that students and families will have meaningful involvement throughout the evaluation process to enhance stakeholder investment.
- Minimum daily attendance targets to encourage program retention and to ensure that funds are supporting consistency of services and reduction of school-day chronic absenteeism. Grantees must furnish the Department with a roster of participants served in its program and the hours of participation for each participant as of June 30th in each program year. Students must attend the program for a minimum of 30 hours in the program year to be considered a participant. In grant years two through five for non-profit grantees, and years one through five for for-profit grantees, if there is less than 95% of the student participation target set forth in the 2017-2018 application's Participating Schools Form, the grantee's budget will be proportionately reduced by the amount of the percentage deficiency.

⁷⁰The [21st CCLC Evaluation Manual](#)

H. Title V, Part B, Subpart 2: Rural and Low-Income School Program

a. Outcomes and Objectives (*ESEA section 5223(b)(1)*): Provide information on program objectives and outcomes for activities under Title V, Part B, Subpart 2, including how the SEA will use funds to help all students meet the challenging State academic standards.

The Rural and Low-Income School (RLIS) Program goal and objective in New York State is that LEAs will use resources under this program to assist the rural LEAs in New York State that have a proportionately high rate of poverty among its population in meeting New York State's challenging academic standards under the Every Student Succeeds Act. The Department expects LEAs to meet these standards by utilizing the flexible funds provided by the RLIS program to:

1. Improve teaching and learning in the classroom through:
 - a. Providing rich professional development to teachers and administrators in schools
 - b. Providing learning tools and resources that engage children and assist them in obtaining the knowledge necessary to succeed in postsecondary education or employment
2. Improve equity in the classroom for students, especially for subgroups that are typically disadvantaged in education, such as students in poverty, minority students, English Language Learners, and students with disabilities

Allowable uses of RLIS funds to improve teaching and learning, as well as equity, in the classroom include:

1. Use RLIS funds to augment Title I services provided by the LEA
2. Use RLIS funds to increase professional development opportunities for teachers and administrators in the LEA (activities allowable under Title II, Part A)
3. Use RLIS funds to increase services for English Language Learners (Activities allowable under Title III)
4. Use RLIS funds for allowable purposes under Title IV, Part A of ESSA, such as:
 - a. Parental engagement activities to promote school/family collaboration and student success
 - b. Activities to support safe and healthy students, such as drug and violence prevention programs, school-based mental health programs, and programs on nutrition and healthful living
 - c. Activities to support the effective use of technology in the classroom
 - d. Activities to support a well-rounded education, such as providing greater access to STEM programming, college and career counseling and guidance, and programs that include art and/or music as tools to support student success

b. Technical Assistance (*ESEA section 5223(b)(3)*): Describe how the SEA will provide technical assistance to eligible LEAs to help such agencies implement the activities described in ESEA section 5222.

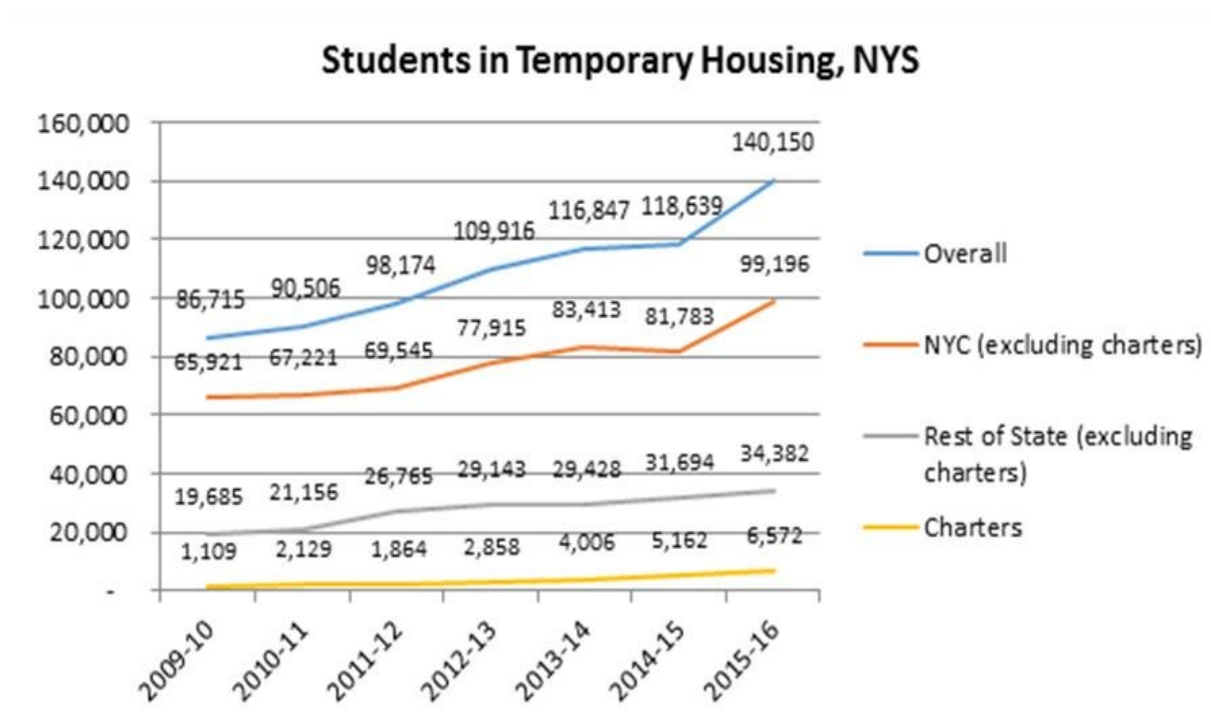
The Department will, through the RLIS Coordinator and other Department resources, provide technical assistance to LEAs throughout the grant process, as needed. Technical assistance topics may include navigating the grant application and budget process, allowability of costs under the program, and assistance in determining the needs of the district in coordination with the accountability plan. Upon request by the LEA, the Department will provide technical assistance on the implementation of LEA programs funded by RLIS by a Department subject-matter expert, based on which allowable use(s) of funds the LEA selects to use for its RLIS program.

I. Education for Homeless Children and Youth program, McKinney-Vento Homeless Assistance Act, Title VII, Subtitle B

1. Student Identification (722(g)(1)(B) of the McKinney-Vento Act): Describe the procedures the SEA will use to identify homeless children and youth in the State and to assess their needs.

Under federal law, it is the responsibility of the local educational agency (LEA) McKinney-Vento liaisons to identify children and youth experiencing homelessness. LEAs in New York State include school districts, charter schools, and Boards of Cooperative Educational Services (BOCES). This responsibility, as well as the definition of children and youth experiencing homelessness, is incorporated into New York State Education Law (New York Education Law Section 3209) and Commissioner's Regulations (8 N.Y.C.R.R. Section 100.2(x)).

New York State has seen a significant increase in the number of children and youth experiencing homelessness, as illustrated in the chart below.



The Department recognizes that much of the identification of our temporarily housed children and youth is accomplished through the local liaisons, as they serve as one of the primary contacts between temporarily housed families and school staff, district personnel, shelter workers, and other service providers. In support of the liaisons and LEAs, the Department currently engages multiple strategies to identify and assess the needs of homeless children and youth. These strategies include: training, outreach, technical assistance and guidance, monitoring, McKinney-Vento subgrants, NYS Education Law 3209, and Commissioner's Regulations. Collectively these strategies are used to ensure that, regardless of where or when children become temporarily housed, the problems that homeless children and youth have faced in enrolling, attending, and succeeding in school are promptly addressed.

The Department and the New York State Technical and Education Assistance Center for Homeless Students or NYS-TEACHS (the Department contracts with a third party to house NYS-TEACHS, which provides much of the Department's technical assistance related to McKinney-Vento), have ensured that LEAs properly identify children and youth experiencing homelessness and assess their needs by providing trainings to LEAs, assistance with and guidance about particular issues and cases, and monitoring of LEAs. In addition, our use of multiple strategies in support include:

- Training: offered to an extensive audience, which include homeless liaisons; district staff; district administrators; other State agencies; and community service providers, within many venues and subject areas, with a particular focus on New York City.
- Outreach: to families, service providers, and partners to identify homeless children and youth and to assess their needs. This is accomplished by distribution of posters, website presence, presentations, and agency and interagency collaboration that has been critical to the implementation and identification of our temporarily housed students.

The Department and NYS-TEACHS will continue these efforts. In particular, the Department and NYS-TEACHS will continue to:

- Require that LEAs collect data on whether a student is homeless and the type of temporary housing arrangement that the student has if the student has been identified as homeless, consistent with federal requirements. These data are reported to the Department.
- Require that LEAs receiving Title I funds (and encourage all other LEAs) to use the model [Housing Questionnaire](#) to identify children and youth experiencing homelessness. LEAs are instructed to give the Housing Questionnaire to assess the child's or youth's housing arrangement any time that a child or youth is seeking enrollment in the LEA or has a change of address.
- Evaluate LEA identification practices as a part of the Department's targeted and consolidated monitoring protocol
- Offer [tuition reimbursement](#) to LEAs for students identified as homeless who enroll in the school district where the temporary housing is located, if that district is different from the district where the student was last permanently housed

- Publish and distribute guidance to LEAs about identifying children and youth experiencing homelessness and assessing their needs. The most recent [guidance memo](#) summarized the changes to the McKinney-Vento Act as a result of ESSA, including the change in the definition of homeless children and youth
- Collaborate with State and local agencies (e.g., departments of social services) to ensure that children and youth experiencing homelessness are properly identified
- Regularly post updated information regarding identifying children and youth experiencing homelessness and assessing their needs on the [Department's website](#) and the [NYS-TEACHS](#) website
- Offer free McKinney-Vento posters in 10 languages and brochures in English and Spanish to LEAs (approximately 50,000 are distributed). These [brochures and posters](#) include information about which children and youth may be McKinney-Vento eligible.
- Publicly post the names and contact information for all [LEA liaisons](#), which helps facilitate inter-district collaboration to identify children and youth experiencing homelessness, as well as to assess their needs
- Answer inquiries through the NYS-TEACHS hotline and via email (approximately 2,600 inquiries per year) concerning the identification of children and youth experiencing homelessness, the assessment of their needs, and other McKinney-Vento-related issues
- Track barriers related to the identification of children and youth experiencing homelessness, as well as other McKinney-Vento-related barriers, and follow up with LEAs, as needed, to ensure that that barrier is corrected going forward
- Conduct five, large, half-day workshops per year (three in New York City and two in other parts of the State) that include information about identifying children and youth experiencing homelessness and assessing their needs
- Conduct 22 regional trainings per year that include information about identifying children and youth experiencing homelessness and assessing their needs
- Conduct 22 webinars per year that include information about identifying children and youth experiencing homelessness and assessing their needs
- Post [data on the number of children and youth identified as homeless](#) by LEA
- Provide [analysis of which LEAs may have under-identified children and youth experiencing homelessness](#)
- Target outreach for participation in McKinney-Vento trainings to LEAs that may have under-identified children and youth experiencing homelessness
- Develop and update [resources for LEAs related to trauma-sensitivity](#) to better enable them to assess and meet the needs of children and youth experiencing homelessness
- Regularly email liaisons about McKinney-Vento-related updates, including updates related to identifying homeless children and youth and assessing their needs

2. Dispute Resolution (722(g)(1)(C) of the McKinney-Vento Act): Describe procedures for the prompt resolution of disputes regarding the educational placement of homeless children and youth.

New York State Regulations detail the dispute resolution process related to McKinney-Vento claims (see 8 N.Y.C.R.R. 100.2(x)(7)). The regulations require that:

- LEAs have a process to resolve McKinney-Vento disputes (e.g., disputes related to a child's eligibility under the McKinney-Vento Act, enrollment, school selection, or transportation)
- Students be enrolled immediately in the school where enrollment is sought, and transportation, if requested, pending final resolution of the dispute
- LEAs provide the parent, guardian, or youth (in the case of a dispute involving an unaccompanied youth) written notice that includes:
 - The reason for the LEA's decision
 - Information about the right to appeal the LEA's decision, including notice that the LEA's decision will be stayed for 30 days to allow the parent, guardian, or youth to appeal the LEA's decision to the Department
 - Contact information for the McKinney-Vento liaison and a statement that the McKinney-Vento liaison is available to help the parent, guardian, or youth with any appeal to the Department
 - A copy of the State appeal form

Below are the procedures and strategies that the Department and/or NYS-TEACHS have undertaken and will continue to undertake to ensure the prompt resolution of McKinney-Vento-related disputes:

- Revised its [McKinney-Vento appeal process](#) to ensure that continued enrollment and transportation, if requested, is provided until the Department has issued a final decision on any McKinney-Vento-related appeal, consistent with the requirements in the McKinney-Vento Act as amended by ESSA
- Made its [McKinney-Vento appeal forms available in six languages](#)
- Published a [Field Memo](#) in 2011 detailing the timelines and forms involved in McKinney-Vento appeals. The Department will update or replace this guidance to reflect the updated appeal process that allows for continued enrollment and transportation until the Department issues a final decision on any appeal.
- Published documents to help ensure the prompt resolution of McKinney-Vento appeals, such as the Appeal Sample Evidence document, which details the parent's burden of proof in the McKinney-Vento appeal process and includes a [description of sample evidence for McKinney-Vento appeals](#), and the [Sample District Dispute Resolution Policy](#), which was recently updated to reflect the changes made to the McKinney-Vento dispute resolution process under ESSA. NYS-TEACHS will continue to draft and disseminate materials related the prompt resolution of McKinney-Vento-related disputes on its [website](#), as needed
- Evaluate LEA dispute practices as a part of the Department's targeted and consolidated monitoring protocol
- Collaborate with State and local agencies (e.g., departments of social services) to ensure prompt resolution of McKinney-Vento disputes
- Offer free McKinney-Vento [brochures in English and Spanish](#) to LEAs, which include information about the dispute resolution process
- Publicly post the [names and contact information for all of the LEA liaisons](#), which helps facilitate communication with liaisons and prompt resolution of disputes.

- Answer inquiries through the NYS-TEACHS hotline and via email concerning the prompt resolution of disputes, and other McKinney-Vento-related issues
- Track barriers related to the prompt resolution of disputes, as well as other McKinney-Vento-related barriers, and follow up with LEAs, as needed, to ensure that that barrier is corrected going forward
- Conduct five, large, half-day workshops per year (3 in New York City and 2 in other parts of the State) that include information about the dispute resolution process
- Conduct 22 regional trainings per year that include information about the dispute resolution process
- Conduct 22 webinars per year, most of which include information about the dispute resolution process
- Regularly communicate with liaisons about McKinney-Vento-related updates, including updates related to promptly resolving disputes

3. Support for School Personnel (722(g)(1)(D) of the McKinney-Vento Act): Describe programs for school personnel (including the LEA liaisons for homeless children and youth, principals and other school leaders, attendance officers, teachers, enrollment personnel, and specialized instructional support personnel) to heighten the awareness of such school personnel of the specific needs of homeless children and youth, including runaway and homeless children and youth.

As described previously, the Department and its technical assistance center provide an array of programs for school personnel (including the LEA liaisons for homeless children and youth, principals and other school leaders, attendance officers, teachers, enrollment personnel, and specialized instructional support personnel such as, but not limited to, school counselors; school social workers; school psychologists school nurses; speech language pathologists; audiologists; behavioral specialists; and licensed creative arts therapists) to heighten the awareness of such school personnel of the specific needs of homeless children and youth, including runaway and homeless children and youth. For more detailed information on the programs and strategies that the Department and its technical assistance center provide, see the responses to questions one and two above.

4. Access to Services (722(g)(1)(F) of the McKinney-Vento Act): Describe procedures that ensure that:

- i. **Homeless children have access to public preschool programs, administered by the SEA or LEA, as provided to other children in the State;**

Many of the procedures and strategies detailed above, such as the hotline, onsite and online trainings, posting resources online, and notifying districts of updates via email, specifically address ensuring that children experiencing homelessness have access to LEA- and SEA-administered preschool programs. Additionally, the Department and NYS-TEACHS will undertake or continue to undertake the below procedures and strategies to ensure that homeless children have access to LEA- and SEA-administered preschool programs:

- Offer two [webinars](#) specifically focused on connecting children who are homeless with quality early care and education programs, including LEA- and SEA-administered preschool programs
- Publish and disseminate [guidance related to ensuring that homeless children have access to SEA- and LEA-administered preschool](#)
- Continue to require that LEA-administered Pre-K programs screen all children to determine their housing status
- [Allow for variance in class size](#) in order to accommodate a child who is homeless in a Pre-K classroom when it otherwise would be considered full
- Provide information in our trainings about the McKinney-Vento liaison's responsibility to connect young children who are homeless with Pre-K, Head Start, early intervention services, and other LEA-administered preschool programs
- Regularly collaborate with the New York Head Start Collaboration Director. Previous collaboration resulted in the development of a [template Housing Questionnaire](#) and Tip Sheet for Head Start Providers related to [serving children experiencing homelessness](#)
- Regularly collaborate with the Department's Office of Early Learning
- Participate in the New York State Early Childhood Advisory Council, which provides counsel to the Governor on issues related to young children and their families
- Provide updated resources on the [NYS-TEACHS](#) website related to connecting young children experiencing homelessness with quality early care and education programs and better serving them in such programs

- ii. **Homeless youth and youth separated from public schools are identified and accorded equal access to appropriate secondary education and support services, including by identifying and removing barriers that prevent youth described in this clause from receiving appropriate credit for full or partial coursework satisfactorily completed while attending a prior school, in accordance with State, local, and school policies; and**

The Department will continue to work with LEAs to develop local policies and procedures to ensure that homeless youth separated from public schools are identified and accorded equal access to appropriate secondary education and support services, including by identifying and removing barriers that prevent youth from receiving appropriate credit for full or partial coursework satisfactorily completed. In its [McKinney-Vento ESSA guidance memo](#), the Department reminded LEAs that they must remove barriers related to the awarding of full or partial credit. The Department will also develop additional statewide guidance on this topic, as necessary.

- iii. **Homeless children and youth who meet the relevant eligibility criteria do not face barriers to accessing academic and extracurricular activities, including magnet school, summer school, career and technical education, advanced placement, online learning, and charter school programs, if such programs are available at the State and local levels.**

The Department will continue to revise its policies and practices and work with LEAs to revise

Revised State Template for the Consolidated State Plan

and develop their policies and procedures to ensure that homeless children and youth who meet the relevant eligibility criteria do not face barriers to accessing academic and extracurricular activities, including magnet school, summer school, career and technical education, Advanced Placement, online learning, and charter school programs. The Department has already issued several guidance documents to LEAs regarding this issue:

- In its [McKinney-Vento ESSA guidance memo](#), the Department reminded LEAs that they must remove barriers to homeless students accessing academic and extra-curricular activities, including magnet schools, summer school, career and technical education, Advanced Placement courses, online learning, and charter schools. This memo also provided specific guidance about missed deadlines for charter school enrollment lotteries and ensuring access for children and youth who are homeless.
- The Department issues an annual Field Memo to LEAs reminding them to ensure access to summer school, including the waiving of any fees and the provision of transportation if the lack of this service poses a barrier to participation for students who are homeless.
- The Department issued several [Field Memos regarding students in temporary housing accessing charter schools in 2010 and 2013](#)

The Department will develop additional statewide guidance on this topic as necessary.

5. Strategies to Address Other Problems (722(g)(1)(H) of the McKinney-Vento Act): Provide strategies to address other problems with respect to the education of homeless children and youth, including problems resulting from enrollment delays that are caused by—

- i. requirements of immunization and other required health records;**
- ii. residency requirements;**
- iii. lack of birth certificates, school records, or other documentation;**
- iv. guardianship issues; or**
- v. uniform or dress code requirements.**

Many of the strategies detailed above, such as answering questions that come through on NYS-TEACHS hotline, providing onsite and online trainings, reporting enrollment barriers, monitoring districts, posting resources online, and notifying districts of updates via email specifically address the elimination of enrollment delays related to requirements of immunization and other required health records; residency requirements; lack of birth certificates, school records, or other documentation; guardianship issues; or uniform or dress code requirements. Additionally, New York State Education Law and Commissioner's Regulations prohibit enrollment delays for children and youth experiencing homeless and require their immediate enrollment in school. The Department will provide additional guidance to LEAs as needed.

6. Policies to Remove Barriers (722(g)(1)(I) of the McKinney-Vento Act): Demonstrate that the SEA and LEAs in the State have developed, and shall review and revise, policies to remove barriers to the identification of homeless children and youth, and the enrollment and retention of homeless children and youth in schools in the State, including barriers to enrollment and retention due to outstanding fees or fines, or absences.

The Department has worked closely with the Governor and the legislature to amend New York State law to comply with the recent changes to the McKinney-Vento Act. These amendments were signed into law on April 20, 2017. Corresponding regulations went into effect July 1, 2017. In its [McKinney-Vento ESSA guidance memo](#), the Department reminded LEAs that they must remove barriers to enrollment and retention due to outstanding fees or fines, or absences. The Department will continue to review and revise its policies and issue additional guidance as needed. The Department and NYS-TEACHS will also continue to undertake the strategies detailed above, such as answering questions that come through on NYS-TEACHS hotline; providing onsite and online trainings; reporting barriers related to identification, enrollment, or retention; monitoring districts; posting resources online; and notifying districts of updates via email to ensure that LEAs remove barriers to identification, enrollment, and retention of children and youth who are homeless.

7. Assistance from Counselors (722(g)(1)(K)): A description of how youths described in section 725(2) will receive assistance from counselors to advise such youths, and prepare and improve the readiness of such youths for college.

Higher education is the key to helping students experiencing homelessness escape poverty. The Department and its technical assistance center, NYS-TEACHS, have posted resources for counselors to use when advising, preparing, and improving the readiness of homeless youth for college (see NYS-TEACHS webpage: “Accessing College for Students in Temporary Housing” at <https://nysteachs.org/topics/higher-education/>). The webpage provides counselors and students with information about strategies to improve access to college, financial aid including scholarships, information about fee waivers, and other resources. Of note, a McKinney-Vento Liaison Checklist: *Supporting College Access* linked at: <https://nysteachs.org/resources/nys-teachs-supporting-college-access-checklist/> has been designed to help school district liaisons and counselors meet their obligations under the federal McKinney-Vento Act, which requires that:

- Liaisons ensure that school personnel working with students who are homeless receive professional development;
- School districts ensure that youth who are homeless do not face barriers to accessing academic and extracurricular activities and are provided with transportation if needed;
- School districts award full or partial credit for coursework satisfactorily completed at a prior school;
- School districts ensure that youths who are homeless receive college counseling;
- Liaisons ensure that unaccompanied youth who are homeless are told that they can apply for federal financial aid as independent students and are given verification of their independent student status for purposes of the FAFSA; and

- Liaisons ensure that youth are referred to housing services.

The Department will also develop guidance setting forth expectations for how LEAs should ensure that youths described in section 725(2) will receive assistance from counselors to advise such youths, and prepare and improve the readiness of such youths for college. The Department and NYS-TEACHS will continue to undertake the strategies detailed previously, such as answering questions that come through on NYS-TEACHS hotline, providing onsite and online trainings, reporting barriers related to access to college counseling, monitoring districts, , and notifying districts of updates via email to ensure that youths described in section 725(2) will receive assistance from counselors to advise such youths, and prepare and improve the readiness of such youths for college.

Appendix A: Measurements of interim progress

Instructions: Each SEA must include the measurements of interim progress toward meeting the long-term goals for academic achievement, graduation rates, and English language proficiency, set forth in the State’s response to Title I, Part A question 4.iii, for all students and separately for each subgroup of students, including those listed in response to question 4.i.a. of this document. For academic achievement and graduation rates, the State’s measurements of interim progress must take into account the improvement necessary on such measures to make significant progress in closing statewide proficiency and graduation rate gaps.

A. Academic Achievement

Grades 3-8 ELA								
Group Name	2022– 2023 Baseline	2024 – 2025 MIP	2025– 2026 MIP	2026– 2027 MIP	2027– 2028 MIP	2028– 2029 MIP	2024– 2025 to 2028– 2029 Long Term Goal	End Goal
All Students	120.1	123.3	126.5	129.7	132.9	136.1	136.1	200
Asian/Pacific Islander	177.9	178.8	179.7	180.6	181.5	182.3	182.3	200
Black	111.3	114.8	118.3	121.8	125.3	129	129	200
Economically Disadvantaged	106.2	110	113.8	117.6	121.4	125	125	200
English Language Learners	88.5	93	97.5	102	106.5	110.8	110.8	200
Hispanic	103.6	107.5	111.4	115.3	119.2	122.9	122.9	200
Multiracial	122.6	125.7	128.8	131.9	135	138.1	138.1	200
American Indian/Alaska Native	118.9	122.1	125.3	128.5	131.7	135.1	135.1	200
Students With Disabilities	63.4	68.9	74.4	79.9	85.4	90.7	90.7	200
White	120.5	123.7	126.9	130.1	133.3	136.4	136.4	200

Grades 3-8 Mathematics								
Group Name	2022– 2023 Baseline	2024 – 2025 MIP	2025– 2026 MIP	2026 – 2027 MIP	2027– 2028 MIP	2028– 2029 MIP	2024– 2025 to 2028– 2029 Long Term Goal	End Goal
All Students	124.4	127.4	130.4	133.4	136.4	139.5	139.5	200
Asian/Pacific Islander	190.5	190.9	191.3	191.7	192.1	192.4	192.4	200
Black	102.8	106.7	110.6	114.5	118.4	122.2	122.2	200
Economically Disadvantaged	106.3	110	113.7	117.4	121.1	125	125	200
English Language Learners	99.7	103.7	107.7	111.7	115.7	119.8	119.8	200
Hispanic	101.7	105.6	109.5	113.4	117.3	121.4	121.4	200
Multiracial	126	129	132	135	138	140.8	140.8	200
American Indian/Alaska Native	117.1	120.4	123.7	127	130.3	133.7	133.7	200
Students With Disabilities	67.2	72.5	77.8	83.1	88.4	93.8	93.8	200
White	132	134.7	137.4	140.1	142.8	145.6	145.6	200

Table 2: High School Measures of Interim Progress

High School ELA								
Group Name	2022– 2023 Baseline	2024– 2025 MIP	2025– 2026 MIP	2026– 2027 MIP	2027– 2028 MIP	2028 – 2029 MIP	2024– 2025 to 2028– 2029 Long Term Goal	End Goal
All Students	131.6	134.9	138.2	141.5	144.8	148.3	148.3	215
Asian/Pacific Islander	137.4	140.5	143.6	146.7	149.8	152.9	152.9	215
Black	90	95	100	105	110	115	115	215
Economically Disadvantaged	98.5	103.2	107.9	112.6	117.3	121.8	121.8	215
English Language Learners	42.8	49.7	56.6	63.5	70.4	77.2	77.2	215
Hispanic	94.8	99.6	104.4	109.2	114	118.8	118.8	215
Multiracial	141.7	144.6	147.5	150.4	153.3	156.4	156.4	215
American Indian/Alaska Native	97.3	102	106.7	111.4	116.1	120.8	120.8	215
Students With Disabilities	69.6	75.4	81.2	87	92.8	98.7	98.7	215
White	168.3	170.2	172.1	174	175.9	177.6	177.6	215

High School Mathematics								
Group Name	2022– 2023 Baseline	2024– 2025 MIP	2025– 2026 MIP	2026– 2027 MIP	2027– 2028 MIP	2028– 2029 MIP	2024– 2025 to 2028– 2029 Long Term Goal	End Goal
All Students	59	64.6	70.2	75.8	81.4	87.2	87.2	200
Asian/Pacific Islander	111.3	114.8	118.3	121.8	125.3	129	129	200
Black	31	37.8	44.6	51.4	58.2	64.8	64.8	200
Economically Disadvantaged	45	51.2	57.4	63.6	69.8	76	76	200
English Language Learners	29.9	36.7	43.5	50.3	57.1	63.9	63.9	200
Hispanic	36.9	43.4	49.9	56.4	62.9	69.5	69.5	200
Multiracial	57.8	63.5	69.2	74.9	80.6	86.2	86.2	200
American Indian/Alaska Native	43.9	50.1	56.3	62.5	68.7	75.1	75.1	200
Students With Disabilities	22.2	29.3	36.4	43.5	50.6	57.8	57.8	200
White	69.5	74.7	79.9	85.1	90.3	95.6	95.6	200

B. Graduation Rates

4-Year Cohort Graduation Rate (%)								
Group Name	2018 4-Yr GR Baseline	2024– 2025 MIP	2025– 2026 MIP	2026– 2027 MIP	2027– 2028 MIP	2028– 2029 MIP	2024– 2025 to 2028– 2029 Long Term Goal	End Goal
All Students	87.2	87.5	87.8	88.1	88.4	88.8	88.8	95
Asian/Pacific Islander	93.3	93.4	93.5	93.6	93.6	93.6	93.6	95
Black	82.1	82.6	83.1	83.6	84.1	84.7	84.7	95
Economically Disadvantaged	82.6	83.1	83.6	84.1	84.6	85.1	85.1	95
English Language Learners	70.5	71.5	72.5	73.5	74.5	75.4	75.4	95
Hispanic	81	81.6	82.2	82.8	83.4	83.8	83.8	95
Multiracial	86.3	86.6	86.9	87.2	87.5	88	88	95
American Indian/Alaska Native	81.9	82.4	82.9	83.4	83.9	84.5	84.5	95
Students With Disabilities	69.4	70.4	71.4	72.4	73.4	74.5	74.5	95
White	91.6	91.7	91.8	91.9	92	92.3	92.3	95

5-Year Cohort Graduation Rate (%)								
Group Name	2017 5-Yr GR Baseline	2024– 2025 MIP	2025– 2026 MIP	2026– 2027 MIP	2027– 2028 MIP	2028– 2029 MIP	2024– 2025 to 2028– 2029 Long Term Goal	End Goal
All Students	89.1	89.4	89.7	90	90.3	90.5	90.5	96
Asian/Pacific Islander	94.1	94.2	94.3	94.4	94.5	94.5	94.5	96
Black	84.4	84.9	85.4	85.9	86.4	86.7	86.7	96
Economically Disadvantaged	85.2	85.6	86	86.4	86.8	87.4	87.4	96
English Language Learners	75.3	76.1	76.9	77.7	78.5	79.4	79.4	96
Hispanic	83.9	84.4	84.9	85.4	85.9	86.3	86.3	96
Multiracial	89.3	89.6	89.9	90.2	90.5	90.6	90.6	96
American Indian/Alaska Native	85.2	85.6	86	86.4	86.8	87.4	87.4	96
Students With Disabilities	72	73	74	75	76	76.8	76.8	96
White	92.8	92.9	93	93.1	93.2	93.4	93.4	96

6-Year Cohort Graduation Rate (%)								
Group Name	2016 6-Yr GR Baseline	2024– 2025 MIP	2025– 2026 MIP	2026– 2027 MIP	2027– 2028 MIP	2028– 2029 MIP	2024– 2025 to 2028– 2029 Long Term Goal	End Goal
All Students	88.6	88.9	89.2	89.5	89.8	90.3	90.3	97
Asian/Pacific Islander	93.6	93.7	93.8	93.9	94	94.3	94.3	97
Black	84.1	84.6	85.1	85.6	86.1	86.7	86.7	97
Economically Disadvantaged	84.6	85.1	85.6	86.1	86.6	87.1	87.1	97
English Language Learners	71.3	72.3	73.3	74.3	75.3	76.4	76.4	97
Hispanic	82.7	83.3	83.9	84.5	85.1	85.6	85.6	97
Multiracial	88.9	89.2	89.5	89.8	90.1	90.5	90.5	97
American Indian/Alaska Native	80.9	81.5	82.1	82.7	83.3	84.1	84.1	97
Students With Disabilities	72.1	73.1	74.1	75.1	76.1	77.1	77.1	97
White	92.9	93.1	93.3	93.5	93.7	93.7	93.7	97

C. Progress in Achieving English Language Proficiency

Subject	Group	2022–2023 Baseline	Gap from End Goal	5 Year Gap Reduction Goal	Yearly Gap Reduction Goal	2024– 2025 Target	2025– 2026 Target	2026– 2027 Target	2027– 2028 Target	2028– 2029 Target	2024– 2025 to 2028– 2029 Long Term Goal	End Goal
ELP	ELLs/MLLs	32%	63%	13%	2.5%	34.5%	37%	39.5%	42%	44.5%	44.5%	95%

Currently, 32% of New York State ELLs/MELLs meet their progress expectations. Since the end goal is to have 95% of students meet their progress expectations, the gap is 63%. The long-term goal is to have 20% of that gap closed within 5 years, which is the 2028–2029 school year. Twenty percent of 63% equals 13%, when rounded to the nearest whole number. The annual progress for the long-term goal is divided equally by the number of years, and, therefore, is 2.5 percentage points.

Appendix B

OMB Control
No. 1894-0005 (Exp. 03/31/2017)

NOTICE TO ALL APPLICANT

The purpose of this enclosure is to inform you about a new provision in the Department of Education's General Education Provisions Act (GEPA) that applies to applicants for new grant awards under Department programs. This provision is Section 427 of GEPA, enacted as part of the Improving America's Schools Act of 1994 (Public Law (P.L.) 103-382).

To Whom Does This Provision Apply?

Section 427 of GEPA affects applicants for new grant awards under this program. **ALL APPLICANTS FOR NEW AWARDS MUST INCLUDE INFORMATION IN THEIR APPLICATIONS TO ADDRESS THIS NEW PROVISION IN ORDER TO RECEIVE FUNDING UNDER THIS PROGRAM.**

(If this program is a State-formula grant program, a State needs to provide this description only for projects or activities that it carries out with funds reserved for State-level uses. In addition, local school districts or other eligible applicants that apply to the State for funding need to provide this description in their applications to the State for funding. The State would be responsible for ensuring that the school district or other local entity has submitted a sufficient section 427 statement as described below.)

What Does This Provision Require?

Section 427 requires each applicant for funds (other than an individual person) to include in its application a description of the steps the applicant proposes to take to ensure equitable access to, and participation in, its Federally-assisted program for students, teachers, and other program beneficiaries with special needs. This provision allows applicants discretion in developing the required

description. The statute highlights six types of barriers that can impede equitable access or participation: gender, race, national origin, color, disability, or age. Based on local circumstances, you should determine whether these or other barriers may prevent your students, teachers, etc. from such access or participation in, the Federally-funded project or activity. The description in your application of steps to be taken to overcome these barriers need not be lengthy; you may provide a clear and succinct description of how you plan to address those barriers that are applicable to your circumstances. In addition, the information may be provided in a single narrative, or, if appropriate, may be discussed in connection with related topics in the application.

Section 427 is not intended to duplicate the requirements of civil rights statutes, but rather to ensure that, in designing their projects, applicants for Federal funds address equity concerns that may affect the ability of certain potential beneficiaries to fully participate in the project and to achieve to high standards. Consistent with program requirements and its approved application, an applicant may use the Federal funds awarded to it to eliminate barriers it identifies.

What are Examples of How an Applicant Might Satisfy the Requirement of This Provision?

The following examples may help illustrate how an applicant may comply with Section 427.

- (1) An applicant that proposes to carry out an adult literacy project serving, among others, adults with limited English proficiency, might describe in its application how it intends to distribute a brochure about the proposed project to such potential participants in their native language.
- (2) An applicant that proposes to develop instructional materials for classroom use might describe how it will make the

materials available on audio tape or in braille for students who are blind.

(3) An applicant that proposes to carry out a model science program for secondary students and is concerned that girls may be less likely than boys to enroll in the course, might indicate how it intends to conduct "outreach" efforts to girls, to encourage their enrollment.

(4) An applicant that proposes a project to increase school safety might describe the special efforts it will take to address concern of lesbian, gay, bisexual, and transgender students, and efforts to reach out to and involve the families of LGBT students

We recognize that many applicants may already be implementing effective steps to ensure equity of access and participation in their grant programs, and we appreciate your cooperation in responding to the requirements of this provision

Estimated Burden Statement for GEPA Requirements

According to the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless such collection displays a valid OMB control number. Public reporting burden for this collection of information is estimated to average 1.5 hours per response, including time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. The obligation to respond to this collection is required to obtain or retain benefit (Public Law 103-382. Send comments regarding the burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to the U.S. Department of Education, 400 Maryland Ave., SW, Washington, DC 20210-4537 or email ICDocketMgr@ed.gov and reference the OMB Control Number 1894-0005.

Response:

New York State remains committed to ensuring equitable access to, and participation in, its Federally-assisted program for students, teachers, and other program beneficiaries with special needs through the implementation of several laws and regulations. The State Education Department does not discriminate on the basis of age, color, religion, creed, disability, marital status, veteran status, national origin, race, gender, genetic predisposition or carrier status, or sexual orientation in its educational programs, services and activities. In New York, all local educational agencies must comply with NYS Education Law § 3201 which states that discrimination on account of race, creed, color or national origin is prohibited. Further, Education Law § 3201 requires that no person shall be refused admission into or be excluded from any public school in the state of New York on account of race, creed, color or national origin.

NYSED has consistently affirmed its commitment to this goal in recent years, including through recent projects such as our 2015 Plan to Ensure Equitable Access to Effective Educators (“State’s Equity Plan”), the Strengthening Teacher and Leader Effectiveness (STLE) Grant, the Teacher Incentive Fund Grant, the Teacher Opportunity Corps, and the New York State My Brother’s Keeper Initiative (“My Brother’s Keeper”) - all of which are focused on the management of human capital in ways that help close and eliminate equity gaps so that all young people have the chance to reach their full potential. More recently, with assistance from private philanthropy, NYSED has launched the Principal Preparation Project, which aims to enhance state support for the development of school building leaders.

The Board of Regents is committed to using its ESSA plan to increase equity of outcomes in New York State’s schools. New York envisions its ESSA plan will promote educational equity via the following strategies:

Paperwork Burden Statement According to the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless such collection displays a valid OMB control number. The valid OMB control number for this information collection is 1810-0576. The time required to complete this information collection is estimated to average 249 hours per response, including the time to review instructions, search existing data resources, gather the data needed, and complete and review the information collection. If you have any comments concerning the accuracy of the time estimate(s) or suggestions for improving this collection, please write to: U.S. Department of Education, Washington, DC 20202-4537. If you have comments or concerns regarding the status of your individual submission of this collection, write directly to: Office of Elementary and Secondary Education, U.S. Department of Education, 400 Maryland Ave., S.W., Washington, DC 20202-3118.

1. Publish annually the per-pupil expenditures for each Local Education Agency (LEA) and school in the state to highlight instances where resources must be reallocated to better support those students with the greatest needs.
2. Publish annually a report examining equitable access to effective teachers per district and facilitate the ability of districts to address inequities through strengthening mentoring/induction programs, targeting professional development, or improving career ladders.
3. Use the Needs Assessment process to identify inequities in resources available to schools and require districts to address these inequities in their improvement plans.
4. Reduce inequities in allocation of resources to schools by districts by establishing an annual cycle of resource allocation reviews in districts with large numbers of identified schools.
5. Direct additional support and assistance to low-performing schools based on school results and the degree to which they are improving.
6. Focus on fairness and inclusion of all NYS students in state assessments through involvement of educators and application of Universal Design for Learning concepts in test development.
7. Leverage the creation of P-20 partnerships that explicitly recognize the importance of institutions of higher education and other preparatory programs to improve the quality and diversity of the educator workforce.
8. Require that any teacher transferring from another school in the district to a Comprehensive Support and Improvement school must have been rated as Effective or Highly Effective in the most recent evaluation year.
9. Use Title I School Improvement Funds to support the efforts of districts to increase diversity and reduce socio-economic and racial/ethnic diversity in schools.
10. Develop state and local policies and procedures to ensure that homeless youth are provided equal access to appropriate educational supports, services, and opportunities as their peers.
11. Create uniform transition plans for students exiting neglected or delinquent facilities and require school districts to appoint a transition liaison to ensure the students' successful return to school.
12. Explicitly design the State accountability system to require schools and districts to reduce gaps in performance among subgroups, incentivize districts to provide opportunities for advanced coursework to all high school students, to continue to support students who need more than four years to meet graduation requirements, and work with students who have left school so that they can earn a high school equivalency diploma.

Specific to the activities described in the Title II, Part A section of this application, the initiatives related to teacher preparation and ongoing professional development are designed to ensure that all aspiring and practicing teachers and school leaders have equitable access to training and differentiated support that will ensure that they have the knowledge, skills, and abilities to meet the needs of all students. Further, the provisions in Title I of this application related to ensuring that all students have equitable access to experienced, effective, and qualified educators are designed to ensure that all students, including our highest need students, have access to educators that can provide them with the support needed for personal academic success. Our plan provides strategies that are designed to close gaps in access to great teachers and leaders for students across New York State, including students with disabilities, English language learners, and students in poverty.

These sets of goals reflect the state's commitment to improving student learning results by creating well-developed systems of support for achieving dramatic gains in student outcomes.